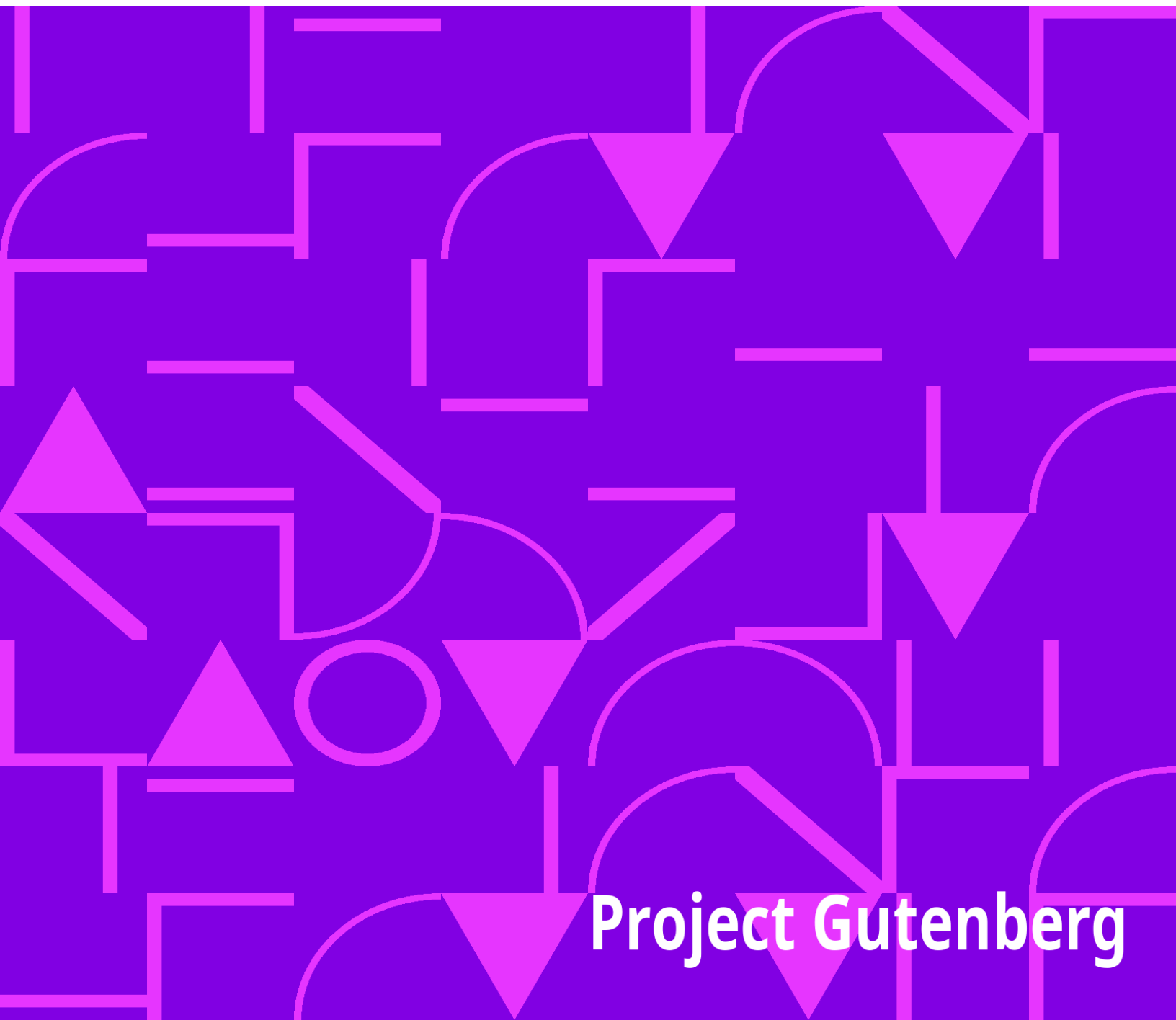


The Humorous Story of Farmer Bumpkin's Lawsuit

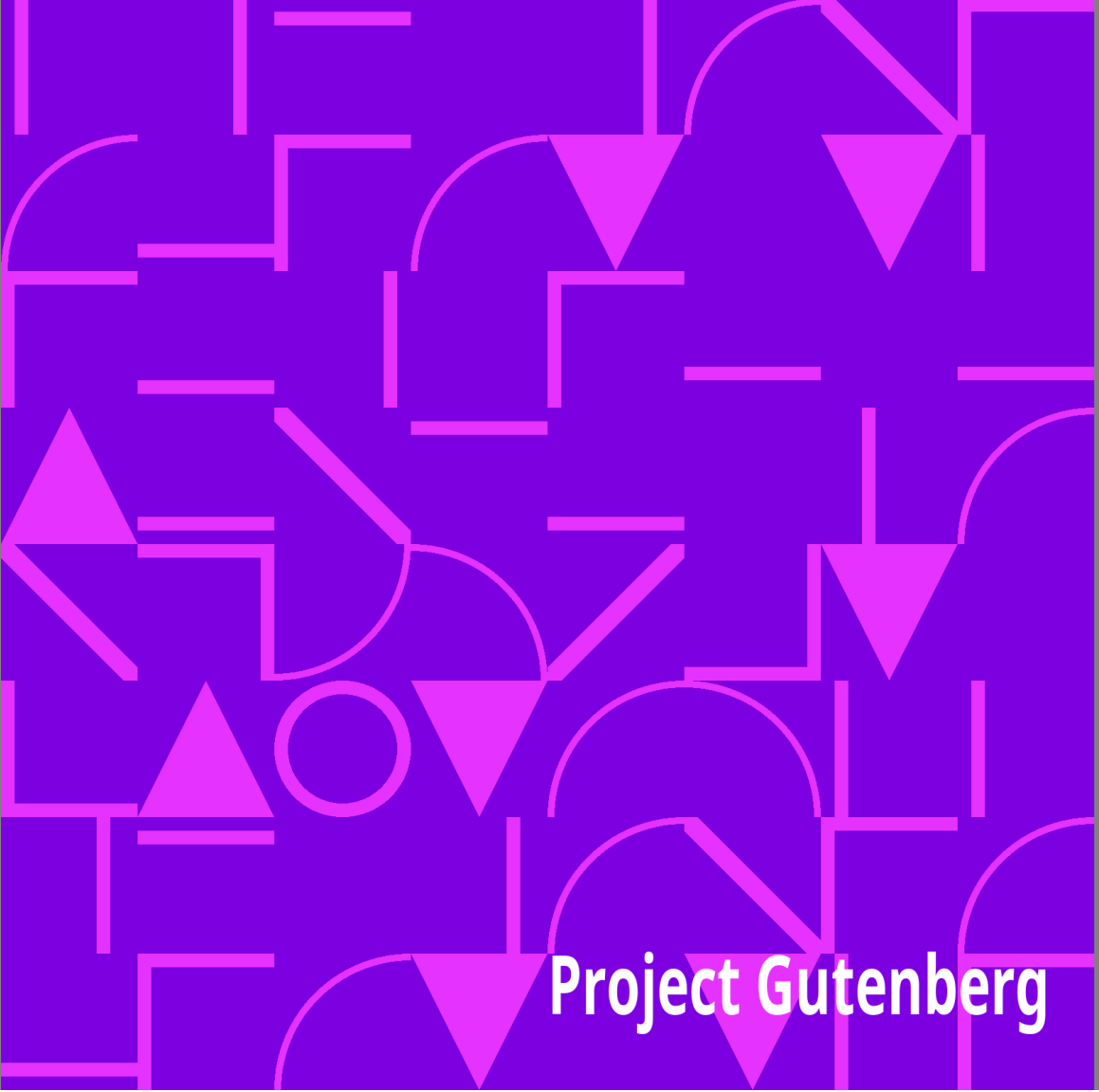
Richard Harris



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The Humorous Story of Farmer Bumpkin's Lawsuit

Richard Harris



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HUMOUROUS STORY OF FARMER BUMPKIN'S LAWSUIT ***

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**THE
HUMOUROUS STORY
OF
FARMER BUMPKIN'S
LAWSUIT:**

BY
RICHARD HARRIS,

BARRISTER-AT-LAW,
AUTHOR OF "HINTS ON ADVOCACY," ETC., ETC.

SECOND EDITION.

LONDON:
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PREFACE TO THE SECOND EDITION.

Considering the enormous interest which the Public have in “a more efficient and speedy administration of justice,” I am not surprised that a Second Edition of “Mr. Bumpkin’s Lawsuit” should be called for so soon after the publication of the first. If any proof were wanting that I had not overstated the evils attendant on the present system, it would be found in the case of *Smitherman v. The South Eastern Railway Company*, which came before the House of Lords recently; and judgment in which was delivered on the 16th of July, 1883. The facts of the case were extremely simple, and were as follow:—A man of the name of Smitherman was killed on a level crossing of the South Eastern Railway Company at East Farleigh, in December, 1878. His widow, on behalf of herself and four children, brought an action against the Company on the ground of negligence on the part of the defendants. The case in due course was tried at the Maidstone Assizes, and the plaintiff obtained a verdict for £400 for herself and £125 for each of the children. A rule for a new trial was granted by the Divisional Court: the rule for the new trial was discharged by the Court of Appeal. The Lords reversed the decision of the Court of Appeal, and ordered a new trial. New trial took place at Guildhall, City of London, before Mr. Baron Pollock; jury again found for the plaintiff, with £700 *agreed* damages: Company thereby saving £200. Once more rule for new trial granted by Divisional Court: once more rule discharged by Court of Appeal: once more House of Lords reverse decision of Court of Appeal, and order *second new trial*. So that after more than four years of harassing litigation, this poor widow and her children are left in the same position that they were in immediately after the accident—except that they are so much the worse as being liable for an amount of costs which need not be calculated. The case was tried by competent judges and special juries; and yet, by the subtleties of the doctrine of contributory negligence, questions of such extreme nicety are raised that a third jury are required to give an

opinion *upon the same state of facts* upon which two juries have already decided in favour of the plaintiff and her children.

Such is the power placed by our complicated, bewildering, and inartistic mode of procedure, in the hands of a rich Company.

No one can call in question the wisdom or the learning of the House of Lords: it is above criticism, and beyond censure; but the House of Lords itself works upon the basis of our system of Procedure, and as that is neither beyond criticism nor censure, I unhesitatingly ask, *Can Old Fogeyism and Pettifoggism further go?*

RICHARD HARRIS.

LAMB BUILDING, TEMPLE,
October, 1883.

PREFACE TO THE FIRST EDITION.

When Old Fogeyism is being lowered to his last resting place, Pettifoggism, being his chief mourner, will be so overwhelmed with grief that he will tumble into the same grave. How then to hasten the demise of this venerable Humbug is the question. Some are for letting him die a natural death, others for reducing him gradually by a system of slow starvation: for myself, I confess, I am for knocking him on the head at once. Until this event, so long wished for by all the friends of Enlightenment and Progress, shall have happened, there will be no possibility of a Reform which will lessen the needless expense and shorten the unjustifiable delay which our present system of legal procedure occasions; a system which gives to the rich immeasurable advantages over poor litigants; and amounts in many cases not only to a perversion of justice but to a denial of it altogether.

Old Fogeyism only tinkers at reform, and is so nervous and incompetent that in attempting to mend one hole he almost invariably makes two. The Public, doubtless, will, before long, undertake the much needed reform and abolish some of the unnecessary business of “judges’ chambers,” where the ingenuity of the Pettifogging Pleader is so marvellously displayed. How many righteous claims are smothered in their infancy at this stage of their existence!

I have endeavoured to bring the evils of our system before the Public in the story of Mr. Bumpkin. The solicitors, equally with their clients, as a body, would welcome a change which would enable actions to be carried to a legitimate conclusion instead of being stifled by the “Priggs” and “Locusts” who will crawl into an honorable profession. It is impossible to keep them out, but it is not impossible to prevent their using the profession to the injury of their clients. All respectable solicitors would be glad to see the powers of these unscrupulous gentlemen curtailed.

The verses at the end of the story have been so often favourably received at the Circuit Mess, that I thought an amplified version of them in prose would not be unacceptable to the general reader, and might ultimately awaken in the public mind a desire for the long-needed reform of our legal procedure.

RICHARD HARRIS.

LAMB BUILDING, TEMPLE,
July, 1883.

ADVERTISEMENT.

On the 4th of December, 1882, Our Gracious Queen, on the occasion of the opening of the Royal Courts of Justice, said:—

“I trust that the uniting together in one place of the various branches of Judicature in this my Supreme Court, will conduce to the *more efficient* and *speedy* administration of justice to my subjects.”

On April 20th, 1883, in the House of Commons, Mr. H. H. Fowler asked the Attorney-General whether he was aware of the large number of causes waiting for trial in the Chancery Division of the High Court, and in the Court of Appeal; and whether the Government proposed to take any steps to remedy the delay and increased cost occasioned to the suitors by the present administration of the Judicature Acts.

The Attorney-General said the number of cases of all descriptions then waiting for trial in the Chancery Division was 848, and in the Court of Appeal 270. The House would be aware that a committee of Judges had been engaged for some time in framing rules in the hope of getting rid of some of the delay that now existed in the hearing of cases; and until those rules were prepared, which would be shortly, the Government were not desirous of interfering with a matter over which the Judges had jurisdiction. The Government were now considering the introduction of a short Judicature Act for the purpose of lessening the delay.—*Morning Post*.

[No rules or short Judicature Act at present!] [\[0a\]](#)

On the 13th April, 1883, Mr. Glasse, Q.C., thus referred to a statement made by Mr. Justice Pearson of the Chancery Division: “The citizens of this great country, of which your Lordship is one of the representatives, will look at the statement you have made with respectful amazement.” The statement appears to have been, that his Lordship had intended to continue

the business of the Court in exactly the same way in which it had been conducted by Mr. Justice Fry; but he had been informed that he would have to take the interlocutory business of Mr. Justice Kay's Court whilst his Lordship *was on Circuit*; and, as it was requisite that he should take his own interlocutory business *before the causes set down for hearing*, "ALL THE CAUSES IN THE TWO COURTS MUST GO TO THE WALL"!!! His Lordship added, that it would be necessary for him to rise at 3 o'clock every day (not at 3 o'clock in the *morning*, gentle reader), because he understood he should have to conduct the business of Mr. Justice Kay's Chambers as well as his own.—*Morning Post*.

On the 16th April, 1883, Mr. Justice Day, in charging the Grand Jury at the Manchester Spring Assizes, expressed his disagreement with the opinion of the other Judges in favour of the Commission being so altered that the Judge would have to "*deliver all the prisoners detained in gaol*," and regarded it as "a waste of the Judge's time that he should have to try a case in which a woman was indicted for *stealing a shawl worth 3s. 9d.*; or a prisoner charged with stealing *two mutton pies and two ounces of bacon*."—*Evening Standard*.

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“He never suffered his private partiality to intrude into the conduct of publick business. Nor in appointing to employments did he permit solicitation to supply the place of merit; wisely sensible, that a proper choice of officers is almost the whole of Government.”—BURKE.

Extract from Notice of the Work in THE SATURDAY REVIEW, September 15th, 1883:—

“He was obviously quite as eager for a good battle in Court as ever was Dandy Dinmont.”

CHAPTER I.

The beauty of a farm yard on a Sabbath day, and what a difference a single letter will sometimes make in the legal signification of a sentence.

It was during the Long Vacation—that period which is Paradise to the Rich and Purgatory to the Poor Lawyer—to say nothing of the client, who simply exists as a necessary evil in the economy of our enlightened system of Legal Procedure: it was during this delightful or dismal period that I returned one day to my old Farm-house in Devonshire, from a long and interesting ramble. My excellent thirst and appetite having been temperately appeased, I seated myself cosily by the huge chimney, where the log was always burning; and, having lighted my pipe, surrendered my whole being to the luxurious enjoyment of so charming a situation. I had scarcely finished smoking, when I fell into a sound and delicious sleep. And behold! I dreamed a dream; and methought:

It was a beautiful Sabbath morning, in the early part of May, 18--, when two men might have been seen leaning over a pigstye. The pigstye was situated in a farm-yard in the lovely village of Yokelton, in the county of Somerset. Both men had evidently passed what is called the “prime of life,” as was manifest from their white hair, wrinkled brows, and stooping shoulders. It was obvious that they were contemplating some object with great interest and thoughtful attention.

And I perceived that in quiet and respectful conversation with them was a fine, well-formed, well-educated sow of the Chichester breed. It was plain from the number of her rings that she was a sow of great distinction, and, indeed, as I afterwards learned, was the most famous for miles around: her progeny (all of whom I suppose were honourables) were esteemed and sought by squire and farmer. How that sow was bred up to become so

polite a creature, was a mystery to all; because there were gentlemen's homesteads all around, where no such thoroughbred could be found. But I suppose it's the same with pigs as it is with men: a well-bred gentleman may work in the fields for his living, and a cad may occupy the manor-house or the nobleman's hall.

The Chichester sow looked up with an air of easy nonchalance into the faces of the two men who smoked their short pipes, and uttered ever and anon some short ejaculation, such as, "Hem!" "Ah!" "Zounds!" and so forth, while the sow exhibited a familiarity with her superiors only to be acquired by mixing in the best society. There was a respectful deference which, while it betrayed no sign of servility, was in pleasing contrast with the boisterous and somewhat unbecoming levity of the other inhabitants of the sty. These people were the last progeny of this illustrious Chichester, and numbered in all eleven—seven sons and four daughters—honourables all. It was impossible not to admire the high spirit of this well-descended family. That they had as yet received no education was due to the fact that their existence dated only from the 21st of January last. Hence their somewhat erratic conduct, such as jumping, running, diving into the straw, boring their heads into one another's sides, and other unceremonious proceedings in the presence of the two gentlemen whom it is necessary now more particularly to describe.

Mr. Thomas Bumpkin, the elder of the two, was a man of about seventy summers, as tall and stalwart a specimen of Anglo-Saxon peasantry as you could wish to behold. And while I use the word "peasantry" let it be clearly understood that I do so in no sense as expressing Mr. Bumpkin's present condition. He had risen from the English peasantry, and was what is usually termed a "self-made man." He was born in a little hut consisting of "wattle and dab," and as soon as he could make himself heard was sent into the fields to "mind the birds." Early in the November mornings, immediately after the winter sowings, he would be seen with his little bag of brown bread round his neck, trudging along with a merry whistle, as happy as if he had been going home to a bright fire and a plentiful breakfast of ham, eggs, and coffee. By degrees he had raised himself to the position of ploughman, and never ploughman drove a straighter or leveller furrow. He had won prizes at the annual ploughing and harrowing matches: and upon the strength of ten and sixpence a week had married Nancy Tugby, to

whom he had been engaged off and on for eleven years. Nancy was a frugal housewife, and worked hard, morning, noon and night. She was quite a treasure to Bumpkin; and, what with taking in a little washing, and what with going out to do a little charring, and what with Tom's skill in mending cart-harness (nearly all the cart-harness in the neighbourhood was in a perpetual state of "mending"), they had managed to put together in a year or two enough money to buy a sow. This, Tom always said, was "his first start." And mighty proud they both were as they stood together of a Sunday morning looking at this wonderful treasure. The sow soon had pigs, and the pigs got on and were sold, and then the money was expended in other things, which in their turn proved equally remunerative. Then Tom got a piece of land, and next a pet ewe-lamb, and so on, until little by little wealth accumulated, and he rented at last, after a long course of laborious years, from the Squire, a small homestead called "Southwood Farm," consisting of some fifty acres. Let it not be supposed that the accession of an extra head of live stock was a small matter. Everything is great or little by relation. I believe the statesman himself knows no greater pleasure when he first obtains admission to the Cabinet, than Tom did when he took possession of his little farm. And he certainly experienced as great a joy when he got a fresh pig as any young barrister does when he secures a new client.

Southwood Farm was a lovely homestead, situated near a very pretty river, and in the midst of the most picturesque scenery. The little rivulet (for it was scarcely more) twisted about in the quaintest conceivable manner, almost encircling the cosy farm; while on the further side rose abruptly from the water's edge high embankments studded thickly with oak, ash, and an undergrowth of saplings of almost every variety. The old house was spacious for the size of the farm, and consisted of a large living-room, ceiled with massive oak beams and oak boards, which were duly whitewashed, and looked as white as the sugar on a wedding cake. The fireplace was a huge space with seats on either side cut in the wall; while from one corner rose a rude ladder leading to a bacon loft. Dog-irons of at least a century old graced the brick hearth, while the chimney-back was adorned with a huge slab of iron wrought with divers quaint designs, and supposed to have been in some way or other connected with the Roman invasion, as it had been dug up somewhere in the neighbourhood, by whom

or when no one ever knew. There was an inner chamber besides the one we are now in, which was used as a kitchen; while on the opposite side was a little parlour with red-tiled floor and a comparatively modern grate. This was the reception room, used chiefly when any of the ladies from “t’Squoire’s” did Mrs. Bumpkin the honour to call and taste her tea-cakes or her gooseberry wine. The thatched roof was gabled, and the four low-ceiled bedrooms had each of them a window in a gable. The house stood in a well-stocked garden, beyond which was a lovely green meadow sloping to the river side. In front was the little farm-yard, with its double-bayed barn, its lean-to cow-houses, its stables for five horses, and its cosy loft. Then there were the pigstyes and the henhouses: all forming together a very convenient and compact homestead. Adjoining the home meadow was a pretty orchard, full of apple, pear, cherry and plum trees; and if any one could imagine that Mr. and Mrs. Bumpkin had no eye or taste for the beautiful, I would have advised that ill-conditioned person to visit those good people of a Sunday morning after “brakfast” when the orchard was in full blossom. This beautiful picture it was not only Mr. and Mrs. Bumpkin’s special joy to behold, but their great and proud delight to show; and if they had painted the blossoms themselves they could not have felt more intense enjoyment and satisfaction.

There was one other feature about the little farm which I must mention, because it is one of the grandest and most beautiful things in nature, and that is the magnificent “Old Oak” that stood in the corner of one of the home fields, and marked the boundary of the farm in that direction. If the measure of its girth would be interesting to the reader to know, it was just twenty-seven feet: not the largest in England certainly, notwithstanding which the tree was one of the grandest and most beautiful. It towered high into the air and spread its stalwart branches like giant trees in all directions. It was said to be a thousand years old, and to be inhabited by owls and ghosts. Whether the ghosts lived there or not I am unable to say, but from generation to generation the tradition was handed down and believed to be true. Such was Mr. Bumpkin’s home, in my dream: the home of Peace and Plenty, Happiness and Love.

The man who was contemplating Mr. Bumpkin’s pigs on this same Sunday morning was also a “self-made man,” whose name was Josiah SNOOKS. He was not made so well as Bumpkin, I should say, by a great deal, but

nevertheless was a man who, as things go, was tolerably well put together. He was the village coal-merchant, not a Cockerell by any means, but a merchant who would have a couple of trucks of "Derby Brights" down at a time, and sell them round the village by the hundredweight. No doubt he was a very thrifty man, and to the extent, so some people said, of nipping the poor in their weight. And once he nearly lost the contract for supplying the coal-gifts at Christmas on that account. But he made it a rule to attend church very regularly as the season came round, and so did Mrs. Josiah Snooks; and it will require a great deal of "nipping" to get over that in a country village, I promise you. I did not think Snooks a nice looking man, by any means; for he had a low forehead, a scowling brow, a nobbly fat nose, small eyes, one of which had a cast, a large mouth always awry and distorted with a sneer, straight hair that hung over his forehead, and a large scar on his right cheek. His teeth were large and yellow, and the top ones protruded more, I thought, than was at all necessary. Nor was he generally beliked. In fact, so unpopular was this man with the poor, that it was a common thing for mothers to say to their children when they could not get them in of a summer's evening, "You, Betsy," or "You, Jane, come in directly, or old Snooks will have you!" A warning which always produced the desired effect.

No one could actually tell whether Snooks had made money or merely pretended to possess it. Some said they knew he had, for he lived so niggardly; others said the coal trade was not what it was; and there were not wanting people who hinted that old Betty Bodger's house and garden—which had been given to her years ago by the old squire, what for, nobody knew—had been first mortgaged to Josiah and then sold to him and "taken out in coals." A very cunning man was Snooks; kept his own counsel—I don't mean a barrister in wig and gown on his premises—but in the sense of never divulging what was in his sagacious mind. He was known as a universal buyer of everything that he could turn a penny out of; and he sold everybody whenever he got the chance. Such was the character of old Snooks.

How then came our good guileless friend Bumpkin to be associated with such a man on this beautiful Sunday morning? I can only answer: there are things in this world which admit of no explanation. This, so far as I am concerned, was one.

“They be pooty pork,” said Mr. Bumpkin.

“Middlin’,” rejoined the artful Snooks.

“They be a mighty dale more an middlin’, if you come to thic,” said the farmer.

“I’ve seen a good deal better,” remarked Snooks. This was always his line of bargaining.

“Well, I aint,” returned Bumpkin, emphatically. “Look at that un—why, he be fit for anything—a regler pictur.”

“What’s he worth?” said Snooks. “Three arf crowns?” That was Snooks’ way of dealing.

“Whisht!” exclaimed Bumpkin; “and four arf-crowns wouldn’t buy un.” That was Bumpkin’s way.

Snooks expectorated and gave a roar, which he intended for a laugh, but which made every pig jump off its feet and dive into the straw.

“I tell ’ee what, maister Bumpkin, I doant want un”—that was his way again; “but I doant mind giving o’ thee nine shillings for that un.”

“Thee wunt ’ave un—not a farden less nor ten if I knows it; ye doant ’ave we loike that, nuther—ye beant sellin’ coals, maister Snooks—no, nor buyin’ pigs if I knows un.”

How far this conversation would have proceeded, and whether any serious altercation would have arisen, I know not; but at this moment a combination of circumstances occurred to interrupt the would-be contracting parties. First, Mrs. Bumpkin, who had been preparing the Sunday dinner, came across the yard with her apron full of cabbage-leaves and potato-peelings, followed by an immense number of chickens, while the ducks in the pond clapped their wings, and flew and ran with as much eagerness as though they were so many lawyers seeking some judicial appointment, and Mrs. Bumpkin were Lord High Chancellor of Great Britain; and they made as much row as a flock of Chancery Barristers arguing about costs. Then came along, with many a grunt and squeak, a pig or two, who seemed to be enjoying a Sunday holiday in their best clothes, for they had just come out

of a puddle of mud; then came slouching along, a young man whose name was Joe (or, more correctly speaking, Joseph Wurzel), a young man of about seventeen, well built, tall and straight, with a pleasant country farmhouse face, a roguish black eye, even teeth, and a head of brown straight hair, that looked as if the only attention it ever received was an occasional trimming with a reap-hook, and a brush with a bush-harrow.

It was just feeding time; that was why Joe came up at this moment; and in addition to all these circumstances, there came faintly booming through the trees the ding of the old church bell, reminding Mr. Bumpkin that he must “goo and smarten oop a bit” for church. He already had on his purple cord trousers, and, as Joe termed it, his hell-fire waistcoat with the flames coming out of it in all directions; but he had to put on his drab “cooat” and white smock-frock, and then walk half a mile before service commenced. He always liked to be there before the Squire, and see him and his daughters, Miss Judith and Miss Mary, come in.

So he had to leave the question of the “walley” of the pig and attend to the more important interests of his immortal soul. But now as he was going comes the point to which the reader’s special attention is directed. He had got about six yards from the sty, or it may have been a little more, when Snooks cried out:

“I’ve bought un for nine and six.”

To which Mr. Bumpkin replied, without so much as turning his head—

“’Ave ur.”

Now this expression, according to Chitty on Contracts, would mean, “Have you, indeed? Mr. Snooks.” But the extreme cunning of Josiah converted it into “’Ave un,” which, by the same learned authority would signify, “Very well, Mr. Snooks, you can have him.”

CHAPTER II.

The simplicity and enjoyments of a country life depicted.

A quiet day was Sunday on Southwood Farm. Joe used to slumber in the meadows among the buttercups, or in the loft, or near the kitchen-fire, as the season and weather invited. That is to say, until such time as, coming out of Sunday School (for to Sunday School he sometimes went) he saw one of the fairest creatures he had ever read about either in the Bible or elsewhere! It was a very strange thing she should be so different from everybody else: not even the clergyman's daughters—no, nor the Squire's daughters, for the matter of that—looked half so nice as pretty Polly Sweetlove, the housemaid at the Vicar's.

“Now look at that,” said Joe, as he went along the lane on that Sunday when he first beheld this divine creature. “I'm danged if she beant about the smartest lookin o' any on 'em. Miss Mary beant nothing to her: it's a dandelion to a toolup.”

So ever since that time Joe had slept less frequently in the hay-loft on a Sunday afternoon; and, be it said to his credit, had attended his church with greater punctuality. The vicar took great notice of the lad's religious tendencies, and had him to his night-school at the vicarage, in consequence; and certainly no vicar ever knew a boy more regular in his attendance. He was there waiting to go in ever so long before the school began, and was always the very last to leave the premises.

Often he would peep over the quick-set hedge into the kitchen-window, just to catch a glance of this lovely angel. And yet, so far as he could tell, she had never looked at him. When she opened the door, Joe always felt a thrill run through him as if some extraordinary thing had happened. It was a kind of jump; and yet he had jumped many times before that: “it wasn't the sort of jump,” he said, “as a chap gits either from bein' frit or bein' pleased.”

And what to make of it he didn't know. Then Polly's cap was about the loveliest thing, next to Polly herself, he had ever seen. It was more like a May blossom than anything else, or a beautiful butterfly on the top of a water-lily. In fact, all the rural images of a rude but not inartistic mind came and went as this country boy thought of his beautiful Polly. As he ploughed the field, if he saw a May-blossom in the hedgerow, it reminded him of Polly's cap; and even the little gentle daisy was like Polly herself. Pretty Polly was everywhere!

Mr. and Mrs. Bumpkin, on a fine Sabbath afternoon, would take their pastime in the open air. First Mr. Bumpkin would take down his long churchwarden pipe from its rack on the ceiling, where it lay in close companionship with an ancient flint-gun; then he would fill it tightly, so as to make it last the longer, with tobacco from his leaden jar; and then, having lighted it, he and his wife would go out of the back door, through the garden and the orchard, and along by the side of the quiet river. By their side, as a matter of course, came Tim the Collie (named after Mrs. Bumpkin's grandfather Timothy), who knew as well as possible every word that was being said. If Mrs. Bumpkin only asked, "Where is Betsy?" (that was the head Alderney cow) Tim would bark and fly across to the meadow where she was; and then, having said to her and to the five other Alderney cows and four heifers, "Why, here's master and missus coming round to look at you, why on earth don't you come and see them?" up the whole herd would come, straggling one after the other, to the meadow where Mr. and Mrs. Bumpkin were waiting for them; and all would look over the hedge, as much as to say, "How d'ye do, master, and how d'ye do, missus; what a nice day, isn't it?" exactly in the same manner as men and women greet one another as often as they meet. And then there was the old donkey, Jack, whom Tim would chaff no matter when or where he saw him. I believe if Tim had got him in church, he would have chaffed him. It was very amusing to see Jack duck his head and describe a circle as Tim swept round him, barking with all his might, and yet only laughing all the while. Sometimes Jack, miscalculating distances—he wasn't very great at mathematics—and having no eye for situations, would kick out vigorously with his hind legs, thinking Tim was in close proximity to his heels; whereas the sagacious and jocular Tim was leaning on his outstretched fore-feet immediately in front of Jack's head.

Then there was another sight, not the least interesting on these afternoon rambles: in the far meadow, right under “the lids,” as they were called, lived the famous Bull of Southwood Farm. He was Mrs. Bumpkin’s pet. She had had him from a baby, and used to feed him in his infant days from a bottle by the kitchen fire. And so docile was he that, although few strangers would be safe in intruding into his presence, he would follow Mrs. Bumpkin about, as she said, “just like a Christian.” The merits of this bull were the theme, on all appropriate occasions, of Mrs. Bumpkin’s unqualified praise. If the Vicar’s wife called, as she sometimes did, to see how Mrs. Bumpkin was getting on, Mrs. Bumpkin’s “baby” (that is the bull) was sure to be brought up—I don’t mean by the nurse, but in conversation. No matter how long she waited her opportunity, Mrs. Goodheart never left without hearing something of the exploits of this remarkable bull. In truth, he was a handsome, well-bred fellow. He had come from the Squire’s—so you may be sure his breed was gentlemanly in the extreme; and his grandmother, on the maternal side, had belonged to the Bishop of Winchester; so you have a sufficient guarantee, I hope, for his moral character and orthodox principles. Indeed, it had been said that no dissenter dared pass through the meadow where he was, in consequence of his connection with the Establishment. Now, on the occasions when Mr. and Mrs. Bumpkin took their walks abroad through the meadows to see their lambkins and their bull skip, this is what would invariably happen. First, Mrs. Bumpkin would go through the little cosy-looking gate in the corner of the meadow, right down by the side of the old boat-house; then Mr. Bumpkin would follow, holding his long pipe in one hand and his ash-stick in the other. Then, away in the long distance, at the far end of the meadow (he was always up there on these occasions), stood “Sampson” (that was the bull), with his head turned right round towards his master and mistress, as if he were having his photograph taken. Thus he stood for a moment; then down went his huge forehead to the ground; up went his tail to the sky; then he sent a bellow along the earth which would have frightened anybody but his “mother,” and started off towards his master and mistress like a ship in a heavy sea; sometimes with his keel up in the air, and sometimes with his prow under water: it not only was playful, it was magnificent, and anybody unaccustomed to oxen might have been a little terrified by the furious glare of his eyes and the terrible snort of his nostrils as he approached.

Not so Mrs. Bumpkin, who held out her hand, and ejaculated,

“My pretty baby; my sweet pet; good Sampson!” and many other expressions of an endearing character.

“Good Sampson” looked, snorted, danced, plunged and careered; and then came up and let Mrs. Bumpkin stroke and pat him; while Bumpkin looked on, smoking his pipe peacefully, and thinking what a fine fellow he, the bull, was, and what a great man he, Bumpkin, must be to be the possessor of “sich!”

Thus the peaceful afternoon would glide quietly and sweetly away, and so would the bull, after the interesting interview was over.

They always returned in time for tea, and then Mrs. Bumpkin would go to evening service, while Mr. Bumpkin would wait for her on the little piece of green near the church, where neighbours used to meet and chat of a Sunday evening; such as old Mr. Gosling, the market gardener, and old Master Mott, the head gardener to the Squire, and Master Cole, the farmer, and various others, the original inhabitants of Yokelton; discussing the weather and the crops, the probability of Mr. Tomson getting in again at the vestry as waywarden; what kind of a highway rate there would be for the coming year; how that horse got on that Mr. Sooby bought at the fair; and various other matters of importance to a village community. They would also pass remarks upon any striking personage who passed them on his way to church. Mr. Prigg, for instance, the village lawyer, who, they said, was a remarkably upright and down-straight sort of man; although his wife, they thought, was “a little bit stuck up like” and gave herself airs a little different from Mrs. Goodheart, who would “always talk to ’em jist the same as if she was one o’ th’ people.” So that, on the whole, they entertained themselves very amicably until such time as the “organ played the people out of church.” Then every one looked for his wife or daughter, as the case might be, and wished one another good night: most of them having been to church in the morning, they did not think it necessary to repeat the performance in the evening.

CHAPTER III.

Showing how true it is that it takes at least two to make a bargain or a quarrel.

The day after the events which I have recorded, while the good farmer and his wife were at breakfast, which was about seven o'clock, Joe presented himself in the sitting-room, and said:

“Plase, maister, here be t’ money for t’ pig.”

“Money for t’ pig,” exclaimed Mr. Bumpkin; “what’s thee mean, lad? what pig?”

“Maister Snooks!” said Joe, “there ur be, gwine wi’ t’ pig in t’ barrer.”

Nothing shall induce me to repeat the language of Mr. Bumpkin, as he jumped up from the table, and without hat or cap rushed out of the room, followed by Joe, and watched by Mrs. Bumpkin from the door. Just as he got to the farmyard by one gate, there was Snooks leaving it by another with Mr. Bumpkin’s pig in a sack in the box barrow which he was wheeling.

“Hulloa!” shouted the farmer; “hulloa here! Thee put un down—dang thee, what be this? I said thee shouldn’t ave un, no more thee sha’n’t. I beant gwine to breed Chichster pigs for such as thee at thy own price, nuther.” Snooks grinned and went on his way, saying;

“I bought un and I’ll ’ave un.”

“An I’ll ’ave thee, dang’d if I doant, afore jussices; t’ Squoire’ll tell thee.”

“I doant keer for t’ Squire no more nor I do for thee, old Bumpkin; thee be a cunnin’ man, but thee sold I t’ pig and I’ll ’ave un, and I got un too: haw! haw! haw! an thee got t’ money—nine-and-six—haw! haw! haw!”

Mr. Bumpkin by this time came up to him, but was so much out of breath, or “winded,” that he was unable to carry on the conversation, so he just tapped the bag with his stick as if to be certain the pig was there, and sure enough it was, if you might judge by the extraordinary wriggling that went on inside the bag.

The indomitable Snooks, however, with the largest and most hideous grin I ever saw, pushed on with his barrow, and Mr. Bumpkin having now sufficiently recovered his breath, said,

“Thee see ur tak un, didn’t thee, Joe?”

“Sure did ur,” answered the lad. “I seed un took un clane out o’ the sty, and put un in the sack, and wheeled un away.”

“Ha! so ur did, Joe; stick to that, lad—stick to un.”

“And thee seed I pay th’ money for un, Joe, didn’t thee?” laughed Snooks. “Seed I put un on t’ poast, and thee took un oop—haw! haw! haw! I got t’ pig and thee got t’ money—haw! haw! haw! Thee thowt thee’d done I, and I done thee—haw! haw! haw!”

And away went Snooks and away went pig; but Snooks’ laugh remained, and every now and then Snooks turned his head and showed his large yellow teeth and roared again.

The rage of Mr. Bumpkin knew no bounds. There are some things in life which are utterly unendurable; and one is the having your pig taken from you against your will and without your consent—an act which would be described legally as *the rape of the pig*. This offence, in Mr. Bumpkin’s judgment, Snooks was guilty of; and therefore he resolved to do that which is considered usually a wise thing, namely, to consult a solicitor.

Now, if I were giving advice—which I do not presume to do—I should say that in all matters of difficulty a man should consult his wife, his priest, or his solicitor, and in the order in which I have named them. In the event of consulting a solicitor the next important question arises, “What solicitor?” I could write a book on this subject. There are numerous solicitors, within my acquaintance, to whom I would entrust my life and my character; there are some, not of my acquaintance, but of my knowledge, into whose hands,

if I had one spark of Christian feeling left, I would not see my enemy delivered. There is little difference between one class of men and another as to natural disposition; and whether you take one or another, you must find the shady character. But where the opportunities for mischief are so great as they are in the practice of the Law, it is necessary that the utmost care should be exercised in committing one's interests to the keeping of another. Had Mr. Bumpkin been a man of the world he would have suspected that under the most ostentatious piety very often lurked the most subtle fraud. Good easy man, had he been going to buy a hay-stack, he would not have judged by the outside but have put his "iron" into it; he could not put his iron into Mr. Prigg, I know, but he need not have taken him by his appearance alone. I may observe that if Mr. Bumpkin had consulted his sensible and affectionate spouse, or a really respectable solicitor, this book would not have been written. If he had consulted the Vicar, possibly another book might have been written; but, as it was, he resolved to consult Mr. Prigg in the first instance. Now Mrs. Bumpkin, except as the mother of the illustrious Bull, has very little to do with this story. Mr. Prigg is one of its leading characters; but in my description of that gentleman I am obliged to be concise: I must minimize Prigg, great as he is, and I trust that in doing so I shall prospectively minimize all future Priggs that may ever appear on the world's stage. I do not attempt to pulverize him, that would require the crushing pestle of the legislature; but merely to make him as little as I can, with due consideration for the requirements of my story.

I should be thought premature in mentioning Prigg, but that he was a gentleman of great pretensions in the little village of Yokelton. Gentleman by Act of Parliament, and in his own estimation, you may be sure he was respected by all around him. That was not many, it is true, for his house was the last of the straggling village. He was a man of great piety and an extremely white neck-cloth; attended the parish church regularly, and kept his white hair well brushed upwards—as though, like the church steeple, it was to point the way at all times. He was the most amiable of persons in regard to the distribution of the parish gifts; and, being a lawyer it was not considered by the churchwardens, a blacksmith and a builder, safe to refuse his kind and generous assistance. He involved the parish in a law-suit once, in a question relating to the duty to repair the parish pump; and since that

time everyone knew better than to ignore Mr. Prigg. I have heard that the money spent in that action would have repaired all the parish pumps in England for a century, but have no means of ascertaining the truth of this statement.

Mr. Prigg was a man whose merits were not appreciated by the local gentry, who never asked him to dinner. Virtue is thus sometimes ill-rewarded in this world. And Mrs. Prigg's virtue had also been equally ignored when she had sought, almost with tears, to obtain tickets for the County Ball.

Mr. Prigg was about sixty years old, methodical in his habits, punctilious in his dress, polite in his demeanour, and precise in his language. He wore a high collar of such remarkable stiffness that his shoulders had to turn with his head whenever it was necessary to alter his position. This gave an appearance of respectability to the head, not to be acquired by any other means. It was, indeed, the most respectable head I ever saw either in the flesh or in marble.

Mr. Prigg had descended from the well-known family of Prigg, and he prided himself on the circumstance. How often was he seen in the little churchyard of Yokelton of a Sunday morning, both before and after service, pointing with family pride to the tombstone of a relative which bore this beautiful and touching inscription:—

HERE
LIE THE ASHES OF
MR. JOHN PRIGG,
OF SMITH STREET, BRISTOL,
ORIGINALLY OF DUCK GREEN, YOKELTON,
WHO UNDER PECULIAR DISADVANTAGES
WHICH TO COMMON MINDS
WOULD HAVE BEEN A BAR TO ANY EXERTIONS
RAISED HIMSELF FROM ALL OBSCURE SITUATIONS
OF BIRTH AND FORTUNE
BY HIS OWN INDUSTRY AND FRUGALITY
TO THE ENJOYMENT OF A *MODERATE COMPETENCY*.
HE ATTAINED A PECULIAR EXCELLENCE
IN PENMANSHIP AND DRAWING

WITHOUT THE INSTRUCTIONS OF A MASTER,
AND TO EMINENCE IN ARITHMETIC,
THE USEFUL AND THE HIGHER BRANCHES OF
THE MATHEMATICS,
BY GOING TO SCHOOL ONLY A YEAR AND EIGHT MONTHS.

HE
DIED A BACHELOR
ON THE 24TH DAY OF OCTOBER, 1807,
IN THE 55TH YEAR OF HIS AGE;
AND WITHOUT FORGETTING
RELATIONS FRIENDS AND ACQUAINTANCES
BEQUEATHED ONE FIFTH OF HIS PROPERTY
TO PUBLIC CHARITY.

READER
THE WORLD IS OPEN TO THEE.
“GO THOU AND DO LIKEWISE.” [\[22\]](#)

It was generally supposed that this beautiful composition was from the pen of Mr. Prigg himself, who, sitting as he did so high on his branch of the Family Tree,

COULD LOOK
WITH PRIDE AND SYMPATHY
ON
THE MANLY STRUGGLES
OF A HUMBLER MEMBER
LOWER DOWN!

High Birth, like Great Wealth, can afford to condescend!

Mrs. Prigg was worthy of her illustrious consort. She was of the noble family of the Snobs, and in every way did honour to her progenitors. As the reader is aware, there is what is known as a “cultivated voice,” the result of education—it is absolutely without affectation: there is also the voice which, in imitation of the well-trained one, is little more than a burlesque,

and is affected in the highest degree: this was the only fault in Mrs. Prigg's voice.

Mr. Prigg's home was charmingly small, but had all the pretensions of a stately country house—its conservatory, its drawing-room, its study, and a dining-room which told you as plainly as any dining-room could speak, "I am related to Donkey Hall, where the Squire lives: I belong to the same aristocratic family."

Then there was the great heavy-headed clock in the passage. He did not appear at all to know that he had come down in the world through being sold by auction for two pounds ten. He said with great plausibility, "My worth is not to be measured by the amount of money I can command; I am the same personage as before." And I thought it a very true observation, but the philosophy thereof was a little discounted by his haughty demeanour, which had certainly gone up as he himself had come down; and that is a reason why I don't as a rule like people who have come down in the world—they are sure to be so stuck up. But I do like a person who has come down in the world and doesn't at all mind it—much better than any man who has got up in the world from the half-crown, and does mind it upon all occasions.

Mrs. Prigg, apart from her high descent, was a very aristocratic person: as the presence of the grand piano in the drawing-room would testify. She could no more live without a grand piano than ordinary people could exist without food: the grand piano, albeit a very dilapidated one, was a necessity of her well-descended condition. It was no matter that it displaced more useful furniture; in that it only imitated a good many other persons, and it told you whenever you entered the room: "You see me here in a comparatively small way, but understand, I have been in far different circumstances: I have been courted by the great, and listened to by the aristocracy of England. I follow Mrs. Prigg wherever she goes: she is a lady; her connections are high, and she never yet associated with any but the best families. You could not diminish from her very high breeding: put her in the workhouse, and with me to accompany her, it would be transformed into a palace."

Mr. Prigg was by no means a rich man as the world counts richness. No one ever heard of his having a “*practice*,” although it was believed he did a great deal in the way of “lending his name” *and profession* to impecunious and uneducated men; who could turn many a six-and-eightpence under its prestige. So great is the moral “power of attorney,” as contradistinguished from the legal “power of attorney.”

But Prigg, as I have hinted, was not only respectable, he was *good*: he was more than that even, he was *notoriously* good: so much so, that he was called, in contradistinction to all other lawyers, “*Honest Lawyer Prigg*”; and he had further acquired, almost as a universal title, the sobriquet of “Nice.” Everybody said, “What a very nice man Mr. Prigg is!” Then, in addition to all this, he was considered *clever*—why, I do not know; but I have often observed that men can obtain the reputation of being clever at very little cost, and without the least foundation. The cheapest of all ways is to abuse men who really are clever, and if your abuse be pungently and not too coarsely worded, it will be accepted by the ignorant as *criticism*. Nothing goes down with shallow minds like criticism, and the severest criticism is generally based on envy and jealousy.

Mr. Prigg, then, was clever, respectable, good, and nice, remarkably potent qualities for success in this world.

So I saw in my dream that Mr. Bumpkin, whose feelings were duly aroused, turned his eye upon Honest Lawyer Prigg, and resolved to consult him upon the grievous outrage to which he had been subjected at the hands of the cunning Snooks: and without more ado he resolved to call on that very worthy and extremely nice gentleman.

CHAPTER IV.

On the extreme simplicity of going to law.

With his right leg resting on his left, with his two thumbs nicely adjusted, and with the four points of his right fingers in delicate contact with the fingers of his left hand, sat Honest Lawyer Prigg, listening to the tale of unutterable woe, as recounted by Farmer Bumpkin.

Sometimes the good man's eyes looked keenly at the farmer, and sometimes they scanned vacantly the ceiling, where a wandering fly seemed, like Mr. Bumpkin, in search of consolation or redress. Sometimes Mr. Prigg nodded his respectable head and shoulders in token of his comprehension of Mr. Bumpkin's lucid statement: then he nodded two or three times in succession, implying that the Court was with Mr. Bumpkin, and occasionally he would utter with a soft soothing voice,

"Quite so!"

When he said "quite so," he parted his fingers, and reunited them with great precision; then he softly tapped them together, closed his eyes, and seemed lost in profound meditation.

Here Mr. Bumpkin paused and stared. Was Mr. Prigg listening?

"Pray proceed," said the lawyer, "I quite follow you;—never mind about what anybody else had offered you for the pig—the question really is whether you actually sold this pig to Snooks or not—whether the bargain was complete or inchoate."

Mr. Bumpkin stared again. "I beant much of a scollard, sir," he observed; "but I'll take my oath I never sold un t'pig."

“That is the question,” remarked the lawyer. “You say you did not? Quite so; had this Joe of yours any authority to receive money on your behalf?”

“Devil a bit,” answered Bumpkin.

“Excuse me,” said Mr. Prigg, “I have to put these questions: it is necessary that I should understand where we are: of course, if you did not sell the pig, he had no right whatever to come and take it out of the sty—it was a trespass?”

“That’s what I says,” said Bumpkin; and down went his fist on Mr. Prigg’s table with such vehemence that the solicitor started as though aroused by a shock of dynamite.

“Let us be calm,” said the lawyer, taking some paper from his desk, and carefully examining the nib of a quill pen, “Let me see, I think you said your name was Thomas?”

“That’s it, sir; and so was my father’s afore me.”

“Thomas Bumpkin?”

“I beant ashamed on him.”

And then Mr. Prigg wrote out a document and read it aloud; and Mr. Bumpkin agreeing with it, scratched his name at the bottom—very badly scratched it was, but well enough for Mr. Prigg. This was simply to retain Mr. Prigg as his solicitor in the cause of *Bumpkin v. Snooks*.

“Quite so, quite so; now let me see; be calm, Mr. Bumpkin, be calm; in all these matters we must never lose our self-possession. You see, I am not excited.”

“Noa,” said Bumpkin; “but then ur dint tak thy pig.”

“Quite true, I can appreciate the position, it was no doubt a gross outrage. Now tell me—this Snooks, as I understand, is the coal-merchant down the village?”

“That’s ur,” said Bumpkin.

“I suppose he’s a man of some property, eh?”

Mr. Bumpkin looked for a few moments without speaking, and then said:

“He wur allays a close-fisted un, and I should reckon have a goodish bit o’ property.”

“Because you know,” remarked the solicitor, “it is highly important, when one wins a case and obtains damages, that the defendant should be in a position to pay them.”

This was the first time that ever the flavour of damages had got into Bumpkin’s mouth; and a very nice flavour it was. To beat Snooks was one thing, a satisfaction; to make him pay was another, a luxury.

“Yes, sir,” he repeated; “I bleeve he ave, I bleeve he ave.”

“What makes you think so?”

“Wull, fust and foremost, I knows he lent a party a matter of a hundred pound, for I witnessed un.”

“Then he hasn’t got that,” said the lawyer.

“Yes ur ave, sir, or how so be as good; for it wur a morgage like, and since then he’ve got the house.”

Mr. Prigg made a note, and asked where the house was.

“It be widder Jackson’s.”

“Indeed; very well.”

“An then there be the bisness.”

“Exactly,” said the lawyer, “horses and carts, weighing machines, and so on?”

“And the house he live in,” said Bumpkin, “I know as ow that longs to him.”

“Very well; I think that will be enough to start with.” Now, Mr. Prigg knew pretty well the position of the respective parties himself; so it was not so

much for his own information that he made these inquiries as to infuse into Bumpkin's mind a notion of the importance of the case.

"Now," said he, throwing down the pen, "this is a very serious matter, Mr. Bumpkin."

This was a comfort, and Bumpkin looked agreeably surprised and vastly important.

"A very serious case," and again the tips of the fingers were brought in contact.

"I spoase we can't bring un afore jusseses, sir?"

"Well, you see the criminal law is dangerous; you can't get damages, and you may get an action for malicious prosecution."

"I think we ought to mak un pay for 't."

"That is precisely my own view, but I am totally at a loss to understand the reason of such outrageous conduct on the part of this Snooks. Now don't be offended, Mr. Bumpkin, if I put a question to you. You know, we lawyers like to search to the bottom of things. I can understand, if you had owed him any money—"

"Owe un money!" exclaimed Bumpkin contemptuously; "why I could buy un out and out."

"Ah, quite so, quite so; so I should have supposed from what I know of you, Mr. Bumpkin."

"Looke ere, sir," said the farmer; "I bin a ard workin man all my life, paid my way, twenty shillins in the pound, and doant owe a penny as fur as I knows."

"And if you did, Mr. Bumpkin," said the lawyer with a good-natured laugh, "I dare say you could pay."

"Wull, I bleeve there's no man can axe me for nothing; and thank God, what I've got's my own; and there aint many as got pootier stock nor mine—all good bred uns, Mr. Prigg."

“Yes, I’ve often heard your cattle praised.”

“He be a blagard if ur says I owed un money.”

“O, dear, Mr. Bumpkin, pray don’t misunderstand me; he did not, that I am aware, allege that he took the pig because you owed him money; and even if you did, he could not legally have done so. Now this is not a mere matter of debt; it’s a very serious case of trespass.”

“Ay; zo ’t be sir; that was my bleef, might jist as wull a tooked baacon out o’ baacon loft.”

“Just the same. Quite so—quite so!”

“And I want thee, Mr. Prigg, to mak un pay for’t—mak un pay, sir; it beant so much th’ pig.”

“Quite so: quite so: that were a very trifling affair, and might be settled in the County Court; but, in fact, it’s not the pig at all, it’s trespass, and you want to make him answerable in damages.”

“That’s it, sir; you’ve got un.”

“I suppose an apology and a return of the pig would not be enough.”

“I’ll make un know he beant everybody,” said Bumpkin.

“Quite so; now what shall we lay the damages at?”

“Wull, sir, as for that, I doant rightly know; if so be he’d pay down, that’s one thing, but it’s my bleef as you might jist as wull try to dror blood out of a stoane as git thic feller to do what’s right.”

“Shall we say a hundred pounds and costs?”

Never did man look more astonished than Bumpkin. A hundred pounds! What a capital thing going to law must be! But, as the reader knows, he was a remarkably discreet man, and never in the course of his dealing committed himself till the final moment. Whenever anybody made him a “bid,” he invariably met the offer with one form of refusal. “Nay, nay; it beant good enough: I bin offered moore.” And this had answered so well, that it came natural to Bumpkin to refuse on all occasions the first offer. It

was not to be wondered at then that the question should be regarded in the light of an offer from Snooks himself. Now he could hardly say “I bin *bid moore* money,” because the case wasn’t in the market; but he could and did say the next best thing to it, namely:—

“I wunt let un goo for that—’t be wuth moore!”

“Very well,” observed Prigg; “so long as we know: we can lay our damages at what we please.”

Now there was great consolation in that. The plaintiff paused and rubbed his chin. “What do thee think, sir?”

“I think if he pays something handsome, and gives us an apology, and pays the costs, I should advise you to take it.”

“As you please, sir; I leaves it to you; I beant a hard man, I hope.”

“Very good; we will see what can be done. I shall bring this action in the Chancery Division.”

“Hem! I’ve eerd tell, sir, that if ever a case gets into that ere Coourt he niver comes out agin.”

“O, that’s all nonsense; there used to be a good deal of truth in that; but the procedure is now so altered that you can do pretty much what you like: this is an age of despatch; you bring your action, and your writ is almost like a cheque payable on demand!”

“Wull, I beant no lawyer, never had nothing to do wi un in my life; but I should like to axe, sir, why thee’ll bring this ere case in Chancery?”

“Good; well, come now, I like to be frank; we shall get more costs?”

Mr. Bumpkin again rubbed his chin. “And do I get em?” he asked.

“Well, they go towards expenses; the other side always pays.”

This was a stroke of reasoning not to be gainsaid. But Mr. Prigg had a further observation to make on the subject, and it was this:

“After the case has gone on up to being ready for trial, and the Judges find that it is a case more fitting to be tried in the Common Law Courts, then an order is made transferring it, that is, sending it out of Chancery to be tried by one of the other Judges.”

“Can’t see un,” said Bumpkin, “I beant much of a scollard, but I tak it thee knows best.”

Mr. Prigg smiled: a beneficent, sympathizing smile.

“I dare say,” he said, “it looks a little mysterious, but we lawyers understand it; so, if you don’t mind, I shall bring it in the Chancery Division in the first instance; and nice and wild the other side will be. I fancy I see the countenance of Snooks’ lawyer.”

This was a good argument, and perfectly satisfactory to the unsophisticated mind of Bumpkin.

“And when,” he asked, “will ur come on, think’ee?”

“O, in due time; everything is done very quickly now—not like it used to be—you’d be surprised, we used to have to wait years—yes, years, sir, before an action could be tried; and now, why bless my soul, you get judgment before you know where you are.”

How true this turned out to be may hereafter appear; but in a dream you never anticipate.

“I shall write at once,” said “Honest Prigg,” “for compensation and an apology; I think I would have an apology.”

“Make un pay—I doant so much keer for the t’other thing; that beant much quonsequence.”

“Quite so—quite so.” And with this observation Mr. Prigg escorted his client to the door.

CHAPTER V.

In which it appears that the sting of slander is not always in the head.

Mr. Prigg lost no time in addressing a letter to the ill-advised Josiah Snooks with the familiar and affectionate commencement of "Dear Sir," asking for compensation for the "gross outrage" he had committed upon "his client;" and an apology to be printed in such papers as he, the client, should select.

The "Dear Sir" replied, not in writing, for he was too artful for that, but by returning, as became his vulgar nature, Mr. Prigg's letter in a very torn and disgusting condition.

To a gentleman of cultivated mind and sensitive nature, this was intolerable; and Mr. Prigg knew that even the golden bridge of compromise was now destroyed. He no longer felt as a mere lawyer, anxious in the interests of his client, which was a sufficient number of horse-power for anything, but like an outraged and insulted gentleman, which was more after the force of hydraulic pressure than any calculable amount of horse-power. It was clear to his upright and sensitive mind that Snooks was a low creature.

Consequently all professional courtesies were at an end: the writ was issued and duly served upon the uncompromising Snooks. Now a writ is not a matter to grin at and to treat with contempt or levity. Mr. Snooks could not return that document to Mr. Prigg, so he had to consider. And first he consulted his wife: this consultation led to a domestic brawl and then to his kicking one of his horses in the stomach. Then he threw a shovel at his dog, and next the thought occurred to him that he had better go and see Mr. Locust. This gentleman was a solicitor who practised at petty sessions. He did not practise much, but that was, perhaps, his misfortune rather than his fault. He was a small, fiery haired man, with a close cut tuft of beard; small eyes, and a pimply nose, which showed an ostentatious disdain for everything beneath it.

Mr. Locust was not at home, but would return about nine. At nine, therefore, the impatient Snooks appeared.

“Yes,” said Mr. Locust, as he looked at the writ, “I see this writ is issued by Mr. Prigg.”

“Yes, sir.”

“Did he not write to you before issuing it?—dear me, this is very sharp practice—very sharp practice: the sharpest thing I ever heard of in all my life.”

“Wull, he did write, but I giv un as good as he sent.”

“Dear me!” exclaimed Mr. Locust; “I am afraid you have committed yourself.”

“No I beant, sir,” said the cunning Snooks, with a grin, “no I beant.”

“You should never write without consulting a solicitor—bear that in mind, Mr. Snooks; it will be an invaluable lesson—hem!”

“I never writ, sir—I ony sent un his letter back.”

“Ah!” said Locust, “come now, that is better; but still you should have consulted me. I see this claim is for three hundred and fifty pounds—it’s for trespass. Now sit down quietly and calmly, and tell me the facts.” And then he took pen and paper and placed himself in position to take his retainer and instructions.

“Wull, sir, it is as this: a Sunday mornin—no, a Sunday mornin week—I won’t tell no lie if I knows it—a Sunday mornin week—”

“Sunday morning week,” writes Locust.

“I buyd a pig off this ere man for nine and six: well, o’ the Monday mornin I goes with my barrer and a sack and I fetches the pig and gies the money to his man Joe Wurzel; leastways I puts it on the poast and he takes it up. Then out comes Bumpkin and swears I never bought un at all, gets in a rage and hits the bag wi’ a stick—”

“Now stop,” said the Lawyer; “are you quite sure he did not strike *you*? That’s the point.”

“Well, sir, he would a’ done if I adn’t a bobbed.”

“Good: that’s an assault in law. You are sure he would have struck you if you hadn’t ducked or bobbed your head?”

“In course it would, else why should I bob?”

“Just so—just so. Now then, we’ve got him there—we’ve got him nicely.”

Snooks’ eyes gleamed.

“Next I want to know: I suppose you didn’t owe him anything?”

“No, nor no other man,” said Snooks, with an air of triumph. “I worked hard for what I got, and no man can’t ax me for a farden. I allays paid twenty shillings in the pound.”

The reader will observe how virtuous both parties were on this point.

“So!” said Locust. “Now you haven’t told me all that took place.”

“That be about all, sir.”

“Yes, yes; but I suppose there was something said between you—did you have any words—was he angry—did he call you any names or say anything in an angry way?”

“Well, not partickler—”

“Not particular: I will judge of that. Just tell me what was said.”

“When, sir?”

“Well, begin on the Sunday morning. What was first said?”

Then Snooks told the Solicitor all that took place, with sundry additions which his imagination supplied when his memory failed.

“And I member the price wull, becos he said ‘You beant sellin coals, recollect, so you doant ave me.’”

“Ho! ho!” exclaimed Locust rubbing his hands, “You are sure he said that?” writing down the words carefully.

“I be.”

“That will do, we’ve got him: we’ve got him nicely. Was anybody present when he said this?”

“Yes, sir. Joe were there, and t’ best o’ my belief, Mrs. Bumpkin.”

“Never mind Mrs. Bumpkin. I don’t suppose she was there, if you come to recollect; it’s quite enough if Joe was present and could hear what was said. I suppose he could hear it?”

“Stood cloase by.”

“Very well—that is slander—and slander of a very gross kind. We’ve got him.”

“Be it?” said Snooks.

“I’ll show you,” said Locust; “in law a man slanders you if he insinuates that you are dishonest; now what does this Bumpkin do? he says ‘you don’t have me,’ meaning thereby that you don’t trick him out of his pig; and, ‘you are not selling coals,’ meaning that when you do sell coals you do trick people. Do you see?—that you cheat them, in fact rob them.”

Snooks thought Mr. Locust the most wonderful man he had ever come across. This was quite a new way of putting it.

“But ur didn’t say as much,” he said, wondering whether that made any difference.

“Perfectly immaterial in law,” said Mr. Locust: “it isn’t what a man says, it’s what he *means*: you put that in by an innuendo—”

“A what, sir? begging pardon—”

“It’s what we lawyers call an innuendo: that is to say, making out that a man says so and so when he doesn’t.”

“I zee,” said the artful Snooks, quick at apprehending every point. “Then if he called a chap a devilish honest man and the innu—what d’ye call it, meant he were a thief, you got him?”

“Well,” said Mr. Locust, smiling, “that is going rather far, Mr. Snooks, but I see you understand what I mean.”

“I thinks so, sir. I thinks I has your meanin.”

“It’s a very gross slander,” observed Mr. Locust, “and especially upon a tradesman in your position. I suppose now you have lived in the neighbourhood a considerable time?”

“All my life, sir.”

“Ah! just so, just so—now let me see; and, if I remember rightly, you have a vote for the County.”

“I ave, sir, and allus votes blue, and that’s moore.”

“Then you’re on our side. I’m very glad indeed to hear that; a vote’s a vote, you know, now-a-days.”

Any one would have thought, to hear Mr. Locust, that votes were scarce commodities, whereas we know that they are among the most plentiful articles of commerce as well as the cheapest.

“And you have, I think, a family, Mr. Snooks.”

“Four on em, sir.”

“Ah! how very nice, how laudable to make a little provision for them: as I often say, if a man can only leave his children a few hundreds apiece, it’s something.”

The solicitor watched his client’s face as he uttered this profound truism, and the face being as open and genuine as was Snooks’ character, it said plainly enough “Yes, I have a few hundreds.”

“Well then,” continued Mr. Locust, “having been in business all these years, and being, as times go, tolerably successful, being a careful man, and having got together by honest industry a nice little independency—”

Here the learned gentleman paused, and here, unfortunately, Snooks' open and candid heart revealed itself through his open and candid countenance.

"*I believe*," said Mr. Locust, "I am right?"

"You're about right, sir."

"Very charming, very gratifying to one's feelings," continued Mr. Locust; "and then, just as you are beginning to get comfortable and getting your family placed in the world, here comes this what shall I call him, I never like to use strong language, this intolerable blackguard, and calls you a thief—a detestable thief."

"Well, he didn't use that air word, sir—I wool say that," said Mr. Snooks.

"In law he did, my good man—he meant it and said it—he insinuated that you cheated the poor—you serve a good many of the poor, I think?"

"I do, sir."

"Well, he insinuated that you cheated them by giving short weight and bad coals—that is worse than being a thief, to my mind—such a man deserves hanging."

"Damn him," said Snooks, "that's it, is it?"

"That's it, my dear sir, smooth it over as you will. I don't want to make more of it than necessary, but we must look at it fairly and study the consequences. Now I want to ask you particularly, because we must claim special damage for this, if possible—have you lost any customers through this outrageous slander?"

"Can't say I have, rightly, sir."

"No, but you will—mark my words, as soon as people hear of this they will cease to deal with you. They can't deal with you."

"I hope not, sir."

"So do I; but let me tell Mr. Bumpkin" (here the learned man shook his forefinger as though it had been the often quoted finger of scorn) "that for every customer you lose we'll make him answerable in damages. He'll

repeat this slander: take my advice and get some one to look out, and make a note of it—be on your guard!”

Snooks wiped the perspiration from his forehead and then threw his large coloured handkerchief into his hat, which he held by both hands between his knees,

“It be a bad case then, sir?”

“A very bad case for Bumpkin!” replied Mr. Locust; “let me have a list of your customers as soon as you can, and we shall see who leaves you in consequence of this slander. Does my friend, Mr. Overrighteous, deal with you? I think he does?”

“He do, sir, and have for five or six years—and a good customer he be.”

“Ah! now, there’s a man! Whatever you do don’t let Mr. Overrighteous know of it: he would leave you directly: a more particular man than that can’t be. Then again, there is my friend Flythekite, does he deal with you? Of course he does!”

“Yes, sir.”

“And you’ll lose him—sure to lose him.”

Judging from Mr. Snooks’ countenance it would have been small damage if he did.

“Ve-ry well,” continued Locust, after a pause, “ve-ry well—just so.” Then he looked at the copy of the writ and perceived that it was dated eighteen hundred and ninety something instead of eighteen hundred and seventy something. So he said that the writ was wrong and they ought not to appear; “by which means,” said he, “we shall let them in at the start for a lot of costs—we shall let them in.”

“And will that stash the action?” asked Snooks.

“It will not stash ours,” said Locust. “I suppose you mean to go on whether he does or not? Your claim is for assault and slander.”

“As you please, sir.”

“No, no, as you please. I have not been called a thief—they haven’t said that I sell short weight and cheat and defraud the poor: *my* business will not be ruined—*my* character is not at stake.”

“Let un have it, sir; he be a bad un,” and here he rose to depart. Mr. Locust gave him a professional shake of the hand and wished him good day. But as the door was just about to be closed on his client, he remembered something which he desired to ask, so he called, “Mr. Snooks!”

“Sir,” said the client.

“Is there any truth in the statement that this Bumpkin beats his wife?”

“I doant rightly know,” said Snooks, in a hesitating voice; “it may be true. I shouldn’t wonder—he’s just the sort o’ man.”

“Just enquire about that, will you?”

“I wool, sir,” said Snooks; and thus his interview with his Solicitor terminated.

Now the result of the enquiries as to the domestic happiness of Bumpkin was this; first, the question floated about in a vague sort of form, “*Does Bumpkin beat his wife?*” then it grew into “*Have you heard that Bumpkin beats his wife?*” and lastly, it was affirmed that Bumpkin “*really did beat his wife.*” And the scandal spread so rapidly that it soon reached the ears of plaintiff himself, who would have treated it with the contempt it deserved, knowing the quarter whence it came, but that it was so gross a calumny that he determined to give the lying Snooks no quarter, and to press his action with all the energy at his command.

After this there could be no compromise.

“I wish,” said Snooks to himself, as he smoked his pipe that evening, “I could a worked one o’ them there innerenders in my trade—I could a made summut on him.”

CHAPTER VI.

Showing how the greatest wisdom of Parliament may be thrown away on ungrateful people.

The first skirmish between the two doughty champions of the hostile forces took place over the misdated writ. Judgment was signed for want of appearance; and then came a summons to set it aside. The Judge set it aside, and the Divisional Court set aside the Judge, and the Court of Appeal set aside the Divisional Court upon the terms of the defendant paying the costs, and the writ being amended, &c. &c. And I saw that when the Judge in Chambers had hesitatingly and “not without grave doubt” set aside the judgment, Mr. Prigg said to Mr. Locust, “What a very nice point!” And Mr. Locust replied:

“A very nice point, indeed! Of course you’ll appeal?” And Mr. Quibbler, Mr. Locust’s pleader, said, “A very neat point!”

“Oh dear, yes,” answered Mr. Prigg.

And then Mr. Prigg’s clerk said to Mr. Locust’s clerk—“What a very nice point!” And Mr. Locust’s clerk rejoined that it was indeed a very nice point! And then Mr. Locust’s boy in the office said to Mr. Prigg’s boy in the office, “What a very nice point!” And Mr. Prigg’s boy, a pale tall lad of about five feet six, and of remarkably quiet demeanour, replied—

“A dam nice point!”

Next came letters from the respective Solicitors, suggesting a compromise in such terms that compromise became impossible; each affirming that he was so averse from litigation that almost any amicable arrangement that could be come to would be most welcome. Each required a sum of two hundred pounds and an apology in six morning papers. And I saw at the

foot of one of Mr. Prigg's letters, when the hope of compromise was nearly at an end, these touching words:

"Bumpkin's blood's up!"

And at the end of the answer thereto, this very expressive retort:

"You say Bumpkin's blood is up; so is Snooks'—do your worst!"

As I desire to inform the lay reader as to the interesting course an action may take under the present expeditious mode of procedure, I must now state what I saw in my dream. The course is sinuosity itself in appearance, but that only renders it the more beautiful. The reader will be able to judge for himself of the simple method by which we try actions nowadays, and how very delightful the procedure is. The first skirmish cost Snooks seventeen pounds six shillings and eight-pence. It cost Bumpkin only three pounds seventeen shillings, or *one heifer*. Now commenced that wonderful process called "Pleading," which has been the delight and the pride of so many ages; developing gradually century by century, until at last it has perfected itself into the most beautiful system of evasion and duplicity that the world has ever seen. It ranks as one of the fine Arts with Poetry and Painting. A great Pleader is truly a great Artist, and more imaginative than any other. The number of summonses at Chambers is only limited by his capacity to invent them. Ask any respectable solicitor how many honest claims are stifled by proceedings at Chambers. And if I may digress in all sincerity for the purpose of usefulness, I may state that while recording my dream for the Press, Solicitors have begged of me to bring this matter forward, so that the Public may know how their interests are played with, and their rights stifled by the iniquitous system of proceedings at Chambers.

The Victorian age will be surely known as the Age of Pleading, Poetry, and Painting.

First, the Statement of Claim. Summons at Chambers to plead and demur; summons to strike out; summons to let in; summons to answer, summons not to answer; summonses for all sorts of conceivable and inconceivable objects; summonses for no objects at all except costs. And let me here say Mr. Prigg and Mr. Locust are not alone blameable for this: Mr. Quibbler, Mr. Locust's Pleader, had more to do with this than the Solicitor himself.

And so had Mr. Wrangler, the Pleader of Mr. Prigg. But without repeating what I saw, let the reader take this as the line of proceeding throughout, repeated in at least a dozen instances:—

The Judge at Chambers reversed the Master;

The Divisional Court reversed the Judge;

And the Court of Appeal reversed the Divisional Court.

And let this be the chorus:—

“What a very nice point!” said Prigg;

“What a very nice point!” said Locust;

“What a very nice point!” said Gride (Prigg’s clerk);

“What a d--- nice point!” said Horatio! (the pale boy).

Summons for particulars.—Chorus.

Further and better particulars.—Chorus.

Interrogatories—Summons to strike out.—Chorus.

Summons for further and better answers.—Chorus.

More summonses for more, further, better, and all sorts of things.—
Chorus.

All this repeated by the other side, of course; because each has his proper innings. There is great fairness and impartiality in the game. Something was always going up from the foot of this Jacob’s ladder called “the Master” to the higher regions called the Court of Appeal. The simplest possible matter, which any old laundress of the Temple ought to have been competent to decide by giving both the parties a box on the ear, was taken before the Master, from the Master to the Judge, from the Judge to the Divisional Court, and from the Divisional Court to the Court of Appeal, at the expense of the unfortunate litigants; while Judges, who ought to have been engaged in disposing of the business of the country, were occupied in deciding legal quibbles and miserable technicalities. All this I saw in my

dream. Up and down this ladder Bumpkin and Snooks were driven—one going up the front while the other was coming down the back. And I heard Bumpkin ask if he wasn't entitled to the costs which the Court gave when he won. But the answer of Mr. Prigg was, "No, my dear sir, the labourer is worthy of his hire." And I saw a great many more ups and downs on the ladder which I should weary the reader by repeating: they are all alike equally useless and equally contemptible. Then I thought that poor Bumpkin went up the ladder with a great bundle on his back; and his face seemed quite changed, so that I hardly knew him, and I said to Horatio, the pale boy—

"Who is that going up now? It looks like Christian in the Pilgrim's Progress."

"Oh, no," said Horatio, "that's old Bumpkin—it's a regler sweater for him, ain't it?"

I said, "Whatever can it be? will he ever reach the top?"

Here Bumpkin seemed to slip, and it almost took my breath away; whereat the pale boy laughed, stooping down as he laughed, and thrusting his hands into his breeches pockets,

"By George!" he exclaimed, "what a jolly lark!"

"I hope he won't fall," I exclaimed. "What has he got on his back?"

"A DEMURRER," said Horatio, laughing. "Look at him! That there ladder's the Judicatur Act: don't it reach a height? There's as many rounds in that there ladder as would take a man a lifetime to go up if it was all spread out; it's just like them fire escapes in reaching up, but nobody ever escapes by it."

"It will break the poor man's back," said I, as he was a few feet from the top. And then in my dream I thought he fell; and the fright was so great that I awoke, and found I was sitting in my easy chair by the fire, and the pipe I had been smoking had fallen out of my hand.

* * * * *

“You’ve been dreaming,” said my wife; “and I fear have had a nightmare.” When I was thoroughly aroused, and had refilled my pipe, I told her all my dream.

Then cried she, “I hope good Mr. Bumpkin will get up safely with that great bundle.”

“It doesn’t matter,” said I, “whether he do or not; he will have to bear its burden, whether he take it up or bring it back. He will have to bring it down again after showing it to the gentlemen at the top.”

“What do they want to see it for?” cried she.

“They have no wish to see it,” I replied; “on the contrary, they would rather not. They will simply say he is a very foolish man for his pains to clamber up so high with so useless a burden.”

“But why don’t they check him?”

“Because they have no power; they look and wonder at the folly of mankind, who can devise no better scheme of amusement for getting rid of their money.”

“But the lawyers are wise people, and they should know better.”

“The lawyers,” said I, “do know better; and all respectable lawyers detest the complicated system which brings them more abuse than fees. They see men, permitted by the law, without character and conscience, bring disgrace on an honourable body of practitioners.”

“But do they not remonstrate?”

“They do, but with little effect; no one knows who is responsible for the mischief or how to cure it.”

“That is strange.”

“Yes, but the time will come when the people will insist on a cheaper and more expeditious system. Half-a-dozen solicitors and members of the junior bar could devise such a system in a week.”

“Then why are they not permitted to take it in hand?”

“Because,” said I, “Old Fogeyism has, at present, only got the gout in one leg; wait till he has it in both, and then Common Sense will rise to the occasion.”

“But what,” quoth she, “is this fine art you spoke of?”

“Pleading!”

“Yes; in what consists its great art?”

“In artfulness,” quoth I.

Then there was a pause, and at length I said, “I will endeavour to give you an illustration of the process of pleading from ancient history: you have heard, I doubt not, of Joseph and his Brethren.”

“O, to be sure,” cried she; “did they not put him in the pit?”

“Well, I believe they put him in the pit, but I am not referring to that. The corn in Egypt is what I mean.”

“When they found all their money in their sacks’ mouths?”

“Exactly. Now if Joseph had prosecuted those men for stealing the money, they would simply have pleaded not guilty, and the case would have been tried without any bother, and the defendants have been acquitted or convicted according to the wisdom of the judge, the skill of the counsel, and the common sense of the jury. But now suppose instead thereof, Joseph had brought an action for the price of the corn.”

“Would it not have been as simple?”

“You shall see. The facts would have been stated with some accuracy and a good deal of inaccuracy, and a good many things which were not facts would have been introduced. Then the defendants in their statement of defence would have denied that there was any such place as Egypt as alleged; ^[52] denied that Pharaoh was King thereof; denied that he had any corn to sell; denied that the said Joseph had any authority to sell; denied that they or any of them went into Egypt; denied that they ever saw the said Joseph or had any communication with him whatever, either by means of an interpreter or otherwise; denied, in fact, everything except their own

existence; but in the alternative they would go on to say, if it should be proved that there was a place called Egypt, a man called Pharaoh, an agent of his called Joseph, and that the defendants actually did go to Egypt, all of which they one and all absolutely deny (as becomes men of honour), then they say, that being large corn-merchants and well known to the said Joseph, the factor of the said Pharaoh, as purchasers only of corn for domestic purposes, and requiring therefore a good sound merchantable article, the said Joseph, by falsely and fraudulently representing that certain corn of which he, the said Joseph, was possessed, was at that time of a good sound and merchantable quality and fit for seed and domestic purposes, by the said false and fraudulent representations he, the said Joseph, induced the defendants to purchase a large quantity thereof, to wit, five thousand sacks; whereas the said corn was not of a good sound and merchantable quality and fit for seed and domestic purposes, but was maggoty from damp, and infected with smut and altogether worthless, as he, the said Joseph, well knew at the time he made the said false representations. The defendants would also further allege that, relying on the said Joseph's word, they took away the said corn, but having occasion at the inn to look into the said sacks, they found that the said wheat was worthless, and immediately communicated with the said Joseph by sending their younger brother Simeon down to demand a return of the price of the said corn. But when the said Simeon came to the said Joseph the said Joseph caught him, and kicked him, and beat him with a great stick, and had him to prison, and would not restore him to his brethren, the defendants. Whereupon the defendants sent other messengers, and at length, after being detained a long time at the said inn, the said Joseph came down, and on being shown the said corn, admitted that it was in bad condition. Whereupon the defendants, fearing to trust the said Joseph with the said sacks until they had got a return of their said money, demanded that he, the said Joseph, should put the full tale of every man's money in the sack of the said man; which thing the said Joseph agreed to, and placed every man's money in the mouth of his said sack. And when the said man was about to reach forth his hand to take his said money, the said Joseph seized the said hand and held him fast —."

"Stop, stop!" cried my wife; "the said Joseph had not ten hands. You must surely draw the line somewhere."

“No, no,” said I, “that is good pleading; if the other side should omit to deny it, it will be taken by the rules of pleading to be admitted.”

“But surely you can’t admit impossibilities!”

“Can’t you, though!” cried I. “You can do almost anything in pleading.”

“Except, it seems to me, tell the truth.”

“You mustn’t be too hard upon us poor juniors,” cried I. “I haven’t come to the Counterclaim yet.”

“O don’t let us have Counterclaims,” quoth she; “they can have no claim against Joseph?”

“What, not for selling them smutty wheat?”

“Nonsense.”

“I say yes; and he’ll have to call a number of witnesses to prove the contrary—nor do I think he will be able to do it.”

“I fail now,” said my wife, “to see how this pleading is a fine art. Really, without joking, what is the art?”

“The art of pleading,” said I, “consists in denying what is, and inducing your adversary to admit what isn’t.”

CHAPTER VII.

Showing that appropriateness of time and place should be studied in our pastimes.

The next night, sitting over the cheerful fire and comfortably resting after the labours of the day, I dreamed again, and I saw that Horatio Snigger was “the Office Boy” of Mr. Prigg. He had been in the employment of that gentleman about two years. He was tall for his money, standing, in his shoes, at least five feet six, and receiving for his services, five shillings and sixpence a week, (that is, a shilling for every foot and a penny for every odd inch), his last rise (I mean in money,) having taken place about a month ago.

Horatio was a lad of as much spirit as any boy I ever saw. I do not believe he had any liking for the profession, but had entered it simply as his first step in life, utterly in the dark as to whither it would lead him. It was, I believe, some disappointment to his father that on no occasion when he interrogated him as to his “getting on,” could he elicit any more cheering reply than “very well.” And yet Horatio, during the time he had been with Mr. Prigg, had had opportunities of studying character in its ever-varying phases as presented by Courts of Justice and kindred places.

“Kindred places!” Yes, I mean “Judges’ Chambers,” where any boy may speedily be impressed with the dignity and simplicity of the practice of the Law, especially since the passing of the Judicature Act. To my lay readers who may wish to know what “Judges’ Chambers” means, I may observe that it is a place where innumerable proceedings may be taken for lengthening a case, embarrassing the clients, and spending money. It is, to put it in another form, a sort of Grands Mulets in the Mont Blanc of litigation, whence, if by the time you get there you are not thoroughly

“pumped out,” you may go on farther and in due time reach the top, whence, I am told, there is a most magnificent view.

But even the beauty of the proceedings at Judges’ Chambers failed to impress Horatio with the dignity of the profession. He lounged among the crowds of chattering boys and youths who “cheeked” one another before that august personage “the Master,” declaring that “Master” couldn’t do this and “Master” couldn’t do that; that the other side was too late or too soon; that his particulars were too meagre or too full; or his answers to interrogatories too evasive or not sufficiently diffuse, and went on generally as if the whole object of the law were to raise as many difficulties as possible in the way of its application. As if, in fact, it had fenced itself in with such an undergrowth of brambles that no amount of ability and perseverance could arrive at it.

From what I perceived of the character of Horatio, I should say that he was a scoffer. He was a mild, good-tempered, well-behaved boy enough, but ridiculed many proceedings which he ought to have revered. He was a great favourite with Mr. Prigg, because, if anything in the world attracted the boy’s admiration, it was that gentleman’s pious demeanour and profound knowledge. But the exuberance of the lad’s spirits when away from his employer was in exact proportion to the moral pressure brought to bear upon him while in that gentleman’s presence. As an illustration of this remark and proof of the twofold character of Horatio, I will relate what I saw after the “Master” had determined that the tail of the 9 was a very nice point, but that there was nothing in it. They had all waited a long time at Judge’s Chambers, and their spirits were, no doubt, somewhat elated by at last getting the matter disposed of.

Horatio heard Mr. Prigg say to Mr. Locust, “What a very nice point!” and had heard Mr. Locust reply, “A very nice point, indeed!” And Mr. Gride, the clerk, say, “What, a very nice point!” and somebody else’s clerk say, “What a very nice point!” And Horatio felt, as a humble member of the profession, he must chime in with the rest of the firm. So, having said to Locust’s boy, “What a dam nice point!” he went back to his lonely den in Bedford Row and then, as he termed it, “let himself out.” He accomplished this proceeding by first taking off his coat and throwing it on to a chair; he next threw but his arms, with his fists firmly clenched, as though he had

hardly yet to its fullest extent realized the “*niceness*” of the point which the Master had determined. The next step which Horatio took was what is called “The double shuffle,” which, I may inform my readers, is the step usually practised by the gentleman who imitates the sailor in the hornpipe on the stage. Being a slim and agile youth, Horatio’s performance was by no means contemptible, except that it was no part of his professional duty to dance a Hornpipe. Then I saw that this young gentleman in the exuberance of his youthful spirits prepared for another exhibition of his talent. He cleared his throat, once more threw out his arms, stamped his right foot loudly on the floor, after the manner of the Ethiopian dancer with the long shoe, and then to my astonishment poured forth the following words in a very agreeable, and, as it seemed to me, melodious voice,—

“What a very nice point, said Prigg.”

Then came what I suppose would be called a few bars of the hornpipe; then he gave another line,—

“What a very nice point, said Gride.”

(Another part of the hornpipe.) Then he sang the third and fourth lines, dancing vigorously the while:

“It will take a dozen lawyers with their everlasting jaw:
It will take a dozen judges with their ever changing law”—

(Vigorous dancing for some moments), and then a pause, during which Horatio, slightly stooping, placed two fingers of his left hand to the side of his nose, and turning his eyes to the right, sang—

“And”—

Paused again, and finished vehemently as follows:

“Twenty golden guineas to decide!”

Then came the most enthusiastic hornpipe that ever was seen, and Horatio was in the seventh Heaven of delight, when the door suddenly opened, and

Mr. Prigg entered!

It was unfortunate for Horatio that his back being towards the door he could not see his master enter; and it need scarcely be said that the noise produced by the dance prevented him from hearing his approach.

Mr. Prigg looked astounded at the sight that presented itself. The whole verse was repeated, and the whole dance gone through again in the sight and hearing of that gentleman. Was the boy mad? Had the strain of business been too much for him?

As if by instinct Horatio at last became aware of his master's presence. A change more rapid, transformation more complete I never saw. The lad hung his head, and wandered to the chair where his coat was lying. It took him some time to put it on, for the sleeves seemed somehow to be twisted; at length, once more arrayed, and apparently in his right mind, he stood with three-quarter face towards his astonished master.

Mr. Prigg did not turn his head even on this occasion. He preserved a dignified silence for some time, and then spoke in a deep tragic tone:

“Horatio!”

Horatio did not answer.

“What is the meaning of this exhibition, Horatio?”

“I was only having a little fun, sir,” said the youthful clerk.

“I am not averse to youth enjoying itself,” said Mr. Prigg; “but it must be at proper seasons, and in appropriate places; there is also to be exercised a certain discretion in the choice of those amusements in which youth should indulge. I am not aware what category of recreation your present exhibition may belong to, but I may inform you that in my humble judgment—I may be mistaken, and you may know far better than I—but as at present advised, I do not see that your late performance is consistent with the duties of a solicitor's clerk.” And then he muttered to himself, “Quite so.”

After this magnificent rebuke, Mr. Prigg drew out his cambric handkerchief, and most gently applied it to his stately nose.

“Again,” said Mr. Prigg, “I heard language, or thought I heard language, which I should construe as decidedly derogatory to the Profession which you serve and to which I have the honour to belong.”

“I was only in fun, sir,” said Horatio, gathering confidence as Mr. Prigg proceeded.

“Quite so, quite so; that may be, I sincerely hope you were; but never make fun of that by which you live; you derive what I may call a very competent, not to say handsome, salary from the proceedings which you make fun of. This is sad, and manifests a spirit of levity.”

“I didn’t mean it like that, sir.”

“Very well,” said the good man, “I am glad to perceive that you are brought to a proper sense of the impropriety of your conduct. I will not discharge you on this occasion, for the sake of your father, whom I have known for so many years: but never let this occur again. Dancing is at all times, to my mind, a very questionable amusement; but when it is accompanied, as I perceived it was on this occasion, with gestures which I cannot characterize by any other term than disgusting; and when further you take the liberty of using my name in what I presume you intended for a comic song, I must confess that I can hardly repress my feelings of indignation. I hope you are penitent.”

Horatio hung down his head, and said he was very sorry Mr. Prigg had heard it, for he only intended it for his own amusement.

“I shall take care,” said Mr. Prigg, “that you have less opportunity for such exercises as I have unfortunately witnessed.” And having thus admonished the repentant youth, Mr. Prigg left him to his reflections. I am glad Mr. Prigg did not return while the pale boy was reflecting.

CHAPTER VIII.

The pleasure of a country drive on a summer evening described as enhanced by a pious mind.

It is only fair to the very able solicitors on both sides in the memorable case of *Bumpkin v. Snooks* to state that the greatest possible despatch was exercised on all occasions. Scarcely a day passed without something being done, as Prigg expressed it, “to expedite matters.” Month after month may have passed away without any apparent advance; but this in reality was not the case. Many appeals on what seemed trifling matters had been heard; so many indeed that *Bumpkin v. Snooks* had become a household word with the Court of Appeal, and a bye-word among the innumerable loafers about Judge’s Chambers.

“What! *Bumpkin v. Snooks* again!” the President would say. “What is it now? It’s a pity the parties to this case can’t agree: it seems a very trifling matter.”

“Not so, my lord, as your lordship will quickly apprehend when the new point is brought before your notice. A question of principle is here which may form a precedent for the guidance of future Judges, as did the famous case of *Perryman v. Lister*, which went to the House of Lords about prosecuting a man for stealing a gun. This is about a pig, my lord—a little pig, no doubt, and although there is not much in the pig, there is a good deal outside it.”

And often did Prigg say to Locust:

“I say, Locust, whenever *shall* we be ready to set this case down for trial?”

“Really, my dear Prigg,” Locust would reply, “it seems interminable—come and dine with me.” So the gentle and innocent reader will at once perceive that there was great impatience on all sides to get this case ready for trial.

Meanwhile it may not be uninteresting to describe shortly some of the many changes that had taken place in the few short months since the action commenced.

First it was clearly observable by the inhabitants of Yokelton that Mr. Prigg's position had considerably improved. I say nothing of his new hat; that was a small matter, but not so his style of living—so great an advance had that made that it attracted the attention of the neighbours, who often remarked that Mr. Prigg seemed to be getting a large practice. He was often seen with his lady on a summer afternoon taking the air in a nice open carriage—hired, it is true, for the occasion. And everybody remarked how uncommonly ladylike Mrs. Prigg lay back in the vehicle, and how very gracefully she held her new æsthetic parasol. And what a proud moment it was for Bumpkin, when he saw this good and respectable gentleman pass with the ladylike creature beside him; and Mr. Bumpkin would say to his neighbours, lifting his hat at the same moment,

“That be my loryer, that air be!”

And then Mr. Prigg would gracefully raise his hat, and Mrs. Prigg would lie back perfectly motionless as became a very languid lady of her exalted position. And when Mr. Prigg said to Mrs. Prigg, “My dear, that is our new client;” Mrs. Prigg would elevate her arched eyebrows and expand her delicate nostrils as she answered,—

“Really, my love, what a very vulgar-looking creechar!”

“Not nearly so vulgar as Locust's client,” rejoined her husband. “You should see him.”

“Thank you, my love, it is quite enough to catch a glimpse of the superior person of the two.”

Mr. Prigg seemed to think it a qualifying circumstance that Snooks was a more vulgar-looking man than Bumpkin, whereas a moment's consideration showed Mrs. Prigg how illogical that was. It is the intrinsic and personal value that one has to measure things by. This value could not be heightened by contrast. Mrs. Prigg's curiosity, however, naturally led her to inquire who the other creechar was? As if she had never heard of *Bumpkin v. Snooks*, although she had actually got the case on four wheels and was

riding in it at that very moment; as if in fact she was not practically all Bumpkin, as a silkworm may be said to be all mulberry leaves. As if she knew nothing of her husband's business! Her ideas were not of this world. Give her a church to build, she'd harass people for subscriptions; or let it be a meeting to clothe the naked savage, Mrs. Prigg would be there. She knew nothing of clothing Bumpkin! But she did interest herself sufficiently in her husband's conversation to ask, in answer to his reference to Locust's disreputable client,

"And who is he, pray?"

"My darling," said Prigg, "you must have heard of Snooks?"

"Oh," drawled Mrs. Prigg, "do you mean the creechar who sells coals?"

"The same, my dear."

"And are you engaged against *that* man? How very dreadful!"

"My darling," observed Mr. Prigg, "it is not for us to choose our opponents; nor indeed, for the matter of that, our clients."

"I can quite perceive that," returned the lady, "or you would never have chosen such men—dear me!"

"We are like physicians," returned Mr. Prigg, "called in in case of need."

"And the healing virtues of your profession must not be confined to rich patients," said Mrs. Prigg, in her jocular manner.

"By no means," was the good man's reply; "justice is as much the right of the poor as the rich—so is the air we breathe—so is everything." And he put his fingers together again, as was his wont whenever he uttered a philosophical or moral platitude.

So I saw in my dream that the good man and his ladylike wife rode through the beautiful lanes, and over the breezy common on that lovely summer afternoon, and as they drew up on the summit of a hill which gave a view of the distant landscape, there was a serenity in the scene which could only be compared to the serenity of Mr. Prigg's benevolent countenance; and there was a calm, deeply, sweetly impressive, which could only be appreciated by

a mind at peace with itself in particular, and with the world in general. Then came from a neighbouring wood the clear voice of the cuckoo. It seemed to sing purposely in honour of the good man; and I fancied I could see a ravenous hawk upon a tree, abashed at Mr. Prigg's presence and superior ability; and a fluttering timid lark seemed to shriek, "Wicked bird, live and let live;" but it was the last word the silly lark uttered, for the hawk was upon him in a moment, and the little innocent songster was crushed in its ravenous beak. Still the cuckoo sang on in praise of Mr. Prigg, with now and then a little note for Mrs. Prigg; for the cuckoo is a very gallant little bird, and Mrs. Prigg was such a heavenly creature that no cuckoo could be conscious of her presence without hymning her praise.

"Listen," said Mrs. Prigg, "isn't it beautiful? I wonder where cuckoos go to?"

"Ah, my dear!" said Prigg, enraptured with the clear notes and the beautiful scene; but neither of them seemed to wonder where hawks go to.

"Do you hear the echo, love? Isn't it beautiful?"

O, yes, it was beautiful! Nature does indeed lift the soul on a quiet evening from the grovelling occupations of earth to bask in the genial sunshine of a more spiritual existence. What was Bumpkin? What was Snooks to a scene like this? Suddenly the cuckoo ceased. Wonderful bird! I don't know whether it was the presence of the hawk that hushed its voice or the sight of Mr. Prigg as he stood up in the carriage to take a more extended view of the prospect; but the familiar note was hushed, and the evening hymn in praise of the Priggs was over.

So the journey was continued by the beautiful wood of oaks and chestnuts, along by the hillside from which you could perceive in the far distance the little stream as it wound along by meadow and wood and then lost itself beneath the hill that rose abruptly on the left.

The stream was the symbol of life—probably Bumpkin's life; all nature presents similes to a religious mind. And so the evening journey was continued with ever awakening feelings of delight and gratitude until they once more entered their peaceful home. And this brings me to another consideration which ought not to be passed over with indifference.

I saw in my dream that a great change had taken place in the home of the Priggs. The furniture had undergone a metamorphosis almost so striking that I thought Mr. Prigg must be a wizard. The gentle reader knows all about Cinderella; but here was a transformation more surprising. I saw that one of Mr. Bumpkin's pigs had been turned into a very pretty walnut-wood whatnot, and stood in the drawing-room, and on it stood several of the ducks and geese that used to swim in the pond of Southwood farm. They were not ducks and geese now, but pretty silent ornaments. An old rough-looking stack of oats had been turned into a very nice Turkey carpet for the dining-room. Poor old Jack the donkey had been changed into a musical box that stood on a little table made out of a calf. One day Mr. Bumpkin called to see how his case was going on, and by mistake got into this room among his cows and pigs; but not one of them did the farmer know, and when the maid invited him to sit down he was afraid of spoiling something.

Now summonses at Chambers, and appeals, and demurrers, are not at all bad conjuring wands, if you only know how to use them. Two clever men like Prigg and Locust, not only surprise the profession, but alarm the public, since no one knows what will take place next, and Justice herself is startled from her propriety. Let no clamorous law reformer say that interrogatories or any other multitudinous proceedings at Judge's Chambers are useless. It is astonishing how many changes you can ring upon them with a little ingenuity, and a very little scrupulosity. Mr. Prigg turned two sides of bacon into an Indian vase, and performed many other feats truly astonishing to persons who look on as mere spectators, and wonder how it is done. Wave your magic wand, good Prigg, and you shall see a hayrick turn into a chestnut mare; and a four-wheeled waggon into a Victoria.

But the greatest change he had effected was in Mr. Bumpkin himself, who loved to hear his wife read the interrogatories and answers. The almanac was nothing to this. He had no idea law was so interesting. I dare say there were two guiding influences working within him, in addition to the many influences working without; one being that inherent British pluck, which once aroused, "doesn't care, sir, if it costs me a thousand pound, I'll have it out wi' un;" the other was the delicious thought that all his present outlay would be repaid by the cunning and covetous Snooks. So much was Bumpkin's heart in the work of crushing his opponent, that expense was

treated with ridicule. I heard him one day say jocularly to Mr. Prigg, who had come for an affidavit:

“Be it a pig, sir, or a heifer?”

“O,” said the worthy Prigg, “we want a pretty good one; I think it must be a heifer.”

All this was very pleasant, and made the business, dull and prosaic in itself, a cheerful recreation.

Then, again, there was a feeling of self-importance whenever these affidavits came to be sworn. Mr. Bumpkin would put down his ash-stick by the side of the fireplace, and bidding his visitor be seated, would compose himself with satisfaction to listen to the oft-repeated words:

“I, Thomas Bumpkin, make oath, and say—”

Fancy, “*I, Bumpkin!*” Just let the reader pause over that for a moment! What must “I, Bumpkin,” be whose statement is required on oath before my Lord Judge?

Always, at these words, he would shout. “That be it—now then, sir, would you please begin that agin?”—while, if Mrs. Bumpkin were not too busy, he would call her in to hear them too.

So there was no wonder that the action went merrily along. Once get up enthusiasm in a cause, and it is half won. Without enthusiasm, few causes can succeed against opposition. Then, again, the affidavit described Bumpkin as a Yeoman. What, I wonder, would Snooks the coal-merchant think of that?

So everything proceeded satisfactorily, and the months rolled away; the seasons came in their turn, so did the crops, so did the farrows of pigs, so did the spring chickens, and young ducks (prettiest little golden things in the world, on the water); so did Mr. Prigg, and so did a gentleman (hereafter to be called “the man,”) with whom a very convenient arrangement was made, by which Mr. Bumpkin preserved the whole of his remaining stock intact; had not in fact to advance a single penny piece more; all advances necessary for the prosecution of the action being made by the strange

gentleman (whose name I did not catch) under that most convenient of all legal forms, “a Bill of Sale.”

CHAPTER IX.

A farmhouse winter fireside—a morning drive and a mutual interchange of ideas between town and country: showing how we may all learn something from one another.

I never saw the home of Farmer Bumpkin without thinking what a happy and comfortable home it was. The old elm tree that waved over the thatched roof, seemed to bless and protect it. On a winter's evening, when Bumpkin was sitting in one corner smoking his long pipe, Mrs. Bumpkin darning her stockings, and Joe on the other side looking into the blazing fire, while the old Collie stretched himself in a snug corner beside his master, it represented a scene of comfort almost as perfect as rustic human nature was capable of enjoying. And when the wind blew through the branches of the elm over the roof, it was like music, played on purpose to heighten the enjoyment. Comfort, thou art at the evening fireside of a farmhouse, if anywhere!

You should have seen Tim, when an unusual sound disturbed the harmony of this peaceful fireside. He growled first as he lay with his head resting between his paws, and just turned up his eyes to his master for approval. Then, if that warning was not sufficient, he rose and barked vociferously. Possessed, I believe, of more insight than Bumpkin, he got into the most tremendous state of excitement whensoever anyone came from Prigg's, and he cordially hated Prigg. But most of all was he angry when "the man" came. There was no keeping him quiet. I wonder if dogs know more about Bills of Sale than farmers. I am aware that some farmers know a good deal about them; and when they read this story, many of them will accuse me of being too personal; but Tim was a dog of strong prejudices, and I am sure he had a prejudice against money-lenders.

As the persons I have mentioned were thus sitting on this dreary evening in the month of November, suddenly, Tim sprang from his recumbent position, and barked furiously.

“Down, Tim! down, Tim!” said the farmer; “what be this, I wonder!”

“Tim, Tim,” said Mrs. Bumpkin, “down, Tim! hold thee noise, I tell ee.”

“Good Tim!” said Joe; he also had an instinct.

“I’ll goo and see what it be,” said Mrs. Bumpkin; “whoever can come here at this time o’ night! it be summat, Tom.” And she put down her stockings, and lighting a candle went to the front door, whereat there was a loud knocking. Tim jumped and flew and thrust his nose down to the bottom of the door long before Mrs. Bumpkin could get there.

“Quiet, Tim! I tell thee; who be there?”

“From Mr. Prigg’s,” answered a voice.

This was enough for Tim; the name of Prigg made him furious.

“Somebody from Mr. Prigg, Tom.”

“Wull, let un in, Nance; bless thee soul, let un in; may be the case be settled. I hope they ain’t took less nor a hundred pound. I told un not to.” The door was unbolted and unbarred, and a long time it took, and then stood before Mrs. Bumpkin a tall pale youth.

“I’ve come from Mr. Prigg.”

“Will er plase to walk in, sir?” said Mrs. Bumpkin.

By this time the master had got up from his seat, and advancing towards the youth said:—

“How do, sir; how do, sir; wark in, wark in, tak a seat, I be glad to see thee.”

“I come from Mr. Prigg,” said the youth, “and we want another affidavit.”

“Hem!” said Bumpkin, “be it a pig or a eifer, sir?” He couldn’t forget the old joke.

“We want an affidavit of documents,” said the youth.

“And what be the manin o’ that?—affiday o’ what?”

“Documents, sir,” said the mild youth; “here it is.”

“Oh,” said Bumpkin, “I got to swear un, I spoase, that’s all.”

“That’s it, sir,” said Horatio.

“Well, thee can’t take oaths, I spoase.”

“No, sir, not exactly.”

“Wull then I spoase I must goo to --- in the marnin. And thee’ll stop here the night and mak thyself comfortable. We can gie un a bed, can’t us, Nancy?”

“Two, if ur wishes it,” answered Mrs. Bumpkin.

“Devil’s in it, ur doan’t want two beds, I’ll warrant? Now then, sir, sitten doon and mak theeself comfortable. What’ll thee drink?”

“I’m too young to drink,” said Horatio, with a smile.

Bumpkin smiled too. “I’ll warrant thee be.”

“I’m always too young,” said Horatio, “for every thing that’s nice. Mr. Prigg says I’m too young to enjoy myself; but if you don’t mind, sir, I’m not too young to be hungry. I’ve walked a long distance.”

“Have ur now?” said Mrs. Bumpkin. “We ain’t got anything wery grand, sir; but there be a nice piece o’ pickle pork and pease-puddin, if thee doan’t mind thic.”

“Bring un out,” said Bumpkin; and accordingly a nice clean cloth was soon spread, and the table was groaning (as the saying is), with a large leg of pork and pease-pudding and home-made bread; to which Horatio did ample justice.

“Bain’t bad pooark,” said Bumpkin.

“Best I ever tasted,” replied Horatio; “we don’t get this sort of pork in London—pork there doesn’t seem like pork.”

“Now look at that,” said Joe; “I fed that air pig.”

“So ur did, Joe,” said the farmer; “I’ll gie thee credit, Joe, thee fed un well.”

“Ah!” said Joe; “and that air pig knowed I as well as I knows thee.”

When Horatio had supped, and the things were removed, Mr. Bumpkin assured the youth that a little drop of gin-and-water would not hurt him after his journey; and accordingly mixed him a tumbler. “Thee doan’t smoke, I spoase?” he said; to which Mrs. Bumpkin added that she “spoased he wur too young like.”

“I’ll try,” answered the courageous youth, nothing daunted by his youngness.

“So thee shall—dang if thee shan’t,” rejoined Mr. Bumpkin; and produced a long churchwarden pipe, and a big leaden jar of tobacco of a very dark character, called “shag.”

Horatio filled his pipe, and puffed away as if he had been a veteran smoker; cloud after cloud came forth, and when Mr. and Mrs. Bumpkin and Joe looked, expecting that the boy should be ill, there was not the least sign; so Joe observed with great sagacity:

“Look at that now, maister; I bleeve he’ve smoked afoore.”

“Have ur, sir?” asked Mr. Bumpkin.

“A little,” said Horatio.

“Why, I never smoked afoore I wur turned twenty,” said the farmer.

“I believe the right time now is fourteen,” observed the youth; “it used to be twenty, I have heard father say; but everything has been altered by the Judicature Act.”

“Look at that air,” said Joe, “he’ve eear’d father say. You knows a thing or two, I’ll warrant, Mr. —.”

Here Joe was baffled, and coming so abruptly to an end of his address, Mr. Bumpkin took the matter up, and asked, if he might make so bold, what the youth’s name might be.

“Horatio Snigger,” answered that gentleman.

“When will this ere case be on, think’ee, sir?” inquired Mr. Bumpkin.

“We expect it to be in the paper every day now,” said the youth; “they’ve tried to dodge us a good deal, but they can’t dodge us much longer—we’re a little too downy for em.”

“It have been a mighty long time about, surely,” said Mr. Bumpkin.

“O, that’s nothing,” said Horatio; “time’s nothing in Law! Why, a suit to administer a Will sometimes takes ’ears; and Bankruptcy, O my eye, ain’t there dodging about that, and jockeying too, eh! Crikey!”

Mr. Bumpkin here winked at his wife, as much as to say, “Now you hold your tongue, and see me dror un out. I’ll have un.”

“Will ee tak a little more gin-and-water, sir?”

“No, thankee,” said the youth.

“A little more won’t hurt ee—it’ll do thee good.” And again he filled the tumbler; while the pale boy refilled his pipe.

“Now, who’s my counsellor gwine to be?” asked the farmer.

“Oh,” said Horatio, “a regular cruncher—Mr. Catapult.”

“He be a cruncher, be he?”

“I believe you; he turned a man inside out the other day; a money-lender he was.”

“Did ur now?”

“Look at that,” said Joe.

“And we’re going to have Mr. Dynamite for junior; my eye, don’t he make a row!”

“Two an em!” exclaimed Bumpkin.

“Must have two for the plaintiff,” said Horatio; “that’s the law. Why, a Queen’s Counsel ain’t allowed to open a case without a junior starts him—it’s jist like the engine-driver and the guard. You have the junior to shove the leader.”

“Look at that,” said Joe; expectorating into the fire.

Mr. Bumpkin looked again at Nancy, and gave another wink that you might have heard.

“And the tother side?” he asked.

“Ah! I don’t know about them,” said the boy. “They’re artful dodgers, they are.”

“Is ’em now? but artfulness don’t allays win, do ur?”

“No,” said Horatio; “but it goes a long way, and sometimes when it’s gone a long way it beats itself.”

“Look at that,” said Joe; “that’s like that ere—”

“Be quiet, Joe,” said Bumpkin; “let I talk, will ur? You said it beats itself, sir?”

“If the judge gets ’old of him, it’s sure to,” said Horatio. “There ain’t no judge on the Bench as will let artfulness win if he knows it. I’ve sin em watchin like a cat watches a mouse; and directly it comes out o’ the ’ole, down he is on em—like that:” and he slapped his hand on the table with startling effect.

“Good!” said Bumpkin.

“And don’t they know who the solicitor is, eh—that’s all! My word, if he’s a shady one—the judge is down on the case like winkin.”

“And be this ere Locust a shady un?” (Another wink at Mrs. Bumpkin.)

“Ah! I’m too young to know.”

“Thee beest too old, thee meanest,” said Mrs. Bumpkin, laughing.

“Now hold thee tongue, Nancy; I wur gwine to say that myself—dang if I warnt!”

“Now look at thic,” said Joe; “maister were gwine to say thic.”

“So I wur,” repeated Bumpkin. “Jist got the word o’ th’ tip o’ th’ tongue.”

“And be these Queen’s Counsellors,” he asked, “summat grand?”

“I believe you,” said Horatio; “they wears silk gowns.”

“Do em?” said Mrs. Bumpkin, laughing. “Silk gowns—and what kind o’ petticoats?”

“Shut up,” said Bumpkin; “thee be as igo rant as a donkey; these Queen’s Counsellors be made for their larnin and cleverness, beant em, sir?”

“Well,” said Horatio, “nobody ever could make out—some of em are pretty good, and some of em ain’t much—not near so good as the others.”

“But this ere Mr. Catapult be a good un, bean’t he—a regler crunsher?”

“O, I believe you, my boy: his look’s enough for some of em.”

“I spoase he be dear?” (Another wink at Mrs. Bumpkin.)

“They’re all dear,” said Horatio; “some of em are dear because their fees are high; and some of em would be dear at a gift, but I’m too young to know much about it.”

“Now hark at that,” said Joe; “like that air old horse o’ Morris’.”

“Hold thee tongue, Joe, I tell ee, putten thy spoke in; does thee think the Queen ’as old ’orses in her stable? It’s merit, I tell ee—ain’t it, Mr. Jigger?”

“Merit, sir; I believe it’s merit.” And thus in pleasant conversation the evening passed merrily away, until the clock striking nine warned the company that it was time to retire.

A bright, brisk frosty morning succeeded, and a substantial breakfast of bacon, eggs, fresh butter, and home-made bread, at seven o'clock, somewhat astonished and delighted the youthful Horatio; and then the old horse, with plenty of hair about his heels, was brought round with the gig. And Mr. Bumpkin and his guest got up and took their seats. The old Market Town was about seven miles off, and the road lay through the most picturesque scenery of the county. To ride on such a pleasant morning through such a country almost made one think that swearing affidavits was the most pleasing occupation of life. It was the first time Horatio had ever ridden in a gig: the horse went a good old market pace, and the beautiful sunshine, lovely scenery, and crisp air produced in his youthful bosom a peculiarly charming and delightful sense of exhilaration. He praised the country and the weather and the horse, and asked if it was what they called a thoroughbred.

"Chit!" said Bumpkin, "thoroughbred! So be I thoroughbred—did thee ever see thoroughbred wi' 'air on his 'eels?"

"Well, he goes well," said Horatio.

"Goes well enough for I," said Bumpkin.

This answer somewhat abashed Horatio, who was unlearned in horses; for some time he remained silent. Then it became Mr. Bumpkin's turn to renew the conversation:

"I spoase," said he, "thee be gwine to be a loryer?"

"Not if I know it," answered Horatio.

"Why not, then?"

"Don't care for it; I like the country."

"What wouldst thee like to be then, a farmer?"

"I should—that's the life for me!"

"Thee likes plenty o' fresh air?" said the farmer.

"Yes," answered Horatio, "and fresh butter and fresh eggs."

“I’ll go to ---, if thee doesn’t know what’s good for thee, anyhow. Thee’d ha’ to work ’ard to keep straaight, I can tell thee; thee’d had to plough, and danged if I believe thee could hold plough! What’s thee say to that, lad?”

“I think I could.”

“Devil a bit! now spoase thee’st got plough-handles under thy arms, and the cord in the ’ands, and thee wanted to keep t’colter from jibbin into t’ soil, wouldst thee press down wi’ might and main, or how?”

“Press down with might and main,” said Horatio.

“Right!” exclaimed Bumpkin; “danged if I doant think thee’d make a ploughman now. Dost know what th’ manin o’ mither woiy be?”

This was rather a startling question for the unsophisticated London youth. He had never heard such an expression in his life; and although he might have puzzled his agricultural interrogator by a good many questions in return, yet that possibility was no answer to “mither woiy.”

“I don’t know that, Mr. Bumpkin,” he ingenuously replied.

“No? well, there ain’t a commoner word down ere nor ‘mither woiy,’ and there ain’t a boy arf your age as doan’t know the manin o’t, so thee see thee got summat to larn. Now it mane this—spoase thee got a team o’ horses at dung cart or gravel cart, and thee wants em to come to ee; thee jest holds whip up over to the ed o’ th’ leadin orse like this ere, and says ‘mither woiy,’ and round er comes as natteral as possible.”

“O, that’s it!” said Horatio; “I see.”

“Ah!” said Bumpkin, “I can teach ee summat, can’t I, though thee comes from town, and I be only a country clown farmer?”

“I should just like to come down a month on trial, that’s all, when I have my holiday,” said the youth; “I think it would do me good: ‘mither woiy,’” he said, mimicking his instructor.

“Thee shall come if thee likes,” replied the good-natured Bumpkin; “Nancy’ll be proud to see thee—thee’s got ‘mither woiy’ to rights.”

“What a very nice public-house!” exclaimed Horatio, as they approached a village green where an old Inn that had flourished in the coaching days still stood, the decaying monument of a past age, and an almost forgotten style of locomotion.

“Be a good house. I often pulls up there on way from market.”

“Did you ever try rum and milk for your cough?” inquired the pale youth.

“Never had no cough,” said Bumpkin.

“What a good thing! But it’s capital, they say, in case you should have one; they say there’s nothing beats rum and milk.”

“Hem!” muttered Bumpkin, giving his horse a tremendous jerk with the reins. “I spoase thee’d like a glass, Mr. Jigger.”

“I don’t care about it for myself,” answered the youth; “but if you like to have one I’ll join you with pleasure.”

“So us wool then;” and up they pulled at the sign of the “Merry-go-round” on Addlehead Green.

“Bain’t bad tackle!” said Mr. Bumpkin, tossing off his glass.

“No,” responded Horatio, “I’ve tasted worse medicine. I quite enjoy my ride, Mr. Bumpkin; I wish we had a dozen more affidavits to swear.”

“I doan’t,” said the client; “I sworn a goodish many on em as it be. I doan’t think that air Snooks can bate un.”

“I don’t think he can,” said Horatio, as they once more climbed into the old-fashioned gig; “but talk about paper, you should see your brief: that’s a caution and no mistake!”

“Is ur now? In what way, sir?”

“Lor, how I should like a cigar, Mr. Bumpkin, if I’d only got my case with me, but unfortunately—”

“Would ur—then thee shall ’ave one; here, Mr. Ostler, jest goo and fetch one o’ them there what d’ye call ems.”

“O, do they sell them down here? Cigars—cigars,” said Horatio, “I wasn’t aware of that.”

“Now then, sir; what about this ere what d’ye call un—beef?”

Mr. Bumpkin, being a very artful man, was inwardly chuckling at the successful manœuvring by which he was drawing out this pale unsophisticated London youth, and hoped by dint of a little strategy to learn a good deal before they parted company.

“Brief! brief!” said Horatio, laughing.

“Ah! so it wur; thee said he wur a hell of a big un.”

“Yes, and I wrote him myself.”

“Did ur now; then thee knows all about un?”

“From beginning to end—he is a clipper, I can tell you; a regular whacker.”

“I hope he’ll whack thic Snooks then.”

“He’s a beauty!” rejoined Horatio, much to his companion’s surprise; for here was this young man speaking of a brief in the same terms that he (Bumpkin) would use with reference to a prize wurzel or swede. A brief being a *beauty* sounded somewhat strange in the ears of a farmer who could associate the term with nothing that didn’t grow on the farm.

“I dare say you’ve heard of Macaulay’s England?” asked the lad.

“Whose England?”

“Macaulay’s.”

“I’ve eerd o’ England, if you mean this ere country, sartainly.”

“You’ve heard of Macaulay’s History, I mean?”

“Can’t say as ever I eerd tell on un.”

“Well, there’s as much in your brief as there is in that book, and that’s saying something, ain’t it?”

“Zo’t be; but what th’ devil be ’t all about?”

“Well, I’ll tell you,” said Horatio, holding out his hands and putting the point of his right forefinger on to the point of the forefinger of his left hand. “First: biography of the plaintiff.”

“There now,” said Bumpkin, shaking the reins; “thee med jist as well talk Greek—it’s the same wally (value) to me, for I doan’t understan’ a word—bography, indade!”

“Well then, Mr. Bumpkin, there is first a history of your life.”

“Good lord, what be that for?”

“I’ll tell you presently—then there’s the history of Mrs. Bumpkin from the cradle.” (Mr. Bumpkin uttered an exclamation which nothing shall induce me to put on paper.) “Then”—and here the young man had reached the third finger of the left hand—“then comes a history of the defendant Snooks.”

“Ah!” said Bumpkin, as though they were getting nearer the mark; “that be summut like—that’ll do un—have you put in about the gal?”

“What’s that?” asked the youth.

“Oh! didn’t thee ’ear? Why, thee ’st left out the best part o’ Snooks’ life; he were keepin company wi’ a gal and left her in t’ lurch: but I ’ope thee ’st shown up ur carater well in other ways—he be the worst man as ever lived in this ’ere country.”

“Well,” said Horatio, travelling towards his little finger; “then there’s the history of the pig.”

“Zounds!” laughed the farmer, “if ever I eerd tell o’ such a thing in my bornd days. What the devil be the good o’ thic?”

“O, a good deal; the longer you make the brief the more money you get—you are paid by the yard. They don’t pay lawyers accordin’ to the value of their services, but the length of ’em.”

“Well, look ee ’ere, if I sells a pig it ain’t wallied by its length, but by its weight.”

“It ain’t so with lawyers then,” rejoined Horatio; “the taxing master takes the length of the pig, and his tail counts, and the longer the tail the better the taxing master likes it; then comes,”—(as the young lad had only four fingers he was obliged to have recourse to his thumb, placing his forefinger thereon)—“then comes about ten pages on the immortality of the soul.”

“That be the tail, I spoase.”

“You got it,” said Horatio, laughing. “O, he’s a stunner on the immortality of the soul.”

“Who be?—Snooks?”

“No—Prigg—he goes into it like winkin’.”

“But what be it to do with thic case?”

“Well, if you only put in a brief what had got to do with the case it would be a poor thing.”

And I saw in my dream that the young man was speaking truthfully: it was a beautifully drawn essay on the immortality of the soul, especially Bumpkin’s.

“By George!” continued the youth, “it’ll cost something—that brief.”

Mr. Bumpkin twitched as if he had touched with ice a nerve of his hollow tooth.

“If I had the money that case’ll cost I wouldn’t do any more work,” said the youth.

“What would’st thee be then?”

“Well, I should try and get an Associate’s place in one of the Courts.”

“Hem! but this ere Snooks ull have to pay, won’t he?”

“Ah!” said Horatio, breathing deeply and indignantly, “I hope so; he’s a mean cuss—what d’ye think? never give Locust’s boy so much as a half-sovereign! Now don’t such a feller deserve to lose? And do you think Locust’s boy will interest himself in his behalf?”

Bumpkin looked slily out of the corners of his eyes at the young man, but the young man was impassive as stone, and pale as if made of the best Carrara marble.

“But tell I, sir—for here we be at the plaace of Mr. Commissioner to take oaths—what need be there o’ this ere thing I be gwine to swear, for I’ll be danged if I understand a word of un, so I tell ee.”

“Costs, my dear sir, costs!”

* * * * *

And I heard Bumpkin mutter to himself that “he’d he danged if this ’ere feller wur so young as he made out—his ’ead wur a mighty dale older nor his body.”

CHAPTER X.

The last night before the first London expedition, which gives occasion to recall pleasant reminiscences.

“I, Bumpkin, make oath and say,” having been duly presented, and the Commissioner having duly placed the Testament in Mr. Bumpkin’s hands, and said to him that to the best of his knowledge and belief the contents of the “I Bumpkin” paper were true, the matter was over, and Mr. Snigger, with the valuable document in his possession, might have returned to London by the next train. But as Horatio afterwards observed to a friend, he “was not quite so green.” It was market day; Mr. Bumpkin was a genial companion, and had asked him to partake of the Market Ordinary. So thither at one o’clock they repaired, and a very fine dinner the pale youth disposed of. It seemed in proportion to the wonderful brief whose merits they had previously discussed. More and more did Horatio think that a farmer’s life was the life for him. He had never seen such “feeding;” more and more would he like that month on trial in the country; more and more inclined was he to throw up the whole blessed law at once and for ever. This partly-formed resolution he communicated to Mr. Bumpkin, and assured him that, but for the case of *Bumpkin v. Snooks*, he would do so on that very afternoon, and wash his hands of it.

“I don’t want,” said he, “to leave you in the lurch, Mr. Bumpkin, or else I’d cut it at once, and throw this affidavit into the fire.”

“Come, come,” said the farmer, “thee beest a young man, don’t do nowt that be wrong—stick to thy employer like a man, and when thee leaves, leave like a man.”

“As soon as your case is over, I shall hook it, Mr. Bumpkin. And now let me see—you’ll have to come to London in a week or two, for I am pretty

nigh sure we shall be in the paper by that time. I shall see you when you come up—where shall you stay?”

“Danged if I know; I be a straanger in Lunnun.”

“Well, now, look ’ere, Mr. Bumpkin, I can tell you of a very nice quiet public-house in Westminster where you’ll be at home; the woman, I believe, comes from your part of the country, and so does the landlord.”

“What be the naame o’ the public ’ouse?” asked Mr. Bumpkin.

“It’s the sign of the ‘Goose,’ and stands just a little way off from the water-side.”

“The Goose” sounded countryfied and homelike, and being near the water would be pleasant, and the landlord and landlady being Somersetshire people would also be pleasant.

“Be it a dear plaace?” he inquired.

“Oh, no; dirt cheap.”

“Ah, that air *dirt* cheap I doan’t like—I likes it a bit clean like.”

“Oh, yes, clean as a smelt—clean as ever it can be; and I’ll bespeak your lodgings for you if you like, and all.”

“Well, thankee, sir, thankee,” said the farmer, shaking hands with the youth, and giving him a half-sovereign. “I be proud to know thee.” And thus they parted: Horatio returning to his office, and Mr. Bumpkin driving home at what is called a “shig-shog” pace, reflecting upon all the events that had transpired during that memorable day.

Pretty much the same as ever went on the things at the farm, and the weeks passed by, and the autumn was over, and Christmas Day came and went, and the Assizes came and went, and *Bumpkin v. Snooks* alone in all the world seemed to stand still. One day in the autumn a friend of Mr. Prigg’s came and asked the favour of a day’s fishing, which was granted with Mr. Bumpkin’s usual cordiality. He was not only to fish on that day, but to come whenever he liked, and make the house his “hoame, like.” So he came and fished, and partook of the hospitality of the homely but plentiful

table, and enjoyed himself as often as he pleased. He was a most agreeable man, and knew how to talk. Understood a good deal about agriculture and sheep breeding, and quite enjoyed a walk with Mr. Bumpkin round the farm. This happened five or six times during the autumn. He was reticent when Mr. Bumpkin mentioned the lawsuit, because he knew so little about legal proceedings. Nor could Mr. Bumpkin “draw him out” on any point. Nothing could be ascertained concerning him except that he had a place in Yorkshire, and was in London on a visit; that he had known Mr. Prigg for a good many years, and always “found him the same.” At last, the month of February came, and the long expected letter from Mr. Prigg. Bumpkin and Joe were to be in London on the following day, for it was expected they would be in the paper. What a flutter of preparation there was at the farm! Bumpkin was eager, Mrs. Bumpkin anxious. She had never liked the lawsuit, but had never once murmured; now she seemed to have a presentiment which she was too wise to express. And she went about her preparations for her husband’s leaving with all the courage she could command. It was, however, impossible entirely to repress her feelings, and now and again as she was packing the flannels and worsted stockings, a tear would force its way in spite of all she could do.

Night came, and the fireside was as cosy as ever. But there was a sense of sadness nevertheless. Tim seemed to understand that something was not quite as it should be, for he was restless, and looked up plaintively in his master’s face, and went to Joe and put his head in his lap; then turned away and stretched himself out on the hearth, winking his eyes at the fire.

It is always a melancholy effort to “keep up the spirits” when the moment of separation is at hand. One longs for the last shake of the hand and the final good-bye. This was the case at Southwood Farm on this memorable evening. Nothing in the room looked as usual. The pewter plates on the shelf shone indeed, but it was like the smile of a winter sun; it lacked the usual cheery warmth. Even the old clock seemed to feel sad as he ticked out with melancholy monotony the parting moments; and the wind, as it came in heavy gusts and howled round the old chimney, seemed more melancholy than need be under the circumstances.

“Thee must be careful, Tom,” said Mrs. Bumpkin; “that Lunnun, as I hear, be a terrible plaace.”

“How be un a terrible plaace?” said Bumpkin, sarcastically. “I bean’t a child, Nancy.”

“No, thee bean’t a child, Tom; but thee bean’t up to Lunnun ways: there be thieves and murderers, and what not.”

“Thieves and murderers!”

“And Joe, doan’t ee git out o’ nights; if anything ’appened to thee, thy old mother ’ud brak her ’art.”

“Look ee ’ere,” said Joe, “I bean’t got nuthin’ to lose, so I bean’t afeared o’ thieves.”

“No, but thee might git into trouble, thee might be led away.”

“So might thic bull,” said Joe; “but I’d like to zee what ’ud become o’ the chap as led un.”

“Chap as led un!” said Mrs. Bumpkin, laughing.

“I’d gie un a crack o’ the canister,” said Joe.

“Don’t thee git knockin’ down, Joe, unless thee be ’bliged,” said Mrs. Bumpkin; “keep out o’ bad company, and don’t stay out o’ nights.”

“And lookee ’ere, Joe,” said Bumpkin, “when thee comes afore th’ Counsellor wi’ wig on, hold up thee head; look un straight in t’ face and spak oop. Thee needn’t be afeared t’ spak t’ truth.”

“I bean’t afeared,” said Joe; “I mind me when old Morris wur at plough, and I was leadin’ th’ ’orses, Morris says, says he, ‘Now then, cock, let’s see if we can’t git a eend this time;’ so on we goes, and jist afore I gits the ’orses to eend o’ t’ field, Dobbin turns, and then, dash my bootons, the tother turns after un, and me tryin’ to keep em oop, Dobbin gits his legs over the trace. Well, Morris wur that wild, he says, says he, ‘Damme, if yer doan’t look sharp, I’ll gie thee a crack o’ t’ canister wi’ this ’ere whippense presny’” (presently).

“Crack o’ the canister!” laughed Mrs. Bumpkin, “and that’s what Morris called thy head, eh?”

This was a capital hit on Joe's part, for it set them thinking of the events of old times, and Joe, seeing the effect of it, ventured upon another anecdote relating to the old carter.

"Thee recollect, master, when that there Mr. Gearn come down to shoot; lor, lor, what a queer un he wur, surely!"

"Couldn't shoot a hit," said Bumpkin.

"Not he. Wall, we was carrying wheat, and Morris wur loadin, and jest as we gits the last pitch on t' load, right through th' 'orses legs runs a rat. Gearn wi'out more ado oops wi' his loaded gun and bangs her off right under t' 'orses legs; up jumps th' 'orse, and Morris wur wery nigh tossed head fust into th' yard. Wall, he makes no moore ado, for he didn't keer, gemman or no gemman—didn't Morris—"

"No more ur didn't, Joe," said Mrs. Bumpkin.

"He makes no moore ado, but he up and said, 'damme,' he says, 'sir, you might as well a said you was gwine to shoot; you might a had me off and broked my neck.'"

"Haw! haw! haw!" laughed Mr. Bumpkin, and "Well done, Morris," said Mrs. Bumpkin.

"Wall," said Joe, "this ere gemman says, 'It wouldn't er bin much loss,' he says, 'if he had!' 'Damme,' roars Morris, 'it had a bin as much wally to me as yourn, anyhow.'"

They all remembered the story, and even Tim seemed to remember it too, for when they laughed he wagged his tail and laughed with them.

And thus the evening dragged along and bed time came.

In the morning all was in readiness, and the plaintiff with his witness drove away in the gig to the station, where Morris waited to bring the old horse back.

And as the train came into the little country station I awoke.

* * * * *

“I hope,” cried my wife, “that Mr. Prigg is a respectable man.”

“Respectable,” I answered, “I know he is; but whether he is honest is another matter.”

“But don’t you know?”

“I only know what I dream.”

“I have no opinion of him,” said she; “nor of that Locust; I believe they are a couple of rogues.”

“I should be very sorry to suggest such a thing as that,” I answered, “without some proof. Everybody should give credit for the best of motives.”

“But what are all these summonses you speak of?”

“O, they are summonses in the action. You may have as many of them as you can invent occasion for. You may go up to the Court of Appeal about twenty times before you try the action, which means about eighty different hearings before Master and Judges.”

“But how can a poor man endure that? It’s a great shame.”

“He can’t—he may have a perfectly good cause of action against a rich man or a rich company, and they can utterly ruin him before ever his case can come into Court.”

“But will no solicitor take it up for the poor man?”

“Yes, some will, and the only reward they usually get for their pains is to be stigmatized as having brought a speculative action—accused of doing it for the sake of costs; although I have known the most honourable men do it out of pure sympathy for the poor man.”

“And so they ought,” cried she.

“And I trust,” said I, “that hereafter it will be considered honourable to do so. It is quite as honourable, in my judgment, to bring an action when you may never be paid as to bring it when you know you will be.”

“Who was the person referred to as ‘the man?’”

“I don’t know,” said I, “but I strongly suspect he is, in reality, a nominee of Prigg’s.”

“That is exactly my opinion,” said my wife. “And if so, between them, they will ruin that poor man.”

“I can’t tell,” said I, lighting my pipe. “I know no more about the future of my dream than you do; maybe when I sleep again something else will transpire.”

“But can no one do anything to alter this state of things? I plainly perceive that they are all against this poor Bumpkin.”

“Well, you see, in a tinkering sort of way, a good many try their hands at reforming the law; but it’s to no one’s interest, that I can see, to reform it.”

“I hope you’ll write this dream and publish it, so that someone’s eyes may be opened.”

“It may make me enemies.”

“Not among honest people; they will all be on your side, and the dishonest ones, who seem to me to be the only persons benefited by such a dilatory and shocking mode of procedure, are the very persons whose enmity you need not fear. But can the Judges do nothing?”

“No; their duty is merely to administer the law, not to change it. But if the people would only give them full power and fair play, Old Fogeyism would be buried to-morrow. They struggle might and main to break through the fetters, but to no purpose while they are hampered by musty old precedents, ridiculous forms and bad statutes. They are not masters of the situation. I wish they were for the sake of suitors. I would only make one condition with regard to them. If they were to set about the task of reform, I would not let the Equity Judges reform the Common Law nor the Common Law Judges the Equity.”

“I thought they were fused.”

“No, only transposed.”

CHAPTER XI.

Commencement of London life and adventures.

And I dreamt again, and methought there were three things with reference to London that Joe had learnt at school. First, that there was a Bridge, chiefly remarkable for the fact that Captain Cook, the Navigator, shot his servant because he said he was under London Bridge when he was in the South Pacific Ocean; secondly, that there was a famous Tower, where the Queen's Crown was kept; thirdly, that there was a Monument built to show where the Great Fire began, and intimately connected in its cause with Guy Faux, whom Joe had helped to carry on the Fifth of November. Now when the young man woke in the morning at "The Goose," in Millbank Street, Westminster, his attention was immediately attracted by these three historic objects; and it was not till after he had made inquiries that he found that it was not London Bridge that crossed the water in a line with the Horseferry Road, but a very inferior structure called Lambeth Suspension Bridge. Nor was the Tower on the left the Tower of London, but the Lollards' tower of Lambeth Palace; while the supposed Monument was only the handsome column of Messrs. Doulton's Pottery.

But they were all interesting objects nevertheless; and so were the huge cranes that were at work opposite the house lifting the most tremendous loads of goods from the lighters to the wharves. The "Shipping," too, with its black and copper-coloured sails, gave some idea of the extent of England's mercantile marine. At all events, it excited the country lad's wonder and astonishment. But there was another matter that gave quite an agricultural and countrified look to the busy scene, and that was the prodigious quantity of straw that was being unloaded from the barges alongside. While Mr. Bumpkin went to see his solicitor at Westminster Hall, Joe wandered about the wharves looking at the boats and barges, the cranes and busy workmen who drove their barrows from barge to wharf,

and ran along with loads on their backs over narrow planks, in the most lively manner. But looking on, even at sights like these, day by day, becomes a wearisome task, and Joe, being by no means an idle lad, occasionally “lent a hand” where he saw an opportunity. London, no doubt, was a very interesting place, but when he had seen Page Street, and Wood Street, and Church Street, and Abingdon Street, and Millbank Prison, and the other interesting objects referred to, his curiosity was gratified, and he began to grow tired of the sameness of the place. Occasionally he saw a soldier or two and the military sight fired his rustic imagination. Not that Joe had the remotest intention of entering the army; it was the last thing he would ever dream of; but, in common with all mankind he liked to look at the smart bearing and brilliant uniform of the sergeant, who seemed to have little else to do than walk about with his cane under his arm, or tap the stone parapet with it as he looked carelessly at some interesting object on the river.

The evenings in the taproom at “The Goose” were among the most enjoyable periods of the lad’s London existence. A select party usually gathered there, consisting chiefly of a young man who never apparently had had anything to do in his life. His name was Harry Highlow, a clever sort of wild young scapegrace who played well at “shove-ha’penny,” and sang a good comic song. Another of the party was a youth who earned a precarious livelihood by carrying two boards on his shoulders advertising a great pickle, or a great singer, as the case might be. Another of the company was a young man who was either a discharged or a retired groom; I should presume the former, as he complained bitterly that the authorities at Scotland Yard would not grant him a licence to drive a cab. He appeared to be a striking instance of how every kind of patronage in this country is distributed by favouritism. There were several others, all equally candidates for remunerative situations, but equally unfortunate in obtaining them: proving conclusively that life is indeed a lottery in which there may be a few prizes, usually going, by the caprice of Fortune, to the undeserving, while the blanks went indiscriminately to all the rest.

Bound together by the sympathy which a common misfortune engenders, these young men were happy in the pursuit of their innocent amusements at “The Goose.” And while, at first, they were a little inclined to chaff the rustic youth on account of his apparent simplicity, they soon learned to

respect him on account of his exceedingly good temper and his willingness to fall in with the general views of the company on all occasions. They learnt all about Joe's business in London, and it was a common greeting when they met in the evening to ask "how the pig was?" And they would enquire what the Lord Chancellor thought about the case, and whether it wouldn't be as well to grease the pig's tail and have a pig-hunt. To all which jocular observations Joe would reply with excellent temper and sometimes with no inappropriate wit. And then they said they would like to see Joe tackle Mr. Orkins, and believed he would shut him up. But chaff never roused his temper, and he laughed at the case as much as any man there. Fine tales he would have to tell when he got back to Yokelton; and pleasant, no doubt, would be in after-life, his recollections of the evenings at "The Goose."

As a great general surveys the field where the intended action is to be fought, so Mr. Bumpkin was conducted by Horatio to Westminster Hall, and shown the various Courts of Justice, and some of the judges.

"Be this Chancery?" he enquired.

"O my eye, no!" said Horatio; "the cause has been transferred from Chancery to these 'ere Common Law Courts. It was only brought in Chancery because the costs there are upon a higher scale; we didn't mean to try her there."

"Where will she be tried then?"

"In one of these Courts."

"Who be the judge?" whispered Bumpkin.

At this moment there was a loud shout of "Silence!" and although Mr. Bumpkin was making no noise whatever, a gentleman approached him, looking very angry, and enquired if Mr. Bumpkin desired to be committed for contempt of Court.

Mr. Bumpkin thought the most prudent answer was silence; so he remained speechless, looking the gentleman full in the face; while the gentleman looked him full in the face for at least a minute and a half, as if he were wondering whether he should take him off to prison there and then, or give

him another chance, as the judge sometimes does a prisoner when he sentences him to two years imprisonment with hard labour.

Now the gentleman was a very amiable man of about forty, with large brown mutton-chop whiskers, and a very well trained moustache; good-looking and, I should think, with some humour, that is for a person connected with the Courts. He was something about the Court, but in what capacity he held up his official head, I am unable to say. He was evidently regarded with great respect by the crowd of visitors. It was some time before he took his gaze off Mr. Bumpkin; even when he had taken his eyes off, he seemed looking at him as if he feared that the moment he went away Bumpkin would do it again.

And then methought I heard someone whisper near me: “His lordship is going to give judgment in the case of *Starling v. Nightingale*,” and all at once there was a great peace. I lost sight of Bumpkin, I lost sight of the gentleman, I lost sight of the crowd; an indefinable sensation of delight overpowered my senses. Where was I? I had but a moment before been in a Court of Justice, with crowds of gaping idlers; with prosaic-looking gentlemen in horsehair wigs; with gentlemen in a pew with papers before them ready to take down the proceedings. Now it seemed as if I must be far away in the distant country, where all was calm and heavenly peace.

Surely I must be among the water-lilies! What a lullaby sound as of rippling waters and of distant music in the evening air; of the eddying and swirl of the mingling currents; of the chime of bells on the evening breeze; of the zephyrs through fir-tops; of woodland whispers; of the cadence of the cathedral organ; of the soft sweet melody of the maiden’s laugh; of her gentlest accents in her sweetest mood; of—but similitudes fail me. In this delicious retreat, which may be compared to the Garden of Eden before the tempter entered, are the choicest flowers of rhetoric. I hear a voice as from the far-off past, and I wonder will that be the voice which will utter the “last syllable of recorded time?”

Then methought the scene changed, and I heard the question—

“Do you move, Mr. Jones?”

O the prosaic Jones!—“don’t you move?”

Yes, he does; he partly rises, ducks his head, and elevates the hinder portion of his person, and his movement ceases. And the question is repeated to Mr. Quick. “Do you move, Mr. Quick?”

Then I saw Mr. Bumpkin again, just as Mr. Quick ducked his head and elevated his back.

And then some gentleman actually moved in real earnest upon these interesting facts:—A farmer’s bull—just the very case for Mr. Bumpkin—had strayed from the road and gone into another man’s yard, and upset a tub of meal; was then driven into a shed and locked up. The owner of the bull came up and demanded that the animal should be released. “Not without paying two pounds,” said the meal-owner. The bull owner paid it under protest, and summoned the meal-owner to the County Court for one pound seventeen shillings and sixpence, the difference between the damage done (which was really about twopence) and the money paid to redeem the bull. Judgment for the plaintiff. Motion for new trial, or to enter verdict for the defendant, on the ground that the meal man could charge what he liked.

One of the learned Judges asked:

“Do you mean to tell me, Mr. Smiles, that if a man has a bull, and that bull goes into a yard and eats some meal out of a meal-tub, and the damage amounts to twopence, and the owner of the bull says ‘here’s your twopence,’ that the owner of the meal can say, “No, I want a hundred pounds, and shall take your bull damage feasant,” and then takes him and locks him up, and the owner of the bull pays the hundred pounds, he cannot afterwards get the money back?”

“That is so,” says the learned counsel, “such is the law.” And then he cited cases innumerable to prove that it was the law.

“Well,” said the Judge, “unless you show me a case of a bull and a meal-tub, I shall not pay attention to any case—must be a meal-tub.”

Second Judge: “It is extortion, and done for the purpose of extortion; and I should say he could be indicted for obtaining money by false pretences.”

“I am not sure he could not, my lord,” said the counsel; “but he can’t recover the money back.”

“Then,” said the Judge, “if he obtains money by an indictable fraud cannot he get it back?”

“Well,” said Bumpkin, “that be rum law; if it had bin my bull, he’d a gin ’em summat afore they runned him in.”

It was interesting to see how the judges struggled against this ridiculous law; and it was manifest even to the unlettered Bumpkin, that a good deal of old law is very much like old clothes, the worse for wear, and totally inapplicable to the present day. A struggle against old authorities is often a struggle of Judges to free themselves from the fetters of antiquated dicta and decisions no longer appropriate to or necessary for the modern requirements of civilisation.

In this case precedents running over *one hundred and eight years* were quoted, and so far from impressing the Court with respect, they simply evoked a smile of contempt.

The learned Judges, after patiently listening to the arguments, decided that extortion and fraud give no title, and thus were the mists and vapours that arose from the accumulated mudbanks of centuries dispelled by the clear shining of common sense. In spite of arguments by the hour, and the pettifogging of one hundred and eight years, justice prevailed, and the amazed appellant was far more damaged by his legal proceedings than he was by the bull. The moral surely is, that however wise ancient judges were in their day, their wisdom ought not to be allowed to work injustice. He may be a wise Judge who makes a precedent, but he is often a much wiser who sweeps it away.

CHAPTER XII.

How the great Don O’Rapley became an usher of the Court of Queen’s Bench and explained the ingenious invention of the round square—how Mr. Bumpkin took the water and studied character from a penny steamboat.

Some years ago there lived in a little village near Bridgewater a young man who was the bowler of his village eleven—one of the first roundhand bowlers in point of time, and by no means the last in point of merit. Indeed, so great was the local fame of this young man that it produced a sensation for miles around when it was announced that Don O’Rapley (such was his name) was going to bowl. All the boys of the village where the match was to take place were in a state of the utmost excitement to see the Don. At times it was even suggested that he was unfairly “smuggled in” to play for a village to which he had no pretensions to belong. In process of time the youth became a man, and by virtue of his cricket reputation he obtained a post in the Court of Queen’s Bench. The gentleman whom I have referred to as looking with such austerity at Mr. Bumpkin is that very Don O’Rapley; the requirements of a large family necessitated his abandonment of a profession which, although more to his taste, was not sufficiently remunerative to admit of his indulging it after the birth of his sixth child. But it was certain that he never lost his love for the relinquished pursuit, as was manifest from his habit when alone of frequently going through a kind of dumb motion with his arm as if he were delivering one of his celebrated “twisters.” He had even been seen in a quiet corner of the Court to go through the same performance in a somewhat modified form. He was once caught by the Judge in the very act of delivering a ball, but found a ready apology in the explanation that he had a touch of “rheumatiz” in his right shoulder.

Now I saw in my dream that Don O’Rapley was in earnest conversation with Horatio, and it was clear Mr. Bumpkin was the subject of it, from the very marked manner in which the Don and the youth turned occasionally to look at him. It may be stated that Horatio was the nephew of Don O’Rapley, and, perhaps, it was partly in consequence of this relationship, and partly in consequence of what Horatio told him, that the latter gentleman rose from his seat under the witness-box and came towards Mr. Bumpkin, shouting as he did so in a very solemn and prolonged tone, “Silence!”

Mr. Bumpkin saw him, and, conscious that he was innocent this time of any offence for which he could be committed, stood his ground with a bold front, and firmly held his white beaver with both hands. O’Rapley contemplated him for a few minutes with an almost affectionate interest. Bumpkin felt much as a pigeon would under the gaze of an admiring owl.

At last O’Rapley spoke:—

“Why, it’s never Mr. Bumpkin, is it?”

“It be a good imitation, sir,” said Bumpkin, “and I bean’t asheamed of un.”

“Silence!” cried the Don. “You don’t remember me, I s’pose?”

“Wall, not rightly, I doan’t.”

“I dissay you recollect Don O’Rapley, the demon bowler of Bridgewater?”

“I’ve ’eered tell on ’im,” said Bumpkin.

“I’m that man!” said the Don, “and this is my nephew, Mr. Snigger. He tells me you’ve got a case comin’ on?”

“I be.”

“Just step outside,” said the Don, “we mustn’t talk ’ere.” So they went into Westminster Hall, and the good-natured O’Rapley asked if Mr. Bumpkin would like to look round, and if so he said he would be happy to show him, for he was very pleased to see anyone from the scene of his youthful exploits.

“Thankee, sir—thankee, sir,” answered Bumpkin, delighted to find another “native” among “furriners.” “And this ’ere genleman be thy nevvv, sir?”

“He is, and very proud of him I am; he’s my sister’s son.”

“Seems a nice quiet boy,” said Mr. Bumpkin. “Now how old might he be?”

“Old,” said Mr. O’Rapley, looking deedily at the floor and pressing his hand to his forehead, “why he’ll be seventeen come March.”

“Hem! his ’ed be a good deal older nor thic: his ’ed be forty—it’s my way o’ thinkin’.”

The Don laughed.

“Yes, he has his head screwed on the right way, I think.”

“Why that air lad,” said Bumpkin, “might make a judge.”

O’Rapley laughed and shook his head.

“In old times,” said he, “he might ha’ made a Lord Chancellor; a man as was clever had a chance then, but lor’ blesh you, Mr. Bumpkin, now-a-days it’s so very different; the raw material is that plentiful in the law that you can find fifty men as would make rattlin good Lord Chancellors for one as you could pick out to make a rattlin’ good bowler. But come, we’ll have a look round.”

So round they looked again, and Mr. Bumpkin was duly impressed with the array of wigs and the number of books and the solemnity of the judges and the arguments of counsel, not one word of which was intelligible to him. Mr. O’Rapley explained everything and pointed out where a judge and jury tried a case, and then took him into another court where two judges tried the judge and jury, and very often set them both aside and gave new trials and altered verdicts and judgments or refused to do so notwithstanding the elaborate arguments of the most eloquent and long-winded of learned counsel.

Then the Don asked if Mr. Bumpkin would like to see the Chancery Judges—to which Mr. Bumpkin answered that “he hadn’t much opinion o’ Chancery from all he’d ’eard, and that when a man got into them there

Cooarts maybe he'd never coome out agin, but he shouldn't mind seein' a Chancery Judge."

"Well, then," said the distinguished bowler, "now-a-days we needn't go to Chancery, for they've invented the 'Round Square.'"

Mr. Bumpkin stared. Could so great a man as the O'Rapley be joking? No; the Don seldom laughed. He was a great admirer of everything relating to the law, but had a marked prejudice against the new system; and when he spoke of the "Round Square" he meant, as he afterwards explained, that confusion of Law and Equity which consists in putting Chancery Judges to try common law cases and Common Law Judges to unravel the nice twistings of the elaborate system of Equity; "as though," said he, "you should fuse the butcher and the baker by getting the former to make bread and the latter to dress a calf."

Mr. Bumpkin could only stare by way of reply.

"If you want to see Chancery Judges," added the Don, "come to the Old Bailey!"

CHAPTER XIII.

An interesting gentleman—showing how true it is that one half the world does not know how the other half lives.

“The Old Bailey,” said Mr. Bumpkin, as they crossed Palace Yard on their way to the steamboat pier, “bean’t that where all these ’ere chaps be tried for ship stealin’?” (sheep stealing).

“I don’t know about ship stealing,” said O’Rapley, “but it’s a place where they can cure all sorts of diseases.”

“Zounds!” exclaimed Bumpkin, “I’ve ’eard tell of un. A horsepital you means—dooan’t want to goo there.”

“Horse or donkey, it don’t matter what,” said Don O’Rapley. “They’ve got a stuff that’s so strong a single drop will cure any disease you’ve got.”

“I wonder if it ’ud cure my old ’ooman’s roomatiz. It ’ud be wuth tryin’, maybe.”

“I’ll warrant it,” replied the Don. “She’d never feel ’em after takin’ one drop,” and he drew his hand across his mouth and coughed.

“I’d like to try un,” said the farmer, “for she be a terrible sufferer in these ’ere east winds. ’As ’em like all up the grine.”

“Ah,” said the Don, “it don’t matter where she ’as ’em, it will cure her.”

“How do ’em sell it—in bottles?”

“No, it isn’t in bottles—you take it by the foot; about nine feet’s considered a goodish dose.”

Mr. Bumpkin looked straight before him, somewhat puzzled at this extraordinary description of a medicine. At length he got a glimmering of the Don's meaning, and, looking towards, but not quite at him, said:—

“I be up to 'ee, sir!” and the Don laughed, and asked whether his description wasn't right?

“That be right enough. Zounds! it be right enough. Haw! haw! haw!”

“You never want a second dose,” said the Don, “do you?”

“No, sir—never wants moore 'an one dose; but 'ow comes it, if you please, sir, that these 'ere Chancery chaps have changed their tack; be it they've tried 'onest men so long that they be gwine to 'ave a slap at the thieves for a change?”

“Look 'ere,” said the worthy O'Rapley, “you will certainly see the inside of a jail before you set eyes on the outside of a haystack, if you go on like that. It's contempt of court to speak of Her Majesty's Judges as 'chaps'.”

“Beg pardon, sir,” said Bumpkin, “but we must all 'ave a larnin'. I didn't mane no disruspect to the Lord Judge; but I wur only a axin' jist the same as you might ax me about anythink on my farm.”

And I saw that they proceeded thus in edifying conversation until they came to the Thames embankment. It was somewhat difficult to preserve his presence of mind as Mr. Bumpkin descended the gangway and stepped on board the boat, which was belching forth its volumes of black smoke and rocking under the influence of the wash of a steamer that had just left the pier.

“I doant much like these 'ere booats,” said he. “Doant mind my old punt, but dang these 'ere ships.”

“There's no danger,” said the O'Rapley, springing on board as though he had been a pilot: and then making a motion with his arm as if he was delivering a regular “length ball,” his fist unfortunately came down on Mr. Bumpkin's white hat, in consequence of a sudden jerk of the vessel; a rocking boat not being the best of places for the delivery of length balls.

Mr. Bumpkin looked round quite in the wrong direction for ascertaining what was the cause of the sudden shock to his nervous system and his hat.

“Zounds!” said he, “what were thic?”

“What was what?” asked O’Rapley.

“Summut gie me a crack o’ the top o’ my ’ead like a thunderbolt.”

“I didn’t see anything fall,” said the Don.

“Noa; but I felt un, which I allows wur more’n seein’—lookee ’ere.”

And taking off his huge beaver he showed the dent of Mr. O’Rapley’s fist.

“Bless me,” said the roundhand bowler, “it’s like a crack with a cricket ball.”

But there was no time for further examination of the extraordinary circumstance, for the crowd of passengers poured along and pushed this way and that, so that the two friends were fairly driven to the fore part of the boat, where they took their seats. It was quite a new world to Mr. Bumpkin, and more like a dream than a reality. As he stared at the different buildings he was too much amazed even to enquire what was this or what was that. But when they passed under the Suspension Bridge, and the chimney ducked her head and the smoke came out of the “stump,” as Mr. Bumpkin termed it, he thought she had struck and broken short off. Mr. O’Rapley explained this phenomenon, as he did many others on their route; and when they came to Cleopatra’s Needle he gave such information as he possessed concerning that ancient work. Mr. Bumpkin looked as though he were not to be taken in.

“I be up to ’ee, sir,” said he. “I s’pose that air thing the t’other side were the needle-case?”

The O’Rapley informed him that it was a shot tower where they made shot.

Mr. Bumpkin laughed heartily at this; he was not to be taken in by any manner of means; was far too sharp for that.

“And I spoase,” said he, “they makes the guns—”

“In Gunnersbury,” said Mr. O’Rapley; it was no use to be serious.

“I thought thee were gwine to say in a gun pit, but I don’t mind thy chaff, Master Rapley, and shall be mighty proud to see thee down at Southood for a day’s shoot-in’: and mind thee bring some o’ these ere shot with thee that be made at yon tower, haw! haw! haw! Thee’ll kill a white-tailed crow then, I shouldn’t wonder; thee knows a white-tailed crow, doan’t thee, Master Rapley, when thee sees un—and danged if I doan’t gie thee a quart bottle o’ pigeon’s milk to tak’ wi’ thee; haw! haw! haw!”

The O’Rapley laughed heartily at these witty sallies, for Bumpkin was so jolly, and took everything in such good part, that he could not but enjoy his somewhat misplaced sarcasms.

“Now you’ve heard of Waterloo, I dare say,” said Mr. O’Rapley.

“Yes, I’ve ’eeard tell on un, and funder, my grand-feather wur out theer.”

“Well, this that we are coming to is Waterloo Bridge.”

“Yes,” said Bumpkin, “it be a bridge, but it bean’t Worterloo more ’an I be my grandfearther—what de think o’ that—haw! haw! haw!”

“Good,” said O’Rapley; “that’s quite right, but this is the bridge named after the battle.”

“Zo’t be neamed artur un because it worn’t named afore un, haw! haw! haw! Good agin, Maister Rapley, thee got it.”

Mr. O’Rapley found that any attempt to convey instruction was useless, so he said:—

“Joking apart, Mr. Bumpkin, you see that man sitting over there with the wideawake hat?”

“D’ye mane near the noase o’ the ship?”

“Well, the nose if you like.”

“I zee un—chap wi’ red faace, blue ’ankercher, and white spots?”

“That’s the man. Well, now, you’d never guess who he is?”

Mr. Bumpkin certainly would have been a sharp man if he could.

“Well,” continued the Don, “that man gets his living by bringing actions. No matter who it is or what, out comes the writ and down he comes for damages.”

“Hem! that be rum, too, bean’t it?”

“Yes, he’s always looking out for accidents; if he hears o’ one, down he comes with his pocket-book, gets ’old o’ some chap that’s injured, or thinks he is, and out comes the writ.”

“What be he then?”

“A scamp—works in the name of some broken-down attorney, and pays him for the use of it.”

“So he can work the lor like wirout being a loryer?”

“That’s it—and, lor’ bless you, he’s got such a way with him that if he was to come and talk to you for five minutes, he’d have a writ out against you in the morning.”

“Ain’t it rayther cold at this eend o’ the booat,” asked Mr. Bumpkin, “I feel a little chilly loike.”

“No,” said the Don, “we just caught the wind at that corner, that was all.”

But Mr. Bumpkin kept his eye on the artful man, with a full determination to “have no truck wi’ un.”

“As I was saying, this Ananias never misses a chance: he’s on the look-out at this moment; if they was to push that gangway against his toe, down he’d go and be laid up with an injured spine and concussion of the brain, till he got damages from the company.”

“Must be a reg’ler rogue, I allows; I should like to push un overboard.”

“Just what he would like; he isn’t born to be drowned, that man; he’d soon have a writ out against you. There was a railway accident once miles away in the country; ever so many people were injured and some of ’em killed.

Well, down he goes to see if he could get hold of anybody—no, nobody would have him—so what does he do but bring an action himself.”

“What for?”

“Why, just the same as if he’d been in the accident.”

“Ought to be hanged.”

“Well, the doctors were very pleased to find that no bones were broken, and, although there were no bruises, they discovered that there were internal injuries: the spine was wrong, and there was concussion of the brain, and so on.”

“If ever I ’eerd tell o’ sich a thing in my borned days.”

“No, but it’s true. Well, he was laid up a long time under medical treatment, and it was months before he could get about, and then he brings his action: but before it came on he prosecutes his servant for stealing some trumpery thing or other—a very pretty girl she was too—and the trial came on at Quarter Sessions.”

“Where Squoire Stooky sits.”

“I never laughed so in all my life; there was the railway company with the red light, and there was Fireaway, the counsel for the girl, and then in hobbled the prosecutor, with a great white bandage round his head. He was so feeble through the injuries he had received that he could hardly walk. ‘Now then,’ says the counsel, ‘is he sworn?’ ‘Yes,’ says the crier.

“‘He must be sworn on the Koran,’ says Fireaway; ‘he’s a Mommadon.’

“‘Where’s the Jorum?’ says the crier. ‘Must be swore on the Jorum.’

“O dear, dear, you should ha’ heard ’em laugh—it was more like a theayter than a court. It was not only roars, but continnerus roars for several minutes. And all the time the larfter was going on there was this man throwin’ out his arms over the witness-box at the counsel like a madman; and the more he raved the more they laughed. He was changed from a hobblin’ invalid, as the counsel said, into a hathletic pugilist.”

“I ’ope she got off.”

“Got off with flying colours—we’re magnanimous said the jury, ‘not guilty.’”

“Well, I likes upright and down-straight,” said Bumpkin, “it’ll goo furdest in th’ long run.”

“Yes,” said O’Rapley, “and the longer the run the furer it’ll go.”

“So ’t wool; but if you doan’t mind, sir, I’d like to get nearer that ’ere fireplace.”

“The funnel—very well.” And as they moved Mr. O’Rapley, in the exuberance of his spirits, delivered another ball at the chimney, which apparently took the middle stump, for the chimney again broke in half.

“Got him!” said he. “I quite agree, and I’ll tell you for why. You can play a straight ball if you mind what you are about—just take your bat so, and bring your left elbow well round so, and keep your bat, as you say, upright and down-straight, so—and there you are. And there, indeed, Mr. Bumpkin was, on his back, for the boat at that moment bumped so violently against the side of the pier that many persons were staggering about as if they were in a storm.

“Zounds!” said the farmer, as he was being picked up—“these ’ere booats, I doan’t like ’em—gie me the ole-fashioned uns.”

Now came the usual hullabaloo, “Stand back!—pass on!—out of the way! now, then, look sharp there!” and the pushing of the gangway against people’s shins as though they were so many skittles to be knocked over, and then came the slow process of “passing out.”

“There’s one thing,” whispered O’Rapley, “if you do break your leg the company’s liable—that’s one comfort.”

“Thankee, sir,” answered Bumpkin, “but I bean’t a gwine to break my leg for the sake o’ a haction—and mebbe ha’ to pay the costs.”

CHAPTER XIV.

THE OLD BAILEY—ADVANTAGES OF THE NEW SYSTEM ILLUSTRATED.

And I saw in my dream that Don O’Rapley and worthy Master Bumpkin proceeded together until they came to the Old Bailey; that delightful place which will ever impress me with the belief that the Satanic Personage is not a homeless wanderer. As they journeyed together O’Rapley asked whether there was any particular kind of case which he would prefer—much the same as he would enquire what he would like for lunch.

“Well, thankee, sir,” said Bumpkin, “what he there?”—just the same as a hungry guest would ask the waiter for the bill of fare.

“Well,” said Mr. O’Rapley, “there’s no murder to-day, but there’s sure to be highway robberies, burglaries, rapes, and so on.”

“Wall, I thinks one o’ them air as good as anything,” said Bumpkin. “I wur on the jury once when a chap were tried.”

“Did he get off?”

“Got off as clane as a whusle. Not guilty, we all said: sarved her right.”

“It’s rather early in the morning, p’r’aps,” said O’Rapley; “but there’s sure to be something interesting before lunch—crimes are very pop’lar, and for my own part, I think they’re as nice as anything: divorces, p’r’aps, are as good, and the female intellect prefers ’em as a more digestable food for their minds.”

“As a what, sir!”

“Well, since they did away with *crim. cons.*, there’s nothing left for females but murders and divorces, worth speaking of.”

“Why, how’s that, then?”

“O, they’re not considered sufficiently moral, that’s all. You see, Master Bumpkin, we’re getting to be a very moral and good people. They’re doin’ away with all that’s naughty, such as music and dancing, peep-shows and country fairs. This is a religious age. No pictur galleries on a Sunday, but as many public-houses as you like; it’s wicked to look at picturs on a Sunday. And now I’ll tell you another thing, Master Bumpkin, although p’r’aps I ought to keep my mouth closed; but ’ere you’ll see a Chancery Judge as knows everything about land and titles to property, and all that, and never had any training in Criminal Courts, and may be never been inside of one before, you’ll see ’im down ’ere tryin’ burglaries and robberies, and down at the Assizes you’ll see ’im tryin’ men and women for stealing mutton pies and a couple of ounces of bacon; that’s the way the Round Square’s worked, Master Bumpkin; and very well it acts. There’s a moral atmosphere, too, about the Courts which is very curious. It seems to make every crime look bigger than it really is. But as I say, where’s the human natur of a Chancery barrister? How can you get it in Chancery? They only sees human natur in a haffidavit, and although I don’t say you can’t put a lot of it into a haffidavit, such as perjury and such like, yet it’s so done up by the skill of the profession that you can hardly see it. Learning from haffidavits isn’t like learning from the witness-box, mark my words, Mr. Bumpkin; and so you’ll find when you come to hear a case or two.”

Having thus eloquently delivered himself, Mr. O’Rapley paused to see its effect: but there was no answer. There was no doubt the Don could talk a-bit, and took especial pride in expressing his views on law reform, which, to his idea, would best be effected by returning to the “old style.”

And I saw that they pushed their way through a crowd of people of all sorts and degrees of unwashedness and crime, and proceeded up a winding stair, through other crowds of the most evil-looking indictable persons you could meet with out of the Bottomless Pit.

And amongst them were pushing, with eager, hungry, dirty faces, men who called themselves clerks, evil-disposed persons who traded under such names as their owners could use no longer on their own account. These prowlers amongst thieves, under the protection of the Law, were permitted

to extort what they could from the friends of miserable prisoners under pretence of engaging counsel to defend them. Counsel they would engage after a fashion—sometimes: but not unfrequently they cheated counsel, client and the law at the same time, which is rather better than killing two birds with one stone.

And the two friends, after threading their way through the obnoxious crowd, came to the principal Court of the Old Bailey, called the “Old Court,” and a very evil-looking place it was. All the ghosts of past criminals seemed floating in the dingy atmosphere. Crowds of men, women and children were heaped together in all directions, except on the bench and in a kind of pew which was reserved for such ladies as desired to witness the last degradation of human nature.

Presently came in, announced with a loud cry of “Silence!” and “Be uncovered in Court!” a gorgeous array of stout and berobed gentlemen, with massive chains and purple faces. These, I learned, were the noble Aldermen of the Corporation. What a contrast to the meagre wretches who composed the crowd! Here was a picture of what well-fed honesty and virtue could accomplish for human nature on the one part, as opposed to what hungry crime could effect, on the other. Blessings, say I, on good victuals! It is a great promoter of innocence. And I thought how many of the poor, half-starved, cadaverous wretches who crowded into the dock in all their emaciated wretchedness and rags would, under other conditions, have become as portly and rubicund and as moral as the row of worthy aldermen who sat looking at them with contempt from their exalted position.

The rich man doesn’t steal a loaf of bread; he has no temptation to do so: the uneducated thief doesn’t get up sham companies, because *he* has no temptation to do so. Temptation and Opportunity have much to answer for in the destinies of men. Honesty is the best policy, but it is not always the most expedient or practicable.

Now there was much arraignment of prisoners, and much swearing of jurymen, and proclamations about “informing my Lords Justices and the Queen’s Attorney-General of any crimes, misdemeanours, felonies, &c., committed by any of the prisoners,” and “if anybody could so inform my

Lords Justices,” &c, he was to come forward and do so, and he would be heard. And then the crowd of prisoners, except the one about to be tried, were told to stand down. And down they all swarmed, some laughing and some crying, to the depths below. And the stout warders took their stand beside the remaining prisoner.

“Now,” said Mr. O’Rapley, “this Judge is quite fresh to the work, and I’ll warrant he’ll take a moral view of the law, which is about the worst view a Judge *can* take.”

The man left in the dock was a singular specimen of humanity: he was a thin, wizened-looking man of about seventy, with a wooden leg: and as he stood up to plead, leant on two crutches, while his head shook a good deal, as if he had got the palsy. A smile went round the bar, and in some places broke out into a laugh: the situation was, indeed, ridiculous; and before any but a Chancery Judge, methought, there must be an acquittal on the view. However, I saw that the man pleaded not guilty, and then Mr. Makebelieve opened the case for the Crown. He put it very clearly, and, as he said, fairly before the jury; and then called a tall, large-boned woman of about forty into the witness-box. This was the “afflicted widow,” as Makebelieve had called her; and the way she gave her evidence made a visible impression on the mind of the learned Judge. His Lordship looked up occasionally from his note-book and fixed his eyes on the prisoner, whose appearance was that of one trembling with a consciousness of guilt—that is, to one not versed in human nature outside an affidavit.

Mr. Nimble, the prisoner’s counsel, asked if the prisoner might sit down as he was very “infirm.”

“Have you an affidavit of that fact, Mr. Nimble?” asked the Judge.

“No, my lord; it is not usual on such an application to have an affidavit.”

“It is not usual,” said his lordship, “to take notice of any fact not upon affidavit; but in this case the prisoner may sit down.”

The prosecutrix gave her evidence very flippantly, and did not seem in the least concerned that her virtue had had so narrow an escape.

“Now,” asked Mr. Nimble, “what are you?”

The learned Judge said he could not see what that had to do with the question. Could Mr. Nimble resist the facts?

“Yes, my lord,” answered the learned counsel; “and I intend, in the first place, to resist them by showing that this woman is entirely unworthy of credit.”

“Are you really going to suggest perjury, Mr. Nimble?”

“Assuredly, my lord! I am going to show that there is not a word of truth in this woman’s statement. I have a right to cross-examine as to her credit. If your lordship will allow me, I will—”

“Cross-examination, Mr. Nimble, cannot be allowed, in order to make a witness contradict all that she has said in her examination-in-chief; it would be a strange state of the law, if it could.”

Mr. Nimble looked about the desk, and then under it, and felt in his bag, and at last exclaimed in a somewhat petulant tone:

“Where’s my Taylor?”

“What do you want your tailor for?” asked the Judge.

“I wish to point out to your lordship that my proposition is correct, and that I can cross-examine to the credit of a witness.”

Here the clerk of arraigns, who sat just under the learned Judge, and was always consulted on matters of practice when there was any difficulty, was seen whispering to his lordship: after which his lordship looked very blank and red.

“We always consult him, my lord,” said Mr. Nimble, with a smile, “in suits at Common Law.”

Everybody tried not to laugh, and everybody failed. Even the Judge, being a very good-tempered man, laughed too, and said:

“O yes, Taylor on Evidence, Mr. Nimble.”

At last the book, about the size of a London Directory, was handed up by a tall man who was Mr. Nimble’s clerk.

“Now, my lord, at page nineteen hundred and seventy-two your lordship will find that when the credibility of a witness is attacked—”

Judge: “That will be near the end of the book.”

Mr. Nimble: “No, my lord, near the beginning.”

“I shall not stop you,” said the learned Judge; “your question may be put for what it is worth: but now, suppose in answer to your question she says she is an ironer, what then?”

“That’s what I am, my lordship,” said the woman, with an obsequious curtsy.

“There, now you have it,” said the Judge, “she is an ironer; stop, let me take that down, ‘I am an ironer.’”

The cross-examination continued, somewhat in an angry tone no doubt, and amid frequent interruptions; but Mr. Nimble always thumped down the ponderous Taylor upon any objection of the learned Judge, and crushed it as though it were a butterfly.

Next the policeman gave his evidence, and was duly cross-examined. Mr. Nimble called no witnesses; there were none to call: but addressed the jury in a forcible and eloquent speech, stigmatizing the charge as an utterly preposterous one, and dealing with every fact in a straightforward and manly manner. After he had finished, the jury would undoubtedly have acquitted; but the learned Judge had to sum up, which in this, as in many cases at Quarter Sessions, was no more a summing up than counting ten on your fingers is a summing up. It was a desultory speech, and if made by the counsel for the prosecution, would have been a most unfair one for the Crown: totally ignoring the fact that human nature was subject to frailties, and testimony liable to be tainted with perjury. It made so great an impression upon me in my dream that I transcribed it when I awoke; and this is the manner in which it dealt with the main points:—

“GENTLEMEN OF THE JURY,

“This is a case of a very serious character (the nature of the offence was then read from Roscoe), and I am bound to tell you that the evidence is all

one way: namely, on the side of the prosecution. There is not a single affidavit to the contrary. Now what are the facts?”

Mr. Nimble: “Would your lordship pardon me—whether they are facts or not is for the jury.”

“I am coming to that, Mr. Nimble; unless contradicted they are facts, or, at least, if you believe them, gentlemen. If the evidence is uncontradicted, what is the inference? The inference is for you, not for me; I have simply to state the law: it is for you to find the facts. You must exercise your common sense: if the prisoner could have contradicted this evidence, is it reasonable to suppose he would not have done so with so serious a charge hanging over his head?”

“My lord, may I ask how could the prisoner have called evidence? there was no one present.”

“Mr. Nimble,” said his Lordship solemnly, “he might have shown he was elsewhere.”

“Yes, my lord; but the prisoner admits being present: he doesn’t set up an *alibi*.”

“Gentlemen, you hear what the learned counsel says: he admits that the prisoner was present; that is corroborative of the story told by the prosecutrix. Now, if you find a witness speaking truthfully about one part of a transaction, what are you to infer with regard to the rest? Gentlemen, the case is for you, and not for me: happily I have not to find the facts: they are for you—and what are they? This woman, who is an ironer, was going along a lonely lane, proceeding to her home, as she states—and again I say there is no contradiction—and she meets this man; he accosts her, and then, according to her account, assaults her, and in a manner which I think leaves no doubt of his intention—but that is for you. I say he assaults her, if you believe her story: of course, if you do not believe her story, then in the absence of corroboration there would be an end of the case. But is there an absence of corroboration? What do we find, gentlemen? Now let me read to you the evidence of Police Constable Swearhard. What does he say? ‘I was coming along the Lover’s Lane at nine twenty-five, and I saw two persons, whom I afterwards found to be the prosecutrix and the prisoner.’

‘You will mark that, gentlemen, the prisoner himself does not suggest an *alibi*, that is to say, that he was elsewhere, when this event occurred. Then he was upon the spot: and the policeman tells you—it is for you to say whether you believe the policeman or not; there is no suggestion that he is not a witness of truth—and he says that he heard a scream, and caught the defendant in the act. Now, from whom did that scream proceed? Not from the prisoner, for it was the scream of a woman. From whom then could it proceed but from the prosecutrix? Now, in all cases of this kind, one very material point has always been relied on by the Judges, and that point is this: What was the conduct of the woman? Did she go about her ordinary business as usual, or did she make a complaint? If she made no complaint, or made it a long time after, it is some evidence—not conclusive by any means—but it is some evidence against the truth of her story. Let us test this case by that theory. What is the evidence of the policeman? I will read his words: ‘The moment I got up,’ he says, now mark that, gentlemen, ‘the woman complained of the conduct of the prisoner: she screamed and threw herself in my arms and then nearly fainted.’ Gentlemen, what does all that mean? You will say by your verdict.”

“Consider your verdict,” said the Clerk of Arraignment, and almost immediately the Jury said: “Guilty of attempt.”

“Call upon him,” said the Judge: and he was called upon accordingly, but only said “the prosecutrix was a well-known bad woman.”

Then the Judge said very solemnly:—

“Prisoner at the bar, you have been convicted upon the clearest possible evidence of this crime: what you say about the character of the prosecutrix the more convinces me that you are a very bad man. You not only assail the virtue of this woman, but, happily prevented in your design, you endeavour to destroy it afterwards in this Court. No one who has heard this case can doubt that you have been guilty of this very grave offence; and in my judgment that offence is aggravated by the fact that you committed it against her will and without her consent. The sentence is that you be sent to prison for eighteen calendar months.”

“Rather warm,” said Mr. O’Rapley.

“Never heeard such a thing in my life,” said Master Bumpkin, “she wur a consentin’ party if ever there wur one.”

“But that makes no difference now-a-days,” said Mr. O’Rapley. “Chancery Judges studies the equity of the thing more. But perhaps, Mr. Bumpkin, you don’t know what that means?”

“No,” said Bumpkin, “I doan’t.”

“You must be quiet,” said Mr. O’Rapley; “recollect you are in a Court of Justice.”

“Be I! It ’ud take moore un thic case to make I believe it; but lookee here: I be hanged if there ain’t that Snooks feller down along there.”

“Who?” enquired O’Rapley.

“That there feller,” said Bumpkin, “be sure to find his way where there’s anything gooin on o’ this ere natur.”

Next an undefended prisoner was placed on trial, and as he was supposed to know all the law of England, he was treated as if he did.

“You can’t put that question, you know,” said the learned Judge; “and now you are making a statement; it is not time to make your statement yet; you will have ample opportunity by-and-by in your speech to the jury.” And afterwards, when the Judge was summing up, the unhappy prisoner called his lordship’s attention to a mistake; but he was told that he had had his turn and had made his speech to the jury, and must not now interrupt the Court. So he had to be quite silent until he was convicted. Then the two companions went into another court, where a very stern-looking Common Law Judge was trying a ferocious-looking prisoner. And Mr. O’Rapley was delighted to explain that now his friend would see the difference. They had entered the court just as the learned Judge had begun to address the jury; and very careful his lordship was to explain (not in technical language), but in homely, common-place and common-sense English, the nature of the crime with which the prisoner was charged. He was very careful in explaining this, for fear the jury should improperly come to the conclusion that, because they might believe the prisoner had in fact committed the act, he must necessarily be guilty. And they were told that the act was in that

case only one element of the crime, and that they must ascertain whether there was the guilty intent or no. Now this old Mr. Justice Common Sense, I thought, was very well worth listening to, and I heartily wished Mr. Justice Technical from the Old Court had been there to take a lesson; and I take the liberty of setting down what I heard in my dream for the benefit of future Justices Technical.

His lordship directed the jury's attention to the evidence, which he carefully avoided calling facts: not to the verbatim report of it on his note-book as some Recorders do, and think when they are reading it over they are summing it up; but pointing out statements which, if believed, become facts and if facts, lead to certain *inferences* of guilt or innocence.

It was while the learned Mr. Justice Common Sense was thus engaged, that the warder in the dock suddenly checked the prisoner with these words:

“You mustn't interrupt.”

“Why may he not interrupt?” asks Mr. Justice Common Sense. “What do you want to say, prisoner?”

“My lord,” answered the prisoner, “I wanted to say as how that there witness as your lordship speaks on didn't say as he seen me there.”

“O, didn't he?” said the Judge. “I thought he did—now let us see,” turning over his notes. “No, you are quite right, prisoner, he did not see you at the spot but immediately after.”

Then his lordship proceeded until there was another interruption of the same character, and the foolish warder again told the prisoner to be quiet. This brought down Mr. Justice Common Sense with a vengeance:

“Warder! how dare you stop the prisoner? he is on his trial and is undefended. Who is to check me if I am misstating the evidence if he does not? If you dare to speak like that to him again I will commit you. Prisoner, interrupt me as often as you think I am not correctly stating the evidence.”

“Thankee, my lord.”

“That be the sort o’ Judge for me,” said Bumpkin; “but I’ve ’ad enough on it, Maister O’Rapley, so if you please, I’ll get back t’ the ‘Goose.’ Why didn’t that air Judge try t’other case, I wonder?”

“Because,” replied the Don, “the new system is to work the ‘Round Square’.”

CHAPTER XV.

Mr. Bumpkin's experience of London life, enlarged.

On leaving the Old Bailey the two friends proceeded to a neighbouring public-house and partook of some light refreshment at the counter. Now Mr. Bumpkin had never yet examined the viands displayed on a counter. His idea of refreshment, when from home, had always been a huge round of beef smoking at one end of the table and a large leg of mutton smoking at the other, with sundry dishes of similar pretensions between, and an immense quantity of vegetables. When, therefore he saw some stale-looking sandwiches under the ordinary glass cover, he exclaimed: "Wittals must be mighty scarce to clap 'em under a glass case."

"It's to keep the flies off;" said his companion.

"They need well keep un off, for there bean't enough for a couple if they was ony wise onry like."

However, our friends made the best of what there was, and Mr. O'Rapley, wishing success to his companion, enquired who was to be his counsel.

"I doan't rightly know, but I'll warrant Mr. Prigg'll have a good un—he knows what he be about; and all I hopes is, he'll rattle it into that there Snooks, for if ever there wur a bad un it be him."

"He looks a bad un," replied O'Rapley. "When do you think the case is likely to come on?"

"Well, it is supposed as it ull be on to-morrer; but I bleeve there's no sartinty about thic. Now then, just give us a little moore, will 'ee sir?" (this to the waiter).

"I'll pay for the next," said O'Rapley, feeling in his pocket.

“Noa, noa, I’ll pay; and thankee, sir, for comin’.”

And then O’Rapley drank his friend’s health again, and wished further success to the case, and hoped Mr. Bumpkin would be sure to come to him when he was at Westminster; and expressed himself desirous to assist his friend in every way that lay in his power—declaring that he really must be going for he didn’t know what would happen if the Judge should find he was away; and was not at all certain it would not lead to some officious member of the House of Commons asking a question of the Prime Minister about it.

Mr. Bumpkin drank his good health, again and again, declaring he was “mighty proud to have met with un;” and that when the case was over and he had returned to his farm, he should be pleased if Mr. O’Rapley would come down and spend a few days with him. “Nancy,” he said, “’ll be rare and pleased to see thee. I got as nice a little farm as any in the county, and as pooty pigs as thee ever clapped eyes on.”

Mr. O’Rapley, without being too condescending, expressed himself highly gratified with making Mr. Bumpkin’s acquaintance, and observed that the finest pigs ever he saw were those of the Lord Chief Justice.

“Dade, sir, now what sort be they?” Mr. O’Rapley was not learned in pigs, and not knowing the name of any breed whatever, was at a loss how to describe them. Mr. Bumpkin came to his assistance.

“Be they smooth like and slim?”

“Yes,” said the Don.

“Hardly any hair?”

“Scarce a bit.”

“They be Chichesters then—the werry best breed as a man ever had in his sty.”

“I never see anything so pretty,” replied Mr. O’Rapley.

“Ah! and they be the smallest-boned pigs as ever could be—they bean’t got a bone bigger nor your little finger.”

“Ha!” said the Don, finishing his glass, “the smaller the bone the more the meat, that’s what I always say; and the Lord Chief Justice don’t care for bone, he likes meat.”

“An’ so do I—the Lud Judge be right, and if he tries my case he’ll know the difference betwixt thic pig as Snooks tooked away and one o’ them there—”

“Jackass-looking pigs,” said O’Rapley, seeing that his friend paused. “I hate them jackass pigs.”

“So do I—they never puts on fat.”

“I must go, really,” said O’Rapley. “What do you make the right time?”

Master Bumpkin pulled out his watch with great effort, and said it was just a quarter past four by Yokelton time.

“Here’s your good health again, Mr. Bumpkin.”

“And yours, sir; and now I think on it, if it’s a fair question Mr. O’Rapley, and I med ax un wirout contempt, when do you think this ’ere case o’ mine be likely to come on, for you ought to know summut about un?”

“Ha!” said the Don, partially closing one eye, and looking profoundly into the glass as though he were divining the future, “law, sir, is a mystery and judges is a mystery; masters is a mystery and ’sociates is a mystery; ushers is a mystery and counsel is a mystery;—the whole of life (here he tipped the contents of the glass down his throat) is a mystery.”

“So it be,” said Mr. Bumpkin, drawing the back of his hand across his mouth. “So it be sir, but do ’ee think—”

“Well, really,” answered the Don, “I should say in about a couple of years if you ask me.”

“How the h—”

“Excuse me, Master Bumpkin, but contempt follers us like a shadder: if you had said that to a Judge it would have been a year at least: it’s three months as it is if I liked to go on with the case; but I’m not a wicious man, I hope.”

“I didn’t mean no offence,” said the farmer.

“No, no, I dare say not; but still there is a way of doing things. Now if you had said to me, ‘Mr. O’Rapley, you are a gentleman moving in judicial circles, and are probably acquainted with the windings of the,’ &c. &c. &c. ‘Can you inform me why my case is being so unduly prolonged?’ Now if you had put your question in that form I should in all probability have answered: ‘I do not see that it is unduly prolonged, Master Bumpkin—you must have patience. Judges are but human and it’s a wonder to me they are as much as that, seein’ what they have to go through.’”

“But if there be a Court why can’t us get in and try un, Mr. Rapley?”

“Ah, now that is putting it pointedly;” and O’Rapley closed one eye and looked into his tumbler with the other before he answered:

“You see this is how it goes under the continerous sittings—off and on we sits continerously at Nisy Prisy in London three months in the year. Now that ain’t bad for London: but it’s nothing near so much time as they gives to places like Aylesbury, Bedford, and many others.”

Mr. Bumpkin looked like a terrier dog watching a hole out of which he expected a rat: at present he saw no sign of one.

“Take Aylesbury; well now, if a Judge went there once in seven years he’d find about every other assize enough work to last him till lunch. But in course two Judges must go to Aylesbury four times a year, to do nothing but admire the building where the Courts are held; otherwise you’d soon have Aylesbury marching on to London to know the reason why. P’r’aps the Judges have left five hundred cases untried in London to go to this Aylesbury.”

“Be it a big plaace, sir?”

“Not so big as a good-sized hotel,” said the Don. “Then,” he continued, “there’s Bedford ditto again—septennel would do for that; then comes Northampton—they don’t want no law there at all.” (I leave the obvious pun to anyone who likes to make it). “Then Okeham again—did you ever hear of anyone who came from Okeham? I never did.”

The Don paused, as though on the answer to this question depended his future course.

“Noa,” said Bumpkin, “can’t rightly say as ever I did.”

“And nobody ever did come from there except the Judges. Well, to Okeham they go four times a year, whereas if they was to go about once in every hundred years it wouldn’t pay. Why raly, Mr. Bumpkin, the Judges goes round like travellers arfter orders, and can’t get none. I’m not talkin’, as you are aware, about great centres like Liverpool, where if they had about fifty-two assizes in the year it wouldn’t be one too many; but I’m talking about circumfrences on the confines of civilization.”

“Oh dear!” sighed Bumpkin. The hole seemed to him too choked up with “larnin’” for the rat ever to come out—he could glean nothing from this highly wrought and highly polished enthusiasm.

“And, notwithstanding and accordingly,” continued the Don, “they do say, goodness knows how true it is, that they’re going to have two more assizes in the year. All that I can say is, Mr. Bumpkin—and, mark my words, there’ll be no stopping in London at all, but it will be just a reg’ler Judge’s merry-go-round.” [\[138\]](#)

Mr. Bumpkin dropped a look into his glass, and the two companions came out of the door and proceeded along under the archway until they came to the corner of Bridge Street, Blackfriars. Exactly at that point a young woman with a baby in her arms came in contact with Mr. Bumpkin, and in a very angry tone said,—

“I tell you what it is, don’t you take them liberties with me or I’ll give you in charge.”

And the young woman passed on with her baby. Just at that moment, and while Master Bumpkin was meditating on this strange conduct of the young female, he felt a smart tug at his watch, and, looking down, saw the broken chain hanging from his pocket.

“Zounds!” he exclaimed, “I never zeed anything claner than thic; did thee zee thic feller?”

“There he goes,” said O’Rapley.

“There ur gooes,” said Mr. Bumpkin, and, as fast as he could, pursued the thief.

“Stop un!” he cried. “Stop thic there thief; he got my watch.”

But it was a long time before Master Bumpkin’s mandate was obeyed; the value of a policeman, like that of every other commodity, depends upon his rarity. There was no policeman to be found. There was a fire escape in the middle of the street, but that was of no use to Master Bumpkin. Away went thief, and away went Bumpkin, who could “foot it,” as he said, “pooty well, old as he wur.” Nor did either the thief or himself stop until they got nearly to the bridge, when, to Bumpkin’s great astonishment, up came the thief, walking coolly towards him. This was another mystery, in addition to those mentioned by Mr. O’Rapley. But the fact was, that the hue and cry was now raised, and although Master Bumpkin did not perceive it, about a hundred people, men, women, and boys, were in full chase; and when that gentleman was, as Bumpkin thought, coolly coming towards him, he was simply at bay, run down, without hope of escape; and fully determined to face the matter out with all the coolness he could command.

“Take un,” said Bumpkin; “take un oop; thee dam scoundrel!”

“Take care what you’re saying,” said the thief. “I’m a respectable man, and there’s law in the land.”

“Yes, and thee shall have un, too, thee willin; thee stole my watch, thee knows that.”

“You’re a liar,” said the captive.

“Why thee’s got un on, dang if thee bean’t, and a wearin’ on un. Well, this bates all; take un oop, pleeceman.”

At this moment, which is always the nick of time chosen by the force, that is to say, when everything is done except the handcuffs, a policeman with a great deal of authority in his appearance came up, and plunged his hands under his heavy coat-tails, as though he were about to deliver them of the bower anchor of a ship.

“Do you give him in charge?”

“Sure enough do ur,” said Mr. Bumpkin.

So the handcuffs were put on, and the stalwart policeman, like a hero with the captive of his bow and spear, marched him along at a great rate, Bumpkin striding out manfully at the side, amid a great crowd of small boys, with all their heads turned towards the prisoner as they ran, in the highest state of delight and excitement. Even Bumpkin looked as if he had made a good thing of it, and seemed as pleased as the boys.

As they came again to the corner of Ludgate Hill, there stood Mr. O’Rapley, looking very pompous and dignified, as became so great a man.

“You’ve got him then,” said he.

“Ay; come on, Master Rapley, come on.”

“One moment,” said the official; “I must here leave you for the present, Mr. Bumpkin; we are not allowed to give evidence in Criminal Courts any more than Her Majesty’s Judges themselves; we are a part of the Court. But, besides all that, I did not see what happened; what was it?”

“Well,” said Mr. Bumpkin, “that be rum too, sir; thee see thic feller steal my watch, surely.”

“Indeed, Mr. Bumpkin, it was so quickly done that I really did *not* see it, if you ask me.”

“Why, he dragged un out o’ thic pocket.”

“No doubt, Master Bumpkin; but it does not follow that I see it.”

“Thee can come and say I wur with thee, anyhow.”

“I can’t give evidence, Mr. Bumpkin, as I told you before; and, besides, I must not appear in this matter at all. You know I was absent to oblige you, and it’s possible I may be of some further service to you yet; but please don’t mention me in this matter. I assure you it will do harm, and perhaps I should lose my place.”

“Well, Master Rapley,” said Bumpkin, taking his hand, “I won’t do thee no harm if I knows it, and there be plenty of evidence.”

“Evidence! You say you found the watch upon him?”

“Sartinly.”

“The case then is clear. You don’t want any evidence besides that.”

“Well, sir, you’re a man o’ larnin’. I bean’t much of a scollard, I’ll tak’ thy advice; but I must get along; they be waitin’ for I.”

“I will see you at Westminster to-morrow, Mr. Bumpkin.”

“All right, zir, all right.”

And with that Mr. O’Rapley proceeded on his way down Fleet Street, and Mr. Bumpkin proceeded on his up Ludgate Hill in the midst of an excited crowd.

CHAPTER XVI.

The coarse mode of procedure in Ahab v. Naboth ruthlessly exposed and carefully contrasted with the humane and enlightened form of the present day.

Here I awoke, and my wife said unto me, "Dear, you have been dreaming and talking in your sleep."

Now fearing for what I may have said, although of a tolerably clear conscience, I enquired if she could tell me what words I had uttered. She replied that I had mentioned the names of many eminent men: such as Mr. Justice Common Sense.

"Indeed," quoth I; and then I told my dream. Upon which she observed, that it seemed there must be much exaggeration. To this I made answer that dreams do generally magnify events, and impress them more vividly upon the senses, inasmuch as the imagination was like a microscope: it enabled you to see many things which would escape the naked eye.

"But," said my partner, "if they are distorted?"

"If they are distorted, they are not reliable; but a clear imagination, like a good lens, faithfully presents its objects, although in a larger form, in order that those who have no time for scientific observation, may see what the scientist desires to direct their attention to. There are creatures almost invisible to the naked eye, which, nevertheless, cause great irritation to the nerves. So, also, there are matters affecting the body corporate of these kingdoms which the public are blind to and suffer from, but which, if thoroughly exposed, they may be inclined to take a hand in removing."

"I don't believe that Mr. O'Rapley," said she: "he seems a cantankerous, conceited fellow."

“Why so he is; but cantankerous and conceited fellows sometimes speak the truth. They’re like those cobwebbed, unwholesome-looking bottles which have lain a long time in cellars. You would hardly like to come in contact with them, and yet they often contain a clear and beautiful wine. This Mr. O’Rapley is a worthy man who knows a great deal, and although a bit of a toady to his superiors, expresses his opinions pretty freely behind their backs.”

“And what of this Master Bumpkin—this worthy Master Bumpkin I hear you speak of so often?”

“A very shrewd man in some respects and a silly one in others.”

“Not an unusual combination.”

“By no means.”

And then I told her what I have already related; to which she observed it was a pity some friend had not interposed and stopped the business. I answered, that friends were no doubt useful, but friends or no friends we must have law, and whether for sixpence or a shilling it ought to be readily attainable: that no one would be satisfied with having no other authority than that of friendship to settle our disputes; and besides that, friends themselves sometimes fell out and were generally the most hard to reconcile without an appeal to our tribunals.

“Well, it does seem a pity,” said she, “that judges cannot sit as they did in Moses’ time at all seasons so as to decide expeditiously and promptly between the claims of parties.”

“Why so they do sit ‘continuously,’” quoth I, “but the whole difficulty consists in getting at them. What is called procedure is so circuitous and perplexing, that long before you get to your journey’s end you may faint by the way.”

“Is there no one with good sense who will take this matter up and help this poor man to come by his rights. It must be very expensive for him to be kept away from his business so long, and his poor wife left all alone to manage the farm.”

“Why, so it is, but then going to law, which means seeking to maintain your rights, is a very expensive thing: a luxury fit only for rich men.”

“Why then do people in moderate circumstances indulge in it?”

“Because they are obliged to defend themselves against oppressive and unjust demands; although I think, under the present system, if a man had a small estate, say a few acres, and a rich man laid claim to it, it would be far better for the small man to give up the land without any bother.”

“But no man of spirit would do that?”

“No, that is exactly where it is, it’s the spirit of resistance that comes in.”

“Resistance! a man would be a coward to yield without a fight.”

“Why so he would, and that is what makes law such a beautiful science, and its administration so costly. Men will fight to the last rather than give in. If Naboth had lived in these times there would have been no need of his death in order to oust him from his vineyard. Ahab could have done a much more sensible thing and walked in by process of law.”

“In what way?”

“In the first place he could have laid claim to a right of way, or easement as it is called, of some sort: or could have alleged that Naboth had encroached on his land by means of a fence or drain or ditch.”

“Well, but if he hadn’t?”

“If he hadn’t, so much the better for the Plaintiff, and so much the worse for Naboth.”

“I don’t understand; if Naboth had done no wrong, surely it would be far better for him than if he had.”

“Not in the long run, my dear: and for this reason, if he had encroached it would have taken very little trouble to ascertain the fact, and Naboth being a just and honest man, would only require to have it pointed out to him to remedy the evil. Maps and plans of the estate would doubtless have shown

him his mistake, and, like a wise man, he would have avoided going to law.”

“I see clearly that the good man would have said, ‘Neighbour Ahab, we have been on neighbourly terms for a long lime, and I do not wish in any way to alter that excellent feeling which has always subsisted between us. I see clearly by these maps and plans which worthy Master Metefield hath shown me that my hedge hath encroached some six inches upon thy domain, wherefore, Neighbour Ahab, take, I pray thee, as much of the land as belongeth unto thee, according to just admeasurement.”

“Why certainly, so would the honest Naboth have communed with Ahab, and there would have been an end of the business.”

“But show me, darling, how being in the wrong was better for good Naboth than being in the right in this business?”

“Most willingly,” said I; “you see, my dear, there was quickly an end of the matter by Naboth yielding to the just demands of neighbour Ahab. But now let us suppose honest Naboth in the right concerning his vineyard, and neighbour Ahab to be making an unjust demand. You have already most justly observed that in that case it would be cowardly on the part of Naboth to yield without a struggle?”

“Assuredly.”

“Well then, that means a lawsuit.”

“But surely,” said my wife, “it ought to be soon seen who is in the wrong. Where is Master Metefield who you said just now was so accurate a surveyor, and where are those plans you spoke of which showed the situation of the estates?”

“Ah, my dear, I see you know very little of the intricacies of the law; that good Master Metefield, instead of being a kind of judge to determine quickly as he did for Master Naboth what were the boundaries of the vineyard, hath not now so easy a task of it, because Ahab being in the wrong he is not accepted by him as his judge.”

“But if the plans are correct, how can he alter them?”

“He cannot alter them, but the question of correctness of boundary as shown, is matter of disputation, and will have to be discussed by surveyors on both sides, and supported and disputed by witnesses innumerable on both sides: old men coming up with ancient memories, hedgers and ditchers, farmers and bailiffs and people of all sorts and conditions, to prove and disprove where the boundary line really divides Neighbour Naboth’s vineyard from Neighbour Ahab’s park.”

“But surely Naboth will win?”

“All that depends upon a variety of things, such as, first, the witnesses; secondly, the counsel; thirdly, the judge; fourthly, the jury,”

“O,” said my wife, “pray don’t go on to a fifthly—it seems to me poor Naboth is like to have a sorry time of it before he establish his boundary line.”

“Ay, if he ever do so: but he first is got into the hands of his Lawyers, next into the hands of his Counsel, thirdly, into Chancery, fourthly, into debt—”

“Pray, do not let us have a fifthly here either; I like not these thirdlys and fourthlys, for they seem to bring poor Naboth into bad case; but what said you about debt?”

“I say that Naboth, not being a wealthy man, but, as I take it, somewhat in the position of neighbour Bumpkin, will soon be forced to part with a good deal of his little property in order to carry on the action.”

“But will not the action be tried in a reasonable time, say a week or two?”

“I perceive,” cried I, “that you are yet in the very springtide and babyhood of innocence in these matters. There must be summonses for time and for further time; there must be particulars and interrogatories and discoveries and inspections and strikings out and puttings in and appeals and demurrers and references and—”

“O, please don’t. I perceive that poor Naboth is already ruined a long way back. I think when you came to the interrogatories he was in want of funds to carry on the action.”

“A Chancery action sometimes takes years,” said I.

“Years! then shame to our Parliament.”

“I pray you do not take on so,” said I. “Naboth, according to the decree of Fate, is to be ruined. Jezebel did it in a wicked, clumsy and brutal manner. Anyone could see she was wrong, and her name has been handed down to us with infamy and execration. I now desire to show how Ahab could have accomplished his purpose in a gentle, manly and scientific manner and saved his wife’s reputation. Naboth’s action, carried as it would be from Court to Court upon every possible point upon which an appeal can go, under our present system, would effectually ruin him ages before the boundary line could be settled. It would be all swallowed up in costs.”

“Poor Naboth!” said my wife.

“And,” continued I, “the law reports would hand down the *cause celebre* of *Ahab v. Naboth* as a most interesting leading case upon the subject of goodness knows what: perhaps as to whether a man, under certain circumstances, may not alter his neighbour’s landmark in spite of the statute law of Moses.”

“And so you think poor Naboth would be sold up?”

“That were about the only certain event in his case, except that Ahab would take possession and so put an end for ever to the question as to where the boundary line should run.”

Here again I dozed.

CHAPTER XVII.

Shewing that lay tribunals are not exactly Punch and Judy shows where the puppet is moved by the man underneath.

It was particularly fortunate for Mr. Bumpkin that his case was not in the list of causes to be tried on the following day. It may seem a curious circumstance to the general reader that a great case like *Bumpkin v. Snooks*, involving so much expense of time, trouble, and money should be in the list one day and out the next; should be sometimes in the list of one Court and sometimes in the list of another; flying about like a butterfly from flower to flower and caught by no one on the look-out for it. But this is not a phenomenon in our method of procedure, which startles you from time to time with its miraculous effects. You can calculate upon nothing in the system but its uncertainty. Most gentle and innocent reader, I saw that there was no Nisi Prius Court to sit on the following day, so *Bumpkin v. Snooks* could not be taken, list or no list. The lucky Plaintiff therefore found himself at liberty to appear before that August Tribunal which sits at the Mansion House in the City of London. A palatial and imposing building it was on the outside, but within, so far as was apparent to me, it was a narrow ill ventilated den, full of all unclean people and unpleasant smells. I say full of unclean people, but I allude merely to that portion of it which was appropriated to the British Public; for, exalted on a high bench and in a huge and ponderous chair or throne sat the Prince of Citizens and the King of the Corporation, proud in his dignity, grand in his commercial position, and highly esteemed in the opinion of the world. There he sat, the representative of the Criminal Law, and impartial, as all will allow, in its administration. Wonderful being is my Lord Mayor, thought I, he must have the Law at his fingers' ends. Yes, there it is sitting under him in the shape and person of his truly respectable clerk. The Common Law resides in the breasts of the Judges, but it is here at my Lord Mayor's fingers' ends. He has to deal with gigantic commercial frauds; with petty swindlers,

common thieves; mighty combinations of conspirators; with extradition laws; with elaborate bankruptcy delinquencies; with the niceties of the criminal law in every form and shape. Surely, thought I, he should be one of those tremendous geniuses who can learn the criminal law before breakfast, or at least before dinner! So he was. His lordship seemed to have learned it one morning before he was awake. But it is not for me to criticise tribunals or men: I have the simple duty to perform of relating the story of the renowned Mr. Bumpkin.

After the night charges are disposed of up comes the man through the floor, not Mr. Bumpkin, but Mr. Bumpkin's prisoner. He comes up through the floor like the imp in the pantomime: and then the two tall warders prevent his going any farther.

He was a pale, intelligent looking creature, fairly dressed in frock coat, dark waistcoat and grey trousers, with a glove on his left hand and another in his right; looked meekly and modestly round, and then politely bowed to the Lord Mayor. The charge was then read to him and with a smile he indignantly repudiated the idea of theft.

And I saw in my dream that he was represented by a learned Counsel, who at this moment entered the Court, shook hands with the Lord Mayor, and saying, "I appear, my lord, for the prisoner," took his seat upon the bench, and entered for a minute or so into some private and apparently jocular conversation with his Lordship.

The name of the learned Counsel was Mr. Nimble, whom we have before seen. He was a very goodly-shaped man, with a thin face and brown hair. His eyes were bright, and always seemed to look into a witness rather than at him. His manner was jaunty, good-natured, easy, and gay; not remarkable for courtesy, but at the same time, not unpleasantly rude. I thought the learned Counsel could be disagreeable if he liked, but might be a very pleasant, sociable fellow to spend an hour with—not in the witness-box.

He was certainly a skilful and far-seeing Counsel, if I may make so bold as to judge from this case. And methought that nothing he did or said was said or done without a purpose. Nor could I help thinking that a good many Counsel, young and old, if their minds were free from prejudice, might

learn many lessons from this case. It is with this object that, in my waking moments, I record the impressions of this dream. I do not say Mr. Nimble was an example to follow on all points, for he had that common failing of humanity, a want of absolute perfection. But he was as near to perfection in defending a prisoner as any man I ever saw, and the proceedings in this very case, if carefully analysed, will go a long way towards proving that assertion.

After the interchange of courtesies between his Lordship and Mr. Nimble, the learned Counsel looked down from the Bench on to the top of Mr. Keepimstraight's bald head and nodded as if he were patting it. Mr. Keepimstraight was the Lord Mayor's Clerk. He was very stout and seemed puffed up with law: had an immense regard for himself and consequently very little for anybody else: but that, so far as I have been able to ascertain, is a somewhat common failing among official personages. He ordered everybody about except the Lord Mayor, and him he seemed to push about as though he were wheeling him in a legal Bath-chair. His Lordship was indeed a great invalid in respect to matters of law; I think he had overdone it, if I may use the expression; his study must have been tremendous to have acquired a knowledge of the laws of England in so short a time. But being somewhat feeble, and in his modesty much misdoubting his own judgment, he did nothing and said nothing, except it was prescribed by his physician, Dr. Keepimstraight. Even the solicitors stood in awe of Dr. Keepimstraight.

And now we are all going to begin—Walk up!

The intelligent and decent-looking prisoner having been told what the charge against him was, namely, Highway Robbery with violence, declares that he is as "innercent as the unborn babe, your lordship:" and then Mr. Keepimstraight asks, where the Prosecutor is—"Prosecutor!" shout a dozen voices at once—all round, everywhere is the cry of "Prosecutor!" There was no answer, but in the midst of the unsavoury crowd there was seen to be a severe scuffle—whether it was a fight or a man in a fit could not be ascertained for some time; at length Mr. Bumpkin was observed struggling and tearing to escape from the throng.

“Why don’t you come when you are called?” asks the Junior Clerk, handing him the Testament, as Mr. Bumpkin stood revealed in the witness-box.

And I saw that he was dressed in a light frock, not unlike a pinafore, which was tastefully wrought with divers patterns of needlework on the front and back thereof; at the openings thus embroidered could be seen a waistcoat of many stripes, that crossed and recrossed one another at various angles and were formed of several colours. He wore a high calico shirt collar, which on either side came close under the ear; and round his neck a red handkerchief with yellow ends. His linen certainly did credit to Mrs. Bumpkin’s love of “tidiness,” and altogether the prosecutor wore a clean and respectable appearance. His face was broad, round and red, indicating a jovial disposition and a temperament not easily disturbed, except when “whate” was down too low to sell and he wanted to buy stock or pay the rent: a state of circumstances which I believe has sometimes happened of late years. A white short-clipped beard covered his chin, while his cheeks were closely shaven. He had twinkling oval eyes, which I should say, he invariably half-closed when he was making a bargain. If you offered less than his price the first refusal would come from them. His nose was inexpressive and appeared to have been a dormant feature for many a year. It said nothing for or against any thing or any body, and from its tip sprouted a few white hairs. His mouth, without utterance, said plainly enough that he owed “nobody nothink” and was a thousand pound man every morning he rose. It was a mouth of good bore, and not by any means intended for a silver spoon.

Such was the Prosecutor as he stood in the witness-box at the Mansion House on this memorable occasion; and no one could doubt that truth and justice would prevail.

“Name?” said Mr. Keepimstraight.

“Bumpkin.”

Down it goes.

“Where?”

After a pause, which Mr. Nimble makes a note of.

“Where?” repeats Keepimstraight.

“Westminister.”

“Where there?”

“‘Goose’ publichouse.”

Down it goes.

“Yes?” says Keepimstraight.

Bumpkin stares.

“Yes, go on,” says the clerk.

“Go on,” says the crier; “go on,” say half-a-dozen voices all round.

“Can’t you go on?” says the clerk.

“Tell your story,” says his Lordship, putting his arms on the elbows of the huge chair. “Tell it in your own way, my man.”

“I wur gwine down thic place when—” “my man” began.

“What time was this?” asks the clerk.

“Arf arter four, as near as I can tell.”

“How do you know?” asks the clerk.

“I heard—”

“I object,” says the Counsel—“can’t tell us what he heard.”

Then I perceived that the Lord Mayor leant forward towards Mr. Keepimstraight, and the latter gentleman turned his head and leaned towards the Lord Mayor, so that his Lordship could obtain a full view of Mr. Keepimstraight’s eyes.

Then I perceived that Mr. Keepimstraight winked his left eye and immediately turned to his work again, and his Lordship said:

“I don’t think what you heard, witness, is evidence.”

“Can’t have that,” said Mr. Keepimstraight, as though he took his instructions and the Law from his Lordship.

“You said it was half-past four.”

“Heard the clock strike th’ arf hour.”

Here his Lordship leant again forward and Mr. Keepimstraight turned round so as to bring his eyes into the same position as heretofore. And I perceived that Mr. Keepimstraight winked his right eye, upon which his Lordship said:

“I think that’s evidence.”

Clerk whispered, behind his hand, “Can hardly exclude that.”

“Can hardly exclude that,” repeats his Lordship; then—turning to the Learned Counsel—“Can’t shut that out, Mr. Nimble.”

“You seldom can shut a church clock out, my Lord,” replies the Counsel.

At this answer his Lordship smiled and the Court was convulsed with laughter for several minutes.

“Now, then,” said Mr. Keepimstraight, “we must have order in Court.”

“We must have order in Court,” says his Lordship.

“Order in Court,” says the Junior Clerk, and “Order!” shouts the Policeman on duty.

Then Mr. Bumpkin stated in clear and intelligible language how the man came up and took his watch and ran away. Foolishly enough he said nothing about the woman with the baby, and wisely enough Mr. Nimble asked nothing about it. But what an opportunity this would have been for an unskilful Counsel to lay the foundation for a conviction. Knowing, as he probably would from the prisoner but from no other possible source about the circumstance, he might have shown by a question or two that it was a conspiracy between the prisoner and the young woman. Not so Mr. Nimble, he knew how to make an investment of this circumstance for future

profit: indeed Mr. Bumpkin had invested it for him by not mentioning it. Beautiful is Advocacy if you do not mar it by unskilful handling.

When, after describing the robbery, the prosecutor continued:

“I ses to my companion, ses I—”

“I object,” says Mr. Nimble.

And I perceived that his Lordship leant forward once more towards Mr. Keepimstraight, and Mr. Keepimstraight turned as aforetime towards the Lord Mayor, but not quite, I thought, so fully round as heretofore; the motion seemed to be performed with less exactness than usual, and that probably was why the operation miscarried. Mr. Keepimstraight having given the correct signal, as he thought, and the Enginedriver on the Bench having misunderstood it, an accident naturally would have taken place but for the extreme caution and care of his Lordship, who, if he had been a young Enginedriver, would in all probability have dashed on neck or nothing through every obstacle. Not so his Lordship. Not being sure whether he was on the up or down line, he pulled up.

Mr. Keepimstraight sat pen in hand looking at his paper, and waiting for the judicial voice which should convey to his ear the announcement that “I ses, ses I,” is evidence or no evidence. Judge then of Mr. Keepimstraight’s disappointment when, after waiting in breathless silence for some five minutes, he at last looks up and sees his Lordship in deep anxiety to catch his eye without the public observing it. His Lordship leant forward, blushing with innocence, and whispered something behind his hand to Mr. Keepimstraight. And in my dream I heard his Lordship ask:

“*Which eye?*”

To which Mr. Keepimstraight as coolly as if nothing had happened, whispered behind his hand:

“*Left!*” and then coughed.

“O then,” exclaimed his Lordship, “it is clearly not evidence.”

“It’s not evidence,” repeated the clerk; and then to the discomfiture of Mr. Nimble, he went on, “You say you had a companion.”

This was more than the learned Counsel wanted, seeing as he did that there was another investment to be made if he could only manage it.

Mr. Bumpkin blushed now, but said nothing.

“Would you excuse me,” said Mr. Nimble; “I shall not cross-examine this witness.”

“O, very good,” says Keepimstraight, thinking probably it was to be a plea of guilty hereafter; “very good. Then I think that is all—is that the watch?”

“It be,” said the witness; “I ken swear to un.”

It certainly would be from no want of metal if Mr. Bumpkin could not identify the timepiece, for it was a ponderous-looking watch, nearly as large as a tea-saucer.

Then said Mr. Nimble:

“You say that is your watch, do you?”

“It spakes for itself.”

“I don’t think that’s evidence,” says Mr. Keepimstraight, with a smile.

“That’s clearly not evidence,” says the Lord Mayor, gravely. Whereupon there was another burst of laughter, in which the clerk seemed to take the lead. The remarkable fact, however, was, that his Lordship was perfectly at a loss to comprehend the joke. He was “as grave as a Judge.”

After the laughter had subsided, the learned Keepimstraight leaned backward, and the learned Lord Mayor leaned forward, and it seemed to me they were conversing together about the cause of the laughter; for suddenly a smile illuminated the rubicund face of the cheery Lord Mayor, and at last he had a laugh to himself—a solo, after the band had ceased. And then his Lordship spoke:

“What your watch may say is not evidence, because it has not been sworn.”

Then the band struck up again to a lively tune, his Lordship playing the first Fiddle; and the whole scene terminated in the most humorous and satisfactory manner for all parties—*except*, perhaps, the prisoner—who was

duly committed for trial to the next sittings of the Central Criminal Court, which were to take place in a fortnight.

Mr. Bumpkin naturally asked for his watch, but that request was smilingly refused.

“Bin in our famly forty years,” exclaimed the prisoner.

“Will you be quiet?” said Mr. Nimble petulantly, for it was a foolish observation for the prisoner to make, inasmuch as, if Mr. Bumpkin had been represented by professional skill, the remark would surely be met at the trial with abundant evidence to disprove it. Mr. Bumpkin at present, however, has no professional skill.

* * * * *

Here something disturbed me, and I awoke. While preparing to enjoy my pipe as was my custom in these intervals, my wife remarked:

“I do not approve of that Master O’Rapley by any means, with his cynicisms and sarcasms and round squares. Did ever anyone hear of such a contradiction?”

“Have patience,” quoth I, “and we shall see how worthy Master O’Rapley makes it out. I conjecture that he means the same thing that we hear of under the term, ‘putting the round peg into the square hole.’”

“But why should such a thing be done when it is easy surely to find a square peg that would fit?”

“Granted; but the master-hand may be under obligations to the round peg; or the round peg may be a disagreeable peg, or a hundred things: one doesn’t know. I am but a humble observer of human nature, and like not these ungracious cavillings at Master O’Rapley. Let us calmly follow this dream, and endeavour to profit by its lessons without finding fault with its actors.”

“But I would like to have a better explanation of that Round Square, nevertheless,” muttered my wife as she went on with her knitting. So to appease her I discoursed as follows:—

“The round square,” said I, “means the inappropriate combination of opposites.”

“Now, not too long words,” said she, “and not too much philosophy.”

“Very well, my dear,” I continued; “Don O’Rapley is right, not in his particular instance, but in the general application of his meaning. Look around upon the world, or so much of it as is comprised within our own limited vision, and what do you find?”

“I find everything,” said my wife, “beautifully ordered and arranged, from the Archbishop of Canterbury to the Parish Beadle.”

“What do you find?” I repeated. “Mark the O’Rapley’s knowledge of human nature, you not only find Waterloos won in the Cricket-field of Eton, but Bishopricks and Secretaryships and many other glorious victories; so that you might—”

“Don’t be foolish; Trafalgar was not won in the Cricket-field.”

“No, but it was fought on the Isis or the Cam, I forget which. But carry the O’Rapley’s theory into daily life, and test it by common observation, what do you find? Why, that this round square is by no means a modern invention. It has been worked in all periods of our history. Here is a Vicar with a rich benefice, intended by nature for a Jockey or a Whipper-in—”

“What, the benefice?”

“No, the Vicar! Here is a barrister who ought to have been a curate, and become enthusiastic over worked slippers: there is another thrust into a Government appointment, not out of respect to him, the Minister doesn’t know him, but to serve a political friend, or to place an investment in the hands of a political rival, who will return it with interest on a future day. The gentleman thus provided for at the country’s expense would, if left to himself, have probably become an excellent billiard-marker or pigeon-shooter. Here is another, who, although a member of Parliament, was elected by no constituency under Heaven or above it; and it is clear he was intended by Nature for a position where obsequiousness and servility meet with their appropriate reward. Another fills the post of some awful Commissioner of something, drawing an immense salary, and doing an

immense amount of mischief for it, intended naturally for a secretary to an Autocratic Nobleman, who would trample the rights of the people under foot. Here is another—”

“O pray, my dear, do not let us have another—”

“Only one more,” said I; “here is another, thrust into the Cabinet for being so disagreeable a fellow, who ought to have been engaged in making fireworks for Crystal Palace fêtes.”

“But this is only an opinion of yours; how do you know these gentlemen are not fitted for the posts they occupy? surely if they do the work—”

“The public would have no right to grumble.”

“And as for obsequiousness and servility, I am afraid those are epithets too often unjustly applied to those gentlemen whose courteous demeanour wins them the respect of their superiors.”

“Quite so,” said I; “and I don’t see that it matters what is the distinguishing epithet you apply to them: this courteous demeanour or obsequiousness is no doubt the very best gift Nature can bestow upon an individual as an outfit for the voyage of life.”

“Dear me, you were complaining but just now of its placing men in positions for which they were not qualified.”

“Not complaining, my love; only remarking. I go in for obsequiousness, and trust I shall never be found wanting in that courteous demeanour towards my superiors which shall lead to my future profit.”

“But would you have men only courteous?”

“By no means, I would have them talented also.”

“But in what proportion would you have the one to the other?”

“I would have the same proportion maintained that exists between the rudder and the ship: you want just enough tact to steer your obsequiousness.”

Here again I dozed.

CHAPTER XVIII.

A comfortable evening at the Goose

When Mr. Bumpkin left the Mansion House, he was in a state of great triumph not to say ecstasy: for it seemed to him that he had had everything his own way. He was not cross-examined; no witnesses were called, and it had only been stated by the prisoner himself, not proved, although he said he should prove it at the trial, that the watch had been in the family for upwards of forty years.

“The biggest lie,” muttered Master Bumpkin, “that ever wur told.” And then he reasoned in this wise: “how could it a bin in his family forty year when he, Bumpkin, only lost it the day afore in the most barefaced manner? He was a pooty feller as couldn’t tell a better story than thic.”

And then methought in my dream, “Ah, Bumpkin, thou may’st triumph now, but little dreamest thou what is in store for thee at the trial. Wait till all those little insignificant points, hardly visible at present, shall rise, like spear-heads against thee at the Old Bailey and thrust thee through and through and make thee curse the advocate’s skill and the thief’s impudence and the inertness of the so-called Public Prosecutor: and mayhap, I know not yet, show thee how wrong and robbery may triumph over right and innocence. Thou hast raised thyself, good Bumpkin, from the humblest poverty to comparative wealth and a lawsuit: but boast not overmuch lest thou find Law a taskmaster instead of a Protector!

Thus, moralizing in my dream I perceived that Mr. Bumpkin after talking to some men betook himself to a Bus and proceeded on his way to the “Goose” at Westminster, whither he arrived in due time and in high spirits.

The Goose was a nice cosy public-house, situated, as I before observed, near the river side and commanded a beautiful view of the neighbouring

wharves and the passing craft. It was a favourite resort of waterside men, carters, carriers, labourers on the wharf and men out of work. The Military also patronized it:—And many were the jovial tales told around the taproom hearth by members of Her Majesty's troops to admiring and astonished Ignorance.

It was a particularly cold and bleak day, this ninth of March one thousand eight hundred and something. The wind was due East and accompanied ever and anon with mighty thick clouds of sleet and snow. The fireside therefore was particularly comfortable, and the cheery faces around the hearth were pleasant to behold.

Now Mr. Bumpkin, as the reader knows, was not alone in his expedition. He had his witness, named Joseph Wurzel: called in the village "Cocky," inasmuch as it was generally considered that he set much by his wisdom: and was possessed of considerable attainments. For instance, he could snare a hare as well as any man in the county: or whistle down pheasants to partake of a Buckwheat refecton which he was in the habit of spreading for their repast.

A good many fellows who were envious of Joe's abilities avowed that "he was a regler cunnin' feller, as ud some day find out his mistake;" meaning thereby that Joe would inevitably be sent to prison. Others affirmed that he was a good deal too cunning for that; that he was a regular artful dodger, and knew how to get round the vicar and all in authority under him. The reader knows that he was a regular attendant at Church, and by that means was in high favour. Nor was his mother behind hand in this respect, especially in the weeks before Christmas; and truly her religion brought its reward even in this world in the shape of Parish Gifts.

No doubt Joe was fond of the chase, but in this respect he but imitated his superiors, except that I believe he occasionally went beyond them in the means he employed.

Assembled in this common room at the Goose on the night in question, were a number of persons of various callings and some of no calling in particular. Most of them were acquainted, and apparently regular customers. One man in particular became a great favourite with Joe, and that was Jacob Wideawake the Birdcatcher; and it was interesting to listen

to his conversation on the means of catching and transforming the London Sparrow into an article of Commerce.

Joe's dress no doubt attracted the attention of his companions when he first made his appearance, for it was something out of the ordinary style: and certainly one might say that great care had been bestowed upon him to render his personal appearance attractive in the witness-box. He wore a wideawake hat thrown back on his head, thus displaying his brown country-looking face to full advantage. His coat was a kind of dark velveteen which had probably seen better days in the Squire's family; so had the long drab waistcoat. His corduroy trousers, of a light green colour, were hitched up at the knees with a couple of straps as though he wore his garters outside. His neckerchief was a bright red, tied round his neck in a careless but not unpicturesque manner. Take him for all in all he was as fine a specimen of a country lad as one could wish to meet,—tall, well built, healthy looking, and even handsome.

Now Mr. Bumpkin, being what is called “a close man,” and prone to keep his own counsel on all occasions when it was not absolutely necessary to reveal it, had said nothing about his case before the Lord Mayor; not even Mrs. Oldtimes had he taken into his confidence. It is difficult to understand his motive for such secrecy, as it is impossible to trace in nine instances out of ten any particular line of human conduct to its source.

Acting probably on some vague information that he had received, Mr. Bumpkin looked into the room, and told Joe that he thought they should be “on” to-morrow. He had learned the use of that legal term from frequent intercourse with Mr. Prigg. He thought they should be on but “wur not sartin.”

“Well,” said Joe, “the sooner the better. I hates this ere hangin’ about.” At this Jack Outofwork, Tom Lazyman, and Bill Saunter laughed; while Dick Devilmecare said, “He hated hanging about too; it was wus than work.”

“And that’s bad enough, Heaven knows,” said Lazyman.

Then I saw that at this moment entered a fine tall handsome soldier, who I afterwards learned was Sergeant Goodtale of the One Hundred and twenty-fourth Hussars. A smarter or more compact looking fellow it would be

impossible to find: and he came in with such a genial, good-natured smile, that to look at him would almost make you believe there was no happiness or glory on this side the grave except in Her Majesty's service—especially the Hussars!

I also perceived that fluttering from the side of Sergeant Goodtale's cap, placed carelessly and jauntily on the side of his head, was a bunch of streamers of the most fascinating red white and blue you ever could behold. Altogether, Sergeant Goodtale was a splendid sight. Down went his cane on the table with a crack, as much as to say "The Queen!" and he marched up to the fire and rubbed his hands: apparently taking no heed of any human being in the room.

Mr. Bumpkin's heart leaped when he saw the military sight: his eyes opened as if he were waking from a dream out of which he had been disturbed by a cry of "fire:" and giving Joe a wink and an obviously made-up look, beckoned him out of the room. As they went out they met a young man, shabbily clad and apparently poorly fed. He had an intelligent face, though somewhat emaciated. He might be, and probably was, a clerk out of employment, and he threw himself on the seat in a listless manner that plainly said he was tired of everything.

This was Harry Highlow. He had been brought up with ideas beyond his means. It was through no fault of his that he had not been taught a decent trade: those responsible for his training having been possessed of the notion that manual labour lowers one's respectability: an error and a wickedness which has been responsible for the ruin of many a promising youth before to-day.

Harry was an intelligent, fairly educated youth, and nothing more. What is to be done with raw material so plentiful as that? The cheapest marketable commodity is an average education, especially in a country where even our Universities can supply you with candidates for employment at a cheaper rate than you can obtain the services of a first-class cook. This young man had tried everything that was genteel: he had even aspired to literature: sought employment on the Press, on the Stage, everywhere in fact where gentility seemed to reign. Nor do I think he lacked ability for any of these walks; it was not ability but opportunity that failed him.

“Lookee ere, Joe,” said Mr. Bumpkin; “harken to me. Don’t thee ’ave nowt to say to that there soger.”

“All right, maister,” said Joe, laughing; “thee thinks I be gwine for a soger. Now lookee ere, maister, I beant a fool.”

“No, thee beant, Joe. I knowed thee a good while, and thee beant no fool.”

Joe laughed. It was a big laugh was Joe’s, for his mouth was somewhat large, and a grin always seemed to twist it. On this occasion, so great was his surprise that his master should think he would be fool enough to enlist for a “soger,” that his mouth assumed the most irregular shape I ever saw, and bore a striking resemblance to a hole such as might be made in the head of a drum by the heel of a boot.

“I be up to un, maister.”

“Have no truck wi’ un, I tell ee; don’t speak to un. Thee be my head witness, and doant dare goo away; no, no more un if—”

“No fear,” said Joe. “’Taint likely I be gwine to listen to ee. I knows what he wants; he’s arter listin chaps.”

“Look ee ere, Joe, if ur speaks to thee, jist say I beant sich a fool as I looks; that’ll ave un.”

“Right,” says Joe; “I beant sich a fool as I looks; that’ll ave un straight.”

“Now, take heed; I’m gwine into the parlour wi’ Landlord.”

Accordingly, into the little quiet snugger of Mr. Oldtimes, Mr. Bumpkin betook himself. And many and many an agreeable evening was passed with Mr. and Mrs. Oldtimes during the period when Mr. Bumpkin was waiting for his trial. For Mr. and Mrs. Oldtimes being Somersetshire people knew many inhabitants of the old days in the village of Yokelton, where Mr. Bumpkin “were bred and born’d.”

Meanwhile the “head witness” had returned to the cheerful scene in the taproom, and sat leering out of the corners of his eyes upon the Sergeant, as though he expected every moment that officer would make a spring at him and have him upon the floor. But the Sergeant was not a bullying,

blustering sort of man at all; his demeanour was quiet in the extreme. He scarcely looked at anyone. Simply engaged in warming his hands at the cheerful fire, no one had cause to apprehend anything from him.

But a man, Sergeant or no Sergeant, must, out of common civility, exchange a word now and then, if only about the weather; and so he said, carelessly,

—

“Sharp weather, lads!”

Now, not even Joe could disagree with this; it was true, and was assented to by all; Joe silently acquiescing. After the Sergeant had warmed his hands and rubbed them sufficiently, he took off his cap and placed it on a little shelf or rack; and then took out a meerschaum pipe, which he exhibited without appearing to do so to the whole company. Then he filled it from his pouch, and rang the bell; and when the buxom young waitress appeared, he said,—

“My dear, I think I’ll have a nice rump steak and some onions, if you please.”

“Yes, sir,” said the maid.

Now I observed that two or three matters were noteworthy at this point. First, Joe’s mouth so watered that he actually went to the fireplace and expectorated. Secondly, he was utterly amazed at the familiar manner in which the Sergeant was permitted to address this beautiful young person, who seemed to be quite a lady of quality. Thirdly, he was duly impressed and astounded with the luxurious appetite of this Sergeant of Hussars!

Then the young woman came back and said,—“Would you like to have it in the parlour, sir?”

“O no, my dear,” said the Sergeant; “I would rather have it here. I hate being alone.”

As he said this, he slightly glanced at Dick Devilmecare. Dick, flattering himself that the observation was addressed particularly to him, observed that he also hated being alone.

Then the Sergeant lighted his pipe; and I suppose there was not one in the company who did not think that tobacco particularly nice.

Next, the Sergeant rang again, and once more the pretty maid appeared.

“Lucy,” said he, “while my steak is getting ready, I think I’ll have three of whiskey hot, with a little lemon in it.”

At this there was an involuntary smacking of lips all round, although no one was conscious he had exhibited any emotion. The Sergeant was perfectly easy and indifferent to everything. He smoked, looked at the fire, sipped his grog, spread out his legs, folded his arms; then rose and turned his back to the fire, everyone thinking how thoroughly he enjoyed himself.

“That smells very nice, Sergeant,” said Harry.

“Yes, it’s very good,” said the Sergeant; “it’s some I got down at Yokelton, Somersetshire.”

Here Joe looked up; he hadn’t been home for a week, and began to feel some interest in the old place, and everything belonging to it.

“I comes from that ere place, Mr. Sergeant,” said he.

“Indeed, sir,” said the Sergeant, in an off-hand manner.

“Did thee buy un at a shop by the Pond, sir?”

“That’s it,” replied the Sergeant, pointing with his pipe, “to the right.”

“The seame plaace,” exclaimed Joe. “Why my sister lives there sarvant wi that ooman as keeps the shop.”

“Indeed!” said Sergeant Goodtale; “how very curious!”

And Jack said, “What a rum thing!”

And Bill said, “That is a rum thing!”

And Harry said it was a strange coincidence. In short, they all agreed that it was the most remarkable circumstance that ever was.

CHAPTER XIX.

The subject continued.

As soon as the conversation on the remarkable circumstance recorded in the last chapter had drifted into another subject no less remarkable, and the Sergeant had finished his pipe, the beautiful being appeared with the rump steak and onions, a snowy white cloth having been previously spread at the end of one of the tables. When all was ready, it looked as nice and appetizing as could well be conceived. The most indifferent man there seemed the Sergeant himself, who, instead of rushing to the chair provided for him, walked as coolly up to the table as though he were going into action. Then he took the knife, and seeing it had not quite so sharp an edge as he liked, gave it a touch or two on the stone hearth.

The smell of that tobacco from Yokelton had been sweet; so had the perfume from the whiskey toddy and the lemon; but of all the delicious and soul-refreshing odours that ever titilated human nostrils, nothing surely could equal that which proceeded from the rump steak and onions. The fragrance of new mown hay, which Cowper has so beautifully mentioned, had palled on Joe's senses; but when would the fragrance of that dish pall on the hungry soul?

The Sergeant took no notice of the hungry looks of the company; he was a soldier, and concentrated his mind upon the duties of the moment. Sentimentality was no part of his nature. He was a man, and must eat; he was a soldier, and must perform the work as a duty irrespective of consequences.

"Do you mind my smoke?" asked Harry.

"Oh dear, no," said the Sergeant; "I like it."

Joe stared and watched every bit as the Sergeant cut it. He looked admiringly on the soldier and so lovingly at the steak, that it almost seemed as if he wished he could be cut into such delicious morsels and eaten by so happy a man. What thoughts passed through his mind no one but a dreamer could tell; and this is what I saw passing through the mind of Wurzel.

“O, what a life! what grub! what jollyness! no turmut oeing; no dung-cart; no edgin and ditchin; no five o’clock in the mornin; no master; no bein sweared at; no up afore the magistrates; no ungriness; rump steaks and inguns; whiskey and water and bacca; if I didn’t like that air Polly Sweetlove, danged if I wouldn’t go for a soger to-morrer!”

Then said Joe, very deferentially and as if he were afraid of being up afore the magistrate, “If you please, sir, med I have a bit o’ that there bacca?”

“Of course,” said the Sergeant, tossing his pouch; “certainly; help yourself.”

Joe’s heart was softened more and more towards the military, which he had hitherto regarded, from all he could hear, as a devil’s own trap to catch Sabbath breakers and disobedient to parents.

And methought, in my dream, I never saw men who were not partakers of a feast enjoy it more than the onlookers of that military repast.

Then said Harry,—

“Well, Sergeant, I’m well-nigh tired of my life, and I’ve come here to enlist.”

“Just wait a bit,” said the Sergeant; “I’m not a man to do things in a hurry. I never allow a man to enlist, if I know it, in Her Majesty’s service, honourable and jolly as it is, without asking him to think about it.”

“Hear, hear!” said Lazyman; “that’s good, I likes that; don’t be in a hurry, lad.”

“Hear, hear!” says Outofwork, “don’t jump into a job too soon, yer medn’t like it.”

“Hear, hear!” says the Boardman, “walk round a-bit.”

“But,” said Harry, “I have considered it. I’ve just had education enough to prevent my getting a living, and not enough to make a man of me: I’ve tried everything and nobody wants me.”

“Then,” said Sergeant Goodtale, “do you think the Queen only wants them that nobody else’ll have. I can tell you that ain’t the Queen of England’s way. It might do for Rooshia or Germany, or them countries, but not for Old England. It’s a free country. I think, lads, I’m right—”

Here there was tremendous hammering on the table by way of assent and applause; amidst which Joe could be observed thumping his hard fist with as much vehemence as if he had got a County Magistrate’s head under it.

“This is a free country, sir,” said the Sergeant, “no man here is kidnapped into the Army, which is a profession for men, not slaves.”

“I’m going to join,” said Harry, “say what you like.”

“Wait till the morning;” said the Sergeant, “and meanwhile we’ll have a song.”

At this moment Mr. Bumpkin put in an appearance; for although he had been enjoying himself with Mr. and Mrs. Oldtimes, he thought it prudent to have a peep and see how “thic Joe wur gettin on.”

CHAPTER XX.

Mr. Bumpkin sings a good old song—the Sergeant becomes quite a convivial companion and plays dominoes.

The Sergeant, having finished his repast, again had recourse to his pipe, and was proceeding to light it when Mr. Bumpkin appeared in the room.

“We be gwine to have a song, maister,” said Joe.

“Give us a song, governor,” said half-a-dozen voices.

“Ay, do, maister,” says Joe; “thee sings a good un, I knows, for I ha eerd thee often enough at arvest oames: gie us a song, maister.”

Now if there was one thing Mr. Bumpkin thought he was really great at besides ploughing the straightest and levellest furrow, it was singing the longest and levellest song. He had been known to sing one, which, with its choruses, had lasted a full half hour, and then had broken down for lack of memory.

On the present occasion he would have exhibited no reluctance, having had a glass or two in the Bar Parlour had he not possessed those misgivings about the Sergeant. He looked furtively at that officer as though it were better to give him no chance. Seeing, however, that he was smoking quietly, and almost in a forlorn manner by himself, his apprehensions became less oppressive.

Invitations were repeated again and again, and with such friendly vehemence that resistance at last was out of the question.

“I aint sung for a good while,” said he, “but I wunt be disagreeable like, so here goes.”

But before he could start there was such a thundering on the tables that several minutes elapsed. At length there was sufficient silence to enable him to be heard.

“This is Church and Crown, lads.”

“Gie me the man as loves the Squire,
The Parson, and the Beak;
And labours twelve good hours a day
For thirteen bob a week!”

“Hooroar! hooroar! hooroar!” shouted Lazyman. “What d’ye think ’o that?”

“O, my eye,” said Outofwork, “aint it jolly?”

“Well done! bravo!” shrieked the Boardman. “I’ll carry that ere man through the streets on my shoulders instead o’ the boards, that I will. Bravo! he ought to be advertized—this style thirteen bob a week!”

“Thirteen bob a week!” laughed Harry; “who’d go for a soldier with such a prospect. Can you give us a job, governor?”

“Wait a bit, lads,” said Mr. Bumpkin, “there be another werse and then a chorus.”

“Hooray!” they shouted, “a chorus! let’s have the chorus—there ought to be a chorus—thirteen bob a week!”

“Now, gentlemen, the chorus if you please,” said Harry; “give it mouth, sir!”

Then sang Bumpkin—

“O ’edgin, ditchin, that’s the geaam,
All in the open air;
The poor man’s health is all his wealth,
But wealth without a care!

CHORUS.

Then shout hurrah for Church and State
Though 'eretics may scoff,
The devil is our head Constable,
To take the willins off.

Give me the man that's poor and strong,
Hard working and content;
Who looks on onger as his lot,
In Heaven's wise purpose sent.
Who looks on riches as a snare
To ketch the worldly wise;
And good roast mutton as a dodge,
To blind rich people's eyes.

CHORUS.

Give me the man that labours hard
From mornin' until night,
And looks at errins as a treat
And bacon a delight.
O 'edgin, ditchin, diggin drains,
And emptyin pool and dyke,
It beats your galloppin to 'ounds,
Your ball-rooms and the like.

CHORUS.

Gi' me the man that loves the Squire
With all his might and main;
And with the taxes and the rates
As never racks his brain.
Who loves the Parson and the Beak
As Heaven born'd and sent,
And revels in that blessed balm
A hongry sweet content.

CHORUS.

Gie me the good Shaksperan man
As wants no other books,

But them as he no need to spell,
The ever runnin brooks:
As feeds the pigs and minds the flocks,
And rubs the orses down;
And like a regler lyal man,
Sticks up for Church and Crown.”

CHORUS.

At the termination of this pastoral song there was such a hullabaloo of laughter, such a yelling, thumping, and, I grieve to say, swearing, that Mr. Bumpkin wondered what on earth was the occasion of it. At the Rent dinner at the Squire’s he had always sung it with great success; and the Squire himself had done him the honour to say it was the best song he had ever heard, while the Clergyman had assured him that the sentiments were so good that it ought to be played upon the organ when the people were coming out of church. And Farmer Grinddown, who was the largest gentleman farmer for miles around, had declared that if men would only act up to that it would be a happy country, and we should soon be able to defy America itself.

Mr. Bumpkin, hearing such shouts of laughter, thought perhaps he might have a patch of black on his face, and put his hand up to feel. Then he looked about him to see if his dress was disarranged; but finding nothing amiss, he candidly told them he “couldn’t zee what there wur to laugh at thic fashion.”

They all said it was a capital song, and wondered if he had any more of the same sort, and hoped he’d leave them a lock of his hair—and otherwise manifested tokens of enthusiastic approbation.

Mr. Bumpkin, however, could not quite see their mirth in the same light, so he turned on his heel and, beckoning to Joe, left the room in high dudgeon, not to say disdain.

“Mind Joe—no truck wi un.”

“Why, maister, he knows my sister.”

“Damn thee sister, Joe; it be a lie.”

“Be it? here’s some o’ the bacca he brought up from Okleton, I tell ee.”

“I tell thee, have nowt to do wi un; we shall be on t’morrer, we be tenth in the list.”

“Ay,” said Joe, “we bin igher in list un thic, we bin as near as eight; I shall be mighty glad when it be over.”

“An get back to pigs, aye, Joe?”

“Aye, maister.”

“Nothin like oame, Joe, be there?” and Mr. Bumpkin turned away.

“No,” said Joe; “no, maister, if so be” (and this was spoken to himself) “if so be you got a oame.”

Then I saw that Joe rejoined his companions, amongst whom a conversation was going on as to the merits of the song. Some said one thing and some another, but all condemned it as a regular toading to the Parson and the Squire: and as for the Beak, how any man could praise him whose only duty was to punish the common people, no one could see. The company were getting very comfortable. The Sergeant had called for another glass of that delectable grog whose very perfume seemed to inspire everyone with goodfellowship, and they all appeared to enjoy the Sergeant’s liquor without tasting it.

“What do you say to a game of dominoes?” said Harry.

“They won’t allow em ere,” said Lazyman.

“Won’t they,” answered Outofwork. “I’ll warrant if the Sergeant likes to play there’s no landlord’ll stop him, ay, Sergeant?”

“Well, I believe,” said the Sergeant, “as one of the Queen’s servants, I have the privilege of playing when I like.”

“Good,” said Harry, “and I’ll be a Queen’s man too, so out with the shilling, Sergeant.”

“Wait till the morning,” said the Sergeant.

“No,” said Harry. “I’ve had enough waiting. I’m on, give me the shilling.”

The Sergeant said, “Well, let me see, what height are you?” and he stood up beside him.

“Ah!” he said, “I think I can get you in,” saying which he gave him a shilling; such a bright coin, that it seemed to have come fresh from the Queen’s hand.

Then the Sergeant took out some beautiful bright ribbons which he was understood to say (but did *not* say) the Queen had given him that morning. Then he rang the bell, and the buxom waitress appearing he asked for the favour of a needle and thread, which, the radiant damsel producing, with her own fair fingers she sewed the ribbons on to Harry’s cap, smiling with admiration all the while. Even this little incident was not without its effect on the observant “head witness,” and he felt an unaccountable fascination to have the same office performed by the same fair hands on his own hat.

Then, without saying more, a box of dominoes was produced, and Joe soon found himself, he did not know how, the Sergeant’s partner, while Lazyman and Outofwork were opposed to them.

“Is it pooty good livin in your trade, Mr. Sergeant?” asked Joe.

“Not bad,” said the Sergeant; “that is five-one, I think”—referring to the play.

“Rump steaks and ingons aint bad living,” said Outofwork.

“No,” said the Sergeant, “and there’s nothing I like better than a good thick mutton chop for breakfast—let me see, what’s the game?”

“Ah!” said Joe, smacking his lips, “mutton chops is the best thing out; I aint had one in my mouth, though, for a doocid long time; I likes em with plenty o’ fat an gravy loike.”

“You see,” said the Sergeant, “when you’ve been out for a two or three mile ride before breakfast in the fresh country air, a chap wants something good for breakfast, and a mutton chop’s none too much for him.”

“No,” answered Joe, “I could tackle three.”

“Yes,” said Sergeant Goodtale, “but some are much larger than others.”

“So em be,” agreed Joe.

“What’s the game,” enquired the Sergeant.

“Two-one,” said Joe.

“One’s all,” said the soldier.

“I tell ee what,” remarked Joe, “if I was going to list, there’s no man as I’d liefer list wi than you, Mr. Sergeant.”

“Domino!” said the Sergeant, “that’s one to us, partner!”

Then they shuffled the dominoes and commenced again. But at this moment the full figure of Mr. Bumpkin again stood in the doorway.

“Joe!” he exclaimed angrily, “I want thee, come ere thirecly, I tell ee!”

“Yes, maister; I be comin.”

“You stoopid fool!” said Mr. Bumpkin in a whisper, as Joe went up to him, “thee be playin with thic feller.”

“Well, maister, if I be; what then?” Joe said this somewhat angrily, and Mr. Bumpkin replied:—

“He’ll ha thee, Joe—he’ll ha thee!”

“Nay, nay, maister; I be too old in the tooth for he; but it beant thy business, maister.”

“No,” said Bumpkin, as he turned away, “it beant.”

Then Joe resumed his play. Now it happened that as the Sergeant smacked his lips when he took his occasional sip of the fragrant grog, expressive of the highest relish, it awakened a great curiosity in Wurzel’s mind as to its particular flavour. The glass was never far from his nose and he had long enjoyed the extremely tempting odour. At last, as he was not invited to drink by Sergeant Goodtale, he could contain himself no longer, but made so bold as to say:—

“Pardner, med I jist taste this ere? I never did taste sich a thing.”

“Certainly, partner,” said the Sergeant, pushing the tumbler, which was about three-parts full. “What’s the game now?”

“Ten-one,” said Outofwork.

“One’s all, then,” said the Sergeant.

Joe took the tumbler, and after looking into it for a second or two as though he were mentally apostrophizing it, placed the glass to his lips.

“Don’t be afraid,” said the Sergeant.

No one seemed more courageous than Wurzel, in respect of the act with which he was engaged, and before he took the glass from his lips its contents had disappeared.

“I’m mighty glad thee spoke, Maister Sergeant, for if thee hadn’t I should a drunk un all wirout thy leave. I never tasted sich tackle in my life; it’s enough to make a man gie up everything for sogering.”

“Domino!” said the Sergeant. “I think that’s the game!”

* * * * *

“My dear,” said my wife, “you have been talking again in your sleep.”

“Really,” said I, “I hope I have not compromised myself.”

“I do not understand you,” cried she.

“No more do I, for I am hardly awake.”

“You have been talking of Joe Wurzel again.”

“O, to be sure. What about him?”

“Then you mentioned Mr. Outofwork and Mr. Lazyman and Mr. Devilme care, and another whose name I did not catch.”

“Ah,” I asked, “did they go for soldiers?”

“At present, no, except Harry, for whom I was heartily sorry, he seemed such a nice disappointed lad. But pray who is this Sergeant Goodtale?”

“He is on recruiting service, a very fine, persuasive fellow.”

“But he didn’t seem to press these people or use any arts to entice them: I like him for that. He rather seemed to me to discourage them from enlisting. He might have been sure poor Harry meant it, because, as I take it, he was half-starved, and yet he desired him to wait till the morning.”

“I think,” said I, “his conduct was artful if you examine it with reference to its effect on the others; but he is an extraordinary man, this Sergeant Goodtale—was never known to persuade any one to enlist, I believe.”

“But he seemed to get along very well.”

“Very; I thought he got along very comfortably.”

“Then there was one Lucy Prettyface!”

“Ah, I don’t remember her,” cried I, alarmed lest I might have said anything in my dream for which I was not responsible.

“Why she was the girl who sewed the colours on and somebody called ‘my dear.’”

“I assure you,” I said, “it was not I: it must have been the Sergeant; but I have no recollection—O yes, to be sure, she was the waitress.”

“You remember her now?”

“Well,” said I, determined not to yield if I could possibly help it, “I can’t say that I do. I know there was a person who sewed colours on and whom the Sergeant called ‘my dear,’ but further than that I should not like to pledge myself. Yes—yes—to be sure,” and here I went on talking, as it were, to myself, for I find it is much better to talk to yourself if you find it difficult to carry on a conversation with other persons.

“She was pretty, wasn’t she?” said my wife with an arch look.

I gave her a look just as arch, as I replied,

“Really I hardly looked at her; but I should say *not*.” I make a point of never saying any one is pretty.

“Joe thought her so.”

“Did he? Well she may have been, but I never went in for Beauty myself.”

“You shocking man,” said my wife, “do you perceive what you are saying?”

“Why, of course; but you take me up so sharply: if you had not cut me off in the flower of my speech you would have been gratified at the finish of my sentence. I was going to say, I never went in for Beauty, but once. That, I think, gives the sentence a pretty turn.”

“Well, now, I think these dreams and this talking in your sleep indicate that you require a change; what do you say to Bournemouth?”

“You think I shall sleep better there?”

“I think it will do you good.”

“Then we’ll go to Bournemouth,” cried I, “for I understand it’s a very dreamy place.”

“But I should like to know what becomes of this action of Mr. Bumpkin, and how all his people get on? You may depend upon it that Sergeant will enlist those other men.”

“I do not know,” I remarked, “what is in the future.”

“But surely you know what you intend. You can make your characters do anything.”

“Indeed not,” I said. “They will have their own way whether I write their history or any one else.”

“That Sergeant Goodtale will have every one of them, my dear; you mark my words. He’s the most artful man I ever heard of.”

Of course I could offer no contradiction to this statement as I was not in the secrets of the future. How the matter will work out depends upon a variety of circumstances over which I have not the least control. For instance, if

Bill were to take the shilling, I believe Dick would follow: and if the Sergeant were to sing a good song he might catch the rest. But who can tell?

CHAPTER XXI.

Joe electrifies the company and surprises the reader.

“Suppose we have another song,” said Sergeant Goodtale.

“And spoase we has some moore o’ that there stuff,” answered Joe.

“Aye,” said Harry, “we will too. I’ll spend my shilling like a man.”

Saying which he rang the bell and ordered a glass for himself and one for Joe.

“Now, then,” said the latter, “I can’t sing, but I’ll gie thee summut as I larned.”

“Hooray!” said Harry, “summut as he larned!”

“Bravo!” said the Boardman, “summut as he larned?”

“Here’s at un,” said Joe.

And then with a mighty provincialism he repeated without a break:—

DR. BRIMSTONE’S SERMON, AS PUT INTO VERSE BY GAFFER DITCHER.

I bin to Church, I ha’, my boy,
And now conwarted be;
The last time I wur ever there
War eighteen farty-three!

And ’ow I knows it is as this,
I didn’t goo to pray,

Nor 'ear the Word, but went becorse
It wur my weddin day!

Zounds! wot a blessed sarmon twur
I 'eeard the Sabbath morn;
'Ow I a woful sinner wur
Or ever I wur born.

You sees them wilful ignorant pigs
In mud a wollorin;
Well, like them pigs, but ten times wus,
We wollers in our sin.

We're coated o'er wi' sinful mud,—
A dreadful sight we be;
And yet we doant despise ourselves—
For why?—We doant zee!

I thinks I had yer there, my boy,
For all your sniggerin' jeers;
Thee're in t' mud, I tell 'ee, lad,
Rightoover 'ed an' ears.

Zounds! what a orful thing it be
That love should blind us so!
Why, them there bloomin rosy cheeks
Be ony masks o' woe!

The reddest on 'em thee could kiss
Aint 'ardly wuth the pains;
At best it's but the husk o' bliss,
It's nuther wuts nor banes.

There aint a pleasure you can name,
From coourtin down to skittles,
But wot there's mischief in the same,
Like pisen in your wittles.

The Reverend Brimstone says, "Beloved,
Be allays meek an umble;

A saint should never ax for moor,
An never larn to grumble.”

We ain’t to tork o’ polleticks
An’ things as don’t consarn us,
And wot we wornts to know o’ lor
The madgistret will larn us.

We ain’t to drink wi’ Methodists,
No, not a friendly soop;
We ain’t to tork o’ genteel folks
Unless to praise un oop.

We ain’t to ’ear a blessed word
Agin our betters said;
We’re got to lay the butter thick
Becorse they’re sich ’igh bred!

We got to say “Ha! look at he!
A gemman tooth and nail!”
You morn’t say, “What a harse he’d be
If he’d a got a tail!”

For why? becorse these monied gents
Ha’ got sich birth an’ breedin’;
An’ down we got to ’old our ’eads,
Like cattle, when they’re feedin’.

The parson put it kindly like—
He sed, says he, as ’ow
We’re bean’t so good as them there grubs
We turns up wi’ the plow.

There’s nowt more wretcheder an we,
Or worthier an the rich,
I praises ’em for bein’ born,
An’ ’eaven for makin’ sich.

So wile we be, I daily stares
That earthquakes doan’t fall,

An' swaller up this unconwined
Owdashus earthly ball!

An' wen I thinks of all our sins—
Lay down, says I, my boys,
We're fittin' only for manoor,
So don't let's make a noise.

Let's spred us out upon the ground
An' make the turmuts grow,
It's all we're good for in this world
O' wickedness an' woe!

And yet we're 'llow'd to brethe the air
The same as gents from town;
And 'llow'd to black their 'appy boots,
And rub their 'orses down!

To think o' blessins sich as these,
Is like ongrateful lust;
It stuffs us oop wi' worldly pride,
As if our 'arts would bust!

But no, we're 'umble got to be,
Though privileged so 'igh:
Why doan't we feed on grass or grains,
Or leastways 'umbly die!

We got to keep our wicked tongue
From disrespeckful speakin',
We han't a got to eat too much,
Nor yet goo pleasure seekin'.

Nor kitch a rabbit or a aire,
Nor call the Bobby names,
Nor stand about, but goo to church,
And play no idle games:

To love paroshial orficers,
The squire, and all that's his,

And never goo wi' idle chaps
As wants their wages riz.

So now conwarted I ha' bin
From ignorance and wice;
It's only 'appiness that's sin,
And norty things that's nice!

Whereas I called them upstart gents
The wust o' low bred snobs,
Wi' contrite 'art I hollers out
“My heye, wot bloomin' nobs!”

I sees the error o' my ways,
So, lads, this warnin' take,
The Poor Man's path, the parson says,
Winds round the Burnin' Lake.

They've changed it since the days o' yore,
Them Gospel preachers, drat un;
They used to preach it to the poor,
An' now they preach it *at* un.

Every one was amazed at the astonishing memory of this country lad: and the applause that greeted the reciter might well be calculated to awaken his latent vanity. It was like being called before the curtain after the first act by a young actor on his first appearance. And I believe every one understood the meaning of the verses, which seemed to imply that the hungry prodigal, famishing for food, was fed with husks instead of grain. Contentment with wretchedness is not good preaching, and this was one lesson of Dr. Brimstone's sermon. As soon as Harry could make himself heard amidst the general hubbub, which usually follows a great performance, he said:—

“Now, look here, lads, it's all very well to be converted with such preaching as that; but it's my belie it's more calculated to make hypocrites than Christians.”

“Hear! hear!” said Lazyman. “That *is* right.” Anything but conversion for Lazyman.

“Now,” continued Harry, “I’ve heard that kind of preaching a hundred times: it’s a regular old-fashioned country sermon; and, as for the poor being so near hell, I put it in these four lines.”

“Hear, hear!” cried the company; “order!”

And they prepared themselves for what was to come with as great eagerness as, I venture to say, would always be shown to catch the text, if it came at the end, instead of the beginning, of a sermon.

“Shut up,” says Lazyman; “let’s ’ear this ’ere. I knows it’s summut good by the look an him.”

“Don’t make a row,” retorts the Boardman; “who can hear anything while you keeps on like that?”

And there they stood, actually suspending the operation of smoking as they waited the summing up of this remarkably orthodox “preaching of the word.” The sergeant only was a spectator of the scene, and much amused did he seem at the faces that prepared for a grin or a sneer as the forthcoming utterance should demand. Then said Harry solemnly and dramatically:—

“In WANT full many a vice is born,
And Virtue in a DINNER;
A well-spread board makes many a SAINT,
And HUNGER many a sinner.”

From the explosion which followed this antidote to Mr. Brimstone’s sermon, I should judge that the more part of the company believed that Poverty was almost as ample a virtue as Charity itself. They shook their heads in token of assent; they thumped the table in recognition of the soundness of the teaching; and several uttered an exclamation not to be committed to paper, as an earnest of their admiration for the ability of Mr. Highlow, who, instead of being a private soldier, ought, in their judgment, to be Lord Mayor of London. After this recital every one said he thought Mr. Highlow might oblige them.

“Well, I’m no singer,” said Harry.

“Try, Harry!” exclaimed Lazyman: he was a rare one to advise other people to try.

“Trying to sing when you can’t,” answered Harry, “I should think is a rum sort of business; but I’ll tell you what I’ll do if you like. When I was down at Hearne Bay I heard an old fisherman tell a story which—”

“That’s it!” thumped out Joe, “a story. I likes a good story, specially if there be a goast in it.”

“I don’t know what there is in it,” said Harry, “I’ll leave you to make that out; but I tell you what I did when I heard it, I made a ballad of it, and so if you like I’ll try and recollect it.”

“Bravo!” they said, and Harry gave them the following

SONG OF THE WAVES.

Far away on the pebbly beach
That echoes the sound of the surge;
As if they were gifted with speech,
The breakers will sing you a dirge.

The fishermen list to it oft,
And love the sweet charm of its spell,
For sometimes it whispers so soft,
It seems but the voice of the shell.

It tells of a beautiful child
That used to come down there and play,
And shout to the surges so wild
That burst on the brink of the bay.

She was but a child of the poor,
Whose father had perished at sea;
’Twas strange, that sweet psalm of the shore,
Whatever the story might be!

Yes, strange, but so true in its tone
That no one could listen and doubt;

The heart must be calm and alone
To search its deep mystery out.

She came with a smaller than she
That toddled along at her side;
Now ran to and fled from the sea,
Now paddled its feet in the tide.

Afar o'er the waters so wild,
Grazed Effie with wondering eye;
What mystery grew on the child
In all that bright circle of sky?

Her father—how sweet was the thought!
Was linked with this childish delight;
'Twas strange what a vision it brought—
As though he still lingered in sight.

Was it Heaven so near, so remote,
Across the blue line of the wave?
'Twas thither he sailed in his boat,
'Twas there he went down in his grave!

So the days and the hours flew along,
Like swallows that skim o'er the flood;
Like the sound of a beautiful song,
That echoes and dies in the wood!

One day as they strayed on the strand,
And played with the shingle and shell,
A boat that just touched on the land
Was playfully rocked by the swell.

O childhood, what joy in a ride!
What eagerness beams in their eyes!
What bliss as they climb o'er the side
And shout as they tumble and rise!

O sea, with thy pitiful dirge,
Thou need'st to be mournful and moan!

The wrath of thy terrible surge
Omnipotence curbs it alone!

The boat bore away from the shore,
The laughter of childhood so glad!
And the breakers bring back ever more
The dirge with its echo so sad!

A widow sits mute on the beach,
And ever the tides as they flow,
As if they were gifted with speech,
Repeat the sad tale of her woe!

“That’s werry good,” said the Boardman. “I’m afraid them there children was washed away—it’s a terrible dangerous coast that ere Ern Bay. I’ve ’eeard my father speak on it.”

“Them there wersed is rippin’!” said Joe.

“Stunnin’!” exclaimed Bob.

And so they all agreed that it was a pretty song and “well put together.”

“Capital,” said the sergeant, “I never heard anything better, and as for Mr. Wurzel, a man with his memory ought to do something better than feed pigs.”

“Ay, aye,” said the company to a man.

“Why don’t you follow my example?” said Harry; “it’s the finest life in the world for a young fellow.”

“Well,” said the sergeant, “that all depends; its very good for some, for others not so good—although there are very few who are not pleased when they once join, especially in such a regiment as ours!”

“And would you mind telling me, sir,” asked Outofwork, “what sort of chaps it don’t suit?”

“Well, you see, chaps that have been brought up in the country and tied to their mothers’ apron strings all their life: they have such soft hearts, they are

almost sure to cry—and a crying soldier is a poor affair. I wouldn't enlist a chap of that sort, no, not if he gave me ten pounds. Now, for instance, if Mr. Wurzel was to ask my advice about being a soldier I should say 'don't!'"

"Why not, sir?" asked Joe; "how's that there, then? D'ye think I be afeard?"

"I should say, go home first, my boy, and ask your mother!"

"I be d---d if I be sich a molly-coddle as that, nuther; and I'll prove un, Mr. Sergeant; gie me thic bright shillin' and I be your man."

"No," said the sergeant, "think it over, and come to me in a month's time, if your mother will let you. I don't want men that will let their masters buy them off the next day."

"No; an lookee here, Maister Sergeant; I bean't to be bought off like thic, nuther. If I goes, I goes for good an' all."

"Well, then," said the sergeant, shaking him by the hand, and pressing into it the bright shilling, "if you insist on joining, you shall not say I prevented you: my business is not to prevent men from entering Her Majesty's service."

Then the ribbons were brought out, and Joe asked if the young woman might sew them on as she had done Harry's; and when she came in, Joe looked at her, and tried to put on a military bearing, in imitation of his great prototype; and actually went so far as to address her as "My dear," for which liberty he almost expected a slap in the face. But Lucy only smiled graciously, and said: "Bravo, Mr. Wurzel! Bravo, sir; I've seen many a man inlisted, and sewed the Queen's colours on for him, but never for a smarter or a finer fellow, there!" and she skipped from the room.

"Well done!" said several voices. And the sergeant said:

"What do you think of that, Mr. Wurzel? I'll back she's never said that to a soldier before."

Joe turned his hat about and drew the ribbons through his fingers, as pleased as a child with a new toy, and as proud as if he had helped to win a

great battle.

Here I awoke.

CHAPTER XXII.

The Sergeant makes a loyal speech and sings a song, both of which are well received by the company.

And when I got to Bournemouth I dreamed again; and a singular thing during this history was, that always in my dream I began where I had left off on the previous night. So I saw that there, in the room at "The Goose," were Sergeant Goodtale, and Harry, and Joe, and the rest, just as I had left them when I last awoke. But methought there was an air of swagger on the part of the head witness which I had not observed previously. His hat was placed on one side, in imitation of the sergeant's natty cap, and he seemed already to hold up his head in a highly military manner; and when he stooped down to get a light he tried to stoop in the same graceful and military style as the sergeant himself; and after blowing it out, threw down the spill in the most off-hand manner possible, as though he said, "That's how we chaps do it in the Hussars!" Everyone noticed the difference in the manner and bearing of the young recruit. There was a certain swagger and boldness of demeanour that only comes after you have enlisted. Nor was this change confined to outward appearance alone. What now were pigs in the mind of Joe? Merely the producers of pork chops for breakfast. What was Dobbin that slowly dragged the plough compared to the charger that Joe was destined to bestride? And what about Polly Sweetlove and her saucy looks? Perhaps she'd be rather sorry now that she did not receive with more favour his many attentions. Such were the thoughts that passed through the lad's mind as he gradually awakened to a sense of his new position. One thought, however, strange to say, did not occur to him, and that was as to what his poor old mother would think. Dutiful son as Joe had always been, (though wild in some respects), he had not given her a single thought. But his reflections, no doubt, were transient and confused amid the companions by whom he was surrounded.

“You’ll make a fine soldier,” said the Boardman, as he saw him swagger across to his seat.

“Yes,” said the sergeant, “any man that has got it in him, and is steady, and doesn’t eat too much and drink too much, may get on in the army. It isn’t like it used to be.”

“I believe that,” said Bob Lazyman.

“The only thing,” continued the sergeant, “is, there is really so little to do—there’s not work enough.”

“That ud suit me,” said Bob.

“Ah! but stop,” added the sergeant, “the temptations are great—what with the girls—.”

“Hooray!” exclaimed Dick; “that beats all—I likes them better than mutton chops.”

“Yes,” replied the sergeant; “they are all very well in their way; but you know, if a man wants to rise in the army, he must be steady.”

“Steady, boys! stea—dy!” shouted Dick

I don’t know how far the sergeant was justified, morally, in thus holding out the prospect of riotous living to these hungry men, but I think, all things considered, it was an improvement on the old system of the pressgang, which forced men into the navy. These lads were not bound to believe the recruiting sergeant, and were not obliged to enter into a contract with Her Majesty. At the same time, the alluring prospects were such that if they had been represented as facts in the commercial transactions of life, such is the purity of the law that they would have given rise to much pleading, multifarious points reserved, innumerable summonses at Chambers, and, at least, one new trial.

“Now,” said Jack Outofwork, “I tell yer what it is—I don’t take no Queen’s shilling, for why? it ain’t the Queen’s—it belongs to the people—I’m for a republic.”

“Well,” said the sergeant, “I always like to meet a chap that calls himself a republican, and I’ll tell you why. This country is a republic, say what you like, and is presided over by our gracious Queen. And I should like to ask any man in this country—now, just listen, lads, for this is the real question, whether—”

“Now, order,” said Lazyman, “I never ’eerd nothing put better.”

“Let’s have order, gentlemen,” said Harry; “chair! chair!”

“All ’tention, sergeant,” said Dick.

“I say,” continued the sergeant; “let us suppose we got a republic tomorrow; well, we should want a head, or as they say, a president.”

“That’s good,” said half-a-dozen voices.

“Well, what then?” said the sergeant; “Who would you choose? Why, the Queen, to be sure.”

Everybody said “The Queen!” And there was such a thumping on the table that all further discourse was prevented for several minutes. At last everyone said it was good, and the sergeant had put it straight.

“Well, look’ee ’ere, lads—I was born among the poor and I don’t owe nothing to the upper classes, not even a grudge!”

“Hear! hear! Bravo, Mr. Sergeant!” cried all.

“Well, then; I’ve got on so far as well as I can, and I’m satisfied; but I’ll tell you what I believe our Queen to be—a thorough woman, and loves her people, especially the poor, so much that d---d if I wouldn’t die for her any day—now what d’ye think o’ that?”

Everybody thought he was a capital fellow.

“Look, here,” he continued, “it isn’t because she wears a gold crown, or anything of that sort, nor because a word of her’s could make me a field marshal, or a duke, or anything o’ that sort, nor because she’s rich, but I’ll tell you why it is—and it’s this—when we’re fighting we don’t fight for her except as the Queen, and the Queen means the country.”

“Hear! hear! hear! hear!”

“Well, we fight for the country—but she loves the soldiers as though they were not the country’s but her own flesh and blood, and comes to see ’em in the hospital like a mother, and talks to ’em the same as I do to you, and comforts ’em, and prays for ’em, and acts like the real mother of her people—that’s why I’d die for her, and not because she’s the Queen of England only.”

“Bravo!” said Joe. “Hope I shall soon see her in th’ ’orsepittal. It be out ’ere: beant it St. Thomas’s.”

“I hope you won’t, my brave lad,” said the sergeant; “but don’t tell me about republicanism when we’ve got such a good Queen; it’s a shame and a disgrace to mention it.”

“So it be,” said Joe; “I’m darned if I wouldn’t knock a feller into the middle o’ next week as talked like thic. Hooroar for the Queen!”

“And now I’m going to say another thing,” continued the sergeant, who really waxed warm with his subject, and struck admiration into his audience by his manner of delivery: may I say that to my mind he was even eloquent, and ought to have been a sergeant-at-law, only that the country would have been the loser by it: and the country, to my mind, has the first right to the services of every citizen. “Just look,” said the sergeant, “at the kindness of that—what shall I call her? blessed!—yes, blessed Princess of Wales! Was there ever such a woman? Talk about Jael in the Bible being blessed above women—why I don’t set no value upon her; she put a spike through a feller it’s true, but it was precious cowardly; but the Princess, she goes here and goes there visiting the sick and poor and homeless, not like a princess, but like a real woman, and that’s why the people love her. No man despises a toady more than I do—I’d give him up to the tender mercies of that wife of Heber the Keenite any day; but if the Princess was to say to me, ‘Look ’ere, Sergeant, I feel a little low, and should like some nice little excitement just to keep up my spirits and cheer me up a bit’” (several of them thought this style of conversation was a familiar habit with the Princess and Sergeant Goodtale, and that he must be immensely popular with the Royal Family), “well, if she was to say, ‘Look here, Sergeant Goodtale, here’s a precipice,

it ud do me good to see you leap off that,' I should just take off my coat and tuck up my shirt sleeves, and away I should go."

At such unheard of heroism and loyalty there was a general exclamation of enthusiasm, and no one in that company could tell whom he at that moment most admired, the Princess or the Sergeant.

"That's a stunner!" said Joe.

"Princess by name and Princess by nature," replied the sergeant; "and now look'ee here, in proof of what I say, I'm going to give you a toast."

"Hear, hear," said everybody.

"But stop a minute," said the sergeant, "I'm not a man of words without deeds. Have we got anything to drink to the toast?"

All looked in their respective cups and every one said, "No, not a drop!"

Then said the sergeant "We'll have one all rounded for the last. You'll find me as good as my word. What's it to be before we part?"

"Can't beat this 'ere," said Joe, looking into the sergeant's empty glass.

"So say all of us," exclaimed Harry.

"That's it," said all.

"And a song from the sergeant," added Devilmeclare.

"Ay, lads, I'll give you a song."

Then came in the pretty maid whom Joe leered at, and the sergeant winked at; and then came in tumblers of the military beverage, and then the sergeant said:

"In all companies this is drunk upstanding, and with hats off, except soldiers, whose privilege it is to keep them on. You need not take yours off, Mr. Wurzel; you are one of Her Majesty's Hussars. Now then all say after me: 'Our gracious Queen; long may she live and blessed be her reign—the mother and friend of her people!'"

The enthusiasm was loud and general, and the toast was drunk with as hearty a relish as ever it was at Lord Mayor's Banquet.

"And now," said the sergeant, "once more before we part—"

"Ah! but the song?" said the Boardman.

"Oh yes, I keep my word. A man, unless he's a man of his word, ought never to wear Her Majesty's uniform!" And then he said:

"The Prince and Princess of Wales and the rest of the Royal Family."

This also was responded to in the same unequivocal manner; and then amid calls of "the sergeant," that officer, after getting his voice in tune, sang the following song:

GOD BLESS OUR DEAR PRINCESS.

There's not a grief the heart can bear
But love can soothe its pain;
There's not a sorrow or a care
It smiles upon in vain.
And *She* sends forth its brightest rays
Where darkest woes depress,
Where long wept Suffering silent prays—
God save our dear Princess!

CHORUS.

She soothes the breaking heart,
She comforts in distress;
She acts true woman's noblest part.
God save our dear Princess
She bringeth hope to weary lives
So worn by hopeless toil;
E'en Sorrow's drooping form revives
Beneath her loving smile.
Where helpless Age reluctant seeks
Its refuge from distress,

E'en there *Her* name the prayer bespeaks
God save our dear Princess!

It's not in rank or princely show
True *Manhood's* heart to win;
'Tis Love's sweet sympathetic glow
That makes all hearts akin.
Though frequent storms the State must stir
While Freedom we possess,
Our hearts may all beat true to Her,
Our own beloved Princess.

The violet gives its sweet perfume
Unconscious of its worth;
So Love unfolds her sacred bloom
And hallows sinful earth;
May God her gentle life prolong
And all her pathway bless;
Be this the nation's fervent song—
God save our dear Princess!

Although the language of a song may not always be intelligible to the unlettered hearer, the spirit and sentiment are; especially when it appeals to the emotions through the charms of music. The sergeant had a musical voice capable of deep pathos; and as the note of a bird or the cry of an animal in distress is always distinguishable from every other sound, so the pathos of poetry finds its way where its words are not always accurately understood. It was very observable, and much I thought to the sergeant's great power as a singer, that the first chorus was sung with a tone which seemed to imply that the audience was feeling its way: the second was given with more enthusiasm and vehemence: the third was thumped upon the table as though a drum were required to give full effect to the feelings of the company; while the fourth was shouted with such heartiness that mere singing seemed useless, and it developed into loud hurrahs, repeated again and again; and emphasized by the twirling of hats, the clapping of hands, and stamping of feet.

“What d’ye think o’ that?” says the Boardman.

“I’m on,” said Lazyman; “give me the shilling, sergeant, if you please?”

“So’m I,” said Saunter.

“Hooroar!” shouted the stentorian voice that had erstwhile charmed the audience with Brimstone’s sermon.

“Bravo!” said Harry.

“Look’ee here,” said Jack Outofwork, “we’ve had a werry pleasant evenin’ together, and I ain’t goin’ to part like this ’ere; no more walkin’ about looking arter jobs for me, I’m your man, sergeant.”

“Well,” said the sergeant, eyeing his company, “I didn’t expect this; a pluckier lot o’ chaps I never see; and I’m sure when the Queen sees you it’ll be the proudest moment of her life. Why, how tall do you stand, Mr. Lazyman?”

“Six foot one,” said he.

“Ha,” said the Sergeant, “I thought so. And you, Mr. Outofwork?”

“I don’t rightly know,” said Jack.

“Well,” said the sergeant, “just stand up by the side of me—ha, that will do,” he added, pretending to take an accurate survey, “I think I can squeeze you in—it will be a tight fit though.”

“I hope you can, Mr. Sergeant,” said he.

“Look ’ere,” laughed Joe; “We’ll kitch ’old of his legs and give him a stretch, won’t us, Sergeant?”

And so the bright shillings were given, and the pretty maid’s services were again called in; and she said “she never see sich a lot o’ plucky fellows in her born days;” and all were about to depart when, as the sergeant was shaking hands with Dick Devilmecare in the most pathetic and friendly manner, as though he were parting from a brother whom he had not met for years, Devilmecare’s eyes filled with tears, and he exclaimed,

“Danged if I’ll be left out of it, sergeant; give me the shillin’?”

At this moment the portly figure of Mr. Bumpkin again appeared in the doorway!

CHAPTER XXIII.

The famous Don O’Rapley and Mr. Bumpkin spend a social evening at the “Goose.”

When Mr. Bumpkin, on this memorable evening, went into Mrs. Oldtimes’ parlour to console himself after the fatigues and troubles of the day there were a cheerful fire and a comfortable meal prepared for him. Mr. O’Rapley had promised to spend the evening with him, so that they might talk over the business of the day and the prospects of the coming trial. It was a very singular coincidence, and one that tended to cement the friendship of these two gentlemen, that their tastes both inclined to gin-and-water. And this very house, as appeared from a notice on the outside, was the “noted house for Foolman’s celebrated gin.”

But as yet Mr. O’Rapley had not arrived; so after his meal Mr. Bumpkin looked into the other room to see how Joe was getting on, for he was extremely anxious to keep his “head witness” straight. “Joe was his mainstay.”

I have already related what took place, and the song that Bumpkin sang. The statement of the head witness that he was all right, and that he was up to Mr. Sergeant, to a great extent reassured Mr. Bumpkin: although he felt, keen man that he was, that that soldier was there for the purpose of “ketchin what young men he could to make sogers on ’em; he had ’eerd o’ sich things afore:” such were his thoughts as Mr. O’Rapley entered the apartment.

“Dear me, Mr. Bumpkin,” said that official, “how very cold it is! how are you, Mrs. Oldtimes? I haven’t seen you for an age.”

The Don always made that observation when strangers were present.

“Hope you’re quite well, sir,” said the landlady, with much humility.

“What’ll thee please to take, sir?” asked Bumpkin.

“Well, now, I daresay you’ll think me remarkable strange, Mr. Bumpkin, but I’m going to say something which I very very seldom indulge in, but it’s good, I believe, for indigestion. I will take a little—just a very small quantity—of gin, with some hot water, and a large lump of sugar, to destroy the alcohol.”

“Ha!” said the knowing Bumpkin; “that’s wot we call gin-and-water in our part of the country. So’ll I, Mrs. Oldtimes, but not too much hot water for I. What’ll thee smoke, sir?”

“Thank you, one of those cheroots that my lord praised so much the last time we was ’ere.”

“If you please, sir,” said the landlady, with a very good-natured smile.

“Well,” said the O’Rapley, in his patronizing manner; “and how have we got on to-day? let us hear all about it. Come, your good health, Mr. Bumkin, and success to our lawsuit. I call it *ours* now, for I really feel as interested in it as you do yourself; by-the-bye, what’s it all about, Mr. Bumpkin?”

“Well, sir, you see,” replied the astute man, “I hardly knows; it beginnd about a pig, but what it’s about now, be more un I can tell thee. I think it be salt and trespass.”

“You have not enquired?”

“No, I beant; I left un all in the hands o’ my lawyer, and I believe he’s a goodun, bean’t he?”

“Let me see; O dear, yes, a capital man—a very good man indeed, a close shaver.”

“Is ur? and that’s what I want. I wants thic feller shaved as close to his chin as may be.”

“Ah!” said O’Rapley, “and Prigg will shave him, and no mistake. Well, and how did we get on at the Mansion House? First of all, who was against

you?—Mrs. Oldtimes, I *think* I'll just take a very small quantity more, it has quite removed my indigestion—who was against you, sir?"

"Mr. Nimble; but, lor, he worn't nowhere; I had un to rights,—jest gi'e me a leetle more, missus,—he couldn't axe I a question I couldn't answer; and I believe he said as good, for I zeed un talking to the Lord Mayor; it worn't no use to question I."

"You didn't say anything about me?"

"No," answered Bumpkin, in a loud whisper; "I din't; but I did say afore I could stop the word from comin' out o' my mouth as I had a *companion*, but they didn't ketch it, except that the gentleman under the lord mayor were gwine to ax about thee, and blowed if the counsellor didn't stop un; so that be all right."

"Capital!" exclaimed the great bowler, waving his arm as if in the act of delivery; then, in a whisper, "Did they ask about the woman?"

"Noa—they doan't know nowt about thic—not a word; I was mighty plased at un, for although, as thee be aware, it be the biggest lie as ever wur heard, I wouldn't have my wife hear o' sich to save my life. She be a good wife to I an' allays have a bin; but there I thee could clear me in a minute, if need be, sir."

"Yes, but you see," said the artful Don, "if I was to appear, it would make a sensational case of it in a minute and fill all the papers."

"Would ur now? Morn't do that nuther; but, wot d'ye think, sir? As I wur leavin' the Cooart, a gemman comes up and he says, says he, 'I spoase, sir, you don't want this thing put in the papers?' How the dooce he knowed that, I can't make out, onless that I wouldn't say where I lived, for the sake o' Nancy; no, nor thee couldn't ha' dragged un out o' me wi' horses."

"Yes?" said the Don, interrogatively.

"'Well,' says I, 'no, I don't partickler want it in.' I thought I'd say that, don't thee zee (with a wink), 'cos he shouldn't think I were eager like."

"Exactly,"

“Well, this ’ere gemman says, says he, ‘It don’t matter to me, sir, whether it’s in or not, but if thee don’t want it in, I’ll keep it out, that’s all. It will pay I better p’raps to put un in.’

“‘And who med thee be, sir?’ I axed.

“‘Only the *Times*’, said the gemman, ‘that’s all.’ Then, turning to his friend, he said, ‘Come on, Jack, the gemman wants it in, so we’ll have it in, every word, and where he comes from too, and all about the gal; we know all about it, don’t us, Jack?’”

“Ha!” said the O’Rapley, blowing out a large cloud, and fixing his eye on the middle stump.

“Well,” continued Bumpkin, “thee could ha’ knocked I down wi’ a feather. How the doose they knowed where I comed from I can’t make out; but here wur I as cloase to the man as writes the *Times* as I be to thee.”

The O’Rapley nodded his head knowingly several times.

“‘Well, and how much do thee charge to keep un out?’ seys I. ‘Don’t be too hard upon me, I be only a poor man.’

“‘We have only one charge,’ says the *Times*, ‘and that is half a guinea.’

“‘Spoase we say seven and six,’ sess I.

“‘That,’ seys the *Times*, ‘wouldn’t keep your name out, and I suppose you don’t want that in?’ ‘Very well,’ I sess, takin’ out my leather bag and handin’ him the money; ‘this’ll keep un out, wool ur?’

“‘Sartainly,’ says he; and then his friend Jack says, ‘My fee be five shillings, sir.’ ‘And who be thee?’ says I. ‘I’m the *Telegraf*,’ seys he. ‘The devil thee be?’ I sess, ‘I’ve eerd tell on ee.’ ‘Largest calculation in the world,’ he says; ‘and, if thee like,’ he says, ‘I can take the *Daily Noos* and *Stanard* money, for I don’t see ’em here jist now; it’ll be five shillings apiece.’

“‘Well,’ I sess, ‘this be rum business, this; if I takes a quantity like this, can’t it be done a little cheaper?’

“‘No,’ he says; ‘we stands too high for anything o’ that sort. Thee can ’ave it or leave it.’

“‘Very well,’ I sess; ‘then, if there’s no option, there’s the money.’ And with that I handed un the fifteen shillings.

“‘Then,’ says the *Times*, ‘we’d better look sharp, Jack, or else we shan’t be in time to keep it out.’ And wi’ that they hurried off as fast as they could. I will say’t they didn’t let the grass grow under their feet.”

“And why,” enquired the Don, with an amused smile, “were you so anxious to keep it out of the *Times*? Mrs. Bumpkin doesn’t read the *Times*, does she?”

“Why, no; but then the Squoire tak it in, and when eve done wi un he lends un to the Doctor, Mr. Gossip; and when he gets hold o’ anything, away it goes to the Parish Clerk, Mr. Jeerum, and then thee med as well hire the town crier at once.”

“I see; but if you’ll excuse me, Mr. Bumpkin, I will give you a bit of information that may be of service.”

“Thankee, sir; will thee jist tak a little more to wet the tother eye like.”

“Well, really,” replied O’Rapley, “it is long past my hour of nocturnal repose.”

“What, sir? I doant ondustand.”

“I mean to say that I generally hook it off to bed before this.”

“Zackly; but we’ll ’ave another. Your leave, sir, thee was going to tell I zummat.”

“O yes,” said Mr. O’Rapley, with a wave of the hand in imitation of the Lord Chief Justice. “I was going to say that those two men were a couple of rogues.”

Mr. Bumpkin paused in the act of passing the tumbler to his lips, like one who feels he has been artfully taken in.

“You’ve been done, sir!” said Mr. O’Rapley emphatically, “that man who said he was the *Times* was no more the *Times* than you’re *Punch*.”

“Nor thic *Telegraf* feller!”

“No. And you could prosecute them. And I’ll tell you what you could prosecute them for.” Mr. Bumpkin looked almost stupified.

“I’ll tell you what these villains have been guilty of; they’ve been guilty of obtaining money by false pretences, and conspiring to obtain money by false pretences.”

“Have um?” said Bumpkin.

“And you can prosecute them. You’ve only got to go and put the matter in the hands of the police, and then go to some first-rate solicitor who attends police courts; now I can recommend you one that will do you justice. I should like to see these rascals well punished.”

“And will this fust-rate attorney do un for nothin’?”

“Why, hardly; any more than you would sell him a pig for nothing.”

“Then I shan’t prosekit,” said Mr. Bumpkin; “the devil’s in’t, I be no sooner out o’ one thing than I be into another—why I beant out o’ thic watch job yet, for I got to ’pear at the Old Bailey on the twenty-fourth.”

“O, committed for trial, was he?” exclaimed the Don.

“Sure wur ur,” said Mr. Bumpkin triumphantly—“guilty!”

Now I perceived that the wily Mr. O’Rapley did not recommend Bumpkin to obtain the services of a solicitor to conduct his prosecution in this case; and I apprehend for this reason, that the said solicitor being conscientious, would unquestionably recommend and insist that Mr. Bumpkin’s evidence at the Old Bailey should be supported by that of the Don himself. So Mr. Bumpkin was left to the tender mercies of the Public Prosecutor or a criminal tout, or the most inexperienced of “soup” instructed counsel, as the case might be, but of which matters at present I have no knowledge as I have no dreams of the future.

Then Mr. Bumpkin said, “By thy leave, worthy Mr. O’Rapley, I will just see what my head witness be about: he be a sharp lad enow, but wants a dale o’ lookin arter.”

CHAPTER XXIV.

Don O’Rapley expresses his views of the policy of the legislature in not permitting dominoes to be played in public houses.

When Mr. Bumpkin returned to the cosy parlour, his face was red and his teeth were set. He was so much agitated indeed, that instead of addressing Mr. O’Rapley, he spoke to Mrs. Oldtimes, as though in her female tenderness he might find a more sincere and sympathetic adviser.

Mr. Bumpkin was never what you would call an eloquent or fluent speaker: his Somersetshire brogue was at times difficult of comprehension. He certainly was not fluent when he said to Mrs. Oldtimes: “Why thic—there—damn un Mrs. Oldtimes if he beant gwine and never zeed zich a thing in my bornd days—”

“Why what ever in the name of goodness gracious is the matter?” asked the landlady.

“Why thic there head witness o’ mine: a silly-brained—Gor forgive me that iver I should spake so o’ un, for he wor allays a good chap; and I do b’leeve he’ve got moore sense than do any thing o’ that kind.”

“What’s the matter? what’s the matter?” again enquired Mrs. Oldtimes.

“Why he be playin’ dominoes wi thic Sergeant.”

“O,” said the landlady, “I was afraid something had happened. We’re not allowed to know anything about dominoes or card-playing in our house—the Law forbids our knowing it, Mr. Bumpkin; so, if you please, we will not talk about it—I wish to conduct my house as it always has been for the last five-and-twenty years, in peace and quietness and respectability, Mr. Bumpkin, which nobody can never say to the contrary. It was only the last

licensing day Mr. Twiddlewaddle, the chairman of the Bench, said as it were the best conducted house in Westminster.”

Now whether it was that the report of this domino playing was made in the presence of so high a dignitary of the law as Mr. O’Rapley, or from any other cause, I cannot say, but Mrs. Oldtimes was really indignant, and positively refused to accept any statement which involved the character of her establishment.

“I think,” she continued, addressing Mr. O’Rapley, “you have known this house for some time, sir.”

“I have,” said O’Rapley. “I have passed it every evening for the last ten years.”

“Ah now, to be sure—you hear that, Mr. Bumpkin. What do you think of that?”

“Never saw anything wrong, I will say that.”

“Never a game in my house, if I knows it; and what’s more, I won’t believe it until I sees it.”

“Ockelar demonstration, that’s the law,” said the Don.

Mr. Bumpkin’s excitement was absolutely merged in that of the landlady, whom he had so innocently provoked. He stared as the parties continued their wordy justification of this well-ruled household like one dreaming with his eyes open. No woman could have made more ado about her own character than Mrs. Oldtimes did respecting that of her house. But then, the one could be estimated in money, while the other possessed but an abstract value.

“I believe,” she repeated, “that cards or dominoes has never been played in my house since here I’ve been, or since the law has been what it is.”

“I be wery sorry,” said the penitent Bumpkin; “I warn’t aware I wur doing anythin’ wrong.”

“It’s unlawful, you see, to play,” said the Don; “and consequently they dursn’t play. Now, why is it unlawful? Because Public Houses is for

drinking, not for amusement. Now, sir, Drink is the largest tax-payer we've got—therefore Drink's an important Industry. Set people to work drinking and you get a good Rewenue, which keeps up the Army and Navy—the Navy swims in liquor, sir—but let these here Perducers of the Rewenue pause for the sake o' playing dominoes, or what not, and what's the consequence? You check this important industry—therefore don't by any manner of means interrupt drinking. It's an agreeable ockeption and a paying one."

"Well done, sir," said Oldtimes, from the corner of the fireplace, where he was doing his best with only one mouth and one constitution to keep up the Army and Navy. A patriotic man was Oldtimes.

"Drink," continued O'Rapley, "is the most powerful horgsilery the Government has."

"Ah!" said Mr. Bumpkin, not knowing what a horgsilery was; "now thee've gone a-head o' me, sir. Thee're a larned man, Mr. O'Rapley, and I beant much of a schollard; will thee please to tell I what a horgs—what wur it?"

"Horgsilery," said Mr. O'Rapley.

"Horsgilly—ah! so twur. Well, by thy leave, worthy sir, will thee be so kind as to tell I be it anything like a hogshead?"

"Well," said Mr. O'Rapley, "its more like a corkscrew: the taxes of the country would be bottled up as tight as champagne and you couldn't get 'em out without this corkscrew."

"But I worn't spakin' about taxes when I spak of dominoes; what I wur alludin' to wur thic Joe been drawn in to goo for a soger."

"Lor, bless you," said Mrs. Oldtimes, "many a man as good as Joe have listed before now and will again."

"Mayhap," said Bumpkin; "but he wurn't my 'ead witness and didn't work for I. Joe be my right hand man, although I keeps un down and tells un he beant fit for nothin'."

"Ha," said the Don, "he's not likely to go for a soldier, I think, if it's that good-looking young chap I saw with the kicking-straps on."

“Kickin’-straps,” said Bumpkin; “haw! haw! haw! That be a good un. Well he told I he wur up to un and I think ur be: he’ll be a clever feller if ur gets our Joe. Why Nancy ud goo amost out o’ her mind. And now, sir, will thee ’ave any moore?”

Mr. O’Rapley, in the most decisive but polite manner, refused. He had quite gone out of his way as it was in the hope of serving Mr. Bumpkin. He was sure that the thief would be convicted, and as he rose to depart seized his friend’s hand in the most affectionate manner. Anything he could do for him he was sure he would do cheerfully, at any amount of self-sacrifice—he would get up in the night to serve him.

“Thankee,” said Bumpkin; but he had hardly spoken when he was startled by the most uproarious cheers from the taproom. And then he began again about the folly of young men getting into the company of recruiting sergeants.

“Look here,” said the Don, confidentially, “take my advice—say nothing—a still tongue makes a wise head; to persuade a man not to enter the army is tantamount to advising him to desert. If you don’t mind, you may lay yourself open to a prosecution.”

“Zounds!” exclaimed Mr. Bumpkin, “it seem to me a man in Lunnon be every minit liable to a prosecution for zummat. I hope sayin’ that beant contempt o’ Coourt, sir.”

Mr. O’Rapley was silent—his head drooped towards Mr. Bumpkin in a semi-conscious manner, and he nodded three consecutive times: called for another “seroot,” lit it after many efforts, and again assuring Mr. Bumpkin that he would do all he could towards facilitating his triumph over Snooks, was about to depart, when his friend asked him, confidentially, whether he had not better be at the Old Bailey when the trial came on, in case of its being necessary to call him.

“Shurel not!” hiccupped the Don. Then he pointed his finger, and leering at Bumpkin, repeated, “Shurel not;—jus swell cll Ch. Jussiself”—which being interpreted meant, “Certainly not, you might just as well call the Chief Justice himself.”

“Pr’aps he’ll try un?” said Bumpkin.

“Noer won’t—noer won’t: Chansy Juge mos likel Massr Rolls.”

CHAPTER XXV.

In spite of all warnings, Joe takes his own part, not to be persuaded on one side or the other—affecting scene between Mr. Bumpkin and his old servant.

“Whatever can that there shoutin’ be for, Mrs. Oldtimes—they be terrible noisy.”

“O,” said the landlady, “somebody else has listed.”

“I hope it beant that silly Joe. I warned un two or three times agin thic feller.”

“There have been several to-night,” said the landlady, who had scarcely yet recovered from the insinuations against the character of her house.

“How does thee know thic, my dear lady?”

“O, because Miss Prettyface have been in and out sewin’ the colours on all the evening, that’s all. Sergeant Goodtale be the best recrootin’ sergeant ever come into a town—he’d list his own father!”

“Would ur, now?” said Bumpkin. “Beant thee afeard o’ thy husband bein’ took?”

Mrs. Oldtimes shrieked with laughter, and said she wished he would list Tom, for he wasn’t any good except to sit in the chimney corner and smoke and drink from morning to night.

“And keep up th’ Army,” growled the husband

“Ha, keep up the Army, indeed,” said Mrs. Oldtimes; “you do your share in that way, I grant.”

Now it was quite manifest that that last cheer from the taproom was the herald of the company's departure. There was a great scuffling and stamping of feet as of a general clearing out, and many "good nights." Then the big manly voice of the Sergeant said: "Nine o'clock, lads; nine o'clock; don't oversleep yourselves; we shall have chops at eight. What d'ye say to that, Mrs. Oldtimes?"

"As you please, Sergeant; but there's a nice piece of ham, if any would like that."

"Ha!" said the Sergeant; "now, how many would like ham?"

"I'se for a chop," said Joe, working his mouth as if he would get it in training.

"Right," said the Sergeant, "we'll see about breakfast in the morning. But you know, Mrs. Oldtimes, we like to start with a good foundation."

And with three cheers for the Sergeant the recruits left the house: all except Joe, who occupied his old room.

After they were gone, and while Mr. Bumpkin was confidentially conversing with the landlord in the chimney corner, he was suddenly aroused by the indomitable Joe bursting into the room and performing a kind of dance or jig, the streamers, meanwhile, in his hat, flowing and flaunting in the most audaciously military manner.

"Halloa! halloa! zounds! What be th' meaning o' all this? Why, Joe! Joe! thee's never done it, lad! O dear! dear!"

There were the colours as plain as possible in Joe's hat, and there was a wild unmeaning look in his eyes. It seemed already as if the old intimacy between him and his master were at an end. His memory was more a thing of the future than the past: he recollected the mutton chops that were to come. And I verily believe it was brightened by the dawn of new hopes and aspirations. There was an awakening sense of individuality. Hitherto he had been the property of another: he had now exercised the right of ownership over himself; and although that act had transferred him to another master, it had seemed to give him temporary freedom, and to have conferred upon him a new existence.

Man is, I suppose, what his mind is, and Joe's mind was as completely changed as if he had been born into a different sphere. The moth comes out of the grub, the gay Hussar out of the dull ploughman.

"Why, Joe, Joe," said his old master. "Thee's never gone an' listed, has thee, Joe?"

"Lookee 'ere, maister," said the recruit, taking off his hat and spreading out the colours—"Thee sees these here, maister?"

"Thee beant such a fool, Joe, I knows thee beant—thee's been well brought oop—and I knows thee beant gwine to leave I and goo for a soger!"

"I be listed, maister."

"Never!" exclaimed Mr. Bumpkin. "I wunt b'lieve it, Joe."

"Then thee must do tother thing, maister. I tellee I be listed; now, what's thee think o' that?"

"That thee be a fool," said Mr. Bumpkin, angrily; "thee be a silly-brained —."

"Stop a bit, maister, no moore o' that. I beant thy sarvant now. I be a Queen's man—I be in the Queen's sarvice."

"A pooty Queen's man thee be, surely. Why look at thic hair all down over thy face, and thee be as red as a poppy."

Now I perceived that although neither master nor man was in such a state as could be described as "intoxicated," yet both were in that semi-beatific condition which may be called sentimental.

"Lookee 'ere, maister," continued Joe.

"And lookee here," said Mr. Bumpkin, "didn't I come out to thee two or three times, and call thee out and tell 'ee to tak' heed to thic soger feller, for he wur up to no good? Did I Joe, or did I not?"

"Thee did, maister."

“Well, an’ now look where thee be; he’ve regler took thee in, thee silly fool.”

“No, he beant; for he wouldn’t ’ave I at fust, and told I to goo and ax my mither. No ses I, I’ll goo to the divil afore I be gwine to ax mither. I beant a child, I ses.”

“But thee’s fond o’ thy poor old mither, Joe; I knows thee be, and sends her a shillin’ a week out o’ thy wages; don’t thee, Joe?”

This was an awkward thrust, and pricked the lad in his most sensitive part. His under-lip drooped, his mouth twitched, and his eyes glistened. He was silent.

“Where’ll thy poor old mither get a shilling a week from noo, Joe? That’s what I wants to know.”

Joe drew his sleeve over his face, but bore up bravely withal. *He* wasn’t going to cry, not he.

“Thee beest a silly feller to leave a good ooame and nine shillin’ a week to goo a sogerin; and when thee was out o’ work, there were allays a place for thee, Joe, at the fireside: now, warnt there, Joe?”

“Lookee ’ere, maister, I be for betterin’ myself.”

“Betterin’ thyself? who put that into thy silly pate? thic sergeant, I bleeve.”

“So ur did; not by anything ur said, but to see un wi beef steaks and ingons for supper, while I doan’t ’ave a mouthful o’ mate once a week, and work like a oarse.”

“Poor silly feller—O dear, dear! whatever wool I tell Nancy and thy poor mither. What redgimen be thee in, Joe?”

“Hooroars!”

“Hooroars! hoo-devils!” and I perceived that Mr. Bumpkin’s eyes began to glisten as he more and more realized the fact that Joe was no more to him—“thee manest the oosors, thee silly feller; a pooty oosor thee’ll make!”

“I tellee what,” said Joe, whose pride was now touched, “Maister Sergeant said I wur the finest made chap he ever see.”

“That’s ow ur gulled thee, Joe.”

“Noa didn’t; I went o’ my own free will. No man should persuade I—trust Joe for thic: couldn’t persuade I to goo, nor yet not to goo.”

“That’s right,” chimed in Miss Prettyface, with her sweet little voice.

“And thee sewed the colours on; didn’t thee, Miss?”

“I did,” answered the young lady.

“Joe,” said Mr. Bumpkin, “I be mortal sorry for thee; what’ll I do wirout thy evidence? Lawyer Prigg say thee’s the most wallible witness for I.”

“Lookee ’ere, maister, ere we bin ’anging about for weeks and weeks and no forrerder so far as I can see. When thy case’ll come on I don’t bleeve no man can tell; but whensomdever thee wants Joe, all thee’ve got to do is to write to the Queen, and she’ll gie I leave.”

“O thee silly, igerant ass!” said Mr. Bumpkin; “I can’t help saying it, Joe—the Queen doan’t gie leave, it be the kernel. I know zummut o’ sogerin, thee see; I were in th’ militia farty year ago: but spoase thee be away—abraird? How be I to get at thee then?”

“Ha! if I be away in furren parts, and thy case be in the list, I doant zee—”

“Thee silly feller, thee’ll ha to goo fightin’ may be.”

“Well,” said Joe, “I loikes fightin’.”

“Thee loikes fightin’! what’s thee know about fightin’? never fit anything in thy life but thic boar-pig, when he got I down in the yard. O, Joe, I can’t bear the thought o thee goin’.”

“Noa, but Maister Sergeant says thee jist snicks off the ’eads of the enemy like snickin’ off the tops o’ beans.”

“Yes, but ow if thee gets thine snicked off?”

“Well, if mine be snicked off, it wunt be no use to I, and I doan’t care who has un when I ha’ done wi un: anybody’s welcome as thinks he can do better with un than I, or ’as moore right to un.”

“Joe, Joe, whatever’ll them there pigs do wirout thee, and thic there bull ’ll goo out of his mind—he wur mighty fond o’ thee, Joe—thee couldst do anything wi un: couldn’t ur, Joe?”

“Ha!” said the recruit; “that there bull ud foller I about anywhere, and so ur would Missis.”

“Then there be Polly!”

“Ha, that there Polly, she cocked her noase at I, maister, becos she thought I worn’t good enough; but wait till she sees me in my cloase; she wunt cock her noase at I then, I’ll warrant.”

“Well, Joe, as thee maks thy bed so thee must lie on un, lad. I wish thee well, Joe.”

“Never wronged thee, did I, maister?”

“Never; no, never.” And at this point master and man shook hands affectionately.

“Gie my love to thic bull,” said Joe. “I shall come down as soon as evir I can: I wish they’d let me bring my oarse.”

“Joe, thee ha’ had too much to drink, I know thee has; and didn’t I warn thee, Joe? Thee can’t say I didn’t warn thee.”

“Thee did, maister, I’ll allays say it; thee warned I well—but lor that there stuff as the Sergeant had, it jist shoots through thee and livins thee oop for all the world as if thee got a young ooman in thee arms in a dancin’ booth at the fair.”

“Ha, Joe, it were drink done it.”

“Noa, noa, never!—good-night, maister, and God bless thee—thee been a good maister, and I been a good sarvant. I shall allays think o’ thee and Missis, too.”

Here I saw that Mr. Bumpkin, what with his feelings and what with his gin-and-water, was well nigh overcome with emotion. Nor was it to be wondered at; he was in London a stranger, waiting for a trial with a neighbour, with whom for years he had been on friendly terms; his hard savings were fast disappearing; his stock and furniture were mortgaged; some of it had been sold, and his principal witness and faithful servant was now gone for a soldier. In addition to all this, poor Mr. Bumpkin could not help recalling the happiness of his past life, his early struggles, his rigid self-denial, his pleasure as the modest savings accumulated—not so much occasioned by the sordid desire of wealth, as the nobler wish to be independent. Then there was Mrs. Bumpkin, who naturally crossed his mind at this miserable moment in his existence—at home by herself—faithful, hardworking woman, who believed not only in her husband's wisdom, but in his luck. She had never liked this going to law, and would much rather have given Snooks the pig than it should have come about; yet she could not help believing that her husband must be right come what may. What would she think of Joe's leaving them in this way? All this passed through the shallow mind of the farmer as he prepared for bed. And there was no getting away from his thoughts, try as he would. As he lay on his bed there passed before his mind the old farm-house, with its elm tree; and the barnyard, newly littered down with the sweet smelling fodder; the orchard blossoms smiling in the morning sunshine; the pigs routing through the straw; the excited ducks and the swifter fowls rushing towards Mrs. Bumpkin as she came out to shake the tablecloth; the sleek and shining cows; the meadows dotted all over with yellow buttercups; the stately bull feeding in the distance by himself; the lazy stream that pursued its even course without a quarrel or a lawsuit; all these, and a thousand other remembrances of home, passed before the excited and somewhat distempered vision of the farmer on this unhappy night. Had he been a criminal waiting his trial he could not have been more wretched. At length he endeavoured to console himself by thinking of Snooks: tried to believe that victory over that ill-disposed person would repay the trouble and anxiety it cost him to achieve. But no, not even revenge was sweet under his present circumstances. It is always an apple of ashes at the best; but, weighed now against the comforts and happiness of a peaceful life, it was worse than ashes—it was poison.

* * * * *

Here I awoke.

“Now,” said my wife, “is it not just as I told you? I knew that artful Sergeant would enlist poor stupid Joe?”

“O,” quoth I, “have I been talking again?”

“More than ever; and I am very sorry Joe has deserted his kind master. I am afraid now he will lose his case.”

“I am not concerned about that at present; my work is but to dream, not to prophesy events. I hope Mr. Bumpkin will win, but nothing is so uncertain as the Law.”

“And why should that be? Law should be as certain as the Multiplication Table.”

“Ah,” sighed I, “but—”

“A man who brings an action must be right or wrong,” interrupted my wife.

“Yes,” said I, “and sometimes he’s both; and one judge will take one view of his case—his conduct out of Court, and his demeanour in—while another judge will take another; why, I have known a man lose his case through having a wart upon his nose.”

“Gracious!” exclaimed my wife, “is it possible?”

“Yes,” quoth I; “and another through having a twitch in his eye. Then you may have a foolish jury, who take a prejudice against a man. For instance, if a lawyer brings an action, he can seldom get justice before a common jury; and so if he be sued. A blue ribbon man on the jury will be almost sure to carry his extreme virtue to the border of injustice against a publican. Masters decide against workmen, and so on.”

“Well, Mr. Bumpkin is not a lawyer, or a publican, or a blue ribbon man, so I hope he’ll win.”

“I don’t hope anything about it,” I replied. “I shall note down what takes place; I don’t care who wins.”

“When will his case at the Old Bailey come on? I think that’s the term you use.”

“It will be tried next week.”

“He is sure to punish that wicked thief who stole his watch.”

“One would think so: much will depend upon the way Mr. Bumpkin gives his evidence; much on the way in which the thief is defended; a good deal on the ability of the Counsel for the Prosecution; and very much on the class of man they get in the jury box.”

“But the case is so clear.”

“Yes, to us who know all about it; but you have to make it clear to the jury.”

“There’s the watch found upon the man. Why, dear me, what can be clearer or plainer than that?”

“True; that’s Mr. Bumpkin’s evidence.”

“And Mr. Bumpkin saw him take it.”

“That’s Bumpkin again.”

“Then Mr. O’Rapley was with him.”

“Did you not hear that he is not to be called; the Don doesn’t want to be seen in the affair.”

“Well, I feel certain he will win. I shall not believe in trial by jury if they let that man off.”

“You don’t know what a trial at the Old Bailey or Quarter Sessions is. I don’t mean at the Old Bailey before a real Common Law judge, but a Chancery judge. I once heard a counsel, who was prosecuting a man for passing bad money, interrupt a recorder in his summing up, and ask him to tell the jury there was evidence of seven bad florins having been found in the prisoner’s boot. As guilty knowledge was the gist of the offence, this seemed somewhat important. The learned young judge, turning to the jury, said, in a hesitating manner, ‘Well, really, gentlemen, I don’t know whether

that will affect your judgment in any way; there is the evidence, and you may consider it if you please.’”

“One more thing I should like to ask.”

“By all means.”

“Why can’t they get Mr. Bumpkin’s case tried?”

“Because there is no system. In the County Court, where a judge tries three times as many cases in a day as any Superior judge, cases are tried nearly always on the day they are set down for. At the Criminal Courts, where every case is at least as important as any Civil case, everyone gets tried without unnecessary delay. In the Common Law Courts it’s very much like hunt the slipper—you hardly ever know which Court the case is in for five minutes together. Then they sit one day and not another, to the incalculable expense of the suitors, who may come up from Devonshire to-night, and, after waiting a week, go back and return again to town at the end of the following month.”

“But, now that O’Rapley has taken the matter up, is there not some hope?”

“Well, he seems to have as much power as anyone.”

“Then I hope he’ll exert it; for it’s a shame that this poor man should be kept waiting about so long. I quite feel for him: there really ought not to be so much delay in the administration of justice.”

“A dilatory administration of justice amounts too often to a denial of it altogether. It always increases the expense, and often results in absolute ruin.”

“I wonder men don’t appoint someone when they fell out to arbitrate between them.”

“They often do, and too frequently, after all the expense of getting ready for trial has been incurred, the case is at last sent to the still more costly tribunal called a reference. Many matters cannot be tried by a jury, but many can be that are not; one side clamouring for a reference in order to postpone the inevitable result; the other often obliged to submit and be defeated by mere lapse of time.”

“It seems an endless sort of business.”

“Not quite; the measure of it is too frequently the length of the purse on the one side or the other. A Railway Company, who has been cast in damages for £1,000, can soon wear out a poor plaintiff. One of the greatest evils of modern litigation is the frequency with which new trials are granted.”

“Lawyers,” said my wife, “are not apparently good men of business.”

“They are not organizers.”

“It wants such a man as General Wolseley.”

“Precisely.” And here I felt the usual drowsiness which the subject invariably produces. So I dreamed again.

CHAPTER XXVI.

Morning reflections—Mrs. Oldtimes proves herself to be a great philosopher—the departure of the recruits to be sworn in.

And as I dreamed, methought what a strange paradox is human nature. How often the night's convivialities are followed by despondent morning reflections! In the evening we grow valiant over the inspiriting converse and the inspiring glass; in the morning we are tame and calculating. The artificial gaslight disappears, and the sober, grey morning breaks in upon our reason. If the sunshine only ripened one-half the good resolves and high purposes formed at night over the social glass, what a harvest of good deeds there would be! Yes, and if the evening dissipations did not obliterate the good resolves of the morning, which we so often form as a protection against sin and sorrow, what happy creatures we should be!

Methought I looked into a piece of three-cornered glass, which was resting on a ledge of the old wall in the room where Joe was sleeping, and that I read therein the innermost thoughts of this country lad. And I saw that he awoke to a very dreadful sense of the realities of his new position; that, one after another, visions of other days passed before his mind's eye as he lay gazing at the dormer window of his narrow chamber. What a profound stillness there was! How different from the roystering glee of the previous night! It was a stillness that seemed to whisper of home; of his poor old mother; of the green sward lane that led to the old farm; of the old oak tree, where the owls lived, and ghosts were said to take up their quarters; of the stile where, of a Sunday morning, he used to smoke his pipe with Jack, and Ned, and Charley; where he had often stood to see Polly go by to church; and he knew that, notwithstanding she would not so much as look at him, he loved her down to the very sole of her boot; and would stand and contemplate the print of her foot after she had passed; he didn't know why, for there was nothing in it, after all. No, Joe, nothing in it—it was in you;

that makes all the difference. And the voice whispered to him of sunny days in the bright fields, when he held the plough, and the sly old rook would come bobbing and pecking behind him; and the little field-mouse would flit away from its turned up nest, frightened to death, as if it were smitten with an earthquake; and the skylark would dart up over his head, letting fall a song upon him, as though it were Heaven's blessing. Then the voice spoke of the noontide meal under the hedge in the warm sunshine, or in the shade of the cool spreading tree; of the horses feeding close up alongside the hedge; of the going home in the evening, and the warm fireside, and the rustic song, and of the thousand and one beloved associations that he was leaving and casting behind him for ever. But then, again, he thought of "bettering his condition," of getting on in the world, of the smart figure he should look in the eyes of Polly, who would be sure now to like him better than she liked the baker. He never could see what there was in the baker that any girl should care for; and he thought of what the Sergeant had said about asking his mother's leave. And then he pondered on the beef steaks and onions and mutton chops, and other glories of a soldier's life; so he got up with a brave, resolute heart to face the world like a man, although it was plainly visible that sorrow struggled in his eyes.

There was just one tear for old times, the one tear that showed how very human Joe was beneath all the rough incrustations with which ignorance and poverty had enveloped him.

As he was sousing his head and neck in a pail of cold water in the little backyard of the Inn, the thought occurred to him,—

"I wonder whether or no we 'gins these 'ere mutton chops for brakfast to-day or arter we're sweared in. I expects not till arter we're sweared in."

Then his head went into the pail with a dash, as if that was part of the swearing-in process. As it came out he was conscious of a twofold sensation, which it may not be out of place to describe: the sensation produced by the water, which was refreshing in the highest degree, and the sensation produced by what is called wind, which was also deliciously refreshing; and it was in this wise. Borne along upon the current of air which passed through the kitchen, there was the most odoriferous savour of fried bacon that the most luxurious appetite could enjoy. It was so

beautifully and voluptuously fragrant that Joe actually stopped while in the act of soaping his face that he might enjoy it. No one, I think, will deny that it must have been an agreeable odour that kept a man waiting with his eyes full of soap for half a minute.

“That beant amiss,” thought Joe; “I wonder whether it be for I.”

The problem was soon solved, for as he entered the kitchen with a face as bright and ruddy almost as the sun when he comes up through a mist, he saw the table was laid out for five, and all the other recruits had already assembled. There was not one who did not look well up to his resolution, and I must say a better looking lot of recruits were never seen: they were tall, well made, healthy, good-looking fellows.

Now Mrs. Oldtimes was busy at the kitchen fire; the frying-pan was doing its best to show what could be done for Her Majesty’s recruits. He was hissing bravely, and seemed every now and then to give a louder and heartier welcome to the company. As Joe came in I believe it fairly gave a shout of enthusiasm, a kind of hooray. In addition to the rashers that were frying, there was a large dish heaped up in front of the fire, so that it was quite clear there would be no lack, however hungry the company might be.

Then they sat down and every one was helped. Mrs. Oldtimes was a woman of the world; let me also state she had a deep insight into human nature. She knew the feelings of her guests at this supreme moment, and how cheaply they could be bought off at their present state of soldiering. She was also aware that courage, fortitude, firmness, and the higher qualities of the soul depend so much upon a contented stomach, that she gave every one of her guests some nice gravy from the pan.

It was a treat to see them eat. The Boardman was terrific, so was Jack. Harry seemed to have a little more on his mind than the others, but this did not interfere with his appetite; it simply affected his manner of appeasing it. He seemed to be in love, for his manner was somewhat reserved. At length the Sergeant came in, looking so cheerful and radiant that one could hardly see him and not wish to be a soldier. Then his cheery “Well, lads; good morning, lads,” was so home-like that you almost fancied soldiering consisted in sitting by a blazing kitchen fire on a frosty morning and eating fried bacon. What a spirit his presence infused into the company! He

detected at a glance the down-heartedness of Harry, and began a story about his own enlistment years ago, when the chances for a young man of education were nothing to what they are now. The story seemed exactly to fit the circumstances of the case and cheered Harry up wonderfully.

Breakfast was nearly finished when the Sergeant, after filling his pipe, said:

“Comrades, what do you say; shall I wait till you’ve quite finished?”

“No, no, Sergeant; no, no,” said all.

Oh! the fragrance of that pipe! And the multiplied fragrance of all the pipes! Then came smiling Miss Prettyface to see if their ribbons were all right; and the longing look of all the recruits was quite an affecting sight; and the genial motherly good-natured best wishes of Mrs. Oldtimes were very welcome. All these things were pleasant, and proved Mrs. Oldtimes’ philosophy to be correct—if you want to develop the higher virtues in a man, feed him.

Then came the word of command in the tone of an invitation to a pleasure party: “Now, lads, what do you say?” And off went Harry, upright as if he had been drilled; off went Bill, trying to shake off the deal boards in which he had been sandwiched for a year and a half; off went Bob as though he had found an agreeable occupation at last; off went Devilme care as though the war was only just the other side of the road; off went Jack as though it mattered nothing to him whether it was the Army or the Church; and, just as Mr. Bumpkin looked out of the parlour window, off went his “head witness,” swaggering along in imitation of the Sergeant, with the colours streaming from his hat as though any honest employment was better than hanging about London for a case to “come on.”

CHAPTER XXVII.

A letter from home.

“I wonder,” said Mrs. Oldtimes, “who this letter be for; it have been ’ere now nigh upon a week, and I’m tired o’ seein’ it.”

Miss Prettyface took the letter in her hand and began, as best she could, for the twentieth time to endeavour to decipher the address. It was very much blotted and besmeared, and presented a very remarkable specimen of caligraphy. The most legible word on it seemed “Gouse.”

“There’s nobody here of that name,” said the young lady. “Do you know anybody, Mr. Bumpkin, of the name of Gouse?”

“Devil a bit,” said he, taking the letter in his hands, and turning it over as if it had been a skittle-ball.

“The postman said it belonged here,” said Mrs. Oldtimes, “but I can’t make un out.”

“I can’t read the postmark,” said Miss Prettyface.

Mr. Bumpkin put on a large pair of glasses and examined the envelope with great care.

“I think you’ve got un upside down,” said Mrs. Oldtimes.

“Ah! so ur be,” replied the farmer, turning it over several times. “Why,” he continued, “here be a *b*—and a *u*, beant it? See if that beant a *u*, Miss, your eyes be better un mine; they be younger.”

“O yes, that’s a *u*,” said Miss Prettyface, “and an *m*.”

“And that spell *bum*.”

“But stop,” said Miss Prettyface, “here’s a *p*.”

“That’s *bump*,” said Mrs. Oldtimes; “we shall get at something presently.”

“Why,” exclaimed Bumpkin, “I be danged if I doant think it be my old ’ooman’s writin’: but I beant sure. That be the way ur twists the tail of ur *y*’s and *g*’s, I’ll swear; and lookee ’ere, beant this *k i n*?”

“I think it is,” said the maid.

“Ah, then, thee med be sure that be Bumpkin, and the letter be for I.”

“Yes,” said the young lady, “and that other word which looks more like Grouse is meant for Goose, the sign of the house.”

“Sure be un,” exclaimed Mr. Bumpkin, “and Nancy ha put Bumpkin and Goose all in one line, when ur ought to ha made two lines ov un. Now look at that, that letter might ha been partickler.”

“So it may be as it is,” said Mrs. Oldtimes; “it’s from Mrs. Bumpkin, no doubt. Aren’t you going to open it?”

“I think I wool,” said Bumpkin, turning the letter round and round, and over and over, as though there was some special private entrance which could only be discovered by the closest search. At length Mrs. Oldtimes’ curiosity was gratified, for he found a way in, and drew out the many folded letter of the most difficult penmanship that ever was subjected to mortal gaze. It was not that the writing was illegible, but that the spelling was so extraordinary, and the terms of expression so varied. Had I to interpret this letter without the aid of a dream I should have a long and difficult task before me. But it is the privilege of dreamers to see things clearly and in a moment: to live a lifetime in a few seconds, and to traverse oceans in the space of a single respiration. So, in the present instance, that which took Mr. Bumpkin, with the help of Mrs. Oldtimes and the occasional assistance of Lucy an hour to decipher, flashed before me in a single second. I ought perhaps to translate it into a more civilized language, but that would be impossible without spoiling the effect and disturbing the continuity of character which is so essential in a work made up of various actors. Mr. Bumpkin himself in his ordinary costume would be no more out of place in my Lord Mayor’s state carriage than Mrs. Bumpkin wielding the Queen’s

English in its statelier and more fashionable adornment. So I give it as it was written. It began in a bold but irregular hand, and clearly indicated a certain agitation of mind not altogether in keeping with the even temperament of the writer's daily life.

"Deer Tom" (the letter began), "I ope thee be well for it be a long time ago since thee left ere I cant mak un out wot be all this bother about a pig but Tom thee'll be glad to ear as I be doin weel the lamin be over and we got semteen as pooty lams as ever thee clapped eyes on The weet be lookin well and so be the barly an wuts thee'll be glad Tom to ear wot good luck I been avin wi sellin Mister Prigg have the kolt for twenty pun a pun more an the Squoire ofered Sam broked er in and ur do look well in Mrs. Prigg faten I met un the tother day Mr. Prigg wur drivin un an he tooked off his at jist th' sam as if I'd been a lady Missis Prigg din't see me as her edd wur turned th' tother way I be glad to tell ee we sold the wuts ten quorter these was bort by Mister Prigg and so wur the stor ten load as clane and brite as ever thee seed Mr. Prigg be a rale good customer an a nice man I wish there was moore like im it ud be the makin o' th' Parish we shal ave a nice lot o monie to dror from un at Miklemes he be the best customer we ever ad an I toold th' Squoire wen ur corled about the wuts as Mister Prigg ad ofered ten shillin a quorter for un more un ee Ur dint seem to like un an rod away but we dooant o un anythink Tom so I dont mind we must sell ware we ken mak moast monie I spose Sampson be stronger an grander than ever it's my belief an I thinks we shal do well wi un this Spring tell t' Joe not to stop out o' nites or keep bad kumpany and to read evere nite wat the Wicker told un the fust sarm an do thee read un Tom for its my bleef ur cant 'urt thee nuther."

"Humph!" said Bumpkin, "fust sarms indade. I got a lot o' time for sarms, an' as for thic Joe—lor, lor, Nancy, whatever will thee say, I wonder, when thee knows he's gone for a soger—a sarm beant much good to un now; he be done for."

And then Mr. Bumpkin went and looked out of the window, and thought over all the good news of Mrs. Bumpkin's letter, and mentally calculated that even up to this time Mr. Prigg's account would come to enough to pay the year's rent.

Going to law seemed truly a most advantageous business. Here he had got two shillings a quarter more for the oats than the Squire had offered, and a pound more for the colt. Prigg was a famous customer, and no doubt would buy the hay. And, strange to say, just as Mr. Bumpkin thought this, he happened to turn over the last page of the letter, and there he saw what was really a Postscript.

“Halloo!” says he, “my dear, here be moore on’t; lookee ’ere.”

“So there is,” answered Lucy; “let’s have a look.” And thus she read:—

“The klover cut out well it made six lode the little rik an four pun nineteen The Squoire ony offered four pun ten so in corse I let Mister Prigg ave un.”

“Well done, Nancy, thee be famous. Now, thic big rik’ll fetch moore’n thic.”

Such cheering intelligence put Mr. Bumpkin in good heart in spite of his witness’s desertion. Joe was a good deal, but he wasn’t money, and if he liked to go for a soger, he must go; but, in Mr. Bumpkin’s judgment, he would very soon be tired of it, and wish himself back at his fireside.

“Now, you must write to Mrs. Bumpkin,” said Lucy.

“Thee’ll write for I, my dear; won’t thee?”

“If you like,” said Lucy. And so, after dinner, when she had changed her dress, she proceeded to write an epistle for Mrs. Bumpkin’s edification. She had *carte blanche* to put in what she liked, except that the main facts were to be that Joe had gone for a horse soger; that he expected “the case would come on every day;” and that he had the highest opinion of the unquestioned ability of honest Lawyer Prigg.

And now another surprise awaited the patient Bumpkin. As he sat, later in the day, smoking his pipe, in company with Mrs. Oldtimes, two men, somewhat shabbily dressed, walked into the parlour and ordered refreshment.

“A fine day, sir,” said the elder of the two, a man about thirty-five. This observation was addressed to Mr. Bumpkin.

“It be,” said the farmer.

The other individual had seated himself near the fire, and was apparently immersed in the study of the *Daily Telegraph*. Suddenly he observed to his companion, as though he had never seen it before,—

“Hallo! Ned, have you seen this?”

“What’s that?” asked the gentleman called Ned.

“Never read such a thing in my life. Just listen.”

“‘A YOUNG MAN FROM THE COUNTRY.’

“EXTRAORDINARY STORY.

“A man, apparently about sixty-eight, who gave the name of Bumpkin, appeared as the prosecutor in a case under the following extraordinary circumstances. He said he was from the country, but declined to give any more particular address, and had been taken by a friend to see the Old Bailey and to hear the trials at that Court. After leaving the Central Criminal Court, he deposed, that, walking with his friend, he was accosted in the Street in the open daylight and robbed of his watch; that he pursued the thief, and when near Blackfriars Bridge met a man coming towards him; that he seized the supposed thief, and found him wearing the watch which he affirmed had been stolen. The manner and appearance of ‘the young man from the country’ excited great laughter in Court, and the Lord Mayor, in the absence of any evidence to the contrary, thought there was a *primâ facie* case under the circumstances, and committed the accused for trial to the Central Criminal Court. The prisoner, who was respectably dressed, and against whom nothing appeared to be known, was most ably defended by Mr. Nimble, who declined to put any questions in cross-examination, and did not address his Lordship. The case created great sensation, and it is expected that at the trial some remarkable and astounding disclosures will be made. ‘The young man from the country’ was very remarkably dressed: he twirled in his hand a large old-fashioned white-beaver hat with a black band round it; wore a very peculiar frock, elaborately ornamented with needlework in front and behind, while a yellow kerchief with red ends was twisted round his

neck. The countryman declined to give his town address; but a remarkable incident occurred during the hearing, which did not seem to strike either the Lord Mayor or the counsel for the defence, and that was that no appearance of the countryman's companion was put in. Who he is and to what region he belongs will probably transpire at the ensuing trial, which is expected to be taken on the second day of the next Sessions. It is obvious that while the case is *sub judice* no comments can properly be made thereon, but we are not prevented from saying that the evidence of this extraordinary 'young man from the country' will be subjected to the most searching cross-examination of one of the ablest counsel of the English Bar."

The two men looked at Mr. Bumpkin; while the latter coloured until his complexion resembled beetroot. Miss Prettyface giggled; and Mrs. Oldtimes winked at Mr. Bumpkin, and shook her head in the most significant manner.

"That's a rum case, sir," said Ned.

Silence.

"I don't believe a word of the story," said his companion.

Silence.

"Do you believe," he continued, "that that man could have been wearing that watch if he'd stole it?"

"Not I."

"Lor! won't Jemmy Nimble make mincemeat of 'im!"

Mrs. Oldtimes looked frequently towards Mr. Bumpkin as she continued her sewing, making the most unmistakeable signals that under no circumstances was he to answer. It was apparent to everyone, from Mr. Bumpkin's manner, that the paragraph referred to him.

"The best thing that chap can do," said Ned, "is not to appear at the trial. He can easily keep away."

“He won’t, you’re sure,” answered the other man; “he knows a trick worth two of that. They say the old chap deserted his poor old wife, after beating her black and blue, and leaving her for dead.”

“It be a lie!” exclaimed Bumpkin, thumping his fist on the table.

“Oh!” said Ned, “do you know anything about it, sir? It’s no odds to me, only a man can’t shut his ears.”

“P’r’aps I do and p’r’aps I doant; but it beant no bi’niss o’ thine.”

“I didn’t mean no offence, but anybody can read the paper, surely; it’s a free country. P’r’aps you’re the man himself; I didn’t think o’ that.”

“P’r’aps I be, and p’r’aps I beant.”

“And p’r’aps your name is Bumpkin?”

“And p’r’aps it beant, and what then?”

“Why, you’ve nothing to do with it, that’s all; and I don’t see why you should interfere.”

“I can’t have no quarrelling in my house,” said the landlady. “This gentleman’s nothing to do with it; he knows nothing at all about it; so, if you please, gentlemen, we needn’t say any more.”

“Oh! I don’t want to talk about it,” said Ned.

“No more do I,” chimed in his companion; “but it’s a pity that he should take up our conversation when he hasn’t anything to do with it, and his name isn’t Bumpkin, and he hasn’t lost his watch. It’s no odds to me; I don’t care, do you, Ned?”

“Not I,” said Ned; “let’s be off; I don’t want no row; anybody mustn’t open his mouth now. Good day, sir.”

And the two young men went away.

CHAPTER XXVIII.

Mr. Bumpkin determines to maintain a discreet silence about his case at the Old Bailey—Mr. Prigg confers with him thereon.

And I saw that Mr. Bumpkin's case did not come on. Day by day passed away, and still it was not in the paper. The reason, however, is simple, and need not be told to any except those of my readers who are under the impression that the expeditious administration of justice is of any consequence. It was obvious to the most simple-minded that the case could not be taken for a day or two, because there was a block in every one of the three Courts devoted to the trial of Nisi Prius actions. And you know as well as anyone, Mr. Bumpkin, that when you get a load of turnips, or what not, in the market town blocked by innumerable other turnip carts, you must wait. Patience, therefore, good Bumpkin. Justice may be slow-footed, but she is sure handed; she may be blind and deaf, but she is not dumb; as you shall see if you look into one of the "blocked Courts" where a trial has been going on for the last sixteen days. A case involving a dispute of no consequence to any person in the world, and in which there is absolutely nothing except—O rare phenomenon!—plenty of money. It was interesting only on account of the bickerings between the learned counsel, and the occasionally friendly altercations between the Bench and the Bar. But the papers had written it into a *cause célèbre*, and made it a dramatic entertainment for the beauty and the chivalry of England. So Mr. Bumpkin had still to wait; but it enabled him to attend comfortably the February sittings of the Old Bailey, where his other case was to be tried.

When Mr. Prigg read the account of the proceedings before the Lord Mayor, he was very much concerned, not to say annoyed, because he was under the impression that he ought to have been consulted. Not knowing what to do under the circumstances, he resolved, after due consideration, to get into a hansom and drive down to the "Goose." Mr. Prigg, as I have before

observed, was swift in decision and prompt in action. He had no sooner resolved to see Bumpkin than to Bumpkin he went. But his client was out; it was uncertain when he would be in. Judge of Mr. Prigg's disappointment! He left word that he would call again; he did call again, and, after much dodging on the part of the wily Bumpkin, he was obliged to surrender himself a captive to honest Prigg.

"My dear Mr. Bumpkin," exclaimed he, taking both the hands of his client into his own and yielding him a double measure of friendship; "is it possible—have you been robbed? Is it you in the paper this morning in this *very* extraordinary case?"

Bumpkin looked and blushed. He was not a liar, but truth is not always the most convenient thing, say what you will.

"I see," said Mr. Prigg; "quite so—quite so! Now *how* did this happen?"

Bumpkin still looked and blushed.

"Ah!" said Mr. Prigg; "just so. But who was this companion?"

Bumpkin muttered "A friend!"

"O! O! O!" said Mr. Prigg, drawing a long face and placing the fore-finger of his left hand perpendicularly from the tip of his nose to the top of his forehead.

"Noa," said Bumpkin, "'taint none o' that nuther; I beant a man o' that sort."

"Well, well," said Mr. Prigg, "I only thought I'd call, you know, in case there should be anything which might in any way affect our action."

Mr. Bumpkin, conscious of his moral rectitude, like all good men, was fearless: he knew that nothing which he had done would affect the merits of his case, and, therefore, instead of replying to the subtle question of his adviser, he merely enquired of that gentleman when he thought the case would be on. The usual question.

Mr. Prigg rubbed his hands and glanced his eyes as though just under his left elbow was a very deep well, at the bottom of which lay that inestimable

jewel, truth. “Really,” Mr. Bumpkin, “I expect every hour to see us in the paper. It’s very extraordinary; they have no less than three Courts sitting, as I daresay you are aware. No less than—let me see, my mind’s so full of business, I have seven cases ready to come on. Where was I? O, I know; I say there are no less than three Courts, under the continuous sittings system, and yet we seem to make no progress in the diminution of the tremendous and overwhelming mass of business that pours in upon us.”

Mr. Bumpkin said “Hem!”

“You see,” continued Mr. Prigg, “there’s one thing, we shall not last long when we do come on.”

“Shan’t ur?”

“You see there’s only one witness, besides yourself, on our side.”

“And ’eve gone for a soger,” said Mr. Bumpkin.

“A soldier!” exclaimed Prigg. “A soldier, my dear Bumpkin. No—no—you don’t say so, really!”

“Ay, sure ’ave ur; and wot the devil I be to do agin that there Snooks, as ’ll lie through a brick wall, I beant able to say. I be pooty nigh off my chump wot wi’ one thing and another.”

“Off what, sir?” enquired Mr. Prigg.

“Chump,” shouted Bumpkin.

“O, indeed, yes; dear me, you don’t say so. Well, now I’m glad I called. I must see about this. What regiment did you say he’d joined?”

“Hoosors!”

“Ha! dear me, has he, indeed?” said Mr. Prigg, noting it down in his pocket-book. “What a pity for a young man like that to throw himself away—such an intelligent young fellow, too, and might have done so well; dear me!”

“Ha,” answered Bumpkin, “there worn’t a better feller at plough nor thic there; and he could mend a barrer or a ’arrer, and turn his ’and to pooty nigh anything about t’ farm.”

“And is there any reason that can be assigned for this extraordinary conduct? Wasn’t in debt, I suppose?”

Mr. Bumpkin laughed one of his old big fireside laughs such as he had not indulged in lately.

“Debt! why they wouldn’t trust un a shoe-string. Where the devil wur such a chap as thic to get money to get into debt wi’?”

“My dear sir, we don’t want money to get into debt with; we get into debt when we have none.”

“Do ur, sir. Then if I hadn’t ’ad any money I’d like to know ’ow fur thee’d ha’ trusted I.”

“Dear me,” said Mr. Prigg, “what a very curious way of putting it! But, however, soldier or no soldier, we must have his evidence. I must see about it: I must go to the dépôt. Now, with regard to your case at the Old Bailey.”

“Well,” said Mr. Bumpkin, rather testily; “I be bound over to proserkit, and that be all I knows about un. I got to give seam evidence as I guv afore the Lord Mayor, and the Lord Mayor said as the case wur clear, and away it went for trial.”

“Indeed! dear me!”

“And I got to tak no trouble at all about un, but to keep my mouth shut till the case comes on, that’s what the pleeceman told I. I bean’t to talk about un, or to tak any money not to proserkit.”

“O dear, no,” said Mr. Prigg. “O dear, dear, no; you would be compounding a felony.” (Here Mr. Prigg made a note in his diary to this effect: —“Attending you at ‘The Goose’ at Westminster, when you informed me that you were the prosecutor in a case at the Old Bailey, and in which I advised you not, under any circumstances, to accept a compromise or money for the purpose of withdrawing from the prosecution, and strongly impressed upon you that such conduct would amount in law to a misdemeanor. Long conference with you thereon, when you promised to abide by my advice, £1 6s. 0d.”).

“Now,” said Bumpkin, “it seem to me that turn which way I wool, there be too much law, too many pitfalls; I be gettin’ sick on’t.”

“Well,” said Mr. Prigg, “we have only to do our duty in that station of life in which we are called, and we have no cause to fear. Now you know you would *not* have liked that unprincipled man, Snooks, to have the laugh of you, would you now?”

Mr. Bumpkin clenched his fist as he said, “Noa, I’d sooner lose every penny I got than thic there feller should ha’ the grin o’ me.”

“Quite so,” said the straightforward moralist. “Quite so! dear me! Well, well, I must wish you good morning, for really I am so overwhelmed with work that I hardly know which way to turn—bye, bye. I will take care to keep you posted up in—.” Here Mr. Prigg’s cab drove off, and I could not ascertain whether the posting up was to be in the state of the list or in the lawyer’s ledger.

“What a nice man!” said the landlady.

Yes, that was Mr. Prigg’s character, go where he would: “A nice man!”

CHAPTER XXIX.

The trial at the Old Bailey of Mr. Simple Simonman for highway robbery with violence—Mr. Alibi introduces himself to Mr. Bumpkin.

I next saw Mr. Bumpkin wandering about the precincts of that Grand Institution, the Old Bailey, on a drizzly morning about the middle of February, 187—, waiting to go before the Grand Jury. As the famous prison in Scotland was called the “Heart of Midlothian” so the Old Bailey may be considered the Heart of Civilization. Its commanding situation, in the very centre of a commercial population, entitles it to this distinction; for nothing is supposed to have so civilizing an influence as Commerce. I was always impressed with its beautiful and picturesque appearance, especially on a fine summer morning, during its sittings, when the sun was pouring its brightest beams on its lively portals. What a charming picture was presented to your view, when the gates being open, the range of sheds on the left met the eye, especially the centre one where the gallows is kept packed up for future use. The gallows on the one side might be seen and the stately carriages of my Lord Mayor and Sheriffs on the other! Gorgeous coachmen and footmen in resplendent liveries; magnificent civic dignitaries in elaborate liveries too, rich with gold and bright with colour, stepping forth from their carriages, amid loud cries of “Make way!” holding in their white-gloved hands large bouquets of the loveliest flowers, emblems of—what?

Crime truly has its magnificent accompaniments, and if it does not dress itself, as of old, in the rich costumes of a Turpin or a Duval, it is not without its beautiful surroundings. Here, where the channels and gutters of crime converge, is built, in the centre of the greatest commercial city in the world, the Bailey. Mr. Bumpkin wandered about for hours through a reeking unsavoury crowd of thieves and thieves’ companions, idlers of every type of blackguardism, ruffians of every degree of criminality; boys and girls

receiving their finishing lessons in crime under the dock, as they used to do only a few years ago under the gallows. The public street is given over to the enemies of Society; and Civilisation looks on without a shudder or regret, as though crime were a necessity, and the Old Bailey, in the heart of London, no disgrace.

And a little dirty, greasy hatted, black whiskered man, after pushing hither and thither through this pestiferous crowd as though he had business with everybody, but did not exactly know what it was, at length approached Mr. Bumpkin; and after standing a few minutes by his side eyeing him with keen hungry looks, began that interesting conversation about the weather which seems always so universally acceptable. Mr. Bumpkin was tired. He had been wandering for hours in the street, and was wondering when he should be called before the Grand Jury. Mr. Alibi, that was the dark gentleman's name, knew all about Mr. Bumpkin's case, his condition of mind, and his impatience; and he said deferentially:

"You are waiting to go before the Grand Jury, I suppose, sir?"

"I be," answered Bumpkin.

"Where's your policeman?" enquired Alibi.

"I doant know," said Bumpkin.

"What's his number?"

"Sev'n hunderd and sev'nty."

"O, I know," said Alibi; "why not let me get you before the Grand Jury at once, instead of waiting about here all day, and perhaps to-morrow and the next day, and the day after that; besides, the sooner you go before the Grand Jury, the sooner your case will come on; that stands to common sense, I think."

"So ur do," answered the farmer.

"You will be here a month if you don't look out. Have you got any counsel or solicitor?"

"Noa, I beant; my case be that plaain, it spaks for itself."

“Ah!” said Mr. Alibi; “they won’t always let a case speak for itself—they very often stop it—but if you can get a counsel for nothing, why not have one; that stands to reason, I think?”

“For nothing? well that be the fust time I ever eard o’ a loryer as chape as thic.”

How it could pay was the wonder to Mr. Bumpkin. And what a strange delusion it must seem to the mind of the general reader! But wait, gentle peruser of this history, you shall see this strange sight.

“If you like to have a counsel and a lawyer to conduct your case, sir, it shall not cost you a farthing, I give you my word of honour! What do you think of that?”

What could Mr. Bumpkin think of that? What a pity that he had not met this gentleman before! Probably he would have brought several actions if he had; for if you could work the machinery of the law for nothing, you would always stand to win.

“O,” said Mr. Alibi, “here is seven hundred and seventy! This gentleman wants a counsel, and I’ve been telling him he can have one, and it won’t cost him anything.”

“That’s right enough,” said the Policeman; “but it ain’t nothin’ to do with me!”

“Just step this way, sir, we’ll soon have this case on,” said Alibi; and he led the way to the back room of a public-house, which seemed to be used as a “hedge” lawyer’s office.

“Med I mak so bold, sir; be thee a loryer?”

“No,” answered Alibi, “I am clerk to Mr. Deadandgone.”

“And don’t Mr. Deadandam charge nothin’?”

“O dear, no!”

What a very nice man Mr. Deadandam must be!

“You see,” said Alibi, “the Crown pays us!”

“The Crown!”

And here Mr. Alibi slipped a crown-piece into the artfully extended palm of the policeman, who said:

“It ain’t nothin’ to do wi’ me; but the gentleman’s quite right, the Crown pays.” And he dropped the money into his leather purse, which he rolled up carefully and placed in his pocket.

“You see,” said Alibi, “I act as the Public Prosecutor, who can’t be expected to do everything—you can’t grind all the wheat in the country in one mill, that stands to common sense.”

“That be right, that’s werry good,”

“And,” continued Mr. Alibi, “the Government allows two guineas for counsel, a guinea for the solicitor, and so on, and the witnesses, don’t you see?”

“Zactly!” said Bumpkin.

“And that’s quite enough,” continued Alibi; “we don’t want anything from the prosecutor—that’s right, policeman!”

“It ain’t nothink to do wi’ me,” said the policeman; “but what this ’ere gentleman says is the law.”

“There,” said Alibi, “I told you so.”

“I spose,” said the policeman, “you don’t want me, gentlemen; it ain’t nothink to do with me?”

“Oh, no, Leary,” replied Alibi; “we don’t want you; the case is pretty straight, I suppose.”

“Oh, yes, sir; I expects it’ll be a plea of guilty. There ain’t no defence, not as I’m aware of.”

“Oh,” said Alibi, “that’s all right—keep your witnesses together, Leary—don’t be out of the way.”

“No, sir,” says Leary; “I thinks I knows my dooty.”

And with this he slouched out of the room, and went and refreshed himself at the bar.

In two or three minutes the policeman returned, and was in the act of drawing the back of his hand across his mouth, when Alibi said:

“Yes?”

“Beg pardin, sir; but there’s another gentleman wants to see you—I thinks he wants you to defend ---; but it ain’t nothink to do wi’ me, sir.”

“Very good,” answered Alibi, “very good; now let me see—”

“You got the Baker’s case?” said Leary.

“Yes,” said Alibi; “O, yes—embezzlement.”

Everything was thus far satisfactorily settled, and Mr. Bumpkin’s interests duly represented by Mr. Deadandgone, an eminent practitioner. No doubt the services of competent counsel would be procured, and the case fully presented to the consideration of an intelligent jury.

Who shall say after this that the Old Bailey is *not* the Heart of Civilization?

I pass over the preliminary canter of Mr. Bumpkin before the Grand Jury; the decision of that judicial body, the finding of the true bill, the return of the said bill in Court, the bringing up of the prisoner for arraignment, and the fixing of the case to be taken first on Thursday in deference to the wishes of Mr. Nimble. I pass by all those preliminary proceedings which I have before attempted to describe, and which, if I might employ a racing simile, might be compared to the saddling of Mr. Bumpkin in the paddock, where, unquestionably, he was first favourite for the coming race, to be ridden by that excellent jockey, Alibi; and come at once to the great and memorable trial of Regina on the prosecution of Thomas Bumpkin against Simon Simpleman for highway robbery with violence.

As the prisoner entered the dock there was a look of unaffected innocence in his appearance that seemed to make an impression on the learned Judge, Mr. Justice Technical, a recently appointed Chancery barrister. I may be allowed to mention that his Lordship had never had any experience in Criminal Courts whatever: so he brought to the discharge of his important

duty a thoroughly unprejudiced and impartial mind. He did not suspect that a man was guilty because he was charged: and the respectable and harmless manner of the accused was not interpreted by his Lordship as a piece of consummate acting, as it would be by some Judges who have seen much of the world as it is exhibited in Criminal Courts.

Many ladies of rank were ushered in by the Sheriff, all looking as smiling and happy as if they were about to witness the performance of some celebrated actress for the first time; they had fans and opera-glasses, and as they took their places in the boxes allotted to rank and fashion, there was quite a pleasant sensation produced in Court, and they attracted more notice for the time being than the prisoners themselves.

Now these ladies were not there to witness the first piece, the mere trial of Simpleman for highway robbery, although the sentence might include the necessary brutality of flogging. The afterpiece was what they had come to see—namely, a fearful tragedy, in which two men at least were sure of being sentenced to death. This is the nearest approach to shedding human blood which ladies can now witness in this country; for I do not regard pigeon slaughtering, brutal and bloodthirsty as it is, as comparable to the sentencing of a fellow-creature to be strangled. And no one can blame ladies of rank if they slake their thirst for horrors in the only way the law now leaves open to them. The Beauty of Spain is better provided for. What a blessed thing is humanity!

It is due to Mr. Newboy, the counsel for the prosecution in the great case of *Regina v. Simpleman*, to say that he had only lately been called to the Bar, and only “*instructed*,” as the prisoner was placed in the dock.

Consequently, he had not had time to read his brief. I do not know that that was a disadvantage, inasmuch as the brief consisted in what purported to be a copy of the depositions so illegibly scrawled that it would have required the most intense study to make out the meaning of a single line.

Mr. Newboy was by no means devoid of ability; but no amount of ability would give a man a knowledge of the facts of a case which were never communicated to him. In its simplicity the prosecution was beautifully commonplace, and five minutes’ consideration would have been sufficient to enable counsel to master the details and be prepared to meet the defence.

Alas, for the lack of those five minutes! The more Mr. Newboy looked at the writing (?) the more confused he got. All he could make out was his own name, and *Reg. v. Somebody* on the back.

Now it happened that Mr. Alibi saw the difficulty in which Mr. Newboy was, and knowing that his, Alibi's, clerk, was not remarkable for penmanship, handed to the learned counsel at the last moment, when the last juryman was being bawled at with the "well and truly try," a copy of the depositions.

The first name at the top of the first page which caught the eye of the learned counsel, was that of the prisoner; for the depositions commence in such a way as to show the name of the prisoner in close proximity to, if not among the names of witnesses.

So Mr. Newboy, in his confusion, taking the name of the prisoner as his first witness, shouted out in a bold voice, to give himself courage, "*Simon Simpleman.*"

"'Ere!" answered the prisoner.

The learned Judge was a little astonished; and, although, he had got his criminal law up with remarkable rapidity, his lordship knew well enough that you cannot call the prisoner as a witness either for or against himself. Mr. Newboy perceived his mistake and apologised. The laugh, of course, went round against him; and when it got to Mr. Nimble, that merry gentleman slid it into the jury-box with a turn of his eyes and a twist of his mouth. The counsel for the prosecution being by this time pretty considerably confused, and not being able to make out the name of a single witness on the depositions (there were only two) called out, "The Prosecutor."

"Here, I be," said a voice from the crowd in a tone which provoked more laughter, all of which was turned into the jury-box by Mr. Nimble. "Here I be" struggled manfully with all his might and main to push through the miscellaneous crowd of all sorts and conditions that hemmed him in. All the arrangements at the Old Bailey, like the arrangements at most Courts, are expressly devised for the inconvenience of those who have business there.

All eyes were turned towards "*Here I be*," as, after much pushing and struggling as though he were in a football match, he was thrust headlong forward by three policemen and the crier into the body of the Court. There he stood utterly confounded by the treatment he had undergone and the sight that presented itself to his astonished gaze. Opera-glasses were turned on him from the boxes, the gentlemen on the grand tier strained their necks in order to catch a glimpse of him; the pit, filled for the most part with young barristers, was in suppressed ecstasies; while the gallery, packed to the utmost limit of its capacity, broke out into unrestrained laughter. I say, unrestrained; but as the Press truly observed in the evening papers, "it was immediately suppressed by the Usher."

Mr. Bumpkin climbed into the witness-box (as though he were going up a rick), which was situated between the Judge and the jury. His appearance again provoked a titter through the Court; but it was not loud enough to call for any further measure of suppression than the usual "Si—lence!" loudly articulated in two widely separated syllables by the crier, who had no sooner pronounced it than he turned his face from the learned Judge and pressed his hand tightly against his mouth, straining his eyes as if he had swallowed a crown-piece. Mr. Bumpkin wore his long drab frock overcoat, with the waist high up and its large flaps; his hell-fire waistcoat, his trousers of corduroy, and his shirt-collar, got up expressly for the occasion as though he had been a prime minister. The ends of his neckerchief bore no inconsiderable likeness to two well-grown carrots. In his two hands he carefully nursed his large-brimmed well-shaped white beaver hat; a useful article to hold in one's hands when there is any danger of nervousness, for nothing is so hard to get rid of as one's hands. I am not sure that Mr. Bumpkin was nervous. He was a brave self-contained man, who had fought the world and conquered. His maxim was, "right is right," and "wrong is no man's right." He was of the upright and down-straight character, and didn't care "for all the counsellors in the kingdom." And why should he? His cause was good, his conscience clear, and the story he had to tell plain and "straightforrard" as himself. No wonder then that his face beamed with a good old country smile, such as he would wear at an exhibition where he could show the largest "turmut as ever wur growed." That was the sort of smile he turned upon the audience. And as the audience looked at the

“turmut,” it felt that it was indeed the most extraordinary specimen of field culture it had ever beheld, and worthy of the first prize.

“What is your name?” inquired Mr. Newboy; “I mustn’t lead.”

“Bumpkin, and I bearned asheamed on ’im,” answered the bold farmer.

“Never mind whether you are ashamed or not,” interposed Mr. Nimble; “just answer the question.”

“You must answer,” remarked the learned Judge, “not make a speech.”

“Zackly, sir,” said Bumpkin, pulling at his hair.

Another titter. The jury titter and hold down their heads. Evidently there’s fun in the case.

Then Mr. Newboy questioned him about the occurrence; asked him if he recollected such a day, and where he had been, and where he was going, and a variety of other questions; the answer to every one of which provoked fresh laughter; until, after much floundering on the part of both himself and Mr. Newboy, as though they were engaged in a wrestling match, he was asked by the learned Judge “to tell them exactly what happened. Let him tell his own story,” said the Judge.

“Ha!” said everybody; “now we shall hear something!”

“I wur a gwine,” began Bumpkin, “hoame—”

“That’s not evidence,” said Mr. Nimble.

“How so?” asks the Judge.

“It doesn’t matter where he was going to, my lord, but where he was!”

“Well, that is so,” says the Judge; “you mustn’t tell us, Mr. Bumpkin, whither you were going, but where you were!”

Bumpkin scratched his head; there were too many where’s for him.

“Can’t yon tell us,” says Mr. Newboy, “where you were?”

“Where I were?” says Bumpkin.

A roar of laughter greeted this statement. Mr. Nimble turning it into the jury-box like a flood.

“I wur in Lunnun—”

“Yes—yes,” says his counsel; “but what locality?”

You might just as well have put him under a mangle, as to try to get evidence out of him like that.

“Look,” says the Judge, “attend to me; if you go on like that, you will not be allowed your expenses.”

“What took place?” asks his counsel; “can’t you tell us, man?”

“Why the thief cotch—”

“I object,” says Mr. Nimble; “you mustn’t call him a thief; it is for the jury, my lord, to determine that.”

“That is so,” says my lord; “you mustn’t call him a thief, Mr. Bumpkin.”

“Beg pardon, your lord; but ur stole my watch.”

“No—no,” says Mr. Newboy; “took your watch.”

“An if ur took un, ur stole un, I allows,” says Bumpkin; “for I never gin it to un.”

There was so much laughter that for some time nothing further was said; but every audience knows better than to check the source of merriment by a continued uproar; so it waited for another supply.

“You must confine yourself,” says the Judge, “to telling us what took place.”

“I’ll spak truth and sheam t’ devil,” says Bumpkin.

“Now go on,” says Newboy.

“The thief stole my watch, and that be t’ plain English on ’t.”

“I shall have to commit you to prison,” says the Judge, “if you go on like that; remember you are upon your oath, and it’s a very serious thing—serious for you and serious for the young man at the bar.”

At these touching words, the young man at the bar burst out crying, said “he was a respectable man, and it was all got up against him;” whereupon Mr. Nimble said “he must be quiet, and that his lordship and the gentlemen in the box would take care of him and not allow him to be trampled on.”

“You are liable,” said the Judge, “to be prosecuted for perjury if you do not tell the truth.”

“Well, then, your lord, if a man maun goo to prison for losin’ his watch, I’ll goo that’s all; but that ere man stole un.”

Mr. Newboy: “He took it, did he?”

“I object,” said Mr. Nimble; “that is a leading question.”

“Yes,” said the Judge; “I think that is rather leading,” Mr. Newboy; “you may vary the form though, and ask him whether the prisoner stole it.”

“Really, my lord,” said Mr. Nimble, “that, with very great respect, is as leading as the other form.”

“Not quite, I think, Mr. Nimble. You see in the other form, you make a positive assertion that he did steal it; in this, you merely ask the question.”

And I saw that this was a very keen and subtle distinction, such as could only be drawn by a Chancery Judge.

“Would it not be better, my lord, if he told us what took place?”

“That is what he is doing,” said the Judge; “go on, witness.”

“I say as ’ow thic feller comed out and hugged up against I and took ’t watch and runned away. I arter’d him, and met him coomin’ along wi’ it in ’s pocket; what can be plaainer an thic?”

There was great laughter as Mr. Bumpkin shook his head at the learned counsel for the defence, and thumped one hand upon the ledge in front of him.

“That will do,” said Mr. Newboy, sitting down triumphantly.

Then the counsel for the defence arose, and a titter again went round the Court, and there was a very audible adjustment of persons in preparation for the treat that was to come.

“May the prisoner have a seat, my lord?”

“Oh, certainly,” said his lordship; “let an easy-chair be brought immediately.”

“Now then, Mr. Bumpkin, or whatever your name is, don’t lounge on the desk like that, but just stand up and attend to me. Stand up, sir, and answer my questions,” says Mr. Nimble.

“I be standin’ oop,” said Bumpkin, “and I can answer thee; ax away.”

“Just attend,” said the Judge. “You must not go on like that. You are here to answer questions and not to make speeches. If you wish those gentlemen to believe you, you must conduct yourself in a proper manner. Remember this is a serious charge, and you are upon your oath.”

Poor Bumpkin! Never was there a more friendless position than that of Ignorance in the witness-box.

“Just attend!” repeated Mr. Nimble; this was a favourite expression of his.

“How many aliases have you?”

“Ow many who?” asked Bumpkin. (Roars of laughter.)

“How many different names?”

“Naames! why I s’pose I got two, like moast people.”

“How many more?”

“None as iver I knowed of.”

“Wait a bit, we shall see. Now, sir, will you swear you have never gone by the name of Pumpkin?”

Loud laughter, in which the learned judge tried not to join.

“Never!”

“Do you swear it?”

“I do.”

“My lord, would you kindly let me see the depositions. Now look here, sir, is that your signature?”

“I ain’t much of a scollard.”

“No; but you can make a cross, I suppose.”

“Ay, I can make a cross, or zummut in imitation as well as any man.”

“Look at that, is that your cross?”

“It look like un.”

“Now then, sir; when you were before the Lord Mayor, I ask you, upon your oath, did you not give the name of Pumpkin?”

“Noa, I din’t!”

“Was this read over to you, and were you asked if it was correct?”

“It med be.”

“Med be; but wasn’t it? You know it was, or, don’t you?”

Bumpkin seemed spiked, so silent; seemed on fire, so red.

“Well, we know it was so. Now, my lord, I call your lordship’s attention to this remarkable fact; here in the depositions he calls himself Pumpkin.”

His lordship looks carefully at the depositions and says that certainly is so.

Mr. Newboy rises and says he understands that it may be a mistake of the clerk’s.

Judge: “How can you say that, Mr. Newboy, when it’s in his affidavit?”

(Clerk of Arraignment whispers to his lordship.) “I mean in his depositions, as I am told they are called in this Court; these are read over to him by the

clerk, and he is asked if they are correct.” Shakes his head.

(So they began to try the prisoner, not so much on the merits of the case as on the merits of the magistrate’s clerk.)

“You certainly said your name was Pumpkin,” said the Judge, “and what is more you swore to it.”

(“They’ve got the round square at work,” muttered a voice in the gallery.)

Mr. Nimble: “Now just attend; have you ever gone so far as to say that this case did not refer to you because your name was not Bumpkin?”

The witness hesitates, then says “he b’leaves not.”

“Let those two gentlemen, Mr. Crackcrib and Mr. Centrebit, step forward.”

There was a bustle in Court, and then, with grinning faces, up stepped the two men who had visited Mr. Bumpkin at the “Goose” some days before.

“Have you ever seen these gentlemen before?” asks the learned counsel.

The gentlemen alluded to looked up as if they had practised it together, and both grinned. How can Mr. Bumpkin’s confusion be described? His under jaw fell, and his head drooped; he was like one caught in a net looking at the fowler.

The question was repeated, and Mr. Bumpkin wiped his face and returned his handkerchief into the depths of his hat, into which he would have liked to plunge also.

Question repeated in a tone that conveyed the impression that witness was one of the biggest scoundrels in the Heart of Civilization.

“You must really answer,” says the Judge.

“They be put on, your lordship.”

“No, no,” says the counsel, “you mustn’t say that, I’ll have an answer. Have you seen them before?”

“Yes,” muttered the prosecutor.

“Let them go out of Court. Now then,” says the counsel, extending his right hand and his forefinger and leaning towards the witness, “have—you—not—told—they—that—this case was nothing to do with you as your name wasn’t Bumpkin?”

“My lord,” says the witness.

“No, no; you must answer.”

The witness stood confounded.

“You decline to answer,” says the counsel. “Very well; now then, let me see if you will decline to answer this. When you were robbed, as you say, was anybody with you?”

“Be I obligated to answer, my lord?”

“I think you must answer,” said his lordship.

“There wur.”

“Who was it?”

“A companion, I s’poase.”

“Yes, but who was he? what was his name?”

No answer.

“You’d rather not answer; very well. Where does he live?”

“I doant know. Westmunster, I believe.”

“Is he here?”

“Not as I knows on.”

(“What a lark this is,” chuckled the Don, as he sat in the corner of the gallery peeping from behind the front row.)

“Did he see the watch taken?”

“He did, leastways I s’poase so.”

“And has never appeared as a witness?”

“How is that?” asks his lordship.

“He axed me, m’lud, not to say as ’ow he wur in it.”

Judge shakes his head. Counsel for the prisoner shakes his head at the jury, and the jury shake their heads at one another.

Now in the front row of the gallery sat five young men in the undress uniform of the hussars: they were Joe and his brother recruits come to hear the famous trial. At this moment Mr. Bumpkin in sheer despair lifted his eyes in the direction of the gallery and immediately caught sight of his old servant. He gave a nod of recognition as if he were the only friend left in the wide world of that Court of Justice.

“Never mind your friends in the gallery,” said Mr. Nimble; “I dare say you have plenty of them about; now attend to this question:”—Yes, and a nice question it was, considering the tone and manner with which it was asked. “At the moment when you were being robbed, as you say, did a young woman with a baby in her arms come up?”

The witness’s attention was again distracted, but this time by no such pleasing object as on the former occasion. He was dumbfounded; a sparrow facing an owl could hardly be in a greater state of nervousness and discomfiture: for down in the well of the Court, a place where he had never once cast his eyes till now, with a broad grin on his coarse features, and a look of malignant triumph, sat the *fiendlike Snooks*! His mouth was wide open, and Bumpkin found himself looking down into it as though it had been a saw-pit. By his side sat Locust taking notes of the cross-examination.

“What are you looking at, Mr. Bumpkin?” inquired the learned counsel.

Mr. Bumpkin started.

“What are you looking at?”

“I wur lookin’ doun thic there hole in thic feller’s head,” answered Bumpkin.

Such a roar of laughter followed this speech as is seldom heard even in a breach of promise case, where the most touching pathos often causes the greatest amusement to the audience.

“What a lark!” said Harry.

“As good as a play,” responded Dick.

“I be sorry for the old chap,” said Joe; “they be givin’ it to un pooty stiff.”

“Now attend,” said the counsel, “and never mind the hole. Did a young woman with a baby come up?”

“To the best o’ my b’leef.”

“Don’t say to the best of your belief; did she or not?”

“He can only speak to the best of his belief,” said the Judge.

(“There’s the round square,” whispered O’Rapley.)

“Did she come up then to the best of your belief?”

“Yes.”

“And—did—she—accuse—you—to the best of your belief of assaulting her?”

“I be a married man,” answered the witness. (Great laughter.)

“Yes, we know all about you; we’ll see who you are presently. Did she accuse you, and did you run away?”

“I runned arter thic feller.”

“No, no; did she accuse you?”

“She might.”

The learned counsel then sat down with the quickest motion imaginable, and then the policeman gave his evidence as to taking the man into custody; and produced the huge watch. Mr. Bumpkin was recalled and asked how long he had had it, and where he bought it; the only answers to which were

that he had had it five years, and bought it of a man in the market; did not know who he was or where he came from; all which answers looked very black against Mr. Bumpkin. Then the policeman was asked to answer this question—yes or no. “Did he know the prisoner?” He said “No.”

Mr. Nimble said to the jury, “Here was a man dressing himself up as an old man from the country (laughter) prowling about the streets of London in company with an associate whose name he dared not mention, and who probably was well-known to the police; here was this countryman actually accused of committing an assault in the public streets on a young woman with a baby in her arms: he runs away as hard as his legs will carry him and meets a man who is actually wearing the watch that this Bumpkin or Pumpkin charges him with stealing. He, the learned counsel, would call witness after witness to speak to the character of his client, who was an engraver (I believe he was an engraver of bank notes); he would call witness after witness who would tell them how long they had known him, and how long he had had the watch; and, curiously enough, such curious things did sometimes almost providentially take place in a Court of Justice, he would call the very man that poor Mr. Simpleman had purchased it of five years ago, when he was almost, as you might say, in the first happy blush of boyhood (that ‘blush of boyhood’ went down with many of the jury who were fond of pathos); let the jury only fancy! but really would it be safe—really would it be safe, let him ask them upon their consciences, which in after life, perhaps years to come, when their heads were on their pillows, and their hands upon their hearts, (here several of the jury audibly sniffed), would those consciences upbraid, or would those consciences approve them for their work to-day? would it be safe to convict after the exhibition the prosecutor had made of himself in that box, where, he ventured to say, Bumpkin stood self-condemned before that intelligent jury.”

Here the intelligent jury turned towards one another, and after a moment or two announced, through their foreman (who was a general-dealer in old metal, in a dark street over the water), that if they heard a witness or two to the young man’s character that would be enough for them.

Witnesses, therefore, were called to character, and the young man was promptly acquitted, the jury appending to their verdict that he left the Court

without a stain upon his character.

“Bean’t I ’lowed to call witnesses to charickter?” asks the Prosecutor.

“Oh, no,” replied Mr. Nimble; “we know your character pretty well.”

“What’s that?” inquired the Judge.

“He wants to know, my lord,” says Mr. Nimble, laughing, “if he may call witnesses to character!”

“Oh dear, no,” says the Judge; “you were not being tried.”

Now many persons might have been of a different opinion from his lordship on this point. Snooks for one, I think; for he gave a great loud vulgar haw! haw! haw! and said, “I could ha’ gien him a charakter.”

“Si-lence!” said the Usher.

“May the prisoner have his watch, my lord?” asks Mr. Nimble.

“O, yes,” said his lordship, “to be sure. Give the prisoner his watch.”

“*His* watch,” groaned a voice.

CHAPTER XXX.

Mr. Alibi is stricken with a thunderbolt—interview with Horatio and Mr. Prigg.

The “round square,” as the facetious Don called the new style of putting the round judicial pegs into the square judicial holes, had indeed been applied with great effect on this occasion; for I perceived that Mr. Alibi, remarkable man, was not only engaged on the part of the Crown to prosecute, but also on that of the prisoner to defend. And this fact came to my knowledge in the manner following:

When Mr. Bumpkin got into the lower part of that magnificent pile of buildings which we have agreed to call the Heart of Civilisation, he soon became the centre of a dirty mob of undersized beings who were anxious to obtain a sight of him; and many of whom were waiting to congratulate their friend, the engraver. Amidst the crowd was Mr. Alibi. That gentleman had no intention of meeting Mr. Bumpkin any more, for certain expenses were due to him as a witness, and it had long been a custom at the Old Bailey, that if the representative of the Crown did not see the witnesses the expenses due to them would fall into the Consolidated Fund, so that it was a clear gain to the State if its representative officers did not meet the witnesses. On this occasion, however, Mr. Alibi ran against his client accidentally, and being a courteous gentleman, could not forbear condoling with him on the unsuccessful termination of his case.

“You, see,” began Mr. Alibi, “I was instructed so late—really, the wonder is, when gentlemen don’t employ a solicitor till the last moment, how we ever lay hold of the facts at all. Now look at your case, sir. Yes, yes, I’m coming—bother my clerks, how they worry—I’ll be there directly.”

“But thic feller,” said Mr. Bumpkin, “who had my case din’t know nowt about it. I could ha’ done un better mysel.”

“Ah, sir; so we are all apt to think. He’s a most clever man, that—a very rising man, sir.”

“Be he?” said Bumpkin.

“Why, do you know, sir,” continued Mr. Alibi, “he was very great at his University.”

“That bean’t everything, though, by a long way.”

“No, sir, granted, granted. But he was Number Four in his boat; and the papers all said his feathering was beautiful.”

“A good boatman, wur he?”

“Magnificent, sir; magnificent!”

“Then he’d better keep a ferry; bean’t no good at law.”

“Ah! I am afraid you are a little prejudiced. He’s a very learned man.”

“I wish he’d larned to open his mouth. Why, I got a duck can quack a devilish sight better un thic feller can talk.”

“Ha, how d’ye do, Mr. Swindle?” said a shabby-looking gentleman, who came up at this moment.

“Excuse me, sir; but you have the advantage of me,” said Alibi, winking.

“Dear me, how very strange, I thought you were Mr. Wideawake’s representative.”

“Ah!” said Mr. Alibi, laughing, “we are often taken for brothers—and yet, would you believe me, there is no relationship.”

“No?” said the gentleman.

“None, whatever. I think you’ll find him in the Second Court, if not, he’ll be there in a short time. I saw him only just now.”

That is how I learned that Mr. Alibi represented the Crown and Mr. Deadandgone for the prosecutor; also the prisoner, and Mr. Wideawake for the defence. Clever man!

“Now,” said Mr. Bumpkin, “Can’t un get a new trial?”

“I fear not,” said Alibi; “but I should not be in the least surprised if that Wideawake, who represented the prisoner, brought an action against you for false imprisonment and malicious prosecution.”

“What, thic thief?”

“Ah, sir—law is a very deep pit—it’s depth is not to be measured by any moral plummet.”

“Doan’t ’zacly zee’t.”

“Well, it’s this,” said Mr. Alibi. “Whether you’re right or whether you’re wrong, if he brings an action you must defend it—it’s not your being in the right will save you.”

“Then, what wool?” asked Mr. Bumpkin.

Mr. Alibi did not know, unless it was instructing him in due time and not leaving it to the last moment. That seemed the only safe course.

Mr. Bumpkin took off his hat, drew out his handkerchief, and wiped the perspiration from his forehead. Then he breathed heavily. Now at this moment a strange phenomenon occurred, not to be passed over in this truthful history. Past Mr. Bumpkin’s ear something shot, in appearance like a human fist, in velocity like a thunderbolt, and unfortunately it alighted full on the nose and eye of the great Mr. Alibi, causing that gentleman to reel back into the arms of the faithful thieves around. I cannot tell from what quarter it proceeded, it was so sudden, but I saw that in the neighbourhood whence it came stood five tall hussars, and I heard a voice say:

“Now, look at that. Come on, Maister, don’t let us git into no row.”

Mr. Bumpkin, with the politeness of his nature, said:

“Good marnin’, sir,” and retired.

And thus thought the unfortunate prosecutor: “This ’ere country be all law, actions grows out o’ actions, like that ’ere cooch that runs all over everywhere’s.” And then he saw the five recruits strutting along with their

caps at the side of their heads, the straps across their chins, their riding-whips under their arms, and walking with such a swagger that one would have thought they had just put down a rebellion, or set up a throne.

It was some time before, in the confusion of his mind, the disappointed Bumpkin could realize the fact that there was any connection between him and the military. But as he looked, with half-closed eyes, suddenly the thought crossed his mind: "Why, that be like our Joe—that middle un."

And so it was: they were walking at a fastish pace, and as they strutted along Joe seemed to be marching away with the whole farm and with all the pleasures of his past life. Even Mrs. Bumpkin herself, in some extraordinary manner, seemed to be eloping with him. Why was it? And now, despondent, disappointed and humiliated, with his blood once more up, poor old Bumpkin bethought himself seriously of his position. For weeks he had been waiting for his case to "come on"; weeks more might pass idly away unless he made a stir. So he would call at the office of Mr. Prigg. And being an artful man, he had a reason for calling without further delay. It was this: his desire to see Prigg before that gentleman should hear of his defeat. Prigg would certainly blame him for not employing a solicitor, or going to the Public Prosecutor. So to Prigg's he went about three o'clock on that Thursday afternoon. I do not undertake to describe furniture, so I say nothing of Prigg's dingy office, except this, that if Prigg had been a spider, it was just the sort of corner in which I should have expected him to spin his web. Being a man of enormous practice, and in all probability having some fifty to sixty representatives of county families to confer with, two hours elapsed before Mr. Bumpkin could be introduced. The place, small as it was, was filled with tin boxes bearing, no doubt, eminent names. Horatio was busy copying drafts of marriage settlements, conveyances, and other matters of great importance. He had little time for gossip because his work seemed urgent, and although he was particularly glad to see Mr. Bumpkin, yet being a lad of strict adherence to duty, he always replied courteously, but in the smallest number of words to that gentleman's questions.

"Will ur be long?" asked the client; "I don't think so," said Horatio.

Then in a whisper, asked Mr. Bumpkin, “How does thee think, sir, we shall get on: win, shan’t us?”

Horatio just raised his face from the paper and winked, as though he were conveying a valuable secret.

“Have ur heard anythink, sir?”

Another artful wink.

“Thee know’s zummat, I knows thee do.”

Another artful wink.

“Thee can tell I, surely? I wunt let un goo no funder.”

Horatio winked once more, and made a face at the door where the great Prigg was supposed to be.

“Ain’t give in, ave ur?”

Horatio put his finger in his mouth and made a popping noise as he pulled it out.

“What the devil does thee mean, lad? there be zummat up, I’ll swear.”

“Hush! hush!”

“Now, look here,” said Bumpkin, taking out his purse; “thee beest a good chap, and writ out thic brief, didn’t thee? I got zummat for thee;” and hereupon he handed Horatio half-a-crown.

The youth took the money, spun it into the air, caught it in the palm of his hand, spat on it for good luck, and put it in his pocket

“I’ll have a spree with that,” said he, “if I never do again.”

“Be careful, lad,” said Bumpkin, “don’t fool un away.”

“Not I,” said Horatio; “I’m on for the Argille tonight, please the pigs.”

“Be thic a place o’ wusship” said Bumpkin, laughing.

“Not exactly,” answered Horatio; “it’s a place where you can just do the gentleman on the cheap, shoulder it with noblemen’s sons, and some of the highest. Would you like to go now, just for a lark? I’m sure you’d like it.”

“Not I,” said the client; “this ’ere Lunnun life doan’t do for I.’”

“Yes; but this is a nice quiet sort of place.”

“Gals, I spoase.”

“Rather; I believe you my boy; stunners too.”

“Thee be too young, it’s my thinking.”

“Well, that’s what the Governor says; everybody says I’m too young; but I hope to mend that fault, Master Bumpkin, if I don’t get the better of any other.”

“I wish I wur as old in the ’ead; but tell I, lad, hast thee ’eard anything? Thee might just as well tell I; it wunt goo no funder.”

Horatio put his finger to his nose and made a number of dumb signs, expressive of more than mere words could convey.

“Danged if I can mak’ thee out,” said Bumpkin.

“You recollect that ride we had in the gig.”

“Ha, now it’s coming,” thought he; “I shall have un now,” so he answered: “Well, it wur nice, wurn’t ur?”

“Never enjoyed myself more in my life,” rejoined Horatio; “what a nice morning it was!”

“Beautiful!”

“And do you recollect the rum and milk?”

Mr. Bumpkin remembered it.

“Well, I believe that rum and milk was the luckiest investment you ever made. Hallo! there’s the bell—hush, *mither woy!*”

“Dang thee!” said Bumpkin, “thee’s got un;” and he followed the youthful clerk into Mr. Prigg’s room.

There sat that distinguished lawyer with his respectable head, in his easy chair, much worn, both himself and the chair, by constant use. There sat the good creature ready to offer himself up on the altar of Benevolence for the good of the first comer. His collar was still unruffled, so was his temper, notwithstanding the severe strain of the county families. There was his clear complexion indicating the continued health resulting from a well-spent life. His almost angelic features were beautiful rather in the amiability of their expression than in their loveliness of form. Anyone looking at him for the first time must exclaim, “Dear me, what a *nice* man!”

“Well, Mr. Bumpkin,” said he, extending his left hand lazily as though it were the last effort of exhausted humanity, “how are we now?”—always identifying himself with Bumpkin, as though he should say “We are in the same boat, brother; come what may, we sink or swim together—how are we now?”

“Bean’t wery well,” answered Mr. Bumpkin, “I can tell ’ee.”

“What’s the matter? dear me, why, what’s the matter? We must be cool, you know. Nothing like coolness, if we are to win our battle.”

“Lookee ’ere,” said Bumpkin; “lookee ’ere, sir; I bin here dordlin’ about off an’ on six weeks, and this ’ere dam trial—”

“Sh—sh!” remonstrated Mr. Prigg with the softest voice, and just lifting his left hand on a level with his forehead. “Let us learn resignation, good Mr. Bumpkin. Let us learn it at the feet of disappointment and losses and crosses.”

“Yes, yes,” said Bumpkin; “but thic larnin’ be spensive, I be payin’ for it.”

“Mr. Bumpkin,” said the good man sternly, “the dispensations of Providence are not to be denounced in this way. You are a man, Bumpkin; let us act, then, the man’s part. You see these boxes, these names: they represent men who have gone through the furnace; let us be patient.”

“But I be sick on it. I wish I’d never know’d what law wur.”

“Ah, sir, most of us would like to exist in that state of wild and uncultured freedom which only savages and beasts are permitted to enjoy; but life has higher aims, Mr. Bumpkin; grander pursuits; more sublime duties.”

“Well, sir, I bean’t no schollard and so can’t argify; but if thee plase to tell I, sir, when this case o’ mine be likely to come on—”

“I was just that minute going to write to you, Mr. Bumpkin, as your name was announced, to say that it would not be taken until next term.”

Mr. Bumpkin uttered an exclamation which is not for print, and which caused the good Prigg to clap his hands to his ears and press them tightly for five minutes. Then he took them away and rubbed them together (I mean his hands), as though he were washing them from the contaminating influence of Mr. Bumpkin’s language.

“Quite so,” he said, mechanically; “dear me!”

“What be quite so,” asked Mr. Bumpkin.

“Yes—yes—you see,” said Prigg, “Her Majesty’s Judges have to go circuit; or, as it is technically called, jail delivery.”

“They be allays gwine suckitt.”

“Quite so. That is precisely what the profession is always observing. No sooner do they return from one circuit than they start off on another. Are you aware, Mr. Bumpkin, that we pay a judge five thousand a-year to try a pickpocket?”

“Hem!” said Bumpkin, “I bean’t aware on it. Never used t’ have so many o’ these ’ere—what d’ye call ’ems?”

“Circuits. No—but you see, here now is an instance. There’s a prisoner away somewhere, I think down at Bodmin, hundreds of miles off, and I believe he has sent to say that they must come down and try him at once, for he can’t wait.”

“I’d mak’ un wait. Why should honest men wait for sich as he? I bin waitin’ long enough.”

“Quite so. And the consequence is that the Lord Chief Justice of England is going down to try him, a common pickpocket, I believe, and his Lordship is the very head of the Judicial Body.”

“Hem!” said Mr. Bumpkin; “then I may as well goo hoame?”

“Quite so,” answered the amiable Prigg; “in fact, better—much better.”

“An’ we shan’t come on now, sir; bean’t there no chance?”

“Not the least, my dear sir; but you see we have not been idle; we have been advancing, in fact, during the whole time that has seemed to you so long. Now, just look, my dear sir; we have fought no less than ten appeals, right up, mind you, to the Court of Appeal itself; we have fought two demurrers; we have compelled them three times to give better answers to our interrogatories, and we have had fourteen other summonses at Chambers on which they have not thought proper to appeal beyond the Judge. Now, Mr. Bumpkin, after that, I *think* you ought to be satisfied; but really that is one of the most disparaging things in the profession, the most disparaging, I may say; we find it so difficult to show our clients that we have done enough for them.”

“An’ thee think, sir, as we shall win un?” said Bumpkin.

“Well,” said Mr. Prigg, “I never like to prophesy; but if ever a case looked like winning it’s *Bumpkin v. Snooks*. And I may tell you this, Mr. Bumpkin, only pray don’t say that I told you.”

“What be thic, sir?” asked the eager client, with his eyes open as widely as ever client’s can be.

“The other side are in a tre-*men*-dous way!”

“What, funkin’, be um? I said so. That there Snooks be a rank bad un—now, then, we’ll at un like steam.”

“All in good time, Bumpkin,” said the worthy Prigg, affectionately taking his client’s hand. “All in good time. My kind regards to Mrs. Bumpkin. I suppose you return to-night?”

“Ay, sir, I be off by the fust train. Good day t’ ye, sir; good day and thankee.”

Thus comforted and thus grateful did the confiding client take leave of his legal adviser, who immediately took down his costs-book and booked a long conference, including the two hours that Mr. Bumpkin was kept in the “outer office.” This followed immediately after another “long conference with you when you thought we should be in the paper to-morrow from what a certain Mr. O’Rapley had told you, and I thought we should not.”

As he passed through the “outer office” he shook Horatio by the hand. “Good-bye, sir. I knows what it wur now—bean’t comin’ on.”

“Don’t say I told you,” said the pale boy, as though he were afraid of communicating some tremendous secret.

“Noa, thee bean’t told I. Now, lookee ’ere, Mr. Jigger, come down when thee like; I shall be rare and prood to see thee, and so’ll Missus.”

“Thanks,” said Horatio; “I’ll be sure and come. *Mither woy!*”

“Ha! mither woy, lad! that’s ur; thee got un. Good-bye.”

CHAPTER XXXI.

Mr. Bumpkin at home again.

How peaceful the farm seemed after all the turmoil and worry that Farmer Bumpkin had been subjected to in London! What a haven of rest is a peaceful Home! How the ducks seemed to quack!—louder, as Mr. Bumpkin thought, than they ever did before. The little flock of sheep looked up as he went, with his old ash stick under his arm, to look round the farm. They seemed to say to one another, “Why, here’s Master; I told you he’d come back.” And the cows turned their heads and bellowed a loud welcome. They knew nothing of his troubles, and only expressed their extreme pleasure at seeing him again. They left off eating the whole time he was with them; for they were very well bred Shorthorns and Alderneys. It was quite pleasant to see how well behaved they all were. And Mrs. Bumpkin pointed out which ones had calved and which were expected to calve in the course of a few months. And then the majestic bull looked up with an expression of immense delight; came up to Mr. Bumpkin and put his nose in his master’s hand, and gazed as only a bull would gaze on a farmer who had spent several weeks in London. It was astonishing with what admiration the bull regarded him; and he seemed quite delighted as Mrs. Bumpkin told her husband of the bull’s good conduct in his absence; how he had never broken bounds once, and had behaved himself as an exemplary bull on all occasions.

“But,” said Mrs. Bumpkin, “I be ’bliged to say, Tom, that there Mrs. Snooks have belied him shamefully. She haven’t got a good word to say for un; nor, for the matter o’ that, for anything on the farm.”

“Never mind,” said Mr. Bumpkin; “he bean’t the only one as ’ave been slandered hereabouts.”

“No, Tom, sure enough; but we bean’t ’bliged to heed un.”

“No, nor wun’t. And now here come Tim.”

To see Tim run and bound and leap and put his paws round Mr. Bumpkin’s neck and lick him, was a sight which must have made up for a great deal of the unkindness which he had experienced of late. Nor could any dog say more plainly than Tim did, how he had had a row with that ill-natured cur of Snooks’, called Towser, and how he had driven him off the farm and forbade him ever setting foot on it again. Tim told all about the snarling of Towser, and said he would not have minded his taking Snooks’ part in the action, if he had confined himself to that; but when he went on and barked at Mr. Bumpkin’s sheep and pigs, against whom he ought to have shown no ill-feeling, it was more than Tim could stand; so he flew at him and thoroughly well punished him for his malignant disposition.

But in the midst of all this welcoming, there was an unpleasant experience, and that was, that all the pigs were gone but two. The rare old Chichester sow was no more.

“There be only two affidavys left, Nancy!”

“No, Tom—only two; the man fetched two yesterday.”

“I hope they sold well. Have he sent any money yet?”

“Not a farthing,” said Mrs. Bumpkin; “nor yet for the sheep. He have had six sheep.”

“Zo I zee; and where be th’ heifers? we had six.”

“They be all sold, Tom.”

“And how much did ’em fetch?”

“The man ain’t brought in the account yet, Tom; but I spect we shall have un soon.”

“Why,” said Mr. Bumpkin, looking at the stackyard, “another rick be gone!”

“Yes, Tom, it be gone, and fine good hay it wur; it cut out as well as any hay I ever zeed.”

“Sure did ur!” answered Tom; “it were the six ak’r o’ clover, and were got up wirout a drop o’ rain on un; it wur prime hay, thic. Why, I wur offered six pun’ a looad for un.”

“I don’ow what ur fetched, Tom; but I be mighty troubled about this ’ere lawsuit. I wish we’d never ’a had un.”

“Doan’t say thic, Nancy; we be bound to bring un. As Laryer Prigg say, it bean’t so much t’ pig—”

“No, Tom, thee said un fust.”

“Well, s’poase I did—so ur did, and it worn’t so much t’ pig, it wur thic feller’s cheek.”

“Well, I don’t know nothing about un; I dissay you be right, because you’ve allays been right, Tom; and we’ve allays got on well together these five and thirty year: but, some’ow, Tom—down, Tim!—down, Tim!”

“Poor old Tim!” said Tom. “Good boy! I wish men wur as good as dogs be.”

“Some’ow,” continued Mrs. Bumpkin, “I doan’t like that ’aire Prigg; he seem to shake his head too much for I; and ’olds his ’at up to his face too long in church when ur goes in; and then ur shakes his head so much when ur prays. I don’t like un, Tom.”

“Now, Nancy, thee knows nothing about un. I can tell ’ee he be a rare good man, and sich a clever lawyer, he’ll knock that ’aire Snooks out o’ time. But, come on, let’s goo in and ’ave some ta.”

So they went in. And a very comfortable tea there was set out on the old oak table in front of the large fireplace where the dog-irons were. And a bright, blazing log there was on the hearth; for a cold east wind was blowing, notwithstanding that the sun had shone out bravely in the day. Ah! how glad Tom was to see the bright pewter plates and dishes ranged in rows all round the homely kitchen! They seemed to smile a welcome on the master; and one very large family sort of dish seemed to go out of his way to give him welcome. I believe he tumbled down in his enthusiasm at Tom’s return, although it was accounted for by saying that Tim had done it

by the excessive “wagglings” of his tail. I believe that dish fell down in the name of all the plates and dishes on the shelves, for the purpose of congratulating the master; else why should all their faces brighten up so suddenly with smiles as he did so? It’s ridiculous to suppose plates and dishes have no feelings; they’ve a great deal more than some people. And then, how the great, big, bright copper kettle, suspended on his hook, which was in the centre of the huge fireplace, how he did sing! Why the nightingale couldn’t throw more feeling into a song than did that old kettle! And then the home-made bread and rashers of bacon, such as you never see out of a farmhouse; and tea, such as can’t be made anywhere else! And then the long pipe was brought out of his corner, where he had been just as Tom had left it before going to town. And the bowl of that pipe gave off circular clouds of the bluest smoke, expressive of its joy at the master’s return: it wasn’t very expressive, perhaps, but it was all that a pipe could do; and when one does his best in this world, it is all that mortal man can expect of him.

And then said Mrs. Bumpkin,—still dubious as to the policy of the proceedings, but too loving to combat her husband upon them,—“When be thee gwine agin, Tom?”

“I doan’t rightly know,” said Bumpkin. “Mr. Prigg will let I know; sometime in May, I reckon.”

“Dear, dear!” said Mrs. Bumpkin; “it may be on, then, just as th’ haymakin’s about.”

“Lor, lor! no, dearie; it’ll be over long enough afore.”

“Doan’t be too sure, Tom; it be a long time now since it begun.”

“Ah!” said Tom, “a long time enough; but it’ll be in th’ paper afore long now; an’ we got one o’ the cleverest counsel in Lunnun?”

“What be his name?”

“Danged if I know, but it be one o’ the stunninest men o’ the day; two on ’em, by Golly; we got two, Nancy.”

“Who be th’ tother? p’r’aps thee med mind his name?”

“Noa, I doan’t mind his name nuther. Now, what d’ye think o’ thic?”

Mrs. Bumpkin laughed, and said, “I think it be a rum thing that thee ’as counsellors and doan’t mind their names.”

And then the conversation turned upon Joe, whose place was vacant in the old chimney corner.

The tears ran down Mrs. Bumpkin’s rosy cheeks as she said for the twentieth time since Mr. Bumpkin’s return,—

“Poor Joe! why did ur goo for a soger?”

“He wur a fool!” said Bumpkin, “and I told un so. So as I warned un about thic Sergeant; the artfullest man as ever lived, Nancy.”

Mrs. Bumpkin wiped her eyes. “He wur a good boy, wur Joe, goo where ur wool; but, Tom, couldn’t thee ’a’ kept thine eye on un when thee see thic Sergeant hoverin’ roun’ like a ’awk arter a sparrer?”

“I did keep eye on un, I tell ’ee; but what be the good o’ thic; as well keep thee eye on th’ sparrer when th’ hawk be at un. I tell ’ee I ’suaded un and warned un, and begged on un to look out.”

“An’ what did ur say?”

“Say, why said ur wur up to un.”

“Up to un,” repeated Mrs. Bumpkin. “Can’t think ’ow ur got ’old on un.”

“No, and thee mark I, no more can nobody else—in Lunnon thee’re ’ad afore thee knows where thee be.”

And now Mr. Bumpkin had his “little drop of warm gin and water before going to bed”: and Mrs. Bumpkin had a mug of elder wine, for the Christmas elder wine was not quite gone: and after that Mrs. Bumpkin, who as the reader knows, was the better scholar of the two, took down from a shelf on which the family documents and books were kept, a large old bible covered with green baize. Then she wiped her glasses, and after turning over the old brown leaves until she came to the place where she had read

last before Tom went away, commenced her evening task, while her husband smoked on and listened.

Was it the old tone with which she spelt her way through the sacred words? Hardly: here it could be perceived that in her secret heart there was doubt and mistrust. Do what she would her eyes frequently became so dim that it was necessary to pause and wipe her glasses; and when she had finished and closed the book, she took Tom's hand and said:

"O, Tom, I hope all 'll turn out well, but sure enough I ha' misgivings."

"What be it, my dear? Mr. Prigg say we shall win—how can ur do better 'an thic?"

"Shall we get back the pigs and sheep, Tom?"

"Why not?"

Mrs. Bumpkin looked into her lap, and folding her apron very smooth with both hands, answered:

"I doan't think, Tom, that man looks like bringing anything back. He be very chuffy and masterful, and looks all round as he goo away, as though he wur lookin' to see what ur would take next. I think he'll have un all, Tom."

"Stuff!" said Mr. Bumpkin, "he be sellin' for I, take what ur may."

"He be sellin' THEE, Tom, I think, and I'd stop un from takin' more."

They rose to go to bed, and as Mrs. Bumpkin looked at the cosy old hearth, and put up the embers of the log to make it safe for the night, it seemed as if the prosperity of their old home had burnt down at last to dull ashes, and she looked sadly at the vacant place where Joe had used to sit.

CHAPTER XXXII.

Joe's return to Southwood—an invitation from the Vicar—what the old oak saw.

It was a long time after the circumstances mentioned in the last chapter. The jails had been “delivered” of their prisoners, and prodigious events had taken place in the world; great battles had been fought and won, great laws made for the future interpretation of judges, and for the vexation of unfortunate suitors. It seemed an age to Mr. Bumpkin since his case commenced; and Joe had been in foreign parts and won his share of the glory and renown that falls to the lot of privates who have helped to achieve victory for the honour and glory of their General and the happiness of their country. It was a very long time, measured by events, since Mr. Bumpkin's return from town, when on a bright morning towards the end of June, a fine sunburnt soldier of Her Majesty's regiment of the --- Hussars knocked with the butt-end of his riding whip at the old oak door in the old porch of Southwood farm-house.

“Well, I never! if that there bean't our Joe!” exclaimed Mrs. Bumpkin, looking out of the window; and throwing down the rolling-pin which she had just been using in rolling-out the dough for a dumpling—(Mr. Bumpkin was “uncommon fond o' dumplings”)—“well, I never!” repeated Mrs. Bumpkin, as she opened the door; “who ever would ha' thought it? Why, how be'est thee, Joe? And bless the lad, 'ow thee've growed! My 'art alive, come along! The master'll be mighty glad to see thee, and so be I, sure a ly.”

And here Mrs. Bumpkin paused to look round him, sticking her knuckles in her sides and her elbows in the air as though Joe were a piece of handiwork—a dumpling, say—which she herself had turned out, clothes and all. And then she put the corner of her apron to her eye.

“Why, Joe, I thought,” said she, “I should never see thee agin! Dear, dear, this ’ere lawsuit be the ruin on us, mark my words! But lor, don’t say as I said so to the master for the world, for he be that wropped up in un that nothing goes down night and morning, morning and night, but affidavys, and summonses, and counsellors, and jussices, and what not.”

“Well,” said the soldier, slapping his whip on his leg as was his custom, “you might be sure I should come and see yer if they left me a leg to hop with, and I should ’a wrote, but what wi’ the smoke and what with the cannon balls flying about, you haven’t got much time to think about anything; but I did think this, that if ever I got back to Old England, if it was twenty year to come, I’d go and see the old master and missus and ’ear ’ow that lawsuit wur going on.”

“And that be right, Joe—I knowed ’ee would; I said as much to master. But ’ow do thee think it’ll end? shall us win or lose?”

Now this was the first time he had ever been called upon to give a legal opinion, or rather, an opinion upon a legal matter, so he was naturally somewhat put about; and looking at the rolling-pin and the dough and then at Mrs. Bumpkin, said:

“Well, it’s like this: a man med win or a man med lose, there’s no telling about the case; but I be dang’d well sure o’ this, missus, he’ll lose his money: I wish master had chucked her up long ago.”

This opinion was not encouraging; and perceiving that the subject troubled Mrs. Bumpkin more than she liked to confess, he asked a question which was of more immediate importance to himself, and that was in reference to Polly Sweetlove.

“Why, thee’ll make her look at thee now, I’ll warrant; thy clothes fit thee as though they grewed on thee.”

“Do she walk with the baker?” inquired Joe, with trembling accents.

“I never heeard so, an’ it’s my belief she never looked at un wi’ any meaning. I’ve seen her many a time comin’ down the Green Lane by herself and peepin’ over th’ gate.”

“Now look at that!” said Joe; “and when I was here I couldn’t get Polly to come near the farm—allays some excuse—did you ever speak to her about me, missus?”

“I ain’t going to tell tales out of school, Joe, so there.”

“Now look at that,” said Joe; “here’s a chap comes all this way and you won’t tell him anything.”

Mrs. Bumpkin laughed, and went on rolling the dough, and told him what a nice dumpling she was making, and how he would like it, and asked how long he was going to stop, and hoped it would be a month, and was telling him all about the sheep and the cows and the good behaviour of the bull, when suddenly she said:

“Here he be, Joe! lor, lor, how glad he’ll be to see thee!”

But it wasn’t the Bull that stepped into the room; it was Mr. Bumpkin, rosy, stalwart, jolly, and artful as ever. Now Mrs. Bumpkin was very anxious to be the bearer of such good intelligence as Joe’s arrival, so, notwithstanding the fact that Mr. Bumpkin and he were face to face, the eager woman exclaimed:

“Here be our Joe, Tom, hearty and well. And bean’t he a smart fine feller? What’ll Polly think of un now?”

“Shut up thic chatter,” said Mr. Bumpkin, laughing. “Halloa! why, Joe, egad thee looks like a ginal. I’d take thee for a kernel at the wery least. Why, when did thee come, lad?”

“Just now, master.”

“That be right, an’ I be glad to see thee. I’ll warrant Nancy ain’t axed thee t’ have nothun.”

“Why, thee be welcome to the ’ouse if thee can eat un, thee knows thic,” answered Nancy; “but dinner’ll be ready at twelve, and thee best not spoil un.”

“A quart o’ ale wun’t spile un, will un, Joe?”

“Now look at that,” said the soldier. “Thankee, master, but not a quart.”

“Well, thee hasn’t got thee head snicked off yet, Joe?”

“No, master, if my head had been snicked off I couldn’t ha’ bin here.” And he laughed a loud ha! ha! ha!

And Mr. Bumpkin laughed a loud haw! haw! haw! at this tremendous witticism. It was not much of a witticism, perhaps, after all, when duly considered, but it answered the purpose as well as the very best, and produced as much pleasure as the most brilliant *repartee*, in the most fashionable circles. We must take people as they are.

So Joe stayed chattering away till dinner-time, and then, referring to the pudding, said he had never tasted anything like it in his life; and went on telling the old people all the wonders of the campaign: how their regiment just mowed down the enemy as he used to cut corn in the harvest-field, and how nothing could stand against a charge of cavalry; and how they liked their officers; and how their General, who warn’t above up to Joe’s shoulder, were a genleman, every inch on him, an’ as brave as any lion you could pick out. And so he went on, until Mr. Bumpkin said:

“An’ if I had my time over agin I’d goo for a soger too, Joe,” which made Mrs. Bumpkin laugh and ask what would become of her.

“Ha! ha! ha! look at that!” said Joe; “she’s got you there, master.”

“No she bean’t, she’d a married thic feller that wur so sweet on her afore I had ur.”

“What, Jem?” said Mrs. Bumpkin, “why I wouldn’t ha’ had un, Tom, if every ’air had been hung wi’ dimonds.”

“Now look at that,” laughed Joe.

And so they went on until it was time to take a turn round the farm. Everything seemed startled at Joe’s fine clothes, especially the bull, who snorted and pawed the earth and put out his tail, and placed his head to the ground, until Joe called him by name, and then, as he told his comrades afterwards in barracks, the bull said:

“Why danged if it bean’t our Joe!”

I must confess I did not hear this observation in my dream, but I was some distance off, and if Mr. Ricochet, Q.C., in cross-examination had said, “Will you swear, sir, upon your oath that the bull did not use those words?” I must have been bound to answer, “I will not.”

But presently they met old Tim, the Collie, and there was no need for Joe to speak to him. Up he came with a bound and caressed his old mate in the most loving manner.

The Queen’s uniform was no disguise to him.

The next day it was quite a treat to see Joe go through the village. Such a swagger he put on that you would have thought he was the whole regiment. And when he went by the Vicarage, where Polly was housemaid, it was remarkable to see the air of indifference which he assumed. Whack went his riding-whip on his leg; you could hear it a hundred yards off. He didn’t seem to care a bit whether she was staring at him out of the study window as hard as she could stare or not. Two or three times he struck the same leg, and marched on perfectly indifferent to all around.

At length came Sunday, as Sunday only comes in a country village. No such peace, no such Sabbath anywhere. You have only got to look at anything you like to know that it is Sunday. Bill’s shirt collar; the milkman; even his bright milk-can has a Sunday shine about it. The cows standing in the shallow brook have a reverent air about them. They never look like that on any other day. Why the very sunshine is Sabbath sunshine, and seems to bring more peace and more pleasantness than on any other day of the week. And all the trees seem to whisper together, “It’s Sunday morning.”

Presently you see the people straggling up to the little church, whose donging bell keeps on as much as to say, “I know I’m not much of a peal, but in my humble way I do my duty to the best of my ability; it’s not the sound but the spirit of the thing that is required; and if I’m not very musical, and can’t give you many changes, I’m sincere in what I say.” And this was an emblem of the sincerity and the simplicity of the clergyman inside. He kept on hammering away at the old truths and performing his part in God’s great work to the best of his ability; and I know with very great success. So

in they all came to church; and Joe, who had been a very good Sunday-school pupil (notwithstanding his love of poaching) and was a favourite with the vicar, as the reader knows, took his old place in the free seats, not very far from the pew where the vicar's servants sat. Who can tell what his feelings were as he wondered whether Polly would be there that morning?

The other servants came in. Ah, dear! Polly can't come, now look at that! Just as he was thinking this in she came. Such a flutter in her heart as she saw the bright uniform and the brighter face, bronzed with a foreign clime and looking as handsome as ever a face could look. O what a flutter too in Joe's heart! But he was determined not to care for her. So he wouldn't look, and that was a very good way; and he certainly would have kept his word if he could.

I think if I had to choose where and how I would be admired, if ever such a luxury could come to me, I would be Joe Wurzel under present circumstances. A young hero, handsome, tall, in the uniform of the Hussars, with a loved one near and all the village girls fixing their eyes on me! That for once only, and my utmost ambition would be gratified. Life could have no greater pride for me. I don't know whether the sermon made much impression that day, but of the two, I verily believe Joe made the most; and as they streamed out of the little church all the young faces of the congregation were turned to him: and everywhere when they got outside it was, "Halloa, Joe!" "Why, Joe, my lad, what cheer?" "Dang'd if here bean't Joe!" and other exclamations of welcome and surprise. And then, how all the pinafores boys flocked round and gazed with wondering eyes at this conquering hero; chattering to one another and contradicting one another about what this part of his uniform was and what that part was, and so on; but all agreeing that Joe was about the finest sight that had come into Yokelton since ever it was a place.

And then the old clergyman sent for him and was as kind as ever he could be; and Joe was on the enchanted ground where the fairy Polly flitted about as noiselessly as a butterfly. Ah, and what's this? Now let not the reader be over-anxious; for a few lines I must keep you, gentle one, in suspense; a great surprise must be duly prepared. If I told you at once what I saw, you would not think so much of it as if I kept you a little while in a state of wondering curiosity. What do you think happened in the Vicarage?

Now's the moment to tell it in a fresh paragraph. Why in came the fairy with a little tray of cake and wine! Now pause on that before I say any more. What about their eyes? Did they swim? What about their hearts; did they flutter? Did Polly blush? Did Joe's bronzed face shine? Ah, it all took place, and much more than I could tell in a whole volume. The vicar did not perceive it, for luckily he was looking out of the window. It only took a moment to place the tray on the table, and the fairy disappeared. But that moment, not then considered as of so much importance, exciting as it was, stamped the whole lives of two beings, and who can tell whether or no such a moment leaves its impress on Eternity?

All good and all kind was the old vicar; and how attentively he listened with Mrs. Goodheart to the eye-witness of England's great deeds! And then—no, he did not give Joe a claptrap maudlin sermon, but treated him as a man subject to human frailties, and, only hoped in all his career he would remember some of the things he had been taught at the Sunday School.

“Ay,” said Joe, “ay, sir, and the best lesson I ever larned, and what have done me most good, be the kindness I always had from you.”

So they parted, and a day or two after, strangely enough, just as Joe was walking along by the old Oak that is haunted, and which the owls and the ghosts occupy between them, who should come down the lane in the opposite direction but Polly Sweetlove! Where she came from was the greatest mystery in the world! And it was so extraordinary that Joe should meet her: and he said so, as soon as he could speak.

“Now look at that! Whoever would have thought of meeting anybody here?”

Polly hung down her head and blushed. Neither of them knew what to say for a long time; for Joe was not a spokesman to any extent. At last Polly Sweetlove broke silence and murmured in the softest voice, and I should think the very sweetest ever heard in this world:

“Are you going away soon, Joe?”

“Friday,” answered the young Hussar.

Ah me! This was Wednesday already; to-morrow would be Thursday, and the next day Friday! I did not hear this, but I give you my word it took place.

“Are you coming to see the Vicar again?” asked the sweet voice.

“No,” said Joe.

They both looked down at the gnarled roots of the old tree—the roots did stick out a long way, and I suppose attracted their attention—and then Polly just touched the big root with her tiny toe. And the point of that tiny toe touched Joe’s heart too, which seemed to have got into that root somehow, and sent a thrill as of an electric shock, only much pleasanter, right through his whole body, and even into the roots of his hair.

“When are you coming again?” whispered the sweet lips.

“Don’t know,” said the young soldier; “perhaps never.”

“But you’ll come and see—your mother?”

“O yes,” answered Joe, “I shall come and see mother; but what’s it matter to thee, lassie?”

The lassie blushed, and Joe thought it a good opportunity to take hold of her hand. I don’t know why, but he did; and he was greatly surprised that the hand did not run away.

“I think the Vicar likes you, Joe?”

“Do he?” and he kept drawing nearer and nearer, little by little, until his other hand went clean round Polly Sweetlove’s waist, and—well an owl flew out of the tree at that moment, and drew off my attention; but afterwards I saw that they both kept looking at the root of the tree, and then Joe said;

“But you love th’ baker, Polly?”

“No,” whispered Polly; “no, no, never!”

“Now, look at that!” said Joe, recovering himself a little; “I always thought you liked the baker.”

“Never, Joe.”

“Well then, why didn’t you look at me?”

Polly blushed.

“Joe, they said you was so wild.”

“Now, look at that,” said Joe; “did you ever see me wild, Polly?”

“Never, Joe—I will say that.”

“No, and you can ask my mother or Mrs. Bumpkin, or the Vicar, or anybody else you like, Polly—.”

“I shall go and see your mother,” said Polly.

“Will you come to-morrow night?” asked Joe.

“If I can get away I will; but I must go now—good-bye—good-bye—good _____”

“Are you in a hurry, Polly.”

“I must go, Joe—good—; but I will come to-morrow, as soon as dinner is over—good—good—good-bye.”

“And then——,” but the Old Oak kept his counsel. Here I awoke.

* * * * *

“Well,” cried my wife, “you have broken off abruptly.”

“One can’t help it,” quoth I, rubbing my eyes. “I cannot help waking any more than I can help going to sleep.”

“Well, this would be a very pretty little courtship if true.”

“Ah,” I said, “if I have described all that I saw in my dream, you may depend upon it it is true. But when I go to Southwood I will ask the Old Oak, for we are the greatest friends imaginable, and he tells me everything. He has known me ever since I was a child, and never sees me but he enters into conversation.”

“What about?”

“The past, present, and future—a very fruitful subject of conversation, I assure you.”

“Wide enough, certainly.”

“None too wide for a tree of his standing.”

“Ask him, dear, if Joe will marry this Polly Sweetlove.”

“He will not tell me that; he makes a special reservation in favour of lovers’ secrets. They would not confide their loves to his keeping so often as they do if he betrayed them. No, he’s a staunch old fellow in that respect, and the consequence is, that for centuries lovers have breathed their vows under his protecting branches.”

“I’m sorry for that—I mean I am sorry he will not tell you about this young couple, for I should like to know if they will marry. Indeed, you must find out somehow, for everyone who reads your book will be curious on this subject.”

“What, as to whether ploughman Joe will marry Polly the housemaid. Had he been the eldest son of the Squire now, and she the Vicar’s daughter, instead of the maid—”

“It would not have been a whit more interesting, for love is love, and human nature the same in high and low degree. But, perhaps, this old tree doesn’t know anything about future events?”

“He knows from his long experience of the past what will happen if certain conditions are given; he knows, for instance, the secret whispers, and the silent tokens exchanged beneath his boughs, and from them he knows what will assuredly result if things take their ordinary course.”

“So does anyone, prophet or no prophet.”

“But his process of reasoning, based upon the experience of a thousand years, is unerring; he saw William the Conqueror, and listened to a council of war held under his branches; he knew what would happen if William’s projects were successful: whether they would be successful was not within

his knowledge. He was intimately acquainted with Herne's Oak at Windsor, and they frequently visited."

"Visited! how was that possible?"

"Quite possible; trees visit one another just the same as human beings—they hold intercourse by means of the wind. For instance, when the wind blows from the north-east, Southwood Oak visits at Windsor Park, and when the wind is in the opposite direction a return visit is paid. There isn't a tree of any position in England but the Old Oak of Southwood knows. He is in himself the History of England, only he is unlike all other histories, for he speaks the truth."

"He must have witnessed many love scenes!"

"Thousands!"

"Tell me some?"

"Not now—besides, I must ask leave."

"Does he ever tell you anything about yourself?"

"A great deal—it is our principal topic of conversation; but he always begins it, lest my modesty should prevent any intercourse on the subject."

"What has he said?"

"A great deal: he has inspired me with hope, even instilled into me some ambition: he has tried to impart to me an admiration of all that is true, and to awaken a detestation of all that is mean and pettifogging. I never look at him but I see the symbol of all that is noble, grand and brave: he is the emblem of stability, friendship and affection; a monument of courage, honesty, and fidelity; he is the type of manly independence and self-reliance. I am glad, therefore, that under his beautiful branches, and within his protecting presence, two young hearts have again met and pledged, as I believe they have, their troth, honestly resolving to battle together against the storms of life, rooted in stedfast love, and rejoicing in the sunshine of the Creator's smiles!"

After these observations, which were received with marked approval, I again gave myself up to the soft influence of a dreamy repose.

CHAPTER XXXIII.

A consultation as to new lodgings.—Also a consultation with counsel.

It was a subject of grave discussion between the Bumpkins and Joe, as to where would be the best place for the plaintiff to lodge on his next visit to London. If he had moved in the upper ranks of life, in all probability he would have taken Mrs. Bumpkin to his town house: but being only a plain man and a farmer, it was necessary to decide upon the most convenient, and at the same time, inexpensive locality.

Mrs. Bumpkin, who, of course, knew all about her husband's adventures, was strongly opposed to his returning to the Goose. Never had created thing lost so much in her estimation by mere association as this domestic bird. Joe was a fine soldier, no doubt, but it was the Goose that had taken him in.

Curiously enough, as they were discussing this important question, who should come in but honest Lawyer Prigg himself.

What a blessing that man seemed to be, go where he would! Why, he spread an air of hope and cheerfulness over this simple household the moment he entered it! But the greatest virtue he dispensed was resignation; he had a large stock of this on hand. He always preached it: "resignation to the will of Providence;" resignation to him, Prigg!

So when he came in with his respectable head, professional collar, and virtuous necktie, Mr. and Mrs. Bumpkin could not choose but rise. Mr. Bumpkin meekly pulled his hair, and humbly bowed obeisance as to his benefactor. Mrs. Bumpkin curtsied as to a superior power, whom she could not recognize as a benefactor. Joe stood up, and looked as if he couldn't quite make out what Mr. Prigg was. He knew he worked the Law somehow, and "summut like as a man works a steam-threshing machine,

but how or by what means, was a mystery unrevealed to the mind of the simple soldier.”

“Good morning! good morning!” said Mr. Prigg, after the manner of a patriarch conferring a blessing. “Well, Joe, so you are returned, are you? Come, now, let me shake hands with one of our brave heroes!”

What condescension! and his tone was the tone of a man reaching down from a giddy height to the world beneath him.

“So you were in the thick of the fight, were you—dear me! what a charge that was!” Ah, but, dear reader, you should see Prigg’s charges!

“I wur someur about, sir,” said Joe. “I dunnow where now though.”

“Quite so,” said Mr. Prigg, “it was a great victory; I’m told the enemy ran away directly they heard our troops were coming.”

“Now look at that,” said Joe; “what a lot of lies do get about sure-ly!”

“Dear me!” said Mr. Prigg; “but you beat them, did you not? we won the battle?”

“That’s right enough,” said Joe; “but if they’d run away we couldn’t a beat un—’tain’t much of a fight when there’s no enemy.”

“Haw, haw, haw!” laughed Bumpkin. “That be good, Mr. Prigg, that be good!”

“Very good, very good, indeed,” said Mr. Prigg; “I don’t wonder at your winning if you could make such sallies as that.”

And that was good for Mr. Prigg.

“And now,” said he, “to business—business, eh?”

“We be jist gwine to ’ave a nice piece o’ pork and greens, Mr. Prigg, would ee please to tak some,” said Mr. Bumpkin.

“Dear me!” answered Prigg; “how very strange, my favourite dish—if ever Mrs. Prigg is in doubt about—”

“It be wery plain,” said Bumpkin.

“The plainer the better, my dear sir; as I always say to my servants, if you —”

“I’m sure,” said Mrs. Bumpkin; “I be ’ardly fit to wait on a gennleman like you. I ain’t ’ad time this morning to change my gown and tidy up myself.”

“Really, my dear madam—don’t, now; I adjure you; make no apologies—it is not the dress—or the—or the —, anything in fact, that makes us what we are;—don’t, if you please.”

And here his profound sentiments died away again and were lost to the world; and the worthy man, not long after, was discussing his favourite dish with greedy relish.

“An when’ll this ’ere thing be on, Mr. Prigg, does thee think? It be a hell of a long time.”

“Tom! Tom!” exclaimed Mrs. Bumpkin. But Mr. Prigg was too well bred and too much occupied with his pork and greens to hear the very wayward epithet of the Farmer Bumpkin.

“Quite so,” said the lawyer; “quite so, it is so difficult to tell when a case will come on. You’re in the list to-day and gone to-morrow; a man the other day was just worried as you have been; but mark this; at the trial, Mr. Bumpkin, the jury gave that man a verdict for a thousand pounds!”

“Look at that, Nancy,” exclaimed Mr. Bumpkin; “Will ’ee tak a little more pork, sir?”

“Thank you,” said Mr. Prigg, “it’s uncommonly good; some of your own feeding, I suppose?”

“Ay,” said Mr. Bumpkin.

“Were that a pig case, Mr. Prigg, where the man got the thousand pounds?” asked Mrs. Bumpkin.

“Let me see,” answered Prigg, “*was* it a pig case?” Here he put his finger to the side of his nose. “I really, at this moment, quite forget whether it was

or was not a pig case. I'll trouble you, Mrs. Bumpkin, for a little more greens, if you please."

"Now, I wur saying," said Bumpkin, "jist as thee comed in, where be I to lodge when I gooes to Lunnon agin?"

"Ah, now, quite so—yes; and you must go in a day or two. I expect we shall be on shortly. Now, let me see, you don't like 'The Goose'? A nice respectable hostelry, too!"

"I wunt 'ave un goo there, Mr. Prigg," said Mrs. Bumpkin.

"Quite so—quite so. Now what I was thinking was, suppose you took lodgings at some nice suburban place, say—"

"What plect, sir?" inquired Bumpkin.

"Let us say Camden Town, for instance—nice healthy neighbourhood and remarkably quiet. You could come every morning by 'bus, or if you preferred it, by rail; and if by rail, you could take a season ticket, which would be much cheaper; a six months' ticket, again, being cheaper than a three months' ticket."

"In the name o' Heaven, sir," exclaimed Mrs. Bumpkin, "be this 'ere thing gwine on for ever?"

Mr. Prigg smiled benignly, as much as to say, "You ladies are so impatient, so innocent of the business of life."

"It seems to me, Mr. Prigg, one need live to be as old as thic there Mackthusaler to bring a law-suit now-a-days."

"Now, look at that!" broke in Joe, "it's made master look forty year older aready."

"So it have, Joe," rejoined the mistress; "I wish it could be chucked up altogether."

Mr. Prigg benignantlly shook his head.

"D'ye think I be gwine to give in to thic sniggerin' Snooks feller?" asked Mr. Bumpkin. "Not if I knows it. Why thic feller goo sniggerin' along th'

street as though he'd won; and he 'ave told lots o' people how he'll laugh I out o' Coourt—his counsel be gwine to laugh I out o' Coourt becors I be a country farmer.”

“Right can't be laughed out of Court, sir,” said the excellent Prigg, solemnly.

“Noa, noa, right bean't asheamed, goo where ur wool. Upright and down-straight wur allays my motto. I be a plain man, but I allays tried to act straight-forrerd, and bean't asheamed o' no man.”

This speech was a complete success: it was unanswerable. It fixed the lodgings at Camden Town. It stopped Mrs. Bumpkin's impatience; diminished her apprehensions; and apparently, lulled her misgivings. She was a gentle, hard-working, loving wife.

And so all was settled. It was the month of April, and it was confidently expected that by the end of July all would be comfortably finished in time to get in the harvest. The crops looked well; the meadows and clover-field promised a fair crop, and the wheat and barley never looked better.

The following week found Mr. Bumpkin in his new lodgings at Camden Town; and I verily believe, as Mr. Prigg very sagaciously observed, if it had not been for the Judges going circuit, *Bumpkin v. Snooks* would have been in the paper six weeks earlier than it really was. But even lawsuits must come on at last, be they never so tardy: and one day, in bustling haste, Mr. Prigg's young man informed Mr. Bumpkin that a consultation was actually fixed at his leader's chambers, Garden Court, Temple, at seven o'clock punctually the next day.

Bumpkin was delighted: he was to be present at the express wish of the leading counsel. So to Garden Court he went at seven, with Mr. Prigg; and there sure enough was Mr. Dynamite, his junior counsel. Mr. Catapult, Q.C., had not yet arrived. So while they waited, Mr. Bumpkin had an opportunity of looking about him; never in his life had he seen so many books. There they were all over the walls; shelves upon shelves. The chambers seemed built with books, and Mr. Bumpkin raised his eyes with awe to the ceiling, expecting to see books there.

“What be all these 'ere books, sir?” he whispered to Prigg.

“These are law books,” answered the intelligent Prigg; “but these are only a few.”

“Must be a good dale o’ law,” said Bumpkin.

“A good deal too much,” observed Mr. Dynamite, with a smile; “if we were to burn nine-tenths of the law books we should have better law, eh, Mr. Prigg?”

Mr. Prigg never contradicted counsel; and if Mr. Dynamite had said it’s a great pity that our libraries have so few authorities, Prigg would have made the same answer, “I quite agree, quite so! quite so!”

“Mr. Cats-’is-name don’t seem to come,” observed Bumpkin, after an hour and a half had passed.

“Mr. *Catapult*, Mr. *Catapult*,” said Mr. Prigg; “no, he doesn’t seem to come.” And then he rang for the clerk, and the clerk came.

“Do you think Mr. Catapult will return to-night?” inquired Prigg.

“I don’t think he will,” said the clerk, looking at his watch; “I am afraid not.”

“Beant much good to stop then,” said Mr. Bumpkin.

“I fear not,” observed the clerk, “he has so many engagements. Shall we fix another consultation, Mr. Prigg?”

“If you please,” said that gentleman.

“Say half-past seven to-morrow, then. The case, I find, is not in the paper to-morrow.”

“Quite so, quite so,” returned Prigg, “half-past seven to-morrow.”

And thus the consultation was at an end and the parties went their several ways.

CHAPTER XXXIV.

Mr. Bumpkin receives compliments from distinguished persons.

One evening as Mr. Bumpkin was sitting in his little parlour, ruminating, or as he termed it, “rummaging” in his mind over many things, and especially wondering when the trial would come on, Horatio, in breathless impatience, entered the room. His excited and cheerful appearance indicated that something of an unusually pleasant nature had occurred. A strong intimacy had long been established between this boy and Mr. Bumpkin, who regarded Horatio as a kind of legal prodigy; his very hopes seemed centered in and inspired by this lad. He seemed to be the guiding spirit and the flywheel of the whole proceedings. Was Snooks to be pulverized? it must be under Horatio’s heel!

This legal stripling brought almost as much comfort as Mr. Prigg himself; and it was quite a pleasure to hear the familiar terms in which he spoke of the bigwigs of the profession. He would say of McCannister, the Queen’s Counsel, “I like Mac’s style of putting a question, it’s so soft like—it goes down like a Pick-me-up.” Then he would allude to Mr. Heavytop, Q.C., as Jack; to Mr. Bigpot as old Kettledrum; to Mr. Swagger, Q.C., as Pat; to B. C. Windbag, Q.C., M.P., as B. C.—all which indicated to the mind of Mr. Bumpkin the particularly intimate terms upon which Horatio was with these celebrities. Nor did his intimacy cease there: instead of speaking of the highest legal official of the land in terms of respectful deference, as “my Lord High Chancellor,” or “my Lord Allworthy,”—he would say, in the most indifferent manner “Old Allworthy” this, and “Old Allworthy,” that; sometimes even, he ventured to call some of Her Majesty’s Judges by nick-names; an example which, I trust, will not be followed by the Horatios of the future. But I believe the pale boy, like his great namesake, was fearless. It was a comfort to hear him denounce the law’s delay, and the terrible “cumbersomeness” of legal proceedings: not that he did it in

soothing language or in happy phraseology: it was rather in a manner that led Mr. Bumpkin to believe the young champion was standing up for his particular rights; as if he had said to the authorities, whoever they might be, “Look here! I’ll have no more of this: it’s a shame and disgrace to this country that a simple dispute between a couple of neighbours can’t be tried without months of quarrelling in Judges’ Chambers and elsewhere; if you don’t try this case before long I’ll see what can be done.” Then there was further consolation in the fact that Horatio declared that, in his opinion, Tommy *Catpup*, Q.C., would knock Snooks into a cocked hat, and that Snooks already looked very down in the mouth.

On the evening at which I have arrived in my dream, when the pale boy came in, Mr. Bumpkin inquired what was the matter: was the case settled? Had Snooks paid the damages? Nothing of the kind. Horatio’s visit was of a common-place nature. He had simply come to inform Mr. Bumpkin that the Archbishop of Canterbury had kindly sent him a couple of tickets for the reserved seats at Canterbury Hall.

Mr. Bumpkin was disappointed. He cared nothing for Archbishops. He was in hopes it had been something better.

“I wunt goo,” said he.

“We ought to go, I think,” said Horatio; “it was very kind of old Archy to send em, and he wouldn’t like it if we didn’t go: besides, he and the Rolls are great chums.”

“Rolls!” said Bumpkin.

“The Master of the Rolls. I shouldn’t wonder if he aint got Archy to send em—don’t you be a fool. And another thing, Paganani’s going to play the farmyard on the fiddle to-night. Gemminey, ain’t that good! You hear the pigs squeak, and the bull roar, and the old cock crow, and the sow grunt, and the horse kick—”

“How the devil can thee hear a horse kick, unless he kicks zummat?”

“Well, he does,” said Horatio; “that’s just what he does do. Let’s go, I am sure you will like it.”

“It beant one o’ these ere playhouse pleaces, be it?”

“Lor bless you,” said Horatio, “there’s pews just the same as if you was in Church: and the singing’s beautiful.”

“No sarmon, I s’pooase.”

“Not on week nights, but I’ll tell you what there is instead: a chap climbs up to the top of a high pole and stands on his head for ten minutes.”

Mr. Bumpkin, although a man who never went out of an evening, could not resist the persuasions of his pale young friend. He had never been to any place of amusement, except the Old Bailey, since he had been in London; although he had promised himself a treat to the Cattle Show, provided that came on, which was very likely, as it only wanted five months to it, before his case.

So they got on the top of a ’Bus and proceeded on their way to Lambeth Palace; for the Canterbury Hall, as everyone knows, is in that ancient pile. And truly, when they arrived everything was astonishingly beautiful and pleasing. Mr. Bumpkin was taken through the Picture Gallery, which he enjoyed, although he would have liked to see one or two like the Squire had got in his Hall, such as “Clinker,” the prize bull; and “Father Tommy,” the celebrated ram. But the Archbishop probably had never taken a prize: not much of a breeder maybe.

Now they entered the Hall amid strains of sweet, soft, enchanting music. Never before had the soul of Bumpkin been so enthralled: it was as if the region of fairyland had suddenly burst upon his astonished view. In presence of all this beauty, and this delicious cadence of sweet sounds, what a common-place thing *Bumpkin v. Snooks* seemed!

Theirs was a very nice pew, commanding a full view of the stage and all the angelic looking beings. And evidently our friends were considered fashionable people, for many of the audience looked round at them as they entered. So awed was Mr. Bumpkin when he first sat down, that he wondered whether he ought to look into his hat as the Squire did in Church; but, resolving to be guided by Horatio, and seeing that the pale youth did not even take his billycock off, but spread his elbows out on the front ledge and clapped his hands with terrific vehemence, and shouted “Anchore” as

loudly as he could, Mr. Bumpkin, in imitation, clapped his hands and said “Hooroar!”

It was glorious. The waiter came and exchanged winks with the pale boy, and brought some soda-and-brandy and a cigar. Mr. Bumpkin wondered more and more. It was the strangest place he had ever heard of. It seemed so strange to have smoking and drinking. But then he knew there were things occurring every day that the cleverest men could not account for: not even Mr. Slater, the schoolmaster at Yokelton, could account for them.

Just in front of the two friends was another pew, a very nice one that was, and for some little time it was unoccupied. Presently with a great rustling of silks and a great smell of Jockey Club, and preceded by one of the servants of the establishment, entered two beautiful and fashionably dressed ladies of extremely quiet (except the Jockey Club) and retiring demeanour. They could not but attract Mr. Bumpkin’s attention: they so reminded him of the Squire’s daughters, only they dressed much better. How he would like Nancy to see them: she was very fond of beautiful gowns, was Nancy.

“I wonder who they be?” whispered Bumpkin.

“I don’t know,” answered Horatio; “I’ll ask as soon as I get a chance. It’s the Archbishop’s pew; I believe they are his daughters.”

“Wouldn’t ur ha come wi em?” said Bumpkin.

“He generally does, but I suppose he can’t get away to-night.”

At this moment a waiter, or as Bumpkin called him a pew opener, was passing, and Horatio whispered something in his ear, his companion looking at him the while from the corner of his eyes.

“The one on the right,” whispered the waiter, untwisting the wire of a bottle of sodawater, “is the Countess Squeezem, and the other is Lady Flora, her sister.”

Bumpkin nodded his head as much as to say, “Just see that: high life, that, if you like!”

And really the Countess and Lady Flora were as quiet and unassuming as if they had been the commonest bred people in the world.

Now came forward on the stage a sweet young lady dressed in yellow satin, with lovely red roses all down the front and one on the left shoulder, greeted by a thunder of applause. Her voice was thrilling: now it was at the back of the stage; now it was just behind your ear; now in the ceiling. You didn't know where to have it. After she had done, Horatio said:

“What do you think of Nilsson?”

“Wery good! wery good!”

“Hallo,” says Horatio, “here's Sims Reeves. Bravo Sims! bravo Reeves!”

“I've eered tell o' he,” says Bumpkin; “he be wery young, bean't he?”

“O,” says Horatio, “they paint up so; but ain't he got a tenor—O gemminey crikery!”

“A tenner?” says Bumpkin, “what's thee mean, ten pun a week?”

“O my eye!” says the youth, “he gets more than that.”

“It be good wages.”

“Yes, but it's nothing to what some of em get,” says Horatio; “why if a man can play the fool well he can get as much as the Prime Minister.”

“Ah, and thic Prime Minister can play the fool well at times; it seem to me—they tooked the dooty of whate and made un too chape.”

“Who's this?” asks Horatio of the waiter.

“Patti,” says the waiter, “at the express wish of the Queen.”

Bumpkin nods again, as though there was no end to the grandeur of the company.

Then comes another no less celebrated, if Horatio was correct.

“Hullo,” says he, “here's Trebelli!”

Now this was too much for the absorbing powers of even a Bumpkin. Horatio had carried it too far. Not that his friend had ever heard of the great vocalist, but if you are inclined for fun pray use names that will go down.

Mr. Bumpkin looked hard at Horatio's face, on which was just the faintest trace of a smile. And then he said:

"What a name, *Bellie*! danged if I doan't think thee be stickin it into I," and then he laughed and repeated, "thee be stickin it into I."

"Now for Pagannini!" says Horatio; "now you'll hear something. By Jove, he'll show you!"

"Why I've eerd tell o' thic Piganiny when I were a boy," says Bumpkin, "used to play on one leg."

"That's the man," says Horatio.

"But this ere man got two legs, how can he be Piganiny?"

"I don't know anything about that," says Horatio; "what's it matter how many legs he's got, just listen to that!"

"Why danged if that bean't as much like thic Cochin Chiner cock o' mine as ever I eered in my life."

"Told you so," says Horatio; "but keep quiet, you'll hear something presently."

And sure enough he did: pig in the straw; sow in the sty; bull in the meadow; sheep in the fold; everything was perfect.

Never before had Mr. Bumpkin been so overpowered. He never before knew what music was. Truly Piganiny was a deserving man, and a clever one too. Mr. Bumpkin's enthusiasm had carried him thus far, when to his great satisfaction the Lady Flora looked round. It was very nice of her, because it was as if she wished to know if Mr. Bumpkin and his friend felt the same rapturous delight as she and her sister. What a nice face Lady Flora's was! It wasn't unlike the Squire's eldest daughter's. Between that, perhaps, and the Vicar's youngest daughter's.

Then the Countess slightly turned round, her face wearing a smile of great complaisance, and Mr. Bumpkin could have seen at once that she was a person of great distinction even if he had not been informed of her rank. Well, taken for all in all, it was a night he would never forget, and his only

feeling of regret was that Mrs. Bumpkin was not present to share his pleasure—the roar of that bull would have just pleased her; it was so like Sampson.

And now the scene shifters were preparing for another performance, and were adjusting ropes and fixing poles, and what not, when, as Mr. Bumpkin was lost in profound meditation, up rose from her seat the beautiful Lady Flora, and turning round with a bewitching face, and assuming an air of inexpressible simplicity, she exclaimed to Mr. Bumpkin in the sweetest of voices: “O you duck!”

Mr. Bumpkin started as if a cannon had exploded in his face instead of a beautiful young lady. He blushed to the deepest crimson, and then the lady Flora poured into him a volley of her sweetiest prettiest laughter. Attacked thus so suddenly and so effectively, what could he do? He felt there must be some mistake, and that he ought to apologize. But the Lady Flora gave him no time; leaning forward, she held out her hand—

“Beg pardon, m’lady—thic—I—I.”

Then the Countess rose and smiled upon Mr. Bumpkin, and said she hoped he wouldn’t mind; her sister was of such a playful disposition.

The playful one here just touched Mr. Bumpkin under the chin with her forefinger, and again said he was a “*perfect duck!*”

“What be the manin’ o’ this?” said he. “I be off; come on, sir. This be quite enough for I.”

“Don’t go like that,” said Lady Flora. “Oh, dear, dear, what a cruel man!”

“Not a glass of wine,” said the Countess.

“Not one, Mr. Bumpkin!” urged Lady Flora.

Mr. Bumpkin had risen, and was angry: he was startled at his name being known: he looked to Horatio, hoping some explanation might come; but the pale youth had his back to him, and was preparing to leave the Hall. There were many curious eyes looking at them, and there was much laughter. Mr. Bumpkin’s appearance would alone have been sufficient to cause this: but his mind was to be farther enlightened as to the meaning of this

extraordinary scene; and it happened in this wise. As he was proceeding between the rows of people, followed closely by those illustrious members of the aristocracy, the Countess and Lady Flora; while the waiters grinned and the people laughed, his eye caught sight of an object away over the front seat, which formed a right angle with the one he had been occupying; it was an object unattractive in itself but which, under the circumstances, fixed and riveted his attention; that object was Snooks, in the corner of the third row, with his sawpit mouth on the broadest grin.

CHAPTER XXXV.

The trial.

Who shall describe the feelings of joy which animated the breast of Mr. Bumpkin when at last, with the suddenness of lightning, Mr. Prigg's clerk flashed into his little parlour the intelligence, "Case in paper; be at Court by ten o'clock; Bail Court." Such was the telegram which Mr. Bumpkin got his landlady to read on that pleasant evening towards the end of July. The far-seeing Prigg was right. It would come on about the end of July. That is what he had predicted. But it would not have been safe for Mr. Bumpkin to be away from town for a single day. It might have been in the paper at any moment; and here it was, just as he was beginning to get tired of "Camden Town and the whole thing."

Mr. Bumpkin put on a clean shirt, with a good stiff high collar, which he had reserved from Mrs. Bumpkin's wash; for, in his opinion, there was no stiffening in the London starch, and no getting up like Mrs. Bumpkin's. He put on his best neckerchief, and a brand new waistcoat which he had bought for Sundays six years ago at the market town. He put on his drab coat with the long tails, which he had worn on the day of his marriage, and had kept for his best ever since; he put on his velvety looking corduroy trowsers and his best lace-up watertight boots; and then, after a good breakfast, put on his white beaver hat, took his ash-stick, and got into a Westminster 'Bus. What a beautiful morning it was! Just the morning for a law suit! Down he got at Palace Yard, walked towards the spacious door of the old hall, entered its shadowy precincts, and then, in my dream, I lost sight of him as he mingled with the crowd. But I saw some few moments after in the Bail Court enter, amidst profound silence and with impressive dignity, Mr. Justice Stedfast. Let me here inform the reader that if by any chance, say by settlement, postponement or otherwise, the first case in the list "goes off," as it is called (from its bearing a striking resemblance to the unexpected going off of a

gun), and the parties in the next case, taken by surprise, are not there at the moment, that case goes off by being struck out; and very often the next and the next, and so on to the end of the list. Parties therefore should be ready, so as to prevent a waste of time. The time of the Court is not to be wasted by parties not being ready. Now, strangely enough, this is what happened in the case of *Bumpkin v. Snooks*. Being number eight, no one thought it would be reached; and the leading counsel, and also the junior counsel being engaged elsewhere; and Mr. Prigg and Mr. Prigg's clerk not having arrived; and Mr. Bumpkin not knowing his way; at five minutes after the sitting of the Court, so expeditious are our legal proceedings, the celebrated case was actually reached, and this is what took place:

"Are the parties ready?" inquired his Lordship.

Mr. Ricochet, Q.C., who appeared with Mr. Weasel for the defendant, said he was ready for the defendant.

"Call the plaintiff!" said a voice.

Loud cries for Bumpkin, who was just pushing his way down the passage outside.

"Does anyone answer?" asked his lordship; "do you know if any gentleman is instructed, Mr. Ricochet?"

"I am not aware, my lud."

"Stand up and be sworn, gentlemen," says the associate. Up stood the jury; and in less than half a minute they found a verdict for the defendant, counterclaim being abandoned, just as Mr. Bumpkin had pushed into Court. And judgment is given.

The business having been thus got through, the Court rose and went away. And then came in both counsel and Mr. Prigg and Horatio; and great complaints were made of everybody except the Judge, who couldn't help it.

But our administration of justice is not so inelastic that it cannot adapt itself to a set of circumstances such as these. It was only to make a few more affidavits, and to appear before his lordship by counsel, and state the facts in a calm and respectful manner, to obtain the necessary rectification of the

matter. All was explained and all forgiven. *Bumpkin v. Snooks* was to be restored to the paper upon payment of the costs of the day—a trifling matter, amounting only to about eighteen pounds seventeen shillings. But a severe admonition from the Bench accompanied this act of grace: “The Court cannot be kept waiting,” said his lordship; “and it is necessary that all suitors should know that if they are not here when their cases are called on they will be struck out, or the party to the cause who is here will be entitled to a verdict, if the defendant; or to try his case in the other’s absence, if he be the plaintiff. It was idle to suppose that parties could not be there in time: it was their business to be there.”

At this every junior barrister nodded approvingly, and the usher called silence.

Of course, the cause could not be in the paper again for some time: they must suit Mr. Ricochet’s convenience now: and accordingly another period of waiting had to be endured. Mr. Bumpkin was almost distracted, but his peace of mind was restored by the worthy Prigg, who persuaded him that a most laudable piece of good fortune had been brought about by his intervention; and that was the preventing the wily Snooks from keeping the verdict he had snatched.

What a small thing will sometimes comfort us!

Mr. Bumpkin was, indeed, a lucky man; for if his case had not been in the paper when at last it was, it would have “gone over the Long Vacation.”

At length I saw Mr. Justice Pangloss, the eminent Chancery Judge, take his seat in the Bail Court. He was an immense case lawyer. He knew cases that had been tried in the reigns of the Edwards and Henries. A pig case could not, therefore, come amiss.

A case lawyer is like Moses and Sons; he can fit anybody, from Chang down to a midget. But there is sometimes an inconvenience in trying to fit an old precedent on to new circumstances: and I am not unfrequently reminded of the boy whose corduroy trousers were of the exact length, and looked tolerable in front; but if you went round they stuck out a good deal on the other side. He might grow to them, no doubt, but it is a clumsy mode of tailoring after all.

Now Mr. Bumpkin, of course, could not be sure that his case was “coming on.” All he knew was, that he must avoid Snooks’ snatching another verdict. He had been to great expense, and a commission had actually been issued to take Joe’s evidence while his regiment was detained at Malta. Mr. Prigg had taken the plaintiff into a crowd, and there had left him early in the morning.

Mr. Bumpkin’s appearance even in the densest crowd was attractive, to say the least: and many and various were the observations from time to time made by the vulgar roughs around as to his personal appearance. His shirtcollar was greatly praised, so was the beauty of his waistcoat: while I heard one gentleman make an enquiry which showed he was desirous of ascertaining what was the name of the distinguished firm which had the honour of supplying him with hats. One said it was Heath, he could tell by the brim; another that it was Cole, he went by the polish; and the particular curl of the brim, which no other hatter had ever succeeded in producing. While another gentleman with one eye and half a nose protested that it was one of Lincoln and Bennett’s patent dynamite resisters on an entirely new principle.

The subject of all these remarks listened as one in doubt as to whether they were levelled at him or in any other direction. He glanced at the many eyes turned upon him, and heard the laughter that succeeded every new witticism. His uncertainty as to whether he was “the party eamed at,” heightened the amusement of the wits.

Now came a bolder and less mistakable allusion to his personal appearance:

“I should like Gladstone to see that, Jem; talk about a collar! the Grand Old Man’s nowhere—he’d better take to turndowns after this.”

“Yes,” replied the gentleman addressed; “I think this would settle him—is he liberal or tory, I wonder?”

“Tory, you’re sure—wotes for the Squoire, I’ll warrant. A small loaf and a big jail.”

Mr. Bumpkin turned his eyes first towards one speaker and then towards another without moving his head, as he thought:

“Danged if I doan’t bleeve thee means I.” But he wisely said nothing.

“I say,” said another, “I wonder if pigeon’s milk is good for the complexion.”

“No,” said Jem, “it makes your nose red, and makes the hair sprout out of the top of it.”

Here was a laugh all round, which made the Usher call out silence; and the Judge said he would have the Court cleared if order was not preserved. Then there was a loud shouting all over the Court for “Thomas Bumpkin!”

“Here I be!” said Bumpkin, amid more laughter—and especially of the wits around him. Then a great bustling and hustling, and pushing and struggling took place.

“Danged if that beant my case,” said Mr. Bumpkin; “but it ain’t my counsellor.”

“Make way for the plaintiff,” shouted the Usher; “stand on one side—don’t crowd up this passage. This way, sir, make haste; the Court’s waiting for you, why do you keep the Court waiting in this way?”

“I was just going to strike your case out,” said the Judge, “the public time can’t be wasted in this way.”

Bumpkin scrambled along through the crowd, and was hustled into the witness-box. The Judge put up his eye-glass, and looked at the plaintiff as though he was hardly fit to bring an action in a Superior Court. Up went the book into his hand. “Take the book in your right hand. Kiss the book; now attend and speak up—speak up so that those gentlemen may hear.”

“Why weren’t you here before?” asked the Judge.

“I wur, my lord?”

“Didn’t you hear your learned counsel opening your case?”

“I didn’t know it wur my case,” said Bumpkin, amid roars of laughter.

“I don’t wonder at that,” said Mr. Ricochet, looking at the jury.

“Now then,” said the Judge.

“And now, then,” said Mr. Silverspoon; for neither of his own counsel was able to be present.

“You are a farmer, I believe?”

“I be.”

“On the 29th of May, 18--; did the defendant come to your farm?”

“Ur did.”

“Did he buy a pig?”

“Ur did not; but ur said he’d be d---d if ur wouldn’t ’ave un.”

“And did he come and take it away?”

“Ur did; pulled un slick out of the sty; and when I tried to stop un in the Lane, took un by main force?”

Mr. Silverspoon sat down.

“What was the age of this pig, Mr. Bumpkin,” enquired the Judge.

“He wur ten weeks old, your lord.”

“Isn’t there a calf case, Mr. Ricochet, very similar to this?”

“Yes, my lord.”

“I think,” said Mr. Justice Pangloss, “it was tried in the reign of James the First.”

Mr. Ricochet, who knew nothing of the calf case, except what his Lordship had told him, said he believed it was.

“If this was anything,” continued Mr. Ricochet, “upon the plaintiff’s own showing it was a felony, and the plaintiff should have prosecuted the defendant criminally before having recourse to his civil remedy; that is laid down in the sheep case reported in Walker’s Trumpery Cases.”

“What volume of the Trumpery Cases is that, Mr. Ricochet?”

“Six hundred and fifty, my lud.”

His Lordship writes it down. “Page?” says his lordship.

“Nineteen hundred and ninety-five, my lud; about the middle of the book.”

Judge calls to the Usher to bring the six hundred and fiftieth volume of Walker’s Trumpery Cases.

“But there’s a case before that,” said his lordship. “There’s a case, if I recollect rightly, about the time of Julius Cæsar—the donkey case.”

“It’s on all fours with this,” said Mr. Ricochet.

“What do you say, Mr. Silverspoon?”

Then Mr. Silverspoon proceeded to show that none of those cases was on all fours with the present case; and a long and interesting argument followed between the Bench and the Bar. And it was said by those who were most competent to judge, that Mr. Silverspoon quite distinguished himself for the wonderful erudition he displayed in his knowledge of the donkey case, and several other cases of four-footed beasts that were called to his attention by Mr. Justice Pangloss. A perfect menagerie was “adduced.” Mr. Bumpkin meanwhile wondering where he was, and what on earth they had all got to do with the plain fact of Snooks taking his pig without paying for it.

At length, after four hours had been consumed in these learned disquisitions, Mr. Justice Pangloss, reviewing the judgments of the various eminent lawyers who had presided over the respective cases in the several reigns, and after quoting many observations of those eminent jurists, said that in order to save time he would hold, for the purposes of to-day, that Mr. Bumpkin was entitled to bring his action: but, of course, he would reserve the point; he was by no means clear; he considered himself bound by authority; and as the point was extremely important, and left undecided after no less than twelve hundred years of argument on the one side and the other, he thought it ought to be solemnly settled. An unsettled state of the law was a very bad thing in his lordship’s opinion; especially in these

modern times, when it appeared to him that the public were clamouring for further reform, and a still further simplification of legal procedure.

This suited Mr. Ricochet exactly; he could not be said now to have lost his case, even if the jury should find against him. But he had yet to cut up Bumpkin in cross-examination. The old trial was brought up against the plaintiff; and every thing that could tend to discredit him was asked. Mr. Ricochet, indeed, seemed to think that the art of cross-examination consisted in bullying a witness, and asking all sorts of questions tending to cast reflections upon his character. He was especially great in insinuating perjury; knowing that that is always open to a counsel who has no other defence.

“Will you swear that?” was asked at almost every answer; sometimes prefaced by the warning, “Be careful, sir—be careful.” If he could get hold of anything against a witness’s character, be it ever so small, and at ever so remote a distance in the man’s life, he brought it out; and being a Queen’s Counsel he did not always receive the reproofs that would have crushed a stuff gownsman into respectable behaviour.

“Were you charged with assaulting a female in the public streets, sir?”

“No, I worn’t.”

“Be careful, sir—she may be in Court.”

“Let her come forward then,” said the courageous Silverspoon, who was by no means wanting in tact.

“Will you be quiet, sir,” retorted Ricochet. “Now Mr. Bumpkin, or whatever your name is, will you swear she did not accuse you of assaulting her?”

“She coomed oop, and it’s my belief she wur in the robbery.”

“Bravo Bumpkin!” said one of the men who had chaffed him. And the jury looked at one another in a manner that showed approval.

“Will you swear, sir, you have never been in trouble?”

“I donnow what thee means.”

“Be careful, sir; you know what I mean perfectly well.”

Then Locust whispers to him, and he says:

“O, you frequent Music Halls, don’t you?”

“Donnow what thee means,” says Bumpkin.

“O, you don’t, don’t you; will you swear that?”

“I wool.”

“Be careful, sir. Were you at the Canterbury Hall with two women, who passed as the Countess and Lady Flora?”

“It be a lie!”

And thus every form of torture was ruthlessly employed, till Mr. Bumpkin broke down under it, and cried like a child in the witness-box. This awakened sympathy for him. There had been much humour and much laughter; and Mr. Ricochet having no knowledge of human nature, was not aware how closely allied are laughter and tears; that in proportion as the jury had laughed at the expense of Mr. Bumpkin they would sympathize with his unhappy position.

“I’ve worked hard,” said he, “for sixty year, and let any man come forrard and say I’ve wronged man, ooman, or child!”

That was a point for Bumpkin. Every one said, “Poor old man!” and even his Lordship, who was supposed to have no feeling, was quite sympathetic. Only Mr. Ricochet was obtuse. He had no heart, and very little skill, or he would have managed his case more adroitly. “Badgering” is not much use if you have no better mode of winning your case.

“Stand down, Mr. Bumpkin,” said his counsel, as Mr. Ricochet resumed his seat amid the suppressed hisses of the gallery.

“Joseph Wurzel,” said Mr. Silverspoon.

Joe appeared in the uniform of the Hussars. And he wore a medal too. Mr. Ricochet had no sympathy with heroes any more than he had with men of letters, artists, or any other class of talent. He was a dry, uncompromising,

blunt, unfeeling lawyer, looking at justice as a thimblery looks at his pea; lift which thimble you may, he will take care the pea shall not be found if he can help it. He smiled a grim, inhuman smile at Bumpkin's tears, and muttered that he was an "unmanly milksop."

Joe gave his evidence briefly and without hesitation. Everyone could see he was speaking the truth; everybody but Mr. Ricochet, who commenced his cross-examination by telling him to be careful, and that he was upon his oath.

"Be careful, sir;" he repeated.

Joe looked.

"You are on your oath, sir." Joe faced him.

"You deserted your master, did you?"

"No," said Joe; "I aint no deserter?"

"But you enlisted."

"I don't know as that's desertion," said Joe; "and I'm here to speak for him now; and I give my evidence at Malta, too."

"Do you swear that, sir?" enquired Mr. Ricochet. "Were you not with your master when the young woman accused him of assaulting her?"

"I was not."

"Why did you enlist, then?" enquired Mr. Ricochet.

"Cause I choose to," said Joe.

"Now, sir, upon your oath; I ask you, did you not enlist because of this charge?"

"No; I never heard on it till arter I was listed."

"When did you hear of it?"

"At the trial at the Old Bailey."

“O,” said the learned Q.C.; “wait a minute, you were there, were you? Were you there as a witness?”

“No.”

“Why not?”

“Because I warnt.”

“Will you swear that?” asked Ricochet, amid roars of laughter.

“What were you there for?”

“To hear the trial!”

“And you were not called?”

“No.”

“And do you mean on your oath, sir, to say that you had enlisted at that time.”

“Now look at that,” said Joe; “the Sergeant there enlisted me, and he knows.”

“I suppose you had seen your master’s watch many times?”

“I’d seen it,” said Joe.

“And did not give evidence!”

“No; I warnt called, and know’d nothing about it.”

“You’ve been paid for coming here, I suppose?”

“Not a farden, and wouldn’t take un; he bin a good maister to me as ever lived.”

“And you left him. Now then, sir, be careful; do you swear you heard Bumpkin say Snooks should not have the pig?”

“I do.”

“Have you been speaking to anyone about this case before to-day?”

Joe thought a bit.

“Be careful, sir, I warn you,” says Ricochet.

“Yes,” said Joe; “I have.”

“I thought so. When? To whom?”

And here an air of triumph lit up the features of Mr. Ricochet.

“Afore I comed here.”

“When! let’s have it?”

“Outside the Court.”

“To Bumpkin?”

“No; to that there Locust; he axed un—”

“Never mind what he axed you;” said Ricochet, whose idea of humour consisted in the repetition of an illiterate observation; and he sat down—as well he might—after such an exhibition of the art of advocacy.

But on re-examination, it turned out that Mr. Locust had put several questions to Joe with a view of securing his evidence himself at a reasonable remuneration, and of contradicting Mr. Bumpkin.

This caused the jury to look at one another with grave faces and shake their heads.

Mr. Ricochet began and continued his speech in the same common-place style as his cross-examination; abusing everyone on the other side, especially that respectable solicitor, Mr. Prigg; and endeavouring to undo his own bad performance with the witness by a worse speech to the jury. What he was going to show, and what he was going to prove, was wonderful; everybody who had been called was guilty of perjury; everybody he was going to call would be a paragon of all the virtues. He expatiated upon the great common sense of the jury (as though they were fools), relied on their sound judgment and denounced the conduct of Mr. Bumpkin in the witness-box as a piece of artful acting, intended to appeal to the weakness of the jury. But all was useless. Snooks made a sorry figure

in the box. He was too emphatic, too positive, too abusive. Mr. Ricochet could not get over his own cross-examination. The ridiculous counterclaim with its pettifogging innuendoes vanished before that common sense of the jury to which Mr. Ricochet so dryly appealed. The edifice erected by the modern pleader's subtle craftiness was unsubstantial as the icy patterns on the window-pane, which a single breath can dissipate. And yet these ingenious contrivances were sufficient to give an unimportant case an appearance of substantiality which it otherwise would not have possessed.

The jury, after a most elaborate charge from Mr. Justice Pangloss, who went through the cases of the last 900 years in the most careful manner, returned a verdict for the plaintiff with twenty-five pounds damages. The learned Judge did not give judgment, inasmuch as there were points of law to be argued. Mr. Bumpkin, although he had won his case so far as the verdict was concerned, did not look by any means triumphant. He had undergone so much anxiety and misery, that he felt more like a man who had escaped a great danger than one who had accomplished a great achievement.

Snooks' mouth, during the badgering of the witnesses, which was intended for cross-examination was quite a study for an artist or a physiologist. When he thought a witness was going to be caught, the orifice took the form of a gothic window in a ruinous condition. When he imagined the witness had slipped out of the trap laid for him, it stretched horizontally, and resembled a baker's oven. He was of too coarse a nature to suspect that his own counsel had damaged his case, and believed the result of the trial to have been due to the plaintiff's "snivelling." He left the Court with a melancholy downcast look, and his only chance of happiness hereafter in this life seemed now to be in proportion to his power of making Mr. Bumpkin miserable. Mr. Locust was not behind in his advice on their future course; and, after joining his client in the hall, at once pointed out the utterly absurd conclusion at which the jury had arrived; declared that there must be friends of the plaintiff among them, and that Mr. Ricochet would take the earliest opportunity of moving for a new trial; a piece of information which quite lit up the coarse features of his client, as a breath of air will bring a passing glow to the mouldering embers of an ash-heap on a dark night.

CHAPTER XXXVI.

Motion for rule nisi, in which is displayed much learning, ancient and modern.

On the following day there was a great array of judicial talent and judicial dignity sitting in what is called “Banco,” not to be in any way confounded with “Sancho;” the two words are totally distinct both as to their meaning and etymology. In the centre of the Bench sat Mr. Justice Doughty, one of the clearest heads perhaps that ever enveloped itself in horsehair. On his right was Mr. Justice Pangloss, and on his left Mr. Justice Technical.

Then arose from the Queen’s Counsel row, Mr. Ricochet to apply for a rule *nisi* for a new trial in the cause of *Bumpkin v. Snooks* which was tried yesterday before Mr. Justice Pangloss.

“Before me?” says Mr. Justice Pangloss.

“Yes, my lud,” says Mr. Ricochet.

“Are you sure?” enquired the learned Judge, turning over his notes.

“O, quite, my lud.”

“Ah!” says his lordship: “what do you say the name of the case was?”

“*Bumpkin* against *Snooks*, my lud,” says Mr. Ricochet, Q.C.

“Coots; what was it,—a Bill of Exchange?” asks his lordship.

“Snooks, my lud, Snooks;” says Mr. Ricochet, “with the greatest deference, my lud, his name is spelt with an S.”

Judge, still turning over his book from end to end calls to his clerk, and addressing Mr. Ricochet, says: “When do you say it was tried, Mr.

Ricochet?”

“Yesterday, my lud; with great submission, my lud, I overheard your ludship say Coots. Snooks, my lud.”

Then all the Judges cried “Snooks!” as if it had been a puzzle or a conundrum at a family Christmas party, and they had all guessed it at once.

“Bring me the book for this term,” said the Judge sharply to his clerk.

“What was the name of the plaintiff?” enquired Mr. Justice Doughty.

“Bumpkin, my lud,” said Mr. Ricochet, “with great deference.”

“Ah, Pumpkin, so it was,” said the presiding Judge.

“With great submission, my lud, Bumpkin!”

“Eh?”

“Bumpkin, my lud;” and then all the Judges’ cried “Bumpkin!” as pleased as the followers of Columbus when they discovered America.

“Ah, here it is,” said Mr. Justice Pangloss, passing his forefinger slowly along the page; “the name of the case you refer to, Mr. Ricochet, is *Bumpkin v. Snooks*, not *Coots v. Pumpkin*, and it was tried before me and a special jury on the twenty-eighth of July of the present year.”

“Yes, my lud, with all submission.”

“Why, that was yesterday,” said Mr. Justice Pangloss. “Why did you not say so; I was referring to last year’s book.”

“With all deference, my lud—”

“Never mind, never mind, Mr. Ricochet; let us get on.”

“What do you move for?” asked Mr. Justice Doughty.

“A new trial, my lud.”

“A new trial—yes—? Which way was the verdict, Mr. Ricochet?”

“Verdict for the plaintiff, my lud.”

“And whom do you appear for?”

“I am for the defendant, my lud.”

“O! you’re for the defendant. Stop—let me have my note correct. I find it always of great assistance when the rule comes on to be argued. I don’t say you’re going to have a rule. I must know a little more of the case before we grant a rule.”

“If your ludship pleases.”

I did not gather what his lordship intended to say when he made the observations recorded, and can only regret that his lordship should have broken off so abruptly.

“What ground do you move upon, Mr. Ricochet.”

Mr. Ricochet said, “The usual grounds, my lud; that is to say, that the verdict was against the weight of evidence.”

“Stop a minute,” said Mr. Justice Doughty; “let me have my note correct, ‘against the weight of evidence,’ Mr. Ricochet.”

“Misdirection, my lud—with all respect to Mr. Justice Pangloss—and wrongful admission of evidence.”

“What was the action for?”

Now this was a question that no man living had been able to answer yet. What was in the pleadings, that is, the pattern of the lawyer’s net, was visible enough; but as regards merits, I predict with the greatest confidence, that no man will ever be able to discover what the action of *Bumpkin* versus *Snooks* was about. But it speaks wonders for the elasticity of our system of jurisprudence and the ingenuity of our lawyers that such a case could be *invented*.

“Trespass,” said Ricochet, “was one paragraph; then there was assault and battery; breach of contract in not accepting a pig at the price agreed; trespass in seizing the pig without paying for it; and then, my lud, there

were the usual money counts, as they used to be called, to which the defendant pleaded, among other pleas, a right of way; an easement; leave and license; a right to take the pig; that the pig was the property of the defendant, and various other matters. Then, my lud, there was a counter-claim for slander, for assault and battery; for loss of profit which would have been made if the pig had been delivered according to contract; breach of contract for the non-delivery of the pig.”

Mr. Justice Doughty: “This was pig-iron, I suppose?”

The two other Judges fell back, shaking their sides with laughter; and then forcibly thrust their hands against their hips which made their tippets stick out very much, and gave them a dignified and imposing appearance. Then, seeing the Judges laugh, all the bar laughed, and all the ushers laughed, and all the public laughed. The mistake, however, was a very easy one to fall into, and when Mr. Justice Doughty, who was an exceedingly good-tempered man, saw the mistake he had made, he laughed as much as any man, and even caused greater laughter still by good-humouredly and wittily observing that he supposed somebody must be a pigheaded man. To which Mr. Ricochet laughingly replied, that he believed the plaintiff was a very pigheaded man.

“Now,” said Mr. Justice Pangloss, “have you considered what Vinnius in his ‘Commentary on Urban Servitudes’ says.”

Mr. Ricochet said, “Hem!” and that was the very best answer he could make to the learned Pangloss, and if he only continues to answer in that manner he’ll get any rule he likes to apply for—(no, not the Rule of Three, perhaps).

So Mr. Justice Pangloss went on:

“There are, as Gale says, ‘two classes of easements distinctly recognised by the Civil Law—’”

“Hem!” said Ricochet.

“‘Under the head of “Urban Servitudes—’”

Ricochet: “Hem!”

“‘That a man,’ (continued Mr. Justice Pangloss), ‘shall receive upon his house or land the *flumen* or *stillicidium* of his neighbour—’”

“Hem!” coughed Mr. Ricochet, in a very high key; I verily believe in imitation of that wonderful comedian, J. C. Clarke.

Then Mr. Justice Pangloss proceeded, to the admiration of the whole Bar:

“‘The difference,’ says Vinnius, in his Commentary on this passage, between the *flumen* and the *stillicidium* is this—the latter is the rain falling from the roof by drops (*guttatim et stillatim*).’”

“Hem!” from the whole Bar.

“‘The *flumen*’—”

“I think,” said Mr. Justice Doughty, “you are entitled to a rule on that point, Mr. Ricochet.”

Then Mr. Justice Technical whispered, and I heard Mr. Justice Doughty say the principle was the same, although there might be some difference of opinion about the facts, which could be argued hereafter. “But what is the misreception of evidence, Mr. Ricochet? I don’t quite see that.”

“With all submission, my lud, evidence was admitted of what the solicitor for the defendant said to the plaintiff.”

“Wait a minute, let me see how that stands,” said Mr. Justice Doughty; “the solicitor for the defendant said something to the plaintiff, I don’t quite follow that.”

Mr. Justice Technical observed that it was quite clear that what is said by the solicitor of one party to the solicitor of another party is not evidence.

“O,” said the learned Pangloss, “so far back as the time of Justinian it was laid down—”

“And that being so,” said the eminent Chancery Judge, Mr. Justice Technical, “I should go so far as to say, that what the solicitor of one party says to the client stands upon the same footing.”

“Precisely,” said Mr. Ricochet

“I think you are entitled to a rule on that point,” remarked Mr. Justice Doughty, “although my brother Pangloss seems to entertain some doubt as to whether there was any such evidence.”

“O, my lud, with all submission, with the greatest possible deference and respect to the learned Judge, I assure your ludship that it was so, for I have a note of it.”

“I was about to say,” continued Mr. Justice Doughty, “as my brother Pangloss says, it may have been given while he was considering a point in Justinian. What is the misdirection?”

“O, my lud, the misdirection was, I venture respectfully and deferentially to submit, and with the utmost deference to the learned Judge, in his lordship’s telling the jury that if they found that the right of way which the defendant set up in his answer to the trespass, or easement—but perhaps, my lud, I had better read from the short-hand writer’s notes of his ludship’s summing-up. This is it, my lud, his ludship said: ‘In an action for stopping of his *ancient lights* —.’”

“What!” said Mr. Justice Doughty, “*did he black the plaintiff’s eyes*, then?”

“No, my lud,” said Mr. Ricochet, “that was never alleged or suggested.”

“I only used it by way of illustration,” said Mr. Justice Pangloss.

Then their lordships consulted together, and after about three-quarters of an hour’s conversation the learned Mr. Justice Doughty said:

“You can take a rule, Mr. Ricochet.”

“On all points, my lud, if your ludships please.”

“It will be more satisfactory,” said his lordship, “and then we shall see what there is in it. At present, I must confess, I don’t understand anything about it.”

And I saw that what there was really in it was very much like what there is in a kaleidoscope, odds and ends, which form all sorts of combinations when you twist and turn them about in the dark tube of a “legal argument.” And so poor Bumpkin was deprived of the fruit of his victory. Truly the

law is very expeditious. Before Bumpkin had got home with the cheerful intelligence that he had won, the wind had changed and was setting in fearfully from the north-east. Juries may find as many facts as they like, but the Court applies the law to them; and law is like gunpowder in its operation upon them,—twists them out of all recognisable shape. It is very difficult in a Court of law to get over “*guttatims*” and “*stillatims*,” even in an action for the price of a pig.

CHAPTER XXXVII.

Mr. Bumpkin is congratulated by his neighbours and friends in the market place and sells his corn.

What a lovely peace there was again over the farm! It was true Mr. Bumpkin had not obtained as large a measure of damages as his solicitor had led him to anticipate, but he was triumphant, and that over a man like Snooks was something. So the damages were forgotten beneath that peaceful August sky. How bright the corn looked! There was not a particle of “smut” in the whole field. And it was a good breadth of wheat this year for Southwood Farm. The barley too, was evidently fit for malting, and would be sure to fetch a decent price: especially as they seemed to say there was not much barley this year that was quite up to the mark for malting. The swedes, too, were coming on apace, and a little rain by and by would make them swell considerably. So everything looked exceedingly prosperous, except perhaps the stock. There certainly were not so many pigs. Out of a sty of eleven there was only one left. The sow was nowhere to be seen. She had been sold, it appeared, so no more were to be expected from that quarter. When Mr. Bumpkin asked where “old Jack” was (that was the donkey), he was informed that “the man” had fetched it. “The man” it appeared was always fetching something. Yesterday it was pigs; the day before it was ducks; the day before that it was geese; and about a week ago it was a stack of this year’s hay: a stack of very prime clover indeed. Then “the man” took a fancy to some cheeses which Mrs. Bumpkin had in the dairy, some of her very finest make. She remonstrated, but “the man” was peremptory. But what most surprised Mr. Bumpkin, and drew tears from Mrs. Bumpkin’s eyes, was when the successful litigant enquired how the bull was.

Mrs. Bumpkin had invented many plans with a view to “breaking this out” to her husband: and now that the time had come every plan was a failure.

The tears betrayed her.

“What, be he dead?” enquired Mr. Bumpkin.

“O, no, Tom—no, no—”

“Well, what then?”

“The man!”

“The man! The devil’s in thic man, who be he? Where do ur come from? I’ll bring an action agin him as sure’s he’s alive or shoot un dead wi my gun;” here Mr. Bumpkin, in a great rage, got up and went to the beam which ran across the kitchen ceiling, and formed what is called the roof-tree of the house, by the side of which the gun was suspended by two loops.

“No, no, Tom, don’t—don’t—we have never wronged any one yet, and don’t—don’t now.”

“But I wool,” said Bumpkin; “what! be I to be stripped naaked and not fight for th’ cloathes—who be thic feller as took the bull?”

Mrs. Bumpkin was holding her apron to her eyes, and for a long while could say nothing.

“Who be he, Nancy?”

“I don’t know, Tom—but he held a paper in his hand writ all over as close as the stubble-rows in the field, and he said thee had signed un.”

“Lord! lord!” exclaimed Mr. Bumpkin, and then sat down on the settle and looked at the fire as though it threw a light over his past actions. He couldn’t speak for a long time, not till Mrs. Bumpkin went up to him and laid her hand upon his shoulder, and said:

“Tom! Tom! thee ha wonned the case.”

“Aye, aye,” said Bumpkin, starting up as from a reverie. “I ha wonned, Nancy. I ha beat thic there Snooks; ur wont snigger now when ur gooes by—lor, lor,—our counsellor put it into un straight, Nancy.”

“Did ur, Tom?—well, I be proud.”

“Ah!” said Bumpkin, “and what d’ye think?—it wornt our counsellor, that is the Queen’s Counsellor nuther; he wornt there although I paid un, but I spoase he’ll gie up the money, Nancy?”

“Were it much, Tom?”

“Farty guineas!”

“Farty guineas, Tom! Why, it wur enough to set up housekeepin wi—and thee only wonned twenty-five, Tom; why thic winnin were a heavy loss I think.”

“Now, lookee ere,” said Bumpkin; “I oughter had five undered, as Laryer Prigg said, our case were that good, but lor it baint sartain: gie I a little gin and water, Nancy—thee ain’t asked I to have a drap since I bin oame.”

“Lor, Tom, thee knows I be all for thee, and that all be thine.”

“It beant much, it strikes me; lor, lor, whatever shall us do wirout pigs and sheep, and wirout thic bull. I be fit to cry, Nancy, although I wonned the case.”

Tom had his gin and water and smoked his pipe, and went to bed and dreamed of all that had taken place. He rose with the lark and went into the fields and enjoyed once again the fresh morning air, and the sweet scent of the new hayrick in the yard; and, without regarding it, the song of the lark as it shot heavenward and poured down its stream of glad music: but there was amidst all a sadness of spirit and a feeling of desolation. It was not like the old times when everything seemed to welcome him about the farm wherever he went. The work of “the man” was everywhere. But the harvest was got in, and a plentiful harvest it was: the corn was threshed, and one day Mr. Bumpkin went to market with his little bags of samples of the newly-housed grain. Everybody was glad to see him, for he was known everywhere as a regular upright and down-straight man. Every farmer and every corn-dealer and cattle-dealer congratulated him in his homely way on his success. They looked at his samples and acknowledged they were very bright and weighty. “I never liked that Snooks feller,” was the general cry, and at the farmers’ ordinary, which was held every market day at the “Plough,” every one who knew Bumpkin shook hands and wished him well, and after dinner, before they broke up, Farmer Gosling proposed his health,

and said how proud he “were that his old neighbour had in the beautiful words o’ the National Anthem, ‘confounded their politicks’: and he hoped that the backbone o’ old England, which were the farmers, wornt gwine to be broked jist yet awhile. Farmin might be bad, but yet wi little cheaper rents and a good deal cheaper rates and taxes, there’d be good farmin and good farmers in England yit.”

Now this speech, I saw in my dream, brought down the house. Everyone said it was more to the point than the half-mile speeches which took up so much of the newspapers to the exclusion of murders, burglaries and divorces. And in truth, now I come to look at it in my waking moments, I respectfully commend it to our legislators, or what is better, to their constituencies, as embodying on this subject both the principles of true conservatism and true liberalism: and I don’t see what the most exacting of politicians can require more than that.

Mr. Bumpkin made a suitable reply—that is to say, “he wur mighty proud o’ their neighbourliness—he wur a plaain man, as had made his own way in the world, or leastwise tried to do un by ard work and uprightedness and downstraightedness; tried to be straight forrerd, and nobody as he knowed of could ax un for a shillin’. But,” he added: “I be praisin oop myself, neighbours, I be afeard, and I doant wish to do thic, only to put I straaight afore thee. I beant dead yit, and I hope we shall all be friends and neighbours, and meet many moore times at this ornary together.”

And so, delighted with one another, after a glass or two, and a song or two, the party broke up, all going to their several farms. Mr. Bumpkin was particularly well pleased, for he had sold twenty quarters of wheat at forty-nine shillings a quarter; which, as times went, was a very considerable increase, showing the excellent quality of the samples.

Sooner or later, however, it must be told, that when Bumpkin reached his quiet farm, a strange and sad scene presented itself. Evidences of “*the man*” were in all directions. He had been at work while Mr. Bumpkin in his convivial moments was protesting that he did not owe anyone a shilling. Alas! how little the best of us know how much we owe!

Mrs. Bumpkin, who had borne up like a true woman through all the troubles that had come upon her home,—borne up for his sake, hoping for better

days, and knowing nothing of the terrible net that had been spread around them by the wily fowler, at length gave way, as she saw “the man” loading his cart with her husband’s wheat; the wheat he had gone that day to sell. Bitterly she wrung her hands, and begged him to spare her husband that last infliction. Was there anything that she could do or give to save him this blow? No, no; the man was obstinate in the performance of his duty; “right was right, and wrong was no man’s right!”

So when Mr. Bumpkin returned, the greater part of his wheat was gone, and the rest was being loaded. The beautiful rick of hay too, which had not yet ceased to give out the fresh scent that a new rick yields, were being cut and bound into trusses.

Poor Tom was fairly beside himself, but Mrs. Bumpkin had taken the precaution to hide the gun and the powder-flask, for she could not tell what her husband might do in his distraction. Possibly she was right. Tom’s rage knew no bounds. Youth itself seemed to be restored in the strength of his fury. He saw dimly the men standing around looking on; he saw, as in a dream, the man cutting on the rick, and he uttered incoherent sentences which those only understood who were accustomed to his provincial accent.

“Tom, Tom,” said Mrs. Bumpkin, “don’t be in a rage.”

“Who be thic feller on my rick?”

“I beant any more a feller nor thee, Maister Boompkin; it aint thy rick nuther.”

“Then in the name of h—, whose be it?”

“It be Maister Skinalive’s; thee can’t have t’ cake an eat un; thee sowled it to un.”

“It be a lie, a --- lie; come down!”

“Noa, noa, I beant coomin doon till I coot all t’ hay; it be good hay an all, as sweet as a noot.”

“Where is thy master?” enquired Mrs. Bumpkin.

“I dooant rightly knoo, missus, where ur be; but I think if thee could see un, he’d poot it right if thee wanted time loike, and so on, for he be a kind-hearted man enoo.”

“Can we find un, do ur think?” asked Mrs. Bumpkin.

“If thee do, missus, it wur moor un I bin able to do for the last three moonths.”

“I’ll find some un,” said Mr. Bumpkin; “here, goo and fetch a pleeceman.”

This was said to a small boy who did the bird-minding, and was now looking on with his mouth wide open, and his eyes actually shedding tears.

“Ah, fetch a pleeceman an all,” said the man, thrusting the big hay-knife down into the centre of the rick; “but take a soop o’ cyder, maister; I dessay thee feels a bit out o’ sorts loike.”

“Thee darn thief; it be my cyder, too, I’ve a notion.”

“How can it be thine, maister, when thee ha’ sowled un?” said the man with his unanswerable logic: “haw! haw! haw!”

Mrs. Bumpkin held her husband’s hand, and tried her hardest to keep him from using violence towards the man. She felt the convulsive twitches of his strong muscles, and the inward struggle that was shaking his stalwart frame. “Come away, Tom; come away; let un do as they like, we’ll have them as will see us righted yet. There’s law for un, surely.”

“It beant no use to kick, maister,” said the man, again ramming the knife down into the rick as though he were cutting Mr. Bumpkin himself in half, and were talking to him the while; “it beant no use to kick, maister. Here thee be; thee owes the man the money, and can’t pay, so ur does this out of kindness to prevent thee being sowled oop loike.”

“Here be the pleeceman,” said Mrs. Bumpkin.

Mr. Bumpkin turned suddenly, and shouted, “Tak thic thief into custody.”

The policeman, albeit a country constable, was a very sensible man; and seeing how matters stood, he very wisely set himself to the better task of

taking Mr. Bumpkin into custody without appearing to do so, and without Mr. Bumpkin knowing it.

“Now,” said he, “if so be as you will come indoors, Mr. Bumpkin, I think we can put our heads together and see what can be done in this ’ere case; if it’s stealing let him steal, and I’ll have him nicely; but if it ain’t stealing, then I woant have him at all.” (A pause.)

“For why?” (A pause.)

“Because the law gives you other remedies.”

“That be right, pleeceman,” said Bumpkin; “I’ll goo wi’ thee. Now then, Nancy, let’s goo; and look ’ere, thee thief, I’ll ha’ thee in th’ jail yet.”

The man grinned with a mouth that seemed to have been cut with his own hay-knife, so large was it, and went on with his work, merely saying: “I dooant charge thee nothin for cootin’ nor yet for bindin, maister; I does it all free graatis, loike.”

“Thee d--- thief, thee’ll be paid.”

So they went in, and the policeman was quite a comforter to the poor old man. He talked to him about what the law was on this point and that point, and how a trespass was one thing, and a breach of the peace another; and how he mustn’t take a man up for felony just because somebody charged him: otherwise, the man on the rick might have charged Mr. Bumpkin, and so on; till he got the old man into quite a discussion on legal points. But meanwhile he had given him another piece of advice, which was also much to his credit, and that was to send to his solicitor, Mr. Prigg. Mr. Prigg was accordingly sent for; but, like most good men, was very scarce. Nowhere could Mr. Prigg be found. But it was well known, for it was advertised everywhere on large bills, that the excellent gentleman would take the chair at a meeting, to be held in the schoolroom in the evening, for the propagation of Christianity among the Jews. The policeman would be on duty at that meeting, and he would be sure to see Mr. Prigg, and tell him Mr. Bumpkin was very desirous to see him as early as possible on the following day. Mr. Bumpkin was thankful, and to some extent pacified. As the policeman wished them goodnight, Mrs. Bumpkin accompanied him to

the door, and begged, if he wouldn't mind, that he would look in to-morrow, for he seemed a kind of protection for them.

It was about three in the afternoon of the following day when good Mr. Prigg drove up to Mr. Bumpkin's door; he drove up with the mare that had been Mr. Bumpkin's cow.

"Here he be," said Mrs. Bumpkin; and if Mr. Prigg had been an angel from heaven, his presence could not have been more welcome. Oh, what sunshine he seemed to bring! Was it a rainbow round his face, or was it only his genial Christian smile? His collar was perfect, so was his tie; his head immoveable, so were his principles. "Dear, dear!" said Mrs. Bumpkin, "I be so glad thee be come, Mr. Prigg—here be master takin' on so as never was; I never see'd anything like it."

"What's the matter, my dear lady?" inquired the good man.

"Be that loryer Prigg?" shouted a voice from the inner room.

"Aye, aye, Tom, it be Mr. Prigg."

"Come in, zur," said the voice, "come in; I be mighty glad to see thee. Why dam—"

"Hush!" remonstrated the diffuser of Christianity among the Jews; "hush!" and his hands were softly raised in gentle protest—albeit his head never turned so much as a hair's breadth. "Let us be calm, my dear sir, let us be calm. We win by being calm."

"Ah, we wonned the lawsuit; didn't us, sir?"

"Ah, that thee did, Tom!" exclaimed Mrs. Bumpkin, delighted at this momentary gleam of gladness in her husband's broken heart.

"Of course we won," said Mr. Prigg. "Did I ever entertain a doubt from the first about the merits of that case?"

"Thee did not, sir," said Tom; "but lookee 'ere, sir," he continued, in almost a whisper, "I dreamt last night as we lost un; and I see thic Snooks a sniggering as plaain as ever I see'd anybody in my life."

“My dear sir, what matters your dream? We won, sir. And as for Snooks’ sniggering, I am sorry to say he is sold up.”

“Sold oop!” exclaimed Bumpkin. “Sorry! why beest thee sorry for un—beant thee sorry for I?”

“Sorry you’ve won, Mr. Bumpkin? No; but, I’m sorry for Snooks, because we lose our costs. Oh, that Locust is the greatest dodger I ever met.”

“I don’t understand thee, sir,” said Bumpkin. “What d’ye mean by not getting costs—won’t ur pay?”

“I fear not,” said Mr. Prigg, rubbing his hands. “I am surprised, too, that he should not have waited until the rule for a new trial was argued.”

“What the devil be the meaning o’ all this?” exclaimed Bumpkin.

“Really, really,” said the pious diffuser of Christianity, “we must exercise patience; we may get more damages if there should be another trial.”

“This be trial enough,” said Mr. Bumpkin; “and after all it were a trumpery case about a pig.”

“Quite so, quite so,” said the lawyer, rubbing his hands; “but you see, my dear sir, it’s not so much the pig.”

“No, no,” said Mr. Bumpkin, “it beant so much th’ pig; it be the hoarses moore, and the hayricks, and the whate, and—where be all my fowls and dooks?”

“The fowls—quite so! Let me see,” said the meditative man, pressing the head of his gold pencil-case against his forehead, “the fowls—let me see—oh, I know, they did the pleadings—so they did.”

“And thic sow o’ mine?”

“Yes, yes; I think she made an affidavit, if I remember rightly. Yes, yes—and the bacon,” said he, elevating his left hand, “six flitches I think there were; they used to be in this very room—”

“Ay, sure did ur,” said Mr. Bumpkin.

“Well I remember; they made a very splendid affidavit too: I have a note of all of them in my memory.”

“What coomed o’ the cows?”

“Cows? Yes—I have it—our leading counsel had them; and the calf, if I remember rightly, went to the junior.”

“Who had the cheeses?” inquired Mr. Bumpkin.

“Cheeses!” said the good man. “Oh, yes, the cheeses; they went in refreshers.”

“And the poor old donkey?” asked Mrs. Bumpkin.

“Ah, where be Jock?” said Mr. Bumpkin.

“Went for the opinion,” answered the lawyer.

“Where be thic bull o’ mine?” said Tom. “He wur the finest bull in all thic county, woren’t he, Nancy?”

“Ay,” answered Mrs. Bumpkin, “and ur follered I about, Tom, jist like a Christian.”

“So ur did, Nancy. Dost thee mind, when ur got through thic gap into Squire Stucky’s meadow, ’mong the cows?”

“Ay, Tom; and thee went and whistled un; but ur wouldn’t come for thy whistlin; and Joe, poor Joe! went and got a great stick.”

“There I mind un,” said Bumpkin; “what coomed of un, Master Prigg?”

“Quite so,” said Mr. Prigg; “quite so; let me see.” And again the gold pencil-case was pressed against his respectable forehead in placid cogitation. “Yes, that bull argued the appeal.”

“Hem!” said Mr. Bumpkin; “argied appeal, did ur? Well, I tell ee what, Master Prigg, if that air bull ’ad knowed what I knows now, he’d a gi’en them jussesses a bit o’ his mind, and thee too.”

“Dear me,” said Mr. Prigg; “you entirely mis-apprehend—”

“Well, lookee ’ere,” said Tom, “it beant no use to mince matters wi’ ee. What I wants to know is as this; I winned my case—”

“Quite so,” said Prigg.

“And ’ow be it then that all my sheep and things be took off the farm?”

“Dear me!” said Mr. Prigg, in the tone of an injured man; “I think, of all men, clients are the most ungrateful. I have worked night and day to serve you; I have sacrificed my pleasures, which I do not reckon—my home comforts—”

“But who be thic feller that steals my corn an’ hay, and pigs?”

“Really, Mr. Bumpkin, this is language which I did not expect from you.”

“But ’ow comes my farm stripped, Maister Prigg? tell I thic.”

“I suppose you have given a bill of sale, Mr. Bumpkin. You are aware that a lawsuit cannot be carried on without means, and you should have calculated the cost before going to war. I think there is Scripture authority for that.”

“Then have this Skinalive feller the right to take un?”

“I presume so,” said Prigg; “I know he’s a most respectable man.”

“A friend o’ thine, I s’poase?”

“Well,” said Prigg, hesitating, “I may even go so far as to say that.”

“Then I be gwine so fur as to say thee be a damned rogue!” said Mr. Bumpkin, rising, and thumping the table with great vehemence.

You might have knocked Mr. Prigg down with a feather, certainly with a bludgeon; such a shock he had never received at the hands of a client in the whole course of his professional experience. He rose and drew from his pocket an envelope, a very large official-looking envelope, such as no man twice in his life would like to see, even if he could be said to enjoy the prospect once.

It is not usual for respectable solicitors to carry about their bills of costs in their pockets, and why Mr. Prigg should have done so on this occasion I am not aware. I merely saw in my dream that he did so. There was not a change in his countenance; his piety was intact; there was not even a suffusion of colour. Placid, sweet-tempered, and urbane, as a Christian should be, he looked pityingly towards the hot and irascible Bumpkin, as though he should say, "You have smitten me on this cheek, now smite me on that!" and placed the great envelope on the table before the ungrateful man.

"What be thic?" inquired Mr. Bumpkin.

"A list of my services, sir," said Prigg, meekly: "You will see there, ungrateful man, the sacrifices I have made on your behalf; the journeyings oft; the hunger, and, I may say, thirst; the perils of robbers, the perils amongst false friends, the—"

"I doant understand, sir," said Bumpkin.

"Because darkness hath blinded your eyes," said the pious lawyer; "but I leave you, Mr. Bumpkin, and I will ask you, since you no longer repose confidence in my judgment and integrity, to obtain the services of some other professional gentleman, who will conduct your case with more zeal and fidelity than you think I have shown; I who have carried your cause to a triumphant issue; and may be said to have established the grand principle that an Englishman's house is his castle."

And with this the good man, evidently affected by deep emotion, shook hands silently with Mrs. Bumpkin, and disappeared for ever from my view.

Never in any dream have I beheld that man again. Never, surely, under any form of humanity have so many virtues been concealed. I have looked for him in daily life, about the Courts of Justice and in the political arena, but his equal for simplicity of character, for unaffected piety, and purity of motive, have I never discovered, although I have seen many, who, without his talents, have vainly endeavoured to emulate his virtues.

Mrs. Bumpkin examined the document he had left, and found a most righteous statement of the services rendered by this great and good man; which, after giving credit to Mr. Bumpkin for cash received from Mr.

Skinalive, Mr. Prigg's friend, of seven hundred and twenty-two pounds, six shillings and eightpence-half-penny, left a balance due to Honest Lawyer Prigg of three hundred and twenty-eight pounds, seven shillings and threepence,—subject, of course, to be reduced on taxation.

CHAPTER XXXVIII.

Farewell.

The last chapter of a book must always possess a special and melancholy interest for the author. He gives his words reluctantly, almost grudgingly, like one who is spending his last coins and will soon be left penniless upon the world. Or like one who is passing his last moments at the house of a friend whom he may see no more for ever. The author is taking farewell of his characters and his readers, and therefore his regret is twofold; added to which is the doubt as to whether, judged by the severe standard of Public Opinion, he has been faithful to both. Thought is large, and may fill the world, permeating every class and every section of society; it may be circumscribed, and operate only upon some infinitesimal proportion of mankind: but whether great or small, for good or evil, it is published, and a corresponding responsibility devolves upon the writer. I record my dream faithfully, and am therefore exonerated, in my conscience, from responsibility in its effect.

How shall I describe the closing scene of this eventful story? I will imagine nothing; I will exaggerate nothing; for, during the whole progress of the story, it has been my constant care not to give the most captious critic the opportunity of saying that I have exaggerated a single incident. I will relate faithfully what I saw in my dream, and that only; diminishing nothing, and adding nothing.

In my waking moments my wife said it was very wrong of Mr. Bumpkin, after all that Mr. Prigg had done for him, to be so rude. I agreed that it was: but said, great allowance must be made for Mr. Bumpkin's want of education. Then said my wife, "Will not some shallow-minded persons say that your story attacks the administration of justice?" To which I replied that it did not matter what shallow-minded persons said, but that in fact I

had in no way attacked the administration of justice; nor had I in the least degree reflected on the great body of respectable solicitors who had in their hands the interests of the country, and faithfully discharged their duties. And then I stood up, and putting forth my hand in imitation of Pitt's statue in the corridor of the House of Commons, I said, "Justice is Divine, not Human; and you cannot detract from anything that is Divine, any more than you can lessen the brilliancy of the sun. You may obscure its splendour to mortal eyes, but its effulgence is the same. Man may so ostensibly assert his own dignity, or the dignity of a perishable system, that it may temporarily veil the beauty of a Divine attribute; but Justice must still remain the untarnished glory of Divine wisdom. It is not the pomp of position or the majesty of office that imparts dignity to Justice."

Here, exhausted with my effort, and with my wife's applause ringing in my ears, I fell asleep again, and dreamed that I saw Bumpkin sadly wandering about the old farm; his faithful wife following, and never for one moment ceasing to cheer him up. It was a fine bright morning in October as they wandered forth. There wasn't a living thing about the farm except the birds, and even they seemed sad in their twittering. Could it be possible that they knew of poor Bumpkin's miserable condition?

There was an old jackdaw that certainly did; for he hopped and hopped along after the master with the saddest expression I ever saw bird wear. But the master took no notice. On and on he wandered, seemingly unconscious of the presence even of his wife.

"Tom!" she said, "Tom, where beest thee gwine?"

Bumpkin started; turned round, and said:

"Nancy! what, be it thee, lassie?"

"Ay, Tom, sure enough it be I. Let's cheer up, Tom. If the worst come to the worst—we can but goo to Union."

"The wust have come to th' wust, Nancy; we be ruined! Look at this 'ere farm—all be bare—all be lost, Nancy. Hark how silent it all be!"

"Never mind, Tom; never mind. I wish Joe wur here."

“Ah! Joe, yes. I wonder where Joe be; praps he be out here in th’ six akre.”

“No, no, Tom, he be gwine for a sojer; but I’ve a mind he’ll come back. And who knows, we may be ’appy yet! We’ve worked hard, Tom, together these five-and-thirty year, and sure we can trudge on t’ th’ end. Come, let’s goo in and ave some breakfast.”

But Tom kept on walking and looking round the fields after his old manner.

“I think we’ll ave wuts here,” said he.

“So ur will, Tom, but let’s have breakfast fust. Come, lad.”

They wandered still through the quiet fields, and the old man’s mind seemed giving way. But I saw that Mrs. Bumpkin kept up with him and cheered him whenever she could put in a word of comfort, cold and hopeless as it was. And so the day was spent, and the night came, and they entered their home for the last time. It was a terribly sad night; but the Vicar came and sat up late with the old people, and talked to them and read and cried with them, until at last Tom said:

“I zee it, sir, thee hast showed I; thank God for thy words. Yes, yes, we maun leave t’ morrer, and we’ll call on thee, and maybe thou’lt goo to th’ Squire wi’ us and explaain to un how we can’t pay our rent, and may be th’ Squire’ll let I work un out. If we could only work un out, I’d be ’appy.”

“Ay, Tom,” said Mrs. Bumpkin, “an I’ll work too; thee knows that.”

“Thee wast allays a good wife, Nancy; and I’ll allays say’t, come what wooll.”

“Yes,” said the Vicar, “to-morrow we will go—”

“I don’t want un to forgive I th’ rent,” said Tom; “only to gie us time, and Nancy and I’ll work un out.” And so it was arranged that the next morning the old home was to be left for ever. It was no longer home, for every article of furniture, every tool, every scrap that was of any value had been ruthlessly seized by the heartless money-lender whom the Law permitted to rob under the name of a bill of sale. The man was in possession to take away their bed and the few other articles that were left for their accommodation till the morrow.

And on the morrow I saw the last of poor Bumpkin that I shall ever see. In the beautiful sunshine of that October morning, just by the old oak, he was leaning over the gate looking his last at the dear old fields and the old farmhouse where so many happy years had been spent. By his side was his wife, with her hand shading her eyes; the old dog was between them, looking into the face now of Tom and then of his wife. Mr. Bumpkin's arms were resting on the gate, and his old ash stick that he used to walk with over the fields was in his hand. They stood there for a long, long time as though they could never leave it. And I saw the tears trickle down the old man's face as Mrs. Bumpkin, letting fall the corner of her apron, which she had held to her eyes, and placing her arm through his, said in a faltering voice:—

“Come, Tom, we must goo.”

THE END.

THE LAWSUIT.

Tom Bumpkin was a thriving man,
As all the world could see;
In forty years he'd raised himself
From direst poverty.

And now he rented from the Squir
Some acres, near a score;
Some people said 'twas twenty-five,
And some that it was more.

He had a sow of rare brave breed,
And nine good pigs had he;
A cow and calf, a rick of hay,
And horses he had three.

And Mrs. Bumpkin had a bull,
The finest creature out;
"And, like a Christian," so she said,
"It follered her about."

So Bumpkin was a thriving man,
As all the world could see;
A self-made man, but yet not made
Of scholarship was he.

With neighbour Snooks he dealings had
About his latest farrow;
Snooks said he'd bought a pig, and so,
To prove it, brought his barrow.

Tom said, "It wur to be two crowns;"
Snooks said, "Twur nine-and-six;"

Then Tom observed, "You doan't 'ave me
Wi none o' them there tricks."

So there was battle; Lawyer Prigg
Was told this tale of woe;
The Lawyer rubbed his bony hands
And said, "I see; quite so!"

"A case of trespass,"—"Ay zo 't be!"
Said Bumpkin, feeling big;
"Now mak un pay vor't, mak un pay;
It beant so much th' pig."

"No, no, it's not so much the pig,
That were a matter small;
Indeed, good Bumpkin, we may say
It's not the pig at all!

"It's more the *principle* involved,
The rights of man, you see"—
"Ay, ay," quoth Tom; "the devil's in't
'F I beant as good as he."

There never was a man more prompt
Or swift to strike a blow:
Give but the word, and Charger Prigg
Was down upon the foe.

The LETTER, WRIT, and STATEMENT went
Like lightning, thunder, rain;
INSPECTION and DISCOVERY rode
Like Uhlans o'er the plain!

Then INTERROGATORIES flew
Without procrastination:
As when the ambushed outposts give
A deadly salutation.

Now Snooks's lawyer was a man
To wrong would never pander;

And like a high-souled Pleader drew
A COUNTERCLAIM for slander;

And then with cautious skill behind
The legal outworks clambers;
Until dislodged, he held his own
Entrenched in Judges' Chambers.

At length came battle hot and fierce,
And points reserved as though
The case must be economized,
Not murdered at a blow.

Then came appeals upon the points,
New trials on the facts;
More points, more learned arguments,
More precedents and Acts.

But LAW, thou art a tender plant
That needs must droop and die;
And bear no fruit unless thy root
Be watered constantly:

And Bumpkin with a generous hand
Had given thee good supply;
He drained the well, and yet withal
The noble Prigg was dry.

With plaintive look would move a stone,
Tom gazed on Lawyer Prigg:
Who rubbed his hands and said, "You see,
It's not so much the pig."

"Noa, noa, it be th' horses moore,
The calf and sheep and kine,
Where be th' hay-rick and the straw?
And where thic bull o' mine?"

The Lawyer said, "Quite so, quite so!"
Looked wise, and wisely grinned;

For Tom was like a ship becalmed,
He stopped for want of wind.

“You see,” said Prigg with gravity
Would almost make you laugh,
“Our leading Counsel had the Cow,
The junior had the Calf.

“The hay and straw *Rules nisi* got,
Made *Absolute* with corn,
The pigs made *Interrogat’ries*,
Most beautifully drawn.

“The Bacon—ah, dear Bumpkin, few
In Law suits ever save it;
It made together with the sow,
A splendid *Affidavit*.

“The cocks and hens the *Pleadings* did
Most exquisitely utter;
And some few pans of cream there were,
Which made the *Surre-butter*.”

“Why, Surrey butter! I’d a tub
The best in this ere nation”—
“Quite so!” said Prigg; “but you forget,
’Twas used in *Consultation*.”

“Well, well, of all the hungry mouths,
There’s nothing like the Law’s;
No wonder they can talk if that
Be how they ile their jaws.

“Now just look ere; I’d twenty cheese,
The finest of old Cheshires,”—
“Quite so, quite so!” said Prigg; “but they
Just furnished the *Refreshers*.

“The Ass for the *Opinion* went;
The Horses, *Costs* between us;

And all the Ducks and Drakes, my boy,
Were turned into SUBPÆNAS.”

“I zee it all; the road to Ruin,
Straight as any furrer:
That Bull o’ mine”—“Excuse me, Sir,
Went up upon DEMURRER.”

“Then beant there nothing left for I,
In all this ere undoin?
Nay, Nance, our fireside be gone,
It’s emptiness and ruin.

“I wish we’d fought un out ourselves
Wi’ fists instead o’ law;
Since Samson fit, there never was
Good fightin wi the jaw.”

So *now* Tom’s not a thriving man,
He owns not cow or pig;
And evermore he’ll be in debt
To Honest Lawyer Prigg.

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Footnotes

[0a] Since the First Edition, “a bulky volume” of new rules has appeared. No independent existence at present, and therefore anatomy uncertain. I have peeped at it, and think if it reaches maturity it will help the rich litigant very much; and, if it abolishes trial by jury, as it threatens, we shall be, in time to come, a Judge-ridden people, which God forbid. I am not afraid of a Judge now, but I should be then. The choice in the future *might* be between servility and a prison; and I sincerely believe that if trial by jury should be abolished, this country would not be safe to live in. Much *mending*, therefore, and consequently the more holes. I wonder what the Liberalism of the future will say when it learns that the Liberalism of Mr. Gladstone’s Government struck the first blow at *Trial by Jury*? Truly “the axe to laid to the root of the tree,” and, reversing the Divine order, “every tree that *bringeth forth good fruit is*” in danger of being “hewn down.”

R. H.

[22] This inscription, with the exception of the names, is a literal copy.

[52] Modern pleaders would say the Court would take judicial notice of the existence of Egypt: I am aware of this, but at the time I write of the Courts were too young to take notice.

[138] The correctness of Mr. O’Rapley’s views may be vouched for by a newspaper report in the *Evening Standard* of April 17th, 1883, which was as follows:—“Mr. Justice Day in charging the Grand Jury at the Manchester Spring Assizes yesterday, expressed his disagreement with the opinion of other Judges in favour of the Commission being so altered that the Judge would have to ‘deliver all the prisoners detained in gaol,’ and regarded it as a waste of the Judge’s time that he should have to try a case in which a woman was indicted for stealing a shawl worth three-and-ninepence, or a prisoner charged with stealing two mutton pies and two ounces of bacon.”

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